THE ABOLITION OF THE PUNISHMENT OF WHIPPING ACT, 1996

CONTENTS

1. Short title, extent and commencement.
2. Definition.
3. Abolition of punishment of whipping.
4. Repeal.

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THE ABOLITION OF THE PUNISHMENT OF WHIPPING ACT, 1996

ACT No. VII OF 1996

An Act to abolish and restrict the punishment of whipping

WHEREAS it is expedient to abolish the punishment of whipping except in cases where such punishment is awarded as *hadd* and for matters connected therewith and incidental thereto ;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Abolition of the Punishment of Whipping Act, 1996.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definition.—In this Act, unless there is anything repugnant in the subject or context, the expression "*had*" means the punishment of crimes laid down in the Holy Quran and Sunnah.

3. Abolition of punishment of whipping.—Except in cases where the punishment of whipping is provided for as *hadd*, the sentence of whipping provided under any law, rule or regulation for the time being in force shall stand abolished:

Provided that where, on the commencement of this Act, the sentence of whipping awarded by any Court or Tribunal has not been executed, such sentence of whipping shall stand remitted.

4. Repeal.—The Whipping Act, 1909(IV of 1909), is hereby repealed.

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THE ALLOPATHIC SYSTEM (PREVENTION OF MISUSE) ORDINANCE, 1962

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1. Short title, extent and commencement
2. Definition
3. Prohibition of the use of the word “doctor” and its variations, etc.
4. Prohibition of the use of medical degrees or diplomas
5. Prohibition of performing surgical operations by unqualified persons
6. Prohibition for prescribing certain drugs
7. Restriction on the sale of patent and proprietory medicines
8. Rule-making powers of the Provincial Government
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THE ALLOPATHIC SYSTEM (PREVENTION OF MISUSE) ORDINANCE, 1962

ORDINANCE NO. LXV OF 1962

[7th *June*, 1962]

An Ordinance to prevent the misuse of the allopathic system of medicine and to provide for matters connected therewith.

WHEREAS it is expedient to prevent the misuse of the allopathic system of medicine and to provide for matters connected therewith;

Now, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance: —

1. Short title, extent and commencement.—(1) This Ordinance may be called the Allopathic System (Prevention of Misuse) Ordinance, 1962.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definition.—In this Ordinance, unless there is anything repugnant in the subject or context, "registered medical practitioner" means a person registered under the [1][Medical and Dental Council Ordinance, 1962 (XXXII of 1962).

3. Prohibition of the use of the word "doctor" and its variations, etc.—No person practising the allopathic, homoeopathic, ayurvedic, unani or any other system of medicine shall use with his name or address or with the name or address of his business the word "doctor" or any of its grammatical variations, cognate expressions or abbreviations so as to give out that he is entitled to practise medicine unless he is a registered medical practitioner:

Provided that nothing in this section shall apply to a person on whom a Doctor's degree other than medical degree has been conferred by any university in or outside Pakistan.

4. Prohibition of the use of medical degrees or diplomas.—No person shall use a medical degree or a medical diploma to give out that he is a qualified medical practitioner or for any purpose connected with medical practice, unless such degree or diploma has been conferred or awarded by a university or institution in or outside Pakistan recognized under the [1][Medical and Dental Council Ordinance, 1962] (XXXII of 1962).

5. Prohibition of performing surgical operations by unqualified persons.—No person other than a registered medical practitioner shall perform any surgical operation other than circumcision, incision of boils and administration of injections.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II.

6. Prohibition for prescribing certain drugs.—No person other than a registered medical practitioner or a person authorized in this behalf by the [1][Provincial Government] shall prescribe any antibiotic or dangerous drug specified in the rules made under this Ordinance.

7. Restriction on the sale of patent and proprietory medicines.—No person shall sell in the market any patent or proprietory medicine of the unani, ayurvedic, homoeopathic or biochemic system of medicine unless there is displayed, in a conspicuous and readily intelligible manner, on the label or container thereof and also on the outer cover of the container (other than ordinary wrapper) the true formula of the medicine contained in it.

8. Rule-making powers of the Provincial Government.—The [1][Provincial Government] may make rules for carrying out the purposes of this Ordinance.

9. Penalty.—Whoever contravenes the provisions of section 3 or section 4 or section 5 or section 6 or section 7 shall be punishable with imprisonment which may extend to one year or with fine not exceeding two thousand rupees, or with both.

10. Jurisdiction.—(1) No prosecution shall be instituted under this Ordinance except by an Inspector appointed under the [2][Drugs Act, 1976 (XXXI of 1976)] or by a person specially empowered by the [1][Provincial Government] in this behalf.

(2) No court inferior to that of a Magistrate of the first class shall try an offence punishable under this Ordinance and notwithstanding anything contained in section 32 of the Code of Criminal Procedure, 1898 (Act V of 1898), it shall be lawful for such Magistrate to pass any sentence of fine to the extent provided for by this Ordinance in excess of his powers under the said section 32.

11. Protection.—No suit or proceeding shall lie against any Inspector or person acting in good faith under section 10 of this Ordinance.

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RGN Date: 29-05-2024

[1]Subs. and ins. by A.O., 1964, Art. 2 and Sch.
[2]Subs. by the Federal laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II.

THE ANTI NARCOTICS FORCE ACT, 1997

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1. Short title and commencement
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3. Constitution of the Force
4. Superintendence and administration of the Force
5. Functions of the Force
6. Power of the members of the Force
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9. Grounds of punishment
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11. Terms of Service
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13. Members to serve anywhere
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15. Delegation of powers
16. Indemnity
17. Power to make rules

SCHEDULE

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THE ANTI NARCOTICS FORCE ACT, 1997

ACT NO. III OF 1997

[12th April, 1997]

An Act to provide for the constitution of Anti Narcotics Force

WHEREAS it is expedient to provide for the constitution of a Force for the purpose of inquiring into, and investigating offences relating to narcotics and Narcotics Trafficking, and for matters connected therewith or incidental thereto;

It is hereby enacted as follow:

1. Short title and commencement.—(1) This Act may be called the Anti Narcotics Force Act, 1997.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Code" means the Code of Criminal Procedure, 1898 (Act V of 1898);

(b) "Director-General" means the Director General of the Force;

(c) "Force" means the Anti Narcotics Force constituted under section 3;

(d) "narcotics" includes narcotic drugs, psychotropic substances and controlled substances as defined in the Control of Narcotic Substances Ordinance, 1996 (XCIV of 1996);

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(e) "police" means a police-force constituted by the Federal Government or Provincial Government under the Police Act, 1861 (V of 1861);

(f) "prescribed" means prescribed by rules under this Act; and

(g) "rules" means rules made under this Act.

(2) The words and expressions used but not defined herein shall have the same meaning as assigned to them in the Control of Narcotic Substances Ordinance, 1996 (XCIV of 1996).

3. Constitution of the Force.—(1) Notwithstanding anything contained in any other law for the time being in force, the Federal Government may constitute a Force to be called the Anti-Narcotics Force.

(2) The Force shall consist of a Director-General to be appointed by the Federal Government and such number of other officials as the Federal Government may, from time to time, appoint to be members of the Force.

(3) On commencement of this Act, the Pakistan Narcotics Control Board constituted under the Government of Pakistan, Planning Division's Resolution, dated the 8th March, 1973, and Anti-Narcotics Task Force constituted under the Anti-Narcotics Task Force Ordinance, 1994 (LXXVI of 1994), shall stand merged and all personnels, including officers, ministerial staff and the contingent staff of the said Board and Task Force shall, subject to the provisions of section 11 become members of the Force and be governed in accordance with this Ordinance and the rules made thereunder.

(4) The Force shall for all intents and purposes be successor of Pakistan Narcotics Control Board and Anti-Narcotics Task Force in respect of all cases, inquiries, investigation, assets, liabilities, rights, obligations and privileges and matters related thereto or connected therewith.

(5) Notwithstanding anything contained in the General Clauses Act, 1897 (IV of 1897), anything done or action taken before the commencement of this Acts, under the Anti-Narcotics Task Force Ordinance, 1994 (LXXVI of 1994), or otherwise by the Pakistan Narcotics Control Board in so far it is not inconsistant with the provisions of this Act shall be deemed to have been done or taken under this Act.

4. Superintendence and administration of the Force.—(1) The superintendence of the Force shall vest in the Federal Government.

(2) The Administration of the Force shall vest in the Director-General who shall exercise in respect of the Force all powers of an Inspector-General of Police under the Police Act, 1861 (V of 1861); and all other powers under the Act.

(3) In case of any officers and members from the Armed Forces, the Director-General shall have all powers conferred by or under the Pakistan Army Act, 1952 (XXXIX of 1952), the Pakistan Air Force Act, 1953 (VI of 1953), and the Pakistan Navy Ordinance, 1961 (XXXVI of 1961), respectively as an officer empowered to convene a General Court Martial:

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Provided that such powers shall be exercised only by the Director-General who is in the regular service of any of the Armed Forces.

5. Functions of the Force.—The Force shall

(a) inquire into, investigate and prosecute all offences relating to, or connected with, preparation, production, manufacture, transportation, illicit trafficking or smuggling of intoxicants, narcotics and chemical precursors or reagents used in the manufacture of narcotics, or any offence committed in the course of the same transaction under any law for the time being in force, including an attempt or conspiracy to commit, or any abetment of, any such offence, or any offence committed under the Control of Narcotics Substances Ordinance, 1996 (XCIV of 1996), or the Prohibition (Enforcement of Hadd) Order, 1979 (P.O.4 of 1979).

(b) trace and freeze the assets;

(c) provide assistance and advice to other enforcement agencies on all matters in the field of narcotics and to collect information from all national and international enforcement agencies about illicit narcotic traffic and traffickers;

(d) maintain liaison with all national or international narcotics authorities, organisations, bodies, associations and societies and represent Pakistan in such conferences, seminars and workshops arranged by any such organization on narcotics related matters;

(e) arrange and co-ordinate training of own staff and members of other enforcement agencies in various aspects of narcotics enforcement;

(f) co-ordinate the project and schemes for elimination and destruction of poppy cultivation; and

(g) perform any other related functions which may be assigned to it by the Federal Government.

6. Power of the members of the Force.—(1) The members of the Force shall, for the purpose of any inquiry or investigation under this Act, have throughout Pakistan such powers, including the powers relating to search, arrest of persons and seizures of property, and such duties, privileges and liabilities as a police-officer has in respect of offences under the Code or any other law for the time being in force.

(2) Save when the Director-General otherwise direct, a member of the Force, not below the rank of an Inspector may, for the purpose of any inquiry or investigation under this Act, exercise all the powers of an officer-in-charge of a police-station in any area in which he is for the time being and, when so exercising such powers, shall be deemed to be the officer-in-charge of a police-station discharging his functions as such within the limits of his station.

(3) Without prejudice to the generality of te provisions of sub-section (1) and sub-section (2), any member of the Force not below the rank of Inspector, authorized by the Director-General in this behalf, may arrest without warrant any person who has committed or against whom a reasonable suspicion exists that he has committed any of the offences relating to narcotics referred to in clause (a) of section 5.

(4) Notwithstanding anything contained in any other law for the time being in force, a member of the Force not below the rank of Inspector authorised by the Director-General, may inquire, investigate and trace the assets of a person who has committed an offence referred to in clause (a) of section 5 or when in his opinion, there is a reasonable suspicion that the said assets were acquired through illicit involvement in narcotics; and may, for this purpose, require a bank or other financial institution or departments, whether under the control of Government or otherwise to furnish such information as he may specify.

(5) If in the opinion of a member of the Force, conducting an inquiry investigating or tracing any assets under sub-section (4), which is likely to be removed, transferred or otherwise disposed of, such member may, notwithstanding anything contained in any other law for the time being in force, by order in writing direct the owner or any person who is for the time being in possession thereof, not to remove,

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transfer, or otherwise dispose of such property in any manner except with the previous permission of that member and such order shall be subject to any order made by the Court having jurisdiction in the matter.

(6) any contravention of any order made under sub-section (4) or (5) shall be punishable with rigorous imprisonment for a term which may extend to three years, or with fine, or with both.

(7) Any member of the Force may, in performance of its functions and exercise of powers as may be prescribed, seek assistance from all officers of police, customs, excise, Federal Investigation Agency or any other investigation agency or authority or civil armed forces.

(8) Notwithstanding anything contained in any other law for the time being in force, the Federal Government may, in respect of any case registered by, or under investigation of, police, customs, excise, Federal Investigation Agency or any other investigation agency or authority, by order in writing, entrust inquiry or such investigation to the Force, and thereupon the police, customs, excise, Federal Investigation Agency or any other investigation agency or authority shall transfer the record of the case to the Force.

(9) The Force may, in accordance with the law, establish as many police-stations as are required for the efficient functioning of the Force and all police-stations of Anti-Narcotics Task Force and Pakistan Narcotics Control Board shall be deemed to be the police stations of the Force.

Explanation,—For the purpose of this Act, the expression "police station" means and includes any place declared as such, by the Federal Government or a Provincial Government to be a police station within the meaning of the Code.

7. Wearing of Uniform.—All members, excluding ministerial staff of the Force, employed on enforcement duties shall wear such uniform as may be prescribed.

8. Punishment.—(1) The following minor and major punishments shall be awarded to the officers and members of staff of the Force, namely:—

(a) *Minor Punishments:*

(i) Censure;

(ii) forfeiture of approved service upto two years;

(iii) withholding of promotion upto one year;

(iv) stoppage of increment for a period not exceeding three years without cumulative effect;

(v) fine to any amount not exceeding one month's pay;

(vi) confinement to quarters for a term not exceeding fifteen days, with or without punishment, drill, extra guard, fatigue or other duty; and

(vii) extra drill not exceeding fifteen days, fatigue or other duties.

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(b) *Major Punishments:*

(i) Reduction in rank;

(ii) compulsory retirement;

(iii) removal from service; and

(iv) dismissal from service.

(2) Removal from service does not, but dismissal from service does, disqualify for future employment.

(3) In this section, removal or dismissal from service does not include the discharge of person—

(a) appointed on probation, during the period of probation, or in accordance with probation or training rules applicable to him; or

(b) appointed, otherwise than under a contract, to hold a temporary appointment on the expiration of the period of appointment; or

(c) engaged under a contract, in accordance with the terms of the contract.

9. Grounds of punishment.—Where, a member, in the opinion of the Authority:—

(a) is inefficient or has ceased to be efficient; or

(b) is guilty of misconduct; or

(c) is corrupt or may reasonably be considered corrupt because—

(i) he is, or any of his dependents or any other person claiming through him, or on his behalf is, in possession (for which he cannot reasonably account) of pecuniary resources or any property disproportionate to his known sources of income; or

(ii) he has assumed a style of living beyond his ostensible means; or

(iii) he has a reputation of being corrupt; or

(d) he is engaged, or is reasonably suspected of being engaged in subversive or narcotics activities, or is reasonably suspected of being associated with those engaged in subversive or narcotics activities or is guilty of disclosure of official secrets to any unauthorised person, and his retention in service is, therefore, prejudicial to national security and interest of State,

the authority may impose on him one or more punishments specified in sub-section (1) of section 8.

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10. Authority to award punishment.—The authorities to award punishment under section 8 are specified in the Schedule to this Act.

11. Terms of Service.—(1) All personnels upto the rank of Inspector and their equivalent in the ministerial staff of the Force may elect to be governed by the existing terms of service applicable to them and such option shall be sent to the Director-General, of the Force within such period as may be decided by the Director-General failing which they shall be deemed to have opted to serve under this Act.

(2) The personnels not opting to serve in accordance with the terms of this Act may, at the discretion, of the Director-General, be placed at the disposal of Federal Government for adjustment elsewhere.

12. Conduct and Discipline.—(1) The police Act, 1861 (V of 1861), the Police Rules, 1934, and the Punjab Police (Efficiency and Discipline) Rules, 1975, shall, *mutatis mutandis*, be applicable to all members upto the rank of an Inspector, if not inconsistent with the provisions of this Act or where operation of any provision thereof is excluded by the Director-General by a specific order made in this behalf.

(2) Subject to subsection (1), all members of the Force including the ministerial staff except those on deputation from the armed forces shall be governed by the Civil Servants Act, 1973 (LXXI of 1973), and rules made thereunder.

13. **Members to serve anywhere.**—Every member of the Force shall be deemed to be always on duty and be liable to serve anywhere within or without Pakistan.

14. Members as public prosecutors.—Notwithstanding anything contained in the Code, all Directors, Deputy Directors and Assistant Directors of the Force, shall be *ex-officio* public prosecutors in respect of all offences relating to narcotic and specified in clause (a) of section 5, for trial before the Special Court or any other court when so directed by the Director-General and may conduct the proceedings in the said Court and deal with any matter connected therewith or ancillary thereto.

15. Delegation of powers.—The Director-General may, by order in writing, direct that all or any of his powers under this Act or the rules shall, subject to such conditions, if any, as may be specified in the order, be exercisable by any member of the Force.

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16. Indemnity.—No suit, prosecution, or other proceedings shall lie against the Federal Government, Provincial Government, Director-General or any member of the Force or any other person exercising any power or performing any function under this Act or the rules made thereunder for anything which is done is good faith or intended to be done under this Act or the rules.

17. Power to make rules.—(1) The Federal Government may, by notification in the Official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the terms and conditions of service of the Director-General and other members of the Force and the qualifications for recruitment to various posts;

(b) the powers and functions of the members of the Force in relation to the conduct of inquiries and investigations; and

(c) the manner in which rewards may be given to the members of the Force or to the public for rendering commendable service.

SCHEDULE
(Section 9)
Authorities to Award Punishment

S. No.	Punishment	Inspector or equivalent grade	Sub-Inspector/ Assistant Sub-Inspector or equivalent or a grade between ASI/ Head-Constable	Head Constable or equivalent grade or a grade between Head Constable and Constable	Constable or equivalent or Lower grade
1.	Extra Drill not exceeding 15 days Fatigue or other duties.			Dy. Director	Asstt. Director
2.	Confinement to quarters upto 15 days.			Dy. Director	Asstt. Director
3.	Censure.	Director	Director	Dy. Director	Asstt. Director
4.	Forfeiture of approved service upto 2 years.	Director	Director	Dy. Director	Asstt. Director

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5.	Stoppage of increments not exceeding 3 years.	Director	Director	Dy. Director	Asstt. Director
6.	Fine to any amount not exceeding one month's pay.	Director	Director	Dy. Director	Asstt. Director
7.	Withholding of promotion for one year or less.	Director	Director	Dy. Director	Asstt. Director
8.	Reduction from substantive rank to a lower rank reduction in pay.	Director	Director	Dy. Director	Asstt. Director
9.	Dismissal, removal from service, compulsory retirement.	Director General	Director General	Director	Director

Explanatory Note.— The punishments as mentioned in the Punishment Table may also be inflicted on members of the various ranks shown in the heading Nos. 3 to 6 by an officer of higher rank.

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RGN Date: 13-01-2025

THE ARMS ACT, 1878

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THE FIRST SCHEDULE. - [*Repealed*.]

THE SECOND SCHEDULE. - [*Repealed*.]

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THE ARMS ACT, 1878

[1]ACT No. XI OF 1878

[15th *March*, 1878]

An Act to consolidate and amend the law relating to Arms, Ammunition and Military Stores.

Preamble.

WHEREAS it is expedient to consolidate and amend the law relating to arms, ammunition and military stores; It is hereby enacted as follows:—

I.-PRELIMINARY

1. Short title Local extent. —This Act may be called the [2]* Arms Act, 1878; and it extends to [3][the whole of Pakistan].

Savings. But nothing herein contained shall apply to–

(a) arms, ammunition or military stores on board any seagoing vessel and forming part of her ordinary armament or equipment, or

(b) the manufacture, conversion, [4][import or export] of arms, ammunition or military stores by order of [5][the [6][Federal Government] or any Provincial Government], or by a public servant or [7][a member of the forces constituted by the Pakistan Territorial Force Act, 1950 (L of 1950)] in the course of his duty as such public servant or [8][member].

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[1]For the Statement of Objects and Reasons, *see* Gazette of India, 1877, Pt. V, p. 650; for discussions in Council, *see ibid.*, 1877, Supplement, pp. 3016 and 3030; *ibid*., 1878, Supplement, pp. 435 and 453.

The functions of the Central Government under certain provisions of this Act, subject to certain conditions, were entrusted to-

(a) Provincial Governments with their consent, for a period of three years (with effect from the 1st April, 1951), *see* Gaz. of P., 1951, Pt. I, p. 181; and

(b) The Chief Commissioner of Karachi, for the period 28th April, 1952 to 31st March, 1957, *see* Gaz. of P., 1954, Pt. I, p.136.

The Act has been applied to—

(i) Balochistan by Regulation III of 1940 with certain restrictions and modifications.

(ii) Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.

(iii) Excluded Area of Upper Tanawal other than Phulera by the N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from 1st June, 1951; *see* N.W.F.P. Gazette, Ext., dated 1st June, 1951; and

(iv) The Leased Areas of Balochistan, *see* the Leased Areas (Laws) Order, 1950, (G.G.O. 3 of 1950); and applied in the Federated Areas of Balochistan ; *see* Gazette of India, 1937, Pt. I, p. 1499.

It has been extended to the Balochistan States Union by the Balochistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953), as amended.

The Act has been and shall be deemed to has been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.

A license granted under the Explosives Act, 1884 (4 of 1884), for the manufacture, possession, sale, transport or importation of an explosive may be given the effect of a like license granted under the Arms Act. 1878 (11 of 1878), *see* Act 4 of 1884, s. 15.

As to further law relating to unlawful manufacture and possession of explosive substances, *see* the Explosive Substances Act, 1908 (6 of 1908), ss. 4 (b) and 5.

This Act bas been repealed in its application to the Province of West Pakistan except certain provisions by West Pakistan Ordinance 20 of 1965, s. 29 (with effect from the 8th June, 1965).

The Act has been amended in the N..W.F.P. by the Indian Arms (N.W.F.P. Amdt.) Act, 1934 (N.W.F.P. 1 of 1934) and Sind Act 10 of 1953, s.12.

[2]The word "Indian" omitted by A. O., 1949, Sch.

[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "all the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "the whole of British India".

[4]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and IInd Sch., for" sale, import, export, transport, bearing or possession".

[5]Subs. by A.O., 1949, Sch., for "any Govt. in British India", which had been subs. by A. O., 1937, for "the Govt.".

[6]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

[7]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and III Sch., for "a member of either of the forces constituted" by the Indian Territorial Force Act, 1920 or the Auxiliary Force Act, 1920", which had been subs. for "a Volunteer enrolled under the Indian Volunteers Act, 1869" by the Auxiliary Force Act, 1920 (49 of 1920), s. 35.

[8]Subs. *ibid.*, for "Volunteer".

2. Commencement. This Act shall come into force on such day [1]as the [2][Federal Government] by notification in the [3][official Gazette] appoints.

3. [*Repeal of enactments*.] *Rep. by the Repealing Act, 1938 (I of* 1938), s. 2 *and Sch.*

4. Interpretation clause. —In this Act, unless there be something repugnant in the subject or context, —

"cannon" includes also all howitzers, mortars, wall-pieces, mitrailleuses and other ordnance and machine-guns, all parts of the same, and all carriages, platforms and appliances for mounting, transporting and serving the same:

[4]["appropriate Government" means—

(a) in relation to military stores; and import, export and inter-provincial trade or transport, the Federal Government ; and

(b) in relation to other matters, the Provincial Government:]

"arms" includes fire-arms, bayonets, swords, daggers, spears, spearheads and bows and arrows, also cannon and parts of arms, and machinery for manufacturing arms :

"ammunition" includes also all articles especially designed for torpedo service and submarine mining, rockets, gun-cotton, dynamite, lithofracteur and other explosive or fulminating material, gun-flint, gun-wads, percussion-caps, fuses and friction-tubes, all parts of ammunition and all machinery for manufacturing ammunition, but does not include lead, sulphur or saltpetre:

"military stores", in any section of this Act as applied to any part of [5][Pakistan], means any military stores to which the [2][Federal Government] may from time to time, by notification in the [3][official Gazette], specially extend such section in such part, and includes also all lead, sulphur, saltpetre and other material to which the [2][Federal Government] may from time to time so extend such section:

"license" means a license granted under this Act, and " licensed" means holding such license.

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II.- MANUFACTURE, CONVERSION AND SALE

[6][**5. Unlicensed manufacture or conversion prohibited.**— No person shall manufacture or convert any arms, ammunition or military stores except under a license and in the manner and to the extent permitted thereby.].

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[1]Ist October 1878-*see* Gazette of India, 1878, Pt., I, p. 389.

[2]Subs. by F.A.O., 1975, Art. 2, and Table, for "Central Government" which was subs. by A. O., 1937, for "G.G. in C".

[3]Subs. by A. O., 1937, for "Gazette of India".

[4]Subs. by F.A.O., 1975, Art. 2 and Sch. for the definition. This definition was ins. by A. O., 1964, Art 2 and Sch.

[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960) s.3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India."

[6]Subs. by the Federal Laws (Revision and Declaration) Ordinance 1981 (27 of 1981), s. 3 and 2nd Sch. for the original section 5.

III-IMPORT, EXPORT AND TRANSPORT

6. Unlicensed importation and exportation prohibited. No person shall bring or take by [1][air, sea or land] into or out of [2][Pakistan] any arms, ammunition or military stores except under a license and in the manner and to the extent permitted by such license.

Importation and exportation of arms and ammunition for private use. Nothing in the first clause of this section extends to arms (other than cannon) or ammunition imported or exported in reasonable quantities for his own private use by any person lawfully entitled to possess such arms or ammunition; but the Collector of Customs or any other officer empowered by the [3][Federal Government] in this behalf by name or in virtue of his office may at any time detain such arms or ammunition until he receives the orders of the [3][Federal Government] thereon.

Explanation.–Arms, ammunition and military stores taken from one part of [2][Pakistan] to another by sea or across intervening territory not being part of [2][Pakistan] are taken out of and brought into [2][Pakistan] within the meaning of this section.

7. Sanction of Federal Government required to warehousing of arms, etc. Notwithstanding anything contained in the [4][Customs Act, 1969 (IV of 1969)], no arms, ammunition or military stores shall be deposited in any warehouse licensed under section [5][13] of that Act without the sanction of the [3][Federal Government].

8. [*Levy of duties on arms, etc., imported by sea.*] *Rep. by the Amending Act,* 1891 *(XII of* 1891).

9. [*Power to impose duty on import by land.*] *Rep. by the Amending Act,* 1891 *(XII of* 1891).

10. [*Power to prohibit transport, Transhipment of arms.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), s. 3 *and IInd Sch.*

11. Power to establish searching stations. The [3][Federa1 Government] [6]* * * may, at any places along the boundary-line between [2][Pakistan] and foreign territory [7]* * *, and at such distance within such line as it deems expedient, establish, searching-posts at which all vessels, carts and baggage-animals, and all boxes, bales and packages in transit, may be stopped and searched for arms, ammunition and military stores by any officer empowered by [8][the Federal Government] in this behalf by name or in virtue of his office.

12. [*Arrest of persons conveying arms, etc., under suspicious circumstances. Procedure where arrest made by person not Magistrate or Police officer.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), *s*. 3 *and IInd Sch.*

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "sea or by land".

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India."

[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which was subs. by A. O., 1937, for "L. G.".

[4]Subs. by Ord. 27 of 1981, s. 3 and 2nd Sch., for "Sea Customs Act, 1878".

[5]Subs. *ibid.*, for "16".

[6]The words "with the previous sanction of the Governor General in Council" rep., by F.A.O., 1975, Art. 2 and Table for "Central Govt." which was subs. by A.O., 1973, for "C.G.".

[7]The words "or between a Province and an Acceding State", which were ins. by A.O., 1949, Sch., have been omitted by A.O., 1964, Art. 2 and Sch.

[8]The original words "such Govt." as amended by A. O., 1937, has been subs. by F. A. O., 1975, Art. 2 and Table, to read as above.

13. [*Prohibition of going armed without license.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), *s.* 3 *and IInd Sch.*

14. [*Un-licensed possession of fire-arms, etc.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), s. 3 *and IInd Sch.*

15. [*Possession of arms of any description without license prohibited in certain places.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), s.*3 and IInd Sch.*

16. [*In Certain cases arms to be deposited at police station or with licensed dealers.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), s. 3 *and IInd Sch.*

V.-LICENCES

17. Power to make rule as to licenses. The [1][appropriate Government] may from time to time, by notification in the [2][official Gazette], make rules to determine the officers by whom the form in which, and the terms and conditions on and subject to which, any license shall be granted[3]; and may by such rules among other matters–

(a) fix the period for which such license shall continue in force;

(b) fix a fee payable by stamp or otherwise in respect of any such license granted in a place to which section 32, clause 2, of Act No. XXXI of 1860[4] applies at the time this Act comes into force or in respect of any such license other than a license for possession granted in any other place;

(c) direct that the holder of any such license other than a license for possession shall keep a record or account, in such form as the [1][appropriate Government] may prescribe, of anything done under such license, and exhibit such record or account when called upon by an officer of Government to do so ;

(d) empower any officer of Government to enter and inspect any premises in which arms, ammunition or military stores are manufactured or kept by any person holding a license of the description referred to in section 5 or section 6 ;

(e) direct that any such person shall exhibit the entire stock of arms, ammunition and military stores in his possession or under his control to any officer of Government so empowered; and

(f) require the person holding any license or acting under any license to produce the same, and to produce or account for the arms, ammunition or military stores covered by the same when called upon by an officer of Government so to do.

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[1]Subs. by A. O., 1964, Art. 2 and Sch., for "Central Government" which had been subs. by A.O., 1937, for "G. G. in C.".
[2]Subs. by A. O., 1937, for "Gazette of India".
[3]For Rules as to licenses, *see* the Indian Arms Rules, 1924, Genl. R. & O., Vol-II.
[4]Act 31 of 1860 was rep. by s. 3 of this Act.

18. Cancelling and suspension of license. Any license may be cancelled or suspended–

(a) by the officer by whom the same was granted, or by any authority to which he may be subordinate, or by any [1][District Coordination Officer], [2]* * *, within the local limits of whose jurisdiction the holder of such license may be, when, for reasons to be recorded in writing, such officer [1][or authority] [3]* * * deems it necessary for the security of the public peace to cancel or suspend such license; or

(b) by any Judge or Magistrate before whom the holder of such license is convicted of an offence against this Act, or against the rules made under this Act; and

[4][the [5][appropriate Government] may by a notification in the official Gazette cancel or suspend all or any licenses throughout [6][Pakistan or the Province, as the case may be, or any part thereof]].

VI.-PENALTIES

[7]**19. For breach of sections 5, 6, 10, 13 to 17.** Whoever commits any of the following offences (namely) :–

[8][(a) manufactures or converts any arms, ammunition or military stores in contravention of the provisions of section 5;]

[9]* * * * * * *

(c) imports or exports any arms ammunition or military stores in contravention of the provisions of section 6;

[9]* * * * * * *

[9]* * * * * * *

[9]* * * * * * *

(g) intentionally makes any false entry in a record or account which, by a rule made under section 17, clause (c), he is required to keep;

(h) intentionally fails to exhibit anything which, by a rule made under section 17, clause (e), he is required to exhibit ; or

[10]* * * * * * *

shall be punished with imprisonment for a term which may extend to three years, or with fine, or with both.

[11][**20. For secret breaches of sections 5 and 6.** Whoever does any act mentioned in clause (a)

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[1]Subs. by Ord. 66 of 2001, S.1 and sch

[2]The words "or Commissioner of Police in a presidency-town" omitted by A. O., 1949, Sch.

[3]The words "or Commissioner" omitted, *ibid.*

[4]Subs. by A. O., 1937, for "the L. G. may at its discretion, by a notification in the local official Gazette, cancel or suspend all or any licences throughout the whole or any portion of the territories under its administration."

[5]Subs. by A.O., 1964, Art. 2 and Sch., for "Central Government".

[6]The original words "the whole or any portion of British India" were first subs. by A. O., 1949, Sch. and then amended by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955) and A. O., 1964, Art. 2 and Sch., to read as above.

[7]Offences under this section are bailable, *see* Code of Criminal Procedure, 1898 (Act 5 of 1898), Sch., II.

[8]Clause (a) subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for the original clause (a).

[9]Clauses (b), (d), (e) and (f) omitted *ibid.*

[10]Clause (i) omitted *ibid.*

[11]Subs. *ibid.*, for the original section 20.

or (c) of section 19, in such manner as to indicate an intention that such act may not be known to any public servant as defined in the Pakistan Penal Code (Act XLV of 1860), or to any person employed upon a railway or to the servant of any public carrier shall be punished with imprisonment for a term which may extend to seven years or with fine, or with both.].

21. For breach of license. Whoever, in violation of a condition subject to which a license has been granted, does or omits to do any act shall, when the doing or omitting to do such act is not punishable under section 19 or section 20, be punished with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

22. *[For knowingly purchasing arms, etc., from un-licensed person. For delivering arms, etc., to person not authorised to possess them.] Omitted by the Federal Laws (Revision and Declaration) Ordinance* 1981 *(XXVII of* 1981), *s.* 3 *and IInd Sch.*

23. Penalty for breach of rule. Any person violating any rule made under this Act, and for the violation of which no penalty is provided by this Act, shall be punished with imprisonment for a term which may extend to one month, or with fine which may extend to two hundred rupees, or with both.

24. Power to confiscate. When any person is convicted of an offence punishable under this Act, committed by him in respect of any arms, ammunition or military stores, it shall be in the discretion of the convicting Court or Magistrate further to direct that the whole or any portion of such arms, ammunition or military stores, and any vessel, cart or baggage-animal used to convey the same, and any box, package or bale in which the same may have been concealed, together with the other contents of such box, package or bale, shall be confiscated.

VII.-*Miscellaneous*

25. *[Search and seizure by Magistrate.] Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), *s.* 3 *and IInd Sch.*

26. *[Seizure and detention by appropriate Government.] Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), *s.* 3 *and IInd Sch.*

27. Power to exempt. The [1][appropriate Government] may from time to time by notification[2] published in the [3][official Gazette],–

[4](a) exempt any person by name or in virtue of his office, or any class of persons, or exclude any description of arms or ammunition, or withdraw any part of [5][Pakistan], [6][or of the Province, as the case may be,] from the operation of any prohibition or direction contained in this Act; and

(b) cancel any such notification, and again subject the persons or things or the part of [5][Pakistan] [6][or Province] comprised therein to the operation of such prohibition or direction[7].

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[1]Subs. by A. O., 1964, Art. 2 and Sch., for "Central Government" which had been subs. by A.O., 1937, for "G. G. in C.".

[2]For exemptions and withdrawals under s. 27(a) *see* rule 3 and Schedules I to IV of the Indian Arms Rules, 1924.

[3]Subs. by A. O., 1937, for "Gazette of India".

[4]For notifn. under this clause, *see* Gaz. of P., 1953, Pt. I, p. 188 ; and *ibid.*, 1961, Pt. I, p. 247.

[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960) s.3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India."

[6]Ins. by A.O., 1964 Art. 2 and Sch.

[7]For notification declaring arms, etc., brought into a Pakistan port and declared under manifest to be consignments without transhipment to any port on the sea board of the Persian Gulf, to be liable to the prohibitions and directions contained in s. 6, *see* No. 902-P., dated 27th April, 1904, Gazette of India, 1904, Pt. I, p. 296. As to exemption of small parcels under certain conditions or of arms, etc., exported under license and in transit at an intermediate port, *see ibid.*

28. Information to be given regarding offences. Every person aware of the commission of any offence punishable under this Act shall, in the absence of reasonable excuse, the burden of proving which shall lie upon such person, give information of the same to the nearest Police-officer or Magistrate, and

every person employed upon any railway or by any public carrier shall, in the absence of reasonable excuse, the burden of proving which shall lie upon such person, give information to the nearest Police officer regarding any box, package or bale in transit which he may have reason to suspect contains arms, ammunition or military stores in respect of which an offence against this Act has been or is being committed.

29. *[Sanction required to certain proceedings under section* 19*, clause (f).] Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981*), s.* 3 *and IInd Sch.*

30. *[Searches in the case of offences against section* 19*, clause (f), how conducted.] Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981*), s.* 3 *and IInd Sch.*

31. Operation of other laws not barred. Nothing in this Act shall be deemed to prevent any person from being prosecuted under any other law for any act or omission which constitutes an offence against this Act or the rules made under it, or from being liable under such other law to any higher punishment or penalty than that provided by this Act: Provided that no person shall be punished twice for the same offence.

32. *[Power to take census of fire arms.] Omitted by the Federal Laws (Revision and Declaration)Ordinance,*1981 *(XXVII of* 1981*),* s. 3 *and IInd Sch.*

33. Notice and limitation of proceedings. No proceeding other than a suit shall be commenced against any person for anything done in pursuance of this Act, without having given him at least one month's previous notice in writing of the intended proceeding and of the cause thereof, nor after the expiration of three months from the accrual of such cause.

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THE FIRST SCHEDULE. *— [Enactments repealed.] Rep. by the Repealing Act,* 1938 *(I of* 1938*),* s.2 *and Sch.*

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THE SECOND SCHEDULE. *— [Arms, etc., liable to Duty.] Rep. by the Amending Act,* 1891 *(XII of* 1891*).*

THE CATTLE-TRESPASS ACT, 1871

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THE CATTLE-TRESPASS ACT, 1871

[1]ACT No. I OF 1871

[13th January, 1871]

An Act to consolidate and amend the law relating to Trespasses by Cattle

Preamble: WHEREAS it is expedient to consolidate and amend the law relating to trespass by cattle; It is hereby enacted as follows:—

CHAPTER I
PRELIMINARY

[2][**1. Title and Extent:**—(1) This Act may be called the Cattle-trespass Act, 1871] ; and

(2) It extends to [3][the whole of Pakistan], [4]except [5]* * * such local areas as the [6][Provincial Government], by notification in the official Gazette, may from time to time exclude from its operation.]

[7]* * * * * * *

2. *[Repeal of Acts. References to repealed Acts.] Rep. by the Repealing Act,* 1938 *(I of* 1938).

3. Interpretation-clause: In this Act,—

"officer of police" includes also village-watchmen, and" cattle" includes also elephants, camels, buffaloes, horses, mares, geldings, ponies, colts, fillies, mules, asses, pigs, rams, ewes, sheep, lambs, goats, and kids, [8][and [9]"local authority" means anybody of persons for the time being invested by law with the control and administration of any matters within a specified local area, and "local fund" means any fund under the control or management of a local authority.]

CHAPTER II
POUNDS AND POUND-KEEPERS

4.Establishment of pounds: Pounds shall be established at such places as the Magistrate of the District, subject to the general control of the [6][Provincial Government], from time to time directs.

The village by which every pound is to be used shall be determined by the Magistrate of the District.

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1870, Pt. V. P. 310, for Proceedings in Council, see *ibid.,* Supplement, pp. 1150, 1200, 1290. and Supplement, 1871, P. 178.
The Act, has been repealed in its application to the Province of Punjab by Punjab Act XXXIV of 1975, s. 233.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified-see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950) ; and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, P. 1499.
[2]Subs. by the Cattle-trespass Act (1871) Amendment Act, 1891 (1 of 1891),s. I, for original s. 1.
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for" all the Provinces and the Capital of the Federation" which was subs. for " the whole of British India" by A. 0., 1949, Arts. 3(2) and 4.
[4]This Act has been declared in force in Baluchistan by the British Baluchistan Laws Regulation, 1913 (2 of 1913), s. 3.
[5]The words" the presidency-towns and" omitted by A. 0., 1949, Sch.
[6]subs. by A.O., 1937, for "L.G.".
[7]Sub-scction (3) of s. 1 rep. by the Repealing and Amending Act, 1914 (10 of 1914), s. 3 and 2nd Sch.
[8]Ins. by Act 1 of 1891, s. 2.
[9]*Cf.* definition in section 3 (28) of the General Clauses Act, 1897 (10 of 1897), which read with s. 4 (2) of that Act applies, to all Acts passed after the 14th January, 1887.

5.Control of pounds. Rates of charge for feeding impounded cattle: The pounds shall be under the control of the Magistrate of the District; and he shall fix, and may from time to time alter, the rates of charge for feeding and watering impounded cattle.

6. Appointment of Pound keepers [1][The [2]Provincial Government shall appoint a pound keeper for every pound.

Pound-keepers may hold other offices: Any pound-keeper may hold simultaneously any other office under the [3][Government].

Pound-keepers to be public servants: Every pound-keeper shall be deemed to be a public servant within the meaning of the Pakistan Penal Code (XLV of 1860).]

DUTIES OF POUND-KEEPERS

7. To keep registers and furnish returns. Every pound-keeper shall keep such registers and furnish such returns as the [4][Provincial Government] from time to time directs.

8. To register seizures. When cattle are brought to a pound, the pound-keeper shall enter in his register,—

(a) the number and description of the animals,

(b) the day and hour on and at which they were so brought,

(c) the name and residence of the seizer, and

(d) the name and residence of the owner, if known, and shall give the seizer or his agent a copy of the entry.

9. To take charge of and feed cattle. The pound-keeper shall take charge of, feed and water the cattle until they are disposed of as hereinafter directed.

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CHAPTER III

IMPOUNDING CATTLE

10. Cattle damaging land. The cultivator or occupier of any land,

or any person who has advance cash for the cultivation of the crop or produce on any land,

or the vendee or mortgagee of such crop or produce or any part thereof,

may seize or cause to be seized any cattle trespassing on such land. and doing damage thereto or to any crop or produce thereon, and [5][send them or cause them to be sent within twenty-four hours] to the pound established for the village in which the land is situate.

Police to aid seizures: All officers of police shall, when required, aid in preventing *(a)* resistance to such seizures, and *(b)* rescues from persons making such seizures.

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[1]Subs. by the Suppl. A.O., 1937, for the original section 6.

[2]This expression includes also such person as the Provincial Government may direct under s. 241 (1) (b) of the G. of I Act, 1935, *see*, the General Clauses ,Act, 1897, s. 4A (2).

[3]Subs. by A.O., 1961, Art. 2, for "Crown" (with effect from the 23rd March. 1956).

[4]Subs. by A. O. 1937, for "L.G.".

[5]Subs. by the Cattle-trespass Act (1871) Amendment Act. 1891 (1 of 1891) s. 3. for "take them or cause them to be taken without unnecessary delay".

[1]**11 Cattle damaging public roads, canals and embankments.** Persons in charge of public roads, pleasure-grounds, plantations, canals, drainage-works, embankments and the like and officers of police, may seize or cause to be seized any cattle doing damage to such roads, grounds, plantations, canals, drainage-works, embankments and the like, or the sides or slopes of such roads, canals, drainage-works or embankments or found straying thereon, and shall [2][send them or cause them to be sent within twenty-four hours] to the nearest pound.

[3][**12 . Fines for cattle impounded:** For every head of cattle impounded as aforesaid, the pound-keepers shall levy a fine in accordance with the scale for the time being prescribed by the [4][Provincial Government] in this behalf by notification in the official Gazette. Different scales may be prescribed for different local areas.

All fines so levied shall be sent to the Magistrate of the District through such officer as the [4][Provincial Government] may direct.

List of fines and charges for feeding. A list of the fines and of the rates of charge for feeding and watering cattle shall be posted in a conspicuous place on or near to every pound.]

CHAPTER IV
DELIVERY OR SALE OF CATTLE

13. Procedure when owner claims the cattle and pays fines and charges. If the owner of the impounded cattle or his agent appear and claim the cattle, the pound-keeper shall deliver them to him on payment of the fines and charges incurred in respect of such cattle.

The owner or his agent, on taking back the cattle, shall sign a receipt for them in the register kept by the pound-keeper.

14. Procedure if cattle be not claimed within a week. If the cattle be not claimed within seven days from the date of their being impounded, the pound-keeper shall report the fact to the officer in charge of the nearest police-station, or to such other officer as the Magistrate of the District appoints in this behalf.

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Such officer shall thereupon stick up in a conspicuous part of his office a notice stating—

(a) the number and description of the cattle,

(b) the place where they were seized,

(c) the place where they are impounded,

and shall cause proclamation of the same to be made by beat of drum in the village and at the market-place nearest to the place of seizure.

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[1]As to the application of s. 11 to forests, *see* the Forest Act, 1927 (16 of 1927), s. 70; and to railways, *see* the Railways Act, 1890 (9 of 1890), s. 125(4).
[2]Subs. by Act 1 of 1891, s. 4, for "take them without unnecessary delay".
[3]Subs. by the Cattle-trespass (Amendment) Act, 1921 (17 of 1921), s. 2, for the originals. 12. *See* s. 71 of the Forest Act, 1927 (16 of 1927) under which the Provincial Government may fix a different scale of fines for cattle impounded under s. 70 of that Act.
[4]Subs. by A. O., 1937, for " L.G.".

If the cattle be not claimed within seven days from the date of the notice, they shall be sold by public auction by the said officer, or an officer of his establishment deputed for that purpose, at such place and time and subject to such conditions as the Magistrate of the District by general or special order from time to time directs:

[1]Provided that, if any such cattle are, in the opinion of the Magistrate of the District, not likely to fetch a fair price if sold as aforesaid, they may be disposed of in such manner as he thinks fit.

15. Delivery to owner disputing legality of the seizure but making deposits. If the owner or his agent appear and refuse to pay the said fines and expenses, on the ground that the seizure was illegal and that the owner is about to make a complaint under section 20, then, upon deposit of the fines and charges incurred in respect of the cattle, the cattle shall be delivered to him.

16. Procedure when owner refuses or omits to pay the fines and expenses. If the owner or his agent appear and refuse or omit to payor (in the case mentioned in section 15) to deposit the said fines and expenses, the cattle, or as many of them as may be necessary, shall be sold by public auction by such officer at such place and time, and subject to such conditions, as are referred to in section 14.

Deduction of fines and expenses. The fines leviable and the expenses of feeding and watering, together with the expenses of sale, if any, shall be deducted from the proceeds of the sale.

Delivery of unsold cattle and balance of proceeds. The remaining cattle and the balance of the purchase-money, if any, shall be delivered to the owner or his agent, together with an account showing—

(a) the number of cattle seized,

(b) the time during which they have been impounded,

(c) the amount of fines and charges incurred,

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(d) the number of cattle sold,

(e) the proceeds of sale, and

(f) the manner in which those proceeds have been disposed of.

Receipt. The owner or his agent shall give a receipt for the cattle, delivered to him and for the balance of the purchase-money (if any) paid to him according to such account.

17. Disposal of fines, expenses and surplus proceeds of sales. The officer by whom the sale was made shall send to the Magistrate of the District the fines so deducted.

The charges for feeding and watering deducted under section 16 shall be paid over to the pound-keeper, who shall also retain and appropriate all sums received by him on account of such charges under section 13.

[1]The proviso has been amended in its application to the Bombay Presidency, by Bom. Act *5* of 1931.

The surplus unclaimed proceeds of the sale of cattle shall be sent to the Magistrate of the District, who shall hold them in deposit for three months, and, if no claim thereto be preferred and established within that period, shall, at its expiry, [1][be deemed to hold them as part of the revenues of the Province].

18. *[Application of fines and unclaimed proceeds of sale.] Rep. by A. O.,* 1937.

19. Officers and pound-keepers not to purchase cattle at sale under Act. No officer of police or other officer or pound-keeper appointed under the provisions herein contained shall, directly or indirectly, purchase any cattle as a sale under this Act.

Pound-keepers when not to release impounded cattle. No pound-keeper shall release or deliver any impounded cattle otherwise than in accordance with the former part of this Chapter, unless such release or delivery is ordered by a Magistrate or Civil Court.

[2][CHAPTER V
COMPLAINTS OF ILLEGAL SEIZURE OR DETENTION

20. Power to make complaints. Any person whose cattle have been seized under this Act, or, having been so seized, have been detained in contravention of this Act, may, at any time within ten days from the date of the seizure, make a complaint[3] to the Magistrate of the District or any Magistrate authorized to receive and try charges without reference by the Magistrate of the District.

21. Procedure on complaints. The complaint shall be made by the complainant in person, or by an agent personally acquainted with the circumstances. It may be either in writing or verbal. If it be verbal, the substance of it shall be taken down in writing by the Magistrate.

If the Magistrate, on examining the complainant or his agent, sees reason to believe the complaint to be well founded, he shall summon the person complained against, and make an enquiry into the case.

22.Compensation for illegal seizure or detention. If the seizure or detention be adjudged illegal, the Magistrate shall award to the complainant, for the loss caused by the seizure or detention, reasonable compensation, not exceeding one hundred rupees, to be paid by the person who made the seizure or detained the cattle together with all fines paid and expenses incurred by the complainant in procuring the release of the cattle,

Release of cattle. and, if the cattle have not been released, the Magistrate shall, besides awarding such compensation, order their release and direct that the fines and expenses leviable under this Act shall be paid by the person who made the seizure or detained the cattle.

23. Recovery of compensation. The compensation, fines and expenses mentioned in section 22 may be recovered as if they were fines imposed by the Magistrate[4]].

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[1]Subs. by A. O., 1937, for "dispose of them as hereinafter provided".
[2]Subs. for the original Ch. V by the Cattle-trespass Act (1871) Amendment Act, 1891 (1 of 1891), s. 6.
[3]The term "offence" as defined by s. 4 *(0)* of the Code of Criminal Procedure, 1898 (5 of 1898), includes any act in respect of which complaint may be made under this section.
Offences under this section may be tried in a summary way, *see* Act 5 of 1898, s. 260 (1) *(m).*
[4]*See* ss. 63 to 70 of the Pakistan Penal Code (45 of 1860), and s. 386 of the Code of Criminal Procedure, 1898 (5 of 1898); *c.* also, s.25 of the General Clauses Act, 1897 (10 of 1897).

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CHAPTER VI
PENALTIES

24. Penalty for forcibly opposing the seizure of cattle or rescuing the same. Whoever forcibly opposes the seizure of cattle liable to be seized under this Act,

and whoever rescues the same after seizure, either from a pound, or from any person taking or about to take them to a pound, such person being near at hand and acting under the powers conferred by this Act,

shall, on conviction before a Magistrate, be punished with imprisonment for a period not exceeding six months, or with fine not exceeding five hundred rupees, or with both.

[1]**25. Recovery of penalty for mischief committed by causing cattle to trespass.** Any fine imposed [2][under the next following section or] for the offence of mischief by causing cattle to trespass on any land may be recovered by sale of all or any of the cattle by which the trespass was committed, whether they were seized in the act of trespassing or not, and whether they are the property of the person convicted of the offence, or were only in his charge when the trespass was committed.

26. Penalty for damages caused to land or crops or public roads by pigs. Any owner or keeper of pigs who, through neglect or otherwise, damages or causes or permits to be damaged any land, or any crop or produce of land, or any public road,[3] by allowing such pigs to trespass thereon, shall, on conviction before a Magistrate, be punished with fine not exceeding ten rupees.

[4][The [5][Provincial Government], by notification in the official Gazette, may from time to time, with respect to any local area specified in the notification, direct that the foregoing portion of this section shall be read as if it had reference to cattle generally, or to cattle of a kind described in the notification, instead of to pigs only, or as if the words "fifty rupees" were substituted for the words "ten rupees," or as if there were both such reference and such substitution.] .

[6]* * * * * * *

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27. Penalty on pound-keeper failing to perform duties. Any pound-keeper releasing or purchasing or delivering cattle contrary to the provisions of section 19, or omitting to provide any impounded cattle with sufficient food and water, or failing to perform any of the other duties imposed upon him by this Act, shall, over and above any other penalty to which he may be liable, be punished, on conviction before a Magistrate, with fine not exceeding fifty rupees. Such fines may be recovered by deductions from the pound-keeper's salary.

28. Application of fines recovered under sections 25, 26 or 27. All fines recovered under section 25, section 26 or section 27 may be appropriated in whole or in part as compensation for loss or damage proved to the satisfaction of the convicting Magistrate.

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[1]As to the application of s. 25 in the case of cattle-trespassing on a railway, *see* the Railways Act, 1890 (9 of 1890), s. 125 (3).
[2]Ins. by the Cattle-trespass Act (1871) Amendment Act, 1891 (1 of 1891), section 7.
[3]"Public Road" in section 26 includes a railway-see Act 9 of 1890, section 125 (4).
[4]Ins. by the Cattle-trespass Act (1871) Amendment Act, 1891 (1 of 1891), section 8.
[5]Subs. by A. O., 1937, for" L. G.".
[6]Last paragraph of s. 26 rep. by the Repealing and Amending Act, 1914 (10 of 1914).

CHAPTER VII
SUITS FOR COMPENSATION

29. Saving of right to sue for compensation. Nothing herein contained prohibits any person whose crops or other produce of land have been damaged by trespass of cattle from suing for compensation in any competent Court.

30. Set-off. Any compensation paid to such person under this Act by order of the convicting Magistrate shall be set-off and deducted from any sum claimed by or awarded to him as compensation in such suit.

[1][CHAPTER VIII
SUPPLEMENTAL

31. Power for Provincial Government to transfer certain functions to local authority and direct credit of surplus receipts to local fund. The [2][Provincial Government] may, from time to time, by notification in the official Gazette,

(a) transfer to any local authority[3] within any part of the territories under its administration in which this Act is in operation, all or any of the functions of the [2][Provincial Government] or the Magistrate of the District under this Act, within the local area subject to the jurisdiction of the local authority, [4]* * *.]

***SCHEDULE**.—[Rep. by the Repealing Act,* 1938 *(I of* 1938).]

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Date: 16-09-2024

[1]Ch. VIII was added by Act 1 of 1891, s.9.
[2]Subs. by A.O., 1937, for "L.G.".
[3]For special enactment as to the Punjab, *see* the Punjab District Boards Act, 1883 (20 of 1883), s. 20, clause *(n).*
[4]Originally there were the following words: -"or *(b)* direct that the whole or any part of the surplus accruing in any district under s. 18 of this Act shall be placed to the credit of such local fund or funds as may be formed for any local area or local areas comprised in that district, [and may from, time to time, by notification in the official Gazette, cancel or vary any notification under this section]". The bracketed words were rep.by the Repealing and Amending Act, 1914 (10 of 1914) and the rest by A.O., 1937.

THE CHEMICAL WEAPONS CONVENTION IMPLEMENTATION ORDINANCE, 2000

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THE CHEMICAL WEAPONS CONVENTION IMPLEMENTATION ORDINANCE, 2000

ORDINANCE No. LIV of 2000

[11th October, 2000]

An Ordinance to give effect in Pakistan to the Convention on the Prohibition of the Development, Production, Stockpiling and use of Chemical Weapons and on their Destruction signed at Paris on the 13th January, 1993

WHEREAS it is expedient to give effect in Pakistan to the Convention on the Prohibition of the Development, Production, Stockpiling and use of Chemical Weapons, and on their destruction signed at Paris on the 13th January, 1993;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No.1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No 1 of 1999, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:-

1. Short title, extent and commencement.— (1) This Ordinance may be called the Chemical Weapons Convention Implementation Ordinance, 2000.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

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2. Definition.— (1) In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "assistance inspection" means an inspection conducted pursuant to Parts II and XI of the Verification Annex;

(b) "challenge inspection" means an inspection conducted pursuant to Parts II and X of the Verification Annex;

(c) "chemical weapons" means—

(i) a toxic chemical and its precursor, except where intended for permitted purposes, as long as types and quantities are consistent with such purposes;

(ii) a munitions or device, specifically designed to cause death or other harm through the toxic properties of a toxic chemical specified in sub-clause (i), which would be released as a result of the employment of such munition or device; or

(iii) any equipment specifically designed for use directly in connection with the employment of a munition or device specified in sub-clause (ii);

(d) "Convention" means the convention on the Prohibition of the Development, Production, stockpiling and use of Chemical Weapons and on their Destruction signed at Paris on the 13th January, 1993;

(e) "National Authority" means the National Authority designated as such under section 9;

(f) "permitted purposes" means—

(i) industrial, agricultural, research, medical, pharmaceutical or other peaceful purposes;

(ii) protective purposes, that is such purposes which are directly related to protection against toxic chemicals and to protection against chemical weapons;

(iii) military purposes not connected with the use of chemical weapons and not dependent on the use of the toxic properties of chemicals as a method of warfare; and

(iv) law enforcement including domestic riot control purposes;

(g) "precursor" means any chemical reactant which takes part at any stage in the production by whatever method of a toxic chemical and includes any key component of a binary or multi-component chemical system;

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(h) "prescribed" means prescribed by rules made under this Ordinance;

(i) "riot control agent" means any chemical which is not a scheduled chemical, which can produce rapidly in humans sensory irritation or disabling physical effects which disappear within a short time following termination of exposure;

(j) "routine inspection" means an inspection conducted pursuant to Parts II to IX of the Verification Annex;

(k) "scheduled chemical" means a chemical listed in Schedules I or, as the case may be, Schedule II or Schedule III to this Ordinance;

(l) "toxic chemical" means any chemical which through its chemical action on life processes can cause death, temporary incapacitation or permanent harm to humans or animals and includes all such chemicals, regardless of their origin or

of their method of production, and regardless of whether they are produced in facilities, in munitions or elsewhere; and

(m) "Verification Annex" means the Verification Annex to the Convention and portions of which are reproduced in Schedule IV to this Ordinance.

3. Prohibition on development etc; of chemical weapon.— (1) No person shall—

(a) develop, produce, otherwise acquire, stockpile or retain a chemical weapon, or transfer, directly or indirectly, a chemical weapon to anyone;

(b) use a chemical weapon;

(c) engage in any military preparations to use a chemical weapon;

(d) assist, encourage or induce, in any way, any other person to engage in any activity prohibited to a State Party under the Convention; or

(e) use a riot control agent as a method of warfare.

(2) For the purposes of sub-section (1) an object shall not be a chemical weapon if the person uses the object only for permitted purposes and in deciding whether permitted purposes are intended the types and quantities of objects shall be taken into account.

(3) Whoever contravenes the provisions of this section shall be guilty of an offence punishable with imprisonment for a term which may extend to twenty-five years.

4. Premises or equipment for producing chemical weapons.— (1) No person shall-

(a) construct any premises intended to be used for production of chemical weapons;

(b) alter any premises with intention to use the same for production of chemical weapons;

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(c) install or construct any equipment intended to be used for production of chemical weapons; and

(d) alter any equipment with intention to use the same for production of chemical weapons.

(2) For the purposes of sub-section (1) an object shall not be a chemical weapon if the object is used for permitted purposes and in deciding whether permitted purposes are intended the types and quantities of objects shall be taken into account.

(3) Whoever contravenes the provisions or this section shall be guilty of an offence punishable with imprisonment for a term which may extend to twenty-five years.

5. Prohibition on production, etc. of toxic chemicals and precursors.— (1) No person shall produce, use, acquire, possess, transfer, import or export-

(a) any scheduled chemical;

(b) any discrete organic chemical not being a scheduled chemical ;or

(c) any chemical containing the elements phosphorous, sulfur or fluorine.

except for permitted purposes under this Ordinance.

(2) Whoever contravenes the provisions or this section shall be guilty of an offence punishable with fine which may extend to ten thousand rupees.

6. Transfer of any scheduled chemical for permitted purposes.— (1) No person shall transfer to a State Party or as the case may be to a state not party to the Convention any scheduled chemical listed in-

(a) Schedule I except its accordance with the relevant provisions of Part VI of the Verification Annex;

(b) Schedule II except in accordance with the relevant provisions of part VII of the Verification Annex; and

(c) Schedule III except in accordance with the relevant provisions of Part VIII of the Verification Annex.

(2) Whoever contravenes the provisions of this section shall be guilty of an offence punishable with fine which may extend to ten thousand rupees.

7. Production, etc, for permitted purposes.—(1) The production, use, acquisition, export or import of a chemical listed in—

(a) Schedule I shall be subject to the prohibition, acquisition, retention and use as specified in Part VI of the Verification Annex and such chemicals and facilities specified in Part VI of the Verification Annex shall be subject to systematic verification through on-site inspection and monitoring with on-site instruments in accordance with that part of the Verification Annex;

(b) Schedule II and facilities specified in Part VII of the Verification Annex shall be subject to data monitoring and on-site verification in accordance with that part of the Verification Annex; and

(c) Schedule III and facilities specified its Part VIII of the Verification Annex shall be subject to data monitoring and on-site verification in accordance with that part of the Verification Annex.

(2) The production, use, acquisition, export or import of any discrete organic chemical not being a scheduled chemical or any chemical containing the elements phosphorous, sulfur or fluorine and facilities specified in Part IX of the Verification Annex shall be subject to data monitoring and eventual on-side verification in accordance with that part of the Verification Annex unless decided otherwise by the Conference of the States Parties pursuant to paragraph 22 of Part IX of the Verification Annex.

8. Verification activities.— In conducting verification, activities under the Convention, the Technical Secretariat provided under the Convention shall avoid undue intrusion into the State Party's chemical activities for permitted purposes and, in particular, abide by the provisions of the Annex on the Protection of Confidential Information to the Convention as set out in Schedule V to this Ordinance.

9. National Authority.— The Secretary, Ministry of Foreign Affairs, Government of Pakistan, shall be the National Authority for the purposes of this Ordinance.

10. Functions of the Authority.— In particular and without prejudice to the generality of functions under this Ordinance, the functions of the Authority shall be to—

(a) ensure effective operation of this Ordinance ;

(b) carry out, on behalf of Pakistan, such obligations which Pakistan has under the Convention;

(c) facilitate inspections of premises in Pakistan, in case compliance of Pakistan with the Convention is challenged; and

(d) do anything incidental or conducive to the performance of the aforesaid functions.

11. Delegation of powers.—The National Authority may, for the purpose of efficient discharge of its functions and duties, delegate to an officer of the Federal Government, subject to such conditions and limitations as may be specified, such of its functions and duties under this Ordinance as it may deem necessary.

12. Inspections under the Convention.— (1) If it is proposed to conduct a routine inspection, a challenge inspection or an assistance inspection in Pakistan, the National Authority may, subject to sub-section (2), issue an authorisation under this section in respect of that inspection.

(2) In issuing any authorisation, the National Authority shall ensure that the Convention is not abused to the detriment of the security and economic interests of Pakistan and shall take appropriate measures to protect sensitive installations not related to the Convention.

13. Particulars of authorisation.— An authorisation under section 12 shall—

(a) state the names of the members of the inspection team by whom the inspection is to be carried out;

(b) contain the name of the person in charge of the in-country escorts;

(c) in the case of a challenge inspection, also state the name of any observer who may accompany the team;

(d) contain a description of the specified area in which the inspection is to be conducted; and

(e) specify the type of inspection concerned.

14. Effect of authorisation.— (1) An authorisation under section 12 shall have the effect of authorising the inspection team-

(a) to exercise within the specified area such rights of access, entry and unobstructed inspection as are conferred on them by the Verification Annex;

(b) to do such other things within the specified area in connection with the inspection as they are entitled to do by virtue of the Verification Annex including things concerning the maintenance, replacement or adjustment of any instrument or other object relating to open equipment on site;

(c) authorising an in-country escort to accompany the inspection team in accordance with the provisions of the Verification Annex; and

(d) authorising the police to give such assistance as the in-country escort may request for the purpose of facilitating the conduct of the inspection in accordance with the Verification Annex.

(2) An authorisation under section 12, in the case of a challenge inspection shall, in addition, have the effect of authorising the observer to exercise within the specified area such rights of access and entry as are conferred on him by the Verification Annex.

(3) Any police officer giving assistance in accordance with clause (d) of sub-section (1) may use such reasonable force as he considers necessary for the purpose of facilitating inspection.

15. Right of occupier, etc.—The occupier of any premises, or a person acting on his behalf,—

(a) in relation to which it is proposed to exercise a right of entry on the basis of an authorisation under section 12; or

(b) on which an inspection is being carried out on the basis of such an authorisation shall be entitled to require a copy of the authorization to be shown to him by a member of the in-country escort.

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16. Bar to jurisdiction.— The validity of an authorisation issued under section 12 in respect of an inspection shall not be called in question in any court.

17. Proof regarding status of a member of inspection team.— If a question arises whether a person at any time was or was not, in relation to any routine, challenge or assistance inspection, a member of the inspection team or a member of the in-country escort or an observer, a certificate issued by, or on behalf of, the National Authority stating any fact relating to that question shall be conclusive evidence of that fact.

18. Power to amend authorisation, and its effect.— (1) The National Authority may amend an authorisation issued by it under section 12, verying the specified area mentioned therein, as it may consider necessary from time to time.

(2) In case the National Authority has amended an authorisation under sub-section (1)

(a) the provisions of section 14 shall be applicable to such amendment as if the specified area were the area as varied; and

(b) the provisions of section 16 shall be applicable to such amendment as it shall apply to the authorisation.

19. Offences in respect of an inspection.— (1) In case an authorisation has been issued under section 12 in respect of an inspection, a person shall be guilty of an offence if he—

(a) refuses without reasonable excuse to comply with a request made by a police officer or a member of the in-country escort for the purpose of facilitating the conduct of that inspection in accordance with the Verification Annex;

(b) interferes without reasonable excuse with any container, instrument or other object installed in the course of that inspection in accordance with the Verification Annex; or

(c) wilfully obstructs a member of the inspection team or of the in-country escort, or the observer, in the conduct of that inspection in accordance with the Verification Annex.

(2) The provisions of clause (b) of sub-section (1) shall apply to any interference which may occur at any time while the container, instrument or other object is retained in accordance with the Verification Annex.

(3) A person on conviction of an offence under this section shall be punishable with imprisonment for a term which may extend to two years, or with fine, or with both.

20. Privileges and immunities of members of inspection team and observers.— (1) The members of an inspection team and observers shall enjoy the same privileges and immunities as are enjoyed by diplomatic agents in accordance with the following provisions of the Vienna Convention on Diplomatic Relations of 1961, namely:-

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(a) Article 29;

(b) Paragraphs 1 and 2 of Article 30;

(c) Paragraphs 1, 2 and 3 of Article 31; and

(d) Article 34.

(2) The members of an inspection team and observers shall, enjoy the same privileges as are enjoyed by diplomatic agents in accordance with paragraph 1 (b) of Article 36 of the Vienna Convention on Diplomatic Relations of 1961, except in relation to such articles the importing or exporting of which is prohibited by law or controlled by. the enactments relating to quarantine.

(3) Samples and approved equipment carried by members of an inspection team shall be inviolable and exempt from payment of customs-duties.

(4) The privileges and immunities accorded to the members of an inspection team and observers by virtue of this section shall be enjoyed by them at any time when they are in Pakistan-

(a) in connection with the carrying out a routine inspection, a challenge inspection or an assistance inspection; or

(b) while in transit to or from the territory of another State Party to the Convention in connection with the carrying out of such inspection.

(5) If—

(a) immunity from jurisdiction of a member of an inspection team is waived in accordance with the Verification Annex; and

(b) a notice made by the National Authority and informing the member of the waiver is delivered to him in person.

then, from the time the notice is so delivered, this section shall not have effect to confer that immunity on the member.

Explanation.—In this section "approved equipment" and "samples" shall be construed in accordance with the Verification Annex.

21. Disclosure of information.— (1) Any person who produces, possesses, consumes, transfers, exports or imports any scheduled chemical or who produces a discrete organic chemical not being a scheduled chemical or a chemical containing the elements phosphorus, sulfur or fluorine or who holds a riot control agent for riot control purposes shall—

(a) provide the prescribed information, at the prescribed time and in the prescribed form, to the National Authority; and

(b) keep and maintain the prescribed documents in Pakistan, at his place of business or at such other place as may be specified by -the National Authority, in the prescribed manner and for the prescribed period; and

(c) on request, provide the documents to the National Authority.

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(2) Whoever contravenes the provisions of this section shall be guilty of an offence punishable with imprisonment for a term which may extend to two years or with fine or with both.

22. Privileged information and documents.— (1) Any information or document obtained pursuant to this Ordinance or the Convention shall be privileged.

(2) Information and documents shall not be privileged to the extent that these are required to be disclosed or communicated for the purposes of an emergency involving public safety.

(3) No person in possession of privileged information or document shall knowingly, without the written consent of the person from whom they were obtained communicate them or allow them to be communicated to any person, or allow any person to have access thereto, except-

(a) for the purpose of the enforcement of this Ordinance or of giving effect to the Convention; or

(b) pursuant to an obligation of the Federal Government under the Convention.

(4) Notwithstanding anything contained in any law no person shall be required in connection with any legal proceedings, to produce any statement or other record containing any privileged information or document, or to give evidence relating to them, unless the proceedings relate to the enforcement of this Ordinance.

(5) Whoever contravenes the provisions of sub-section (3) shall be guilty of an offence punishable with imprisonment for a term which may extend to six months or with fine which may extend to ten thousand rupees or with both.

23. **Registration.**— (1) The National Authority may directly or through notice require an individual or organisation involved in production, processing, consumption, transfer, import or export of any scheduled chemical or any discrete organic chemical not being a schedule chemical, or a chemical containing elements of phosphorus, sulfur, or fluorine, to register themselves with the National Authority or any other office as may be prescribed within a specified time period.

(2) Whoever contravenes the provisions of this section shall be guilty of an offence punishable with imprisonment for a term which may extent to two years or with fine or with both.

24. Power to enter a premises and search, remove or immobilise objects.—(1) If the National Authority has reasonable cause to believe that-

(a) an object is on a premises to which the public has access or which are occupied by a person who consents to action being taken under this sub-section; and

(b) the object is a chemical weapon,

the National Authority may authorise any person to enter the premises and to search them.

(2) If a magistrate is satisfied on information on oath that there is reasonable cause to believe that an object is on premises and that it is a chemical weapon he may issue a warrant in writing authorising a person acting under the authority of the National Authority to enter the premises, if necessary, by force at any time within one month from the time of the issue of the warrant and to search them.

(3) A person who acts under an authorisation given under sub-section (1) or sub-section (2) may take with him such other persons and such equipment as appear to him to be necessary.

(4) If a person enters premises under an authorisation given under sub-section (1) or sub-section (2), and the object is found then he may make the object safe and-

(a) he may seize and remove it, if it is reasonably practicable to do so; or

(b) he may, in any other case, affix a warning on the object or on something in conspicuous position near the object, stating that the object is not to be moved or interfered with before a date specified in the warning.

25. Extension to external territories.— The Provision of this Ordinance shall also apply to any offence committed by—

(a) any citizen of Pakistan or any person in the service of Pakistan in any place without and beyond Pakistan; and

(b) any person on any ship or aircraft registered in Pakistan wherever it may be.

26. Power to make rules.— The National Authority may, with approval of the Federal Government, make rules for carrying out the purposes of this Ordinance.

SCHEDULE I

[See section 2(k)]

(Scheduled Chemicals)

A. Toxic Chemicals: (CAS registry number)

(1)	O-Alkyl (≤C I **O** incl. cycloalkyl) alkyl (Me. Et. n-Pr or-i-Pr)-phosphonofluoridates e.g. Sarin: O-Isopropyl methylphosphonofluoridate Soman: O-Pinacolyl methylphosphonofluoridate	(107-44-8) (96-64-0)
(2)	O-Alkyl (≤CIO. incl. cycloalkyl) N.N-dialkyl (Me. Et. n-Pror i-Pr) phosphoramidocyanidates e.g. Tabun: O-Elhyl N. N-dimethyl phosphorarnidocyanidate	(77-81-6)
(3)	O-Alkyl (H or ≤CIO. incl. cycloalkyl) S-2-dialkyl (Me, Et, n-Pr or i-Pr)-aminocthyl alkyl (Me, Et, n-Pr or i-Pr) phosphonothiolates and corresponding alkylated or protonated salts e.g. VX: O-Ethyl S-2-diisopropylaminoethyl methyl phosphonothiolate	(50782-69-9)
(4)	Sulfur mustards:	
	2-ChloroethylcWoromethylsulfide	(2625-76-5)
	Mustard gas: Bis(2-chloroelhyll sulfide	(505-60-2)
	Bis (2-chloroethylthio) methane	(63869-13-6)
	Sesquimustard: 1,2-Bis(2-chloroethyllhio) ethane	(3563-36-8)
	1,3-Bis(2-chloroelhyllhio)-n-propane	(63905-10-2)
	1,4-Bis(2-chloroethyllhio)-n-butane	(142868-93-7)
	1,5-Bis(2-chloroethyllhio)-n-pentane	(142888-94-8)
	B is(2-chloroethy I thiornethyljether	(63918-90-1)
	O-Mustard: Bis(2-chloroethylthioethly) ether	(63918-89-8)
(5)	Lewisites:	
	Lewisite I: 2-Chlorovinyldichloroarsine	(541-25-3)
	Lewisite 2: Bis(2-chlorovinyl) chloroarsine	(40334-69-8)
	Lewisite 3: Tris(2-chlorovinyl) arsine	(40334-70-1)

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(6)	Nitrogen mustards:	
	HNI: Bis(2-chloroethyl) ethylamine HN2: Bis(2-chloroethyl)methylamine HN3: Tris(2-chloroethy)amine	(538-07-8) (51-75-2) (555-77-1)
(7)	Saxitoxin	(35523-89-8)
(8)	Ricin	(9009-86-3)
B.	**Precursors:**	
(9)	Alkyl (Me, Et, n-Pr or i-Pr) phosphonyldiflourides e.g. DF: Mclhylphosphonyldifluoride	(676-99-3)
(10)	O-Alkyl (H or ≤C10, incl. cycloalkyl) O-2-dialkyl (Me, Et, n-Pr or i-Pr)-aminocthyl alkyl (Me, E,t, n-Pr or i-Pr) phosphonites and corresponding alkylated or protonated salts e.g. QL: O-Ethyl O-2-disopropylaminoethyl methyIphosphonite	(57856-11 -8)
(11)	Chlorosarin: O-Isopropyl methylphosphonochloridate	(1445-76-7)
(12)	Chlorosoman: O-Pinacolyl methylphosphonochloridate	(7040-57-5)

SCHEDULE II

[See section 2(K)]

(Scheduled Chemicals)

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A.	**Toxic chemicals:**	**(CAS registry number)**
(1)	Amon O.O-Diethyl 5-[2-diethylamino) ethyl] Phosphorothiolate and corresponding alkylated or protonated salts	(78-53-5)
(2)	PF1B:1.1.3.3.3-Pentafluoro-2-(trifluoromethyl)-1-propene	(382-21-8)
(3)	BZ: 3-Qunuclidinyl benzilate (*)	(6581-06-2)
B.	**Precursors:**	
(1)	Chemicals, except for those listed in Schedule 1. containing a phosphorus atom to which is bonded one methyl, ethyl or propyl (normal or iso) group but not further carbon atoms,	

	e.g. Methylphosphonyl dichloride Dimethyl methylphosphonate **Exemption:** Ethylphosphonothiolothionate	(676-97-1) (756-79-6) Fonofos: O-Ethyl S-phenyl (944-22-9)
(5)	N,N-Dialkyl (Me, Et. n-Pr or i-Pr) phosphoramidic dihalides	
(6)	Dialkyl (Me. Et n-Pr or i-P) N,N-dialkyl (Me. Et n-Pr or i-Pr)-phosphoramidates	
(7)	Arsenic trichloride	(7784-34-1)

SCHEDULE III

(8)	2,2-Diphcnyl-2-hydroxyacetic acid	(76-93-7)
(9)	Quinuclidin-3-ol	(1619-34-7)
(10)	N,N-Dialkyl (Me, Et, n-Pr or i-Pr) aminoethyl-2-chlorides and corresponding protonated salts	
(11)	N.N-Dialkyl (Me, Et, n-Pr or i-Pr) aminoethane-2-ols and corresponding protonated salts **Exemptions:** N,N-Dimelhylaminoethanol and corresponding protonated salts N,N-Dicthylaminocthanol and corresponding protonated salts	(108-01-0) (100-37-8)
(12)	N.N-Dialkyl (Me, Et, n-Pr or i-Pr) aminoethane-2-thiols and crresponding protonated salts	
(13)	Thiodiglycol: Bis(2-hydroxyethyl) sulfide	(111-48-8)
(14)	Pinacolyl alcohol: 3,3-Dimethylbutan-2-ol	(464-07-3)

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SCHEDULE III

***[See* section 2(k)]**

(Scheduled Chemicals)

A: Toxic chemicals:		**(CAS registry number)**
(1)	Phosgene: Carbonyl dichloride	(75-44-5)
(2)	Cyanogen chloride	(506-77-4)

(3)	Hydrogen cyanide	(74-90-8)
(4)	Chloropicrin: Trichloronitromethane	(76-06-2)

B. Precursors:

(5)	Phosphorus oxychloride	(10025-87-3)
(6)	Phosphorus trichloride	(7719-12-2)
(7)	Phosphorus pentachloride	(10026-13-8)
(8)	Trimethyl phosphite	(121-45-9)
(9)	Triethyl phosphite	(122-52-1)
(10)	Dimethyl phosphite	(868-85-9)
(11)	Diethyl phosphite	(762-04-9)
(12)	Sulfur monochloride	(10025-67-9)
(13)	Sulfur dichloride	(10545-99-0)
(14)	Thionyl chloride	(7719-09-7)
(15)	Ethyldiethanolamine	(139-87-7)
(16)	Methyldiethanolamine	(105-59-9)
(17)	Triethanolamine	(102-71-6)

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Schedule IV

[See section 2(m)]

(Portions of the Verification Annex)

REGIME FOR SCHEDULE 1 CHEMICALS AND FACILITIES RELATED TO SUCH CHEMICALS

A. **General Provisions**

1**.** A State Party shall not produce, acquire, retain or use Schedule 1 chemicals outside the territories of States Parties and shall not transfer such chemicals outside its territory except to another State Party.

2. A State Party shall not produce, acquire, retain, transfer or use Schedule 1 chemicals unless:

(a) The chemicals are applied to research, medical, pharmaceutical or protective purposes;

(b) The types and quantities of chemicals are strictly limited to those which can be justified for such purposes;.

(c) The aggregate amount of such chemicals at any given time for such purposes is equal to or less than 1 tonne; and

(d) The aggregate amount for such purposes acquired by a State Party in any year through production, withdrawal from chemical weapons stocks and transfer is equal to or less than 1 tonne.

B. Transfers

3. A State Party may transfer Schedule 1 chemicals, outside its territory only to another State Party and only for reasearch, medical, pharmaceutical or protective purposes in accordance with paragraph 2.

4. Chemicals transferred shall not be retransferred to a third state.

5. Not less than 30 days before any transfer to another State Party both States Parties shall notify the Technical Secretariat of the transfer.

6. Each State Party shall make a detailed annual declaration, regarding transfers during the previous year. The declaration shall be submitted not later than 90 days after the end of that year and shall for each Schedule 1 chemical that has been transferred include the following information:-

(a) The chemical name, structural formula and Chemical Abstracts Service registry number, if assigned;

(b) The quantity acquired from other States or transferred to other States Parties. For each transfer the quantity, recipient and purpose shall be included.

C. **Production:**

General principles for production:

7. Each State Party, during production under paragraphs 8 to 12, shall assign the highest priority to ensuring the safety of people and to protecting the environment. Each State Party shall conduct such production in accordance with its national standards for safety and emissions.

Single small-scale facility:

8. Each State Party that produces Schedule 1 chemicals for research, medical, pharmaceutical or protective purposes shall carry out the production at a single small-scale facility approved by the State Party, except as set forth in paragraphs 10,11 and 12.

9. The production at a single small-scale facility shall be carried out in reaction vessels in production lines not configurated for continuous operation. The volume of such a reaction vessel shall not exceed 100 litres, arid the total volume of all reaction vessels with a volume exceeding 5 litres shall not be more than 500 litres.

Other facilities:

10. Production of Schedule 1 chemicals in aggregate quantities not exceeding 10 kg per year may be carried out for protective purposes at one facility outside a single small-scale facility. This facility shall be approved by the State Party.

11. Production of Schedule 1 chemicals in quantities of more than 100 g per year may be carried out for research, medical or pharmaceutical purposes outside a single small-scale facility in aggregate quantities not exceeding 10 kg per year per facility. These facilities shall be approved by the State Party.

12. Synthesis of Schedule 1 chemicals for research, medical or pharmaceutical purposes, but not for protective purposes, may be carried out at laboratories in aggregate quantities less than 100 g per year per facility. These facilities shall not be subject to any obligation relating to declaration as specified in Sections D.

D. **Declarations**

Single small-scale facility:

13. Each State Party that plans to operate a single small-scale facility shall provide the Technical Secretariat with the precise location and a detailed technical description of the facility including an inventory of equipment and detailed diagrams. For existing facilities, this initial declaration shall be provided not later than 30 days after this Convention enters into force for the State Party. Initial declarations on new facilities shall be provided not less than 180 days before operations are to begin.

14. Each State Party shall give advance notification to the Technical Secretariat of planned changes related to the initial declaration. The notification shall be submitted not less than 180 days before the changes are to take place.

15. A State Party producing Schedule 1 chemicals at a single small-scale facility shall make a detailed annual declaration regarding the activities of the facility for the previous year. The declaration shall be submitted not later than 90 days after the end of that year and shall include:-

(a) Identification of the facility;

(b) For each Schedule 1 chemical produced, acquired, consumed or stored at the facility, the following information:-

(i) The chemical name, structural formula and Chemical Abstracts Service registry number, if assigned;

(ii) The methods employed and quantity produced;

(iii) The name and quantity of precursors listed in Schedules 1,2 or 3 used for production of Schedule 1 chemicals;

(iv) The quantity consumed at the facility and the purpose(s) of the consumption;

(v) The quantity received from or shipped to other facilities in the State Party for each shipment the quantity, recipient and purpose should be included;

(vi) The maximum quantity stored at any time during the year; and

(vii) The quantity stored at the end of the year; and

(c) Information on any changes at the facility during the year compared to previously submitted detailed technical descriptions of the facility including inventories of equipment and detailed diagrams.

16. Each State Party producing Schedule 1 chemicals at a single small-scale facility shall make a detailed annual declaration regarding the projected activities and the anticipated production at the facility for the coming year. The declaration shall be submitted not less than 90 days before the beginning of that year and shall include.

(a) Identification of the facility;

(b) For each Schedule 1 chemical anticipated to be produced, consumed or stored at the facility, the following information:

(i) The chemical name, structural formula and Chemical Abstracts Service registry number, if assigned;

(ii) The quantity anticipated to be produced and the purpose of the production; and

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(c) Information on any anticipated changes at the facility during the year compared to previously submitted detailed technical descriptions of the facility including inventories of equipment and detailed diagrams.

Other facilities referred to in paragraphs 10 and 11:

17. For each facility, a State Party shall provide the technical Secretariat with the name, location and a detailed technical description of the facility or its relevant part(s) as requested by the Technical secretariat. The facility producing Schedule 1 chemicals for protective purposes shall be specifically identified. For existing facilities, this initial declaration shall be provided not later than 30 days after this Convention enters into force for the State Party. Initial declarations on new facilities shall be provided not less than 180 days before operations are to begin.

18. Each State Party shall give advance notification to the Technical Secretariat of planned changes related to the initial declaration. The notification shall be submitted not less than 180 days before the changes are to take place.

19. Each State Party shall, for each facility, make a detailed annual declaration regarding the activities of the facility for the previous year. The declaration shall be submitted not later than 90 days after the end of that year and shall include:

(a) Identification of the facility;

(b) For each Schedule 1 chemical the following information:

(i) The chemical name, structural formula and Chemical Abstracts Service registry number, if assigned;

(ii) The quantity produced and, in case of production for protective purposes, methods employed;

(iii) The name and quantity of precursors listed in Schedules 1, 2, or 3, used for production of Schedule 1 chemicals;

(iv) The quantity consumed at the facility and the purpose of the consumption;

(v) The quantity transferred to other facilities within the State Party. For each transfer the quantity, recipient and purpose should be included;

(vi) The maximum quantity stored at any time during the year; and

(vii) The quantity stored at the end of the year; and

(c) Information on any changes at the facility or its relevant parts during the-year compared to previously submitted detailed technical description of the facility.

20. Each State Party shall, for each facility, make a detailed annual declaration regarding the projected activities and the anticipated production at the facility for the coming year. The declaration shall be submitted not less than 90 days before the beginning of that year and shall include:

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(a) Identification of the facility;

(b) For each Schedule 1 chemical the following information:

(i) The chemical name, structural formula and Chemical Abstracts Service registry number, if assigned;

(ii) The quantity anticipated to be produced, the time periods when the production is anticipated to take place and the purposes of the production; and

(c) Information on any anticipated changes at the facility or its relevant parts, during the year compared to previously submitted detailed technical descriptions of the facility.

REGIME FOR SCHEDULE 2 CHEMICALS AND FACILITIES

RELATED TO SUCH CHEMICALS

A. Declarations

Declarations of aggregate national data:

1. The initial and annual declarations to be provided by each State Party pursuant to article VI, paragraphs 7 and 8, shall include aggregate national data for the previous calendar year on the quantities produced, processed, consumed, imported and exported of each Schedule 2 chemical, as well as a quantitative specification of import and export for each country involved.

2. Each State Party shall submit:

(a) Initial declarations pursuant to paragraph 1 not later than 30 days after this Convention enters into force for it; and, starting in the following calendar year,

(b) Annual declarations not later than 90 days after the end of the previous calendar year.

Declarations of plant sites producing, processing or consuming Schedule 2 chemicals:

3. Initial and annual declarations are required for all plant sites that comprise one or more plant(s) which produced, processed or consumed during any of the previous three calendar years or is anticipated to produce, process or consume in the next calendar year more than:

(a) 1 kg of a chemical designated "*" in Schedule 2, part A;

(b) 100 kg of any other chemical listed in Schedule 2, party A; or

(c) 1 tonne of a chemical listed in Schedule 2, part B.

4. Each State Party shall submit:-

(a) Initial declarations pursuant to paragraph 3 not later than 30 days after this Convention enters into force for it; and, starting in the following calendar year;

(b) Annual declarations on past activities not later than 90 days after the end of the previous calendar year; and

(c) Annual declarations on anticipated activities not later than 60 days before the beginning of the following calendar year. Any such activity additionally planned after the annual declaration has been submitted shall be declared not later than five days before this activity begins.

5. Declarations pursuant to paragraph 3 are generally not required for mixtures containing a low concentration of a Schedule 2 chemical. They are only required, in accordance with guidelines, in cases where the case of recovery from the mixture of the Schedule 2 chemical and its total weight are deemed to pose a risk to the object and purpose of this Convention. These guidelines shall be considered and approved by the Conference of the States Parties pursuant to Article VIII, paragraph 21(i).

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6. Declarations of a plant site pursuant to paragraph 3 shall include:-

(a) The name of the plant site and the name of the owner, company, or enterprise operating it;

(b) Its precise location including the address; and

(c) The number of plants within the plant site which are declared.

7. Declarations of a plant site pursuant to paragraph 3 shall also include, for each plant which is located within the plant site and which falls under the specifications set forth in paragraph 3, the following information:-

(a) The name of the plant and the name of the owner, company, or enterprise operating it'

(b) Its precise location within the plant site including the specific building or structure number, if any;

(c) Its main activities;

(d) Whether the plant:-

(i) Produces, processes, or consumes the declared Schedule 2 chemical(s);

(ii) Is dedicated to such activities or multi-purpose; and

(iii) Performs other activities with regard to the declared Schedule 2 chemical(s), including a specification of that other activity (e.g. storage); and

(e) The production capacity of the plant for each declared Schedule 2 chemical.

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8. Declarations of a plant site pursuant to paragraph 3 shall also include the following information on each Schedule 2 chemical above the declaration threshold:—

(a) The chemical name, common or trade name used by the facility, structural formula, and Chemical Abstracts Service registry number, if assigned;

(b) In the case of the initial declaration the total amount produced, processed, consumed, imported and exported by the plant site in each of the three previous calendar years;

(c) In the case of the annual declaration on past activities the total amount produced, processed, consumed, imported and exported by the plant site in the previous calendar year;

(d) In the case of the annual declaration on anticipated activities: the total amount anticipated to be produced, processed or consumed by the plant site in the

following calendar year, including the anticipated time periods for production, processing or consumption; and

(e) The purposes for which the chemical was or will be produced, processed or consumed:

(i) Processing and consumption on site with a specification of the product types;

(ii) Sale or transfer within the territory or to any other place under the jurisdiction or control of the State Party, with a specification whether to other industry, trade or other destination and, if possible, of final product types;

(iii) Direct export with a specification of the States involved; or

(iv) Other including a specification of these other purposes.

Declarations on past production of Schedule 2 chemicals for chemical weapons purposes;

9. Each State Party shall, not later than 30 days after this Convention enters into force for it, declare all plant sites comprising plants that produced at any time since 1 January 1946 a Schedule 2 chemical for chemical weapons purposes.

10. Declarations of a plant site pursuant to paragraph 9 shall include:

(a) The name of the plant site and the name of the owner, company, or enterprise operating it;-

(b) Its precise location including the address;

(c) For each plant which is located within the plant site, and which falls under the specifications set forth in paragraph 9, the same information as required under paragraph 7, subparagraphs (a) to (e); and

(d) For each Schedule 2 chemical produced for chemical weapons purposes:

(i) The chemical name, common or trade name used by the plant site for chemical weapons production purposes, structural formula, and Chemical Abstracts Service registry number, if assigned;

(ii) The dates when the chemical was produced and the quantity produced; and

(iii) The location to which the chemical was delivered and the final product produced there, if known.

Information to States Parties:

11. A list of plant sites declared under this Section together with the information provided under paragraphs 6, 7 (a), 7 (c) 7 (d) (i), 7 (d) (iii), 8 (a) and 10 shall be transmitted by the Technical Secretariat to States Parties upon request.

C. Transfers to states not Party to this Convention

12. Schedule 2 chemicals shall only be transferred to or received from states Parties. This obligation shall take effect three years after entry into force of this Convention.

13. During this interim three-year period, each State Party shall require an end-use certificate, as specified below, for transfers of Schedule 2 chemicals to States not Party to this Convention. For such transfers, each State Party shall adopt the necessary measures to ensure that the transferred chemicals shall only be used for purposes not prohibited under this Convention. *Inter alia*, the State Party shall require from the recipient state a certificate stating, in relation to the transferred chemicals:-

(a) That they will only be used for purposes not prohibited under this Convention;

(b) That they will not be re-transferred;

(c) Their types and quantities;

(d) Their end-use(s); and

(e) The name(s) and address(es) of the end-user(s).

REGIME FOR SCHEDULE 3 CHEMICALS AND FACILITIES RELATED TO SUCH CHEMICALS

A. **Declarations**

Declarations of aggregate national data:

1. The initial and annual declarations to be provided by a State Party, shall include aggregate national data for the previous calendar year on the quantities produced, imported and exported of each Schedule 3 chemical, as well as a quantitative specification of import and export for each country involved.

2. Each State Party shall submit:-

(a) Initial declarations pursuant to paragraph 1 not later than 30 days after this Convention enters into force for it; and, starting in the following calendar year; and

(b) Annual declarations not later than 90 days after the end of the previous calendar year.

Declarations of plant sites producing Schedule 3 chemicals:

3. Initial and annual declarations are required for all plant sites that comprise one or more plants which produced during the previous calendar year or are anticipated to produce in the next calendar year more than 30 tonnes of a Schedule 3 chemical.

4. Each State Party shall submit:-

(a) Initial declarations pursuant to paragraph 3 not later than 30 days after this Convention enters into force for it; and, starting in the following calendar year;

(b) Annual declarations on past activities not later than 90 days after the end of the previous calendar year; and

(c) Annual declarations on anticipated activities not later than 60 days before the beginning of the following calendar year. Any such activity additionally planned after the annual declaration has been submitted shall be declared not later than five days before this activity begins.

5. Declarations pursuant to paragraph 3 are generally not required for mixtures containing a low concentration of a Schedule 3 chemical. They are only required, in accordance with guidelines, in such cases where the case of recovery from the mixture of the Schedule 3 chemical and its total weight are deemed to pose a risk to the object and purpose of this Convention. These guidelines shall be considered and approved by the Conference pursuant to article VIII. paragraph 21 (i).

6. Declarations of a plant site pursuant to paragraph 3 shall include:-

(a) The name of the plant site and the name of the owner, company, or enterprise operating it;

(b) Its precise location including the address; and

(c) The number of plants within the plant site which are declared pursuant to this Annex.

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7. Declarations of a plant site pursuant to paragraph 3 shall also include, for each plant which is located within the plant site and which falls under the specifications set forth in paragraph 3, the following information:

(a) The name of the plant and the name of the owner, company, or enterprise operating it;

(b) Its precise location within the plant site, including the specific building or structure number, if any; and

(c) Its main activities

8. Declarations of a plant site pursuant to paragraph 3 shall also include the following information on each Schedule 3 chemical above the declaration threshold:-

(a) The chemical name, common or trade name used by the facility, structural formula, and Chemical Abstracts Service registry number, if assigned;

(b) The approximate amount of production of the chemical in the previous calendar year, or, in case of declarations on anticipated activities, anticipated for the next calendar year, expressed in the ranges: 30 to 200 tonnes, 200 to 1,000 tonnes, 1,000 to 10,000 tonnes, 10,000 to 100,000 tonnes, and above 100,000 tonnes; and

(c) The purposes for which the chemical was or will be produced.

Declarations on past production of Schedule 3 chemicals for chemical weapons purposes

9. Each State Party shall, not later than 30 days after this Convention enters into force for it, declare all plant sites comprising plants that produced at any time since 1st January 1946 a Schedule 3 chemical for chemical weapons purposes.

10. Declarations of a plant site pursuant to paragraph 9 shall include:-

(a) The name of the plant site and the name of the owner, company, or enterprise operating it;

(b) Its precise location including the address;

(c) For each plant which is located within the plant site, and which falls under the specifications set forth in paragraph 9, the same information as required under paragraph 7, sub-paragraphs (a) to (c); and

(d) For each Schedule 3 chemical produced for chemical weapons purposes:-

(i) The chemical name, common or trade name used by the plant site for chemical weapons production purposes, structural formula, and Chemical Abstracts Service registry number, if assigned;

(ii) The dates when the chemical was produced and the quantity produced; and

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(iii) The location to which the chemical was delivered and the final product produced there, if known.

Information to States Parties

11. A list of plant sites declared under this Section together with the information provided under paragraphs 6, 7 (a), 7(c), 8 (a) and 10 shall be transmitted by the Technical Secretariat to States Parties upon request.

C. Transfers to States not Party to this Convention

12. When transferring Schedule 3 chemicals to states not party to this Convention, each State Party shall adopt the necessary measures to ensure that the transferred chemicals shall only be used for purposes not prohibited under this Convention. *Inter alia*, the State Party shall require from the recipient state a certificate stating, in relation to the transferred chemicals:-

(a) That they will only be used for purposes not prohibited under this Convention;

(b) That they will not be re-transferred;

(c) Their types and quantities;

(d) Their end-use(s); and

(e) The name(s) and address(es) of the end-user(s).

13. Five years after entry into force of this Convention, the Conference shall consider the need to establish other measures regarding transfers of Schedule 3 chemicals to states not Party to this Convention.

REGIME FOR OTHER CHEMICAL PRODUCTION FACILITIES

A. **Declarations**

List of other chemical production facilities

1. The initial declaration to be provided by each State Party pursuant to Article VI, paragraph 7, shall include a list of all plant sites that:

(a) produced by synthesis during the previous calendar year more than 200 tonnes of unscheduled discrete organic chemicals; or

(b) comprise one or more plants which produced by synthesis during the previous calendar yar more than 30 tonnes of an unscheduled discrete organic chemical containing the elements phosphorus, sulfur or fluorine (hereinafter referred to as “PSF-plants” and “PSF-chemical”).

2. The list of other chemical production facilities to be submitted pursuant to paragraph 1 shall not include plant sites that exclusively produced explosives or hydrocarbons.

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3. Each State Party shall submit its list of other chemical production facilities pursuant to paragraph 1 as part of its initial declaration not later than 30 days after this Convention enters into force for it. Each State Party shall, not later than 90 days after the beginning of each following calendar year, provide annually the information necessary to update the list.

4. The list of other chemical production facilities to be submitted pursuant to paragraph 1 shall include the following information on each plant site:-

(a) The name of the plant site and the name of the owner, company, or enterprise operating it;

(b) The precise location of the plant site including its address;

(c) Its main activities; and

(d) The approximate number of plants producing the chemicals specified in paragraph 1 in the plant site.

5. With regard to plant sites listed pursuant to paragraph 1 (a), the list shall also include information on the approximate aggregate amount of production of the unscheduled discrete organic chemicals in the previous calendar year expressed in the ranges: under 1,000 tonnes, 1,000 to 10,000 tonnes and above 10,000 tonnes.

6. With regard to plant sites listed pursuant to paragraph 1 (b), the list shall also specify the number of PSF-plants within the plant site and include information on the approximate aggregate amount of production of PSF-chemicals produced by each PSF-plant in the previous calendar year expressed in the ranges: under 200 tonnes, 200 to 1,000 tonnes, 1,000 to 10,000 tonnes and above 10,000 tonnes.

SCHEDULE V

[See section 8]

(Confidentiality Annex)

A. General Principles for the Handling of Confidential Information

1. The obligation to protect confidential information shall pertain to the verification of both civil and military activities and facilities. Pursuant to the general obligations set forth in Article VIII, the Organization shall:—

(a) Require only the minimum amount of information and data necessary for the timely and efficient carrying out of its responsibilities under the Convention;

(b) Take the necessary measures to ensure that inspectors and other staff members of the Technical secretariat meet the highest standards of efficiency, competence, and integrity; and

(c) Develop agreements and regulations to implement the provisions of the Convention and shall specify as precisely as possible the information to which the Organization shall be given access by a State Party.

2. The Director-General shall have the primary responsibility for ensuring the protection of confidential information. The Director-General shall establish a stringent regime governing the handling of confidential information by the Technical Secretariat, and in doing so, shall observe the following guidelines:-

(a) information shall be considered confidential if:-

(i) it is so designated by the State Party from which the information was obtained and to which the information refers; or

(ii) in the judgement of the Director-General, its unauthorized disclosure could reasonably be expected to cause damage to the State Party to

which it refers or to the mechanisms for implementation of the Convention;

(b) All data and documents obtained by the Technical secretariat shall be evaluated by the appropriate unit of the technical secretariat in order to establish whether they contain confidential information. Data required by States Parties to be assured of the continued compliance with the Convention by other States Parties shall be routinely provided to them. Such data shall encompass:

(i) The initial and annual reports and declarations provided by States Parries under Articles III**,** IV, V and VI, in accordance with the provisions set forth in the Verification Annex;

(ii) General reports on the results and effectiveness of verification activities; and

(iii) Information to be supplied to all States Parties in accordance with the provisions of the Convention;

(c) No information obtained by the Organization in connection with the implementation of the Convention shall be published or otherwise released, except, as follows:

(i) General information on the implementation of this Convention may be compiled and released publicly in accordance with the decisions of the Conference or the Executive Council;

(ii) Any information may be released with the express consent of the State Party to which the information refers;

(iii) Information classified as confidential shall be released by the Organization only through procedures which ensure that the release of information only occurs in strict conformity with the needs of the Convention. Such procedures shall be considered and approved by the Conference pursuant to Article VIII, paragraph 21 (i);

(d) The level of sensitivity of confidential data or documents shall be established, based on criteria to be applied uniformly in order to ensure their appropriate handling and protection. For this purpose, a classification system shall be introduced, which by taking account of relevant work undertaken in the preparation of the Convention shall provide for clear criteria ensuring the inclusion of information into appropriate categories of confidentiality and the justified durability of the confidential nature of information. While providing for the necessary flexibility in its implementation the classification system shall protect the rights of States Parties providing confidential information. A classification system shall be considered and approved by the Conference pursuant to Article VIII, paragraph 21 (i);

(e) Confidential information shall be stored securely at the premises of the Organization. Some data or documents may also be stored with the National

Authority of a State Party. Sensitive information, including, *inter alia*, photographs, plans and other documents required only for the inspection of a specific facility may be kept under lock and key at this facility;

(f) To the greatest extent consistent with the effective implementation of the verification provisions of the Convention, information shall be handled and stored by the Technical Secretariat in a form that precludes direct identification of the facility to which it pertain;

(g) The amount of confidential information removed from a facility shall be kept to the minimum necessary for the timely and effective implementation of the verification provisions of the Convention; and

(h) Access to confidential information shall be regulated in accordance with its classification. The dissemination of confidential information within the Organization shall be strictly on a need-to-know basis.

3. The Director-General shall report annually to the Conference on the implementation of the regime governing the handling of confidential information by the Technical Secretariat.

4. Each State Party shall treat information, which it receives from the Organization in accordance with the level of confidentiality established for that information. Upon request, a State Party shall provide details on the handling of information provided to it by the Organization.

B. Employment and Conduct of Personnel in the Technical Secretariat

5. Conditions of staff employment shall be such as to ensure that access to and handling of confidential information shall be in conformity with the procedures established by the Director-General in accordance with Section A.

6. Each position in the Technical Secretariat shall be governed by a formal position description that specifies the scope of access to confidential information, if any needed in that position.

7. The Director-General, the inspectors and the other members of the staff shall not disclose even after termination of their functions to any unauthorized persons any confidential information coming to their knowledge in the performance of their official duties. They shall not communicate to any state, organization or person outside the Technical Secretariat any information to which they have access in connection with their activities in relation to any State Party.

8. In the discharge of their functions inspectors shall only request the information and data which are necessary to fulfill their mandate. They shall not make any records of information collected incidentally and not related to verification of compliance with the Convention.

9. The staff shall enter into individual secrecy agreements with the technical secretariat covering their period of employment and a period of five years after it is terminated.

10. In order to avoid improper disclosures, inspectors and staff members shall be appropriately advised and reminded about security considerations and of the possible penalties that they would incur in the event of improper disclosure.

11. Not less than 30 days before an employee is given clearance for access to confidential information that refers to activities on the territory or in any other place under the jurisdiction or control of a State Party, the State Party concerned shall be notified of the proposed clearance. For inspectors the notification of a proposed designation shall fulfil this requirement.

12. In evaluating the performance of inspectors and any other employees of the Technical Secretariat, specific attention shall be given to the employee's record regarding protection of confidential information.

C. Measures to protect sensitive Installations and Prevent Disclosure of Confidential data in the Course of on-site Verification Activities.

13. States Parties may take such measures as they deem necessary to protect confidentiality, provided that they fulfill their obligations to demonstrate compliance in accordance with the relevant Articles and the verification Annex. When receiving an inspection the State Party may indicate to the inspection team the equipment, documentation or areas that it considers sensitive and not related to the purpose of the inspection.

14. Inspection teams shall be guided by the principle of conducting on-site inspections in the least intrusive manner possible consistent with the effective and timely accomplishment of their mission. They shall take into consideration proposals which may be made by the State Party receiving the inspection, at whatever stage of the inspections to ensure that sensitive equipment or information not related to chemical weapons, is protected.

15. Inspection teams shall strictly abide by the provisions set forth in the relevant Articles and Annexes governing the conduct of inspections. They shall fully respect the procedures designed to protect sensitive installations and to prevent the disclosure of confidential data.

16. In the elaboration of arrangements and facility agreements, due regard shall be paid to the requirement of protecting confidential information. Agreements on inspection procedures for individual facilities shall also include specific and detailed arrangements with regard to the determination of those areas of the facility to which inspectors are granted access the storage of confidential information on-site, the scope of the inspection effort in agreed areas the taking of samples and their analysis, the access to records and the use of instruments and continuous monitoring equipment.

17. The report to be prepared after each inspection shall only contain facts relevant to compliance with the Convention. The report shall be handled in accordance with the regulations established by the Organization governing the handling of confidential information. If necessary, the information contained in the report shall be processed into less sensitive forms before it is transmitted outside the Technical Secretariat and the inspected State Party.

D. Procedures in case of Breaches or Alleged Breaches of Confidentiality.

18. The Director-General shall establish necessary procedures to be followed in case of breaches or alleged breaches of confidentiality, taking into account recommendations to be considered and approved by the Conference pursuant to Article VIII, paragraph 21 (i).

19. The Director-General shall oversee the implementation of individual secrecy agreements. The Director-General shall promptly initiate an investigation if, in his judgement, there is sufficient

indication that obligations concerning the protection of confidential information have been violated. The Director-General shall also promptly initiate an investigation if an allegation concerning a breach of confidentiality is made by a State Party.

20. The Director-General shall impose appropriate punitive and disciplinary measures on staff members who have violated their obligations to protect confidential information. In cases of serious breaches, the immunity from jurisdiction may be waived by the Director-General.

21. States Parties shall, to the extent possible, cooperate and support the Director-General in investigating any breach or alleged breach of confidentiality and in taking appropriate action in case a breach has been established.

22. The Organization shall not be held liable for any breach of confidentiality committed by members of the Technical Secretariat.

23. For breaches involving both a State Party and the Organization, a "Commission for the settlement of disputes related to confidentiality", set up as a subsidiary organ of the Conference, shall consider the case. This Commission shall be appointed by the Conference. Rules governing its composition and operating procedures shall be adopted by the Conference at its first session.

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THE DANGEROUS CARGOES ACT, 1953

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THE DANGEROUS CARGOES ACT, 1953

ACT NO. V OF 1953

[15th April, 1953]

An Act [1][to make further provision for] the safety of ports in respect of the transit, working and storage of dangerous cargoes and matters incidental thereto.

WHEREAS it is expedient [1][to make further provision for] the safety of ports in respect of the transit, working and storage of dangerous cargoes and matters incidental thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Dangerous Cargoes Act, 1953.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

[1][**2. Definitions.**—In this Act,—

(1) "dangerous cargoes" means any cargoes containing—

(a) any goods shown as explosives in the Comprehensive Classified List of Government Explosives compiled and issued by the Explosive [2][Storage] and Transport Committee which has been accepted and approved by the [2][Federal Government] or any ammunition; or

(b) petroleum, as defined in clause (a) of section 2 of the Petroleum Act, 1934 (XXX of 1934), when the flashing point of such petroleum is below one hundred and fifty degrees Fahrenheit;

[2][(c) prohibited dangerous goods, that is to say, goods classified as dangerous in the International Maritime Dangerous Goods Code or the Government Stowage Instructions as revised from time to time by the Federal Government; or]

(d) any cargoes which are liable to fire or explosion and which are declared by the [2][Federal Government] by notification in the official Gazette to be dangerous cargoes for the purposes of this Act.

[1]Subs. by Act No. XIII of 1954, ss. 2 and 3.
[2]Subs. by Act No. XLIII of 1974, ss. 2 and 7.

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(2) "Fortress Commander" means an officer of the armed forces appointed as such by the [1][Federal Government] by a notification in the official Gazette.]

3. Measures for the safety of ports.—The [1][Federal Government] may make such orders as appear to it to be necessary or expedient for securing the safety of any port and preventing or dealing with explosions and fires on vessels carrying dangerous cargoes within the limits of any port, and generally for the transit working and storage of dangerous cargoes and matters incidental thereto.

4. Power to make rules.—(1) The [1][Federal Government] may by notification in the official Gazette, make such rules as appear to it to be necessary or expedient for carrying the purposes of this Act into effect.

(2) Without prejudice to the generality of the foregoing power such rules may provide for all or any of the following, namely: —

(*a*) the constitution, mobilization, enrolment, discipline, equipment, duties, privileges, and protection of fire-brigades and fire services in or near any port;

(*b*) the powers to be conferred and duties to be imposed on any officer or authority for the purposes of this Act;

(*c*) the mobilization and control of any Government, State or Municipal service, or private organisation, by the Fortress Commander in the event of the declaration of an emergency or apprehended emergency due to fire or explosion.

5. Declaration of emergency.—The existence of an emergency or apprehended emergency [2][due to fire or explosion] shall be declared by the Fortress Commander on the advice of the [1][Chief of the Naval Staff].

6. Powers of the [1][Chief of the Naval Staff].— Without prejudice to any other powers which may be conferred on him under this Act, the [1][Chief of the Naval Staff] may—

(*a*) issue orders requiring measures to be taken for the safety or vessels in a port and against or in respect of fire;

(*b*) issue orders to the owner or master of any vessel in port requiring him,—

(*i*) to take such steps as may be mentioned in the order for the detection and combating of fire;

(*ii*) to do, or to refrain from doing, such things as may be mentioned in the order in order to secure the safety of the vessel or prevent it from endangering other vessels or property;

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[1]Subs. by Act No. XLIII of 1974, ss. 3, 4 and 7.
[2]Ins. by Act No. XIII of 1954, s. 4.

(*iii*) to scuttle or beach the vessel in such position as may be specified in the order if the vessel is on fire or has suffered damage by fire or otherwise and constitutes, in the opinion of the [1][Chief of the Naval Staff], a danger to other vessels or obstructs the proper working of the port;

(*c*) issue orders requiring any work to be done on any land, or anything to be placed in, on or over any land, within the limits of a port, and such work may include the demolition or the rendering useless of anything placed in, on or over such land and the removal from such land of anything so demolished or rendered useless.

7. Delegation of powers by [1][Chief of the Naval Staff].—The [1][Chief of the Naval Staff] may, by notification in the official Gazette, delegate any power conferred on him by or under this Act to any officer subordinate to him and references in the Act to the said [1][Chief of the Naval Staff] shall include references to his delegate: provided that in time of peace such power shall be delegated only to the [1][Commodore-in-Charge or Flag Officer Commanding, Karachi, as the case may be] and in time of war to the [1][officer of the Pakistan Navy, howsoever designated, who is for the time being incharge] of the port.

8. Powers of Deputy Conservator of a port.—Without prejudice to any powers conferred upon him under this Act or by or under any law for the time being in force the Deputy Conservator of a port shall have power to order the master of any vessel in port [2][other than a tanker]—

(*a*) to place at his disposal such proportion, not exceeding three quarters, of the crew of the vessel as the Deputy Conservator requires for the purpose of preventing or extinguishing an outbreak of fire in the port;

(*b*) to take such steps as he may direct to extinguish any fire in his vessel.

In this section "Deputy Conservator" means the person who is for the time being discharging the duties of Deputy Conservator of the port.

[1][**8.A.** ***Technical Adviser Dangerous Cargoes.***—(1) The Federal Government may appoint a Technical Adviser Dangerous Cargoes on such terms and conditions as it may determine.

(2) The Technical Adviser Dangerous Cargoes shall, besides advising the Federal Government on matters relating to safety and security of any port, prevention of, and dealing with, explosions and fires on vessels carrying dangerous cargoes within the limits of any port and the transit, working and storage of dangerous cargoes, exercise such powers and perform such functions as may be assigned to him by the Federal Government.]

[1]Subs. and ins. by Act No. XLIII of 1974, ss. 4, 5 and 6.
[2]Ins. by Act No. XIII of 1954, s. 5.

9. Contravention of this Act.— (1) Any contravention of or attempt to contravene, and any abetment of or attempt to abet the contravention of any provision of this Act, or the rules made thereunder or any order under this Act or the rules shall be punishable with imprisonment for a term which may extend to two years or with fine which may extend to five thousand rupees or with both.

(2) For the purposes of this section failure to obey the provisions of any rule or order under this Act shall be construed as a contravention of the rule or order.

10. Power to arrest without warrant.—The police may arrest without warrant any person committing an offence under this Act.

11. Savings as to order.—(1) No order made in exercise of any power conferred by or under this Act shall be called to question by any court.

(2) When an order purports to have been made and signed by any officer or any authority in exercise of any power conferred by or under this Act the court shall, within the meaning of the Evidence Act, 1872 (I of 1872), presume that such order was so made by that officer or authority.

12. Protection of action taken under this Act.—(1) No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Act or any rules made thereunder or any order issued under this Act or the rules.

(2) Save as otherwise expressly provided under this Act no suit or other legal proceeding shall lie against the [1][Government] for any damage caused or likely to be caused by anything in good faith done or intended to be done in pursuance of this Act or any rule made thereunder or any order issued under this Act or the rules.

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Dated.23-07-2025

[1]Subs. by A. O., 1961, Art. 2 and Table, (with effect from the 23rd March, 1956).

THE DRUGS ACT, 1976

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THE DRUGS ACT, 1976

ACT No. XXXI OF 1976

[11th May, 1976]

An Act to regulate the import, export, manufacture, storage, distribution and sale of drugs

WHEREAS it is expedient to regulate the import, export, manufacture, storage, distribution and sale of drugs;

It is hereby enacted as follows:—

CHAPTER I
INTRODUCTORY

1. Short title, extent and commencement.— (1) This Act may be called the Drugs Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Application of other laws not barred. The provisions of this Act, shall be in addition to, and not in derogation of, the Dangerous Drugs Act, 1930 (II of 1930), and any other law for the time being in force.

3. Definitions. — In this Act, unless there is anything repugnant in the subject or context, —

(a) "adulterated drug" means a drug—

(i) which consists in whole or in part of any filthy, putrid or decomposed substance or which contains any foreign matter, vermin, worm, rodent or insect; or

(ii) which has been manufactured, packed, or held under unsanitary conditions whereby it [1][has] been contaminated with dirt, filth or any other foreign matter or whereby it may have been rendered injurious to health; or

(iii) the container of which releases any poisonous or deleterious substance which may render the contents injurious to health ; or

(iv) which bears or contains as an ingredient a substance other than the prescribed substance ; or

(v) with which any substance has been mixed or packed so as to reduce its quality or strength or for which any substance has been substituted wholly or in part ;

(b) "Appellate Board" means the Board Constituted under section 9 ;

[1]Subs. by Ordinance No. CXXVIII of 2002, s. 2.

(c) "batch" means a quantity of any drug produced during a given cycle of manufacture ;

(d) "batch number" means a designation printed on the label of a drug that identifies the batch and permits the production history of the batch, including all stages of manufacture and control, to be traced and reviewed ;

(e) "Central Licensing Board" means a Board set up under section 5 ;

(f) "counterfeit drug" means a drug the label or outer-packing of which is an imitation of, or resembles or so nearly resembles as to be calculated to deceive, the label or outer-packing of a drug of another manufacturer ;

(g) "drug" includes —

(i) any substance or mixture of substances that is manufactured, sold, stored, offered for sale or represented for internal or external use in the treatment, mitigation, prevention or diagnosis of disease, an abnormal physical state, or the symptoms thereof in human beings or animals, or the restoration, correction, or modification of organic functions in human beings or animals, not being a substance exclusively used or prepared for use in accordance with the ayurvedic, unani, homoeopathic or biochemic system of treatment except those substances and in accordance with such conditions as may be prescribed ;

(ii) abortive and contraceptive substances, agents and devices, surgical ligatures, sutures, bandages, absorbent cotton, disinfectants, bacteriophages, adhesive plasters, gelatine capsules and antiseptic solutions ;

(iii) such substances intended to be used for the destruction or repulsion of such vermin, insects, rodents and other organisms as cause, carry or transmit disease in human beings or animals or for disinfection in residential areas or in premises in which food is manufactured, prepared or kept or stored ;

(iv) such pesticides as may cause health hazard to the public ;

(v) any substance mentioned as monograph or as a preparation in the Pakistan Pharmacopoeia or the Pakistan National Formulary or the International Pharmacopeia or the British Pharmacopoeia or the British Pharmaceutical Codex or the United States Pharmacopoeia or the National Formulary of the United States, whether alone or in combination with any substance exclusively used in the unani, ayurvedic, homoeopathic or biochemic system of treatment, and intended to be used for any of the purposes mentioned in sub-clauses (i), (ii) and (iii) ; and

(vi) any other substance which the Federal Government may, by notification in the official Gazette, declare to be a "drug" for the purposes of this Act;

(h) "expiry date" means the date stated on the label of a drug after which the drug is not expected to retain its claimed efficacy, safety, quality or potency or after which it is not permissible to sell the drug ;

(i) "expert" means a specialist through university education and experience in the relevant field ;

(j) "export", with its grammatical variations and cognate expressions, means to take out of Pakistan by sea, land or air ;

(k) "generic name" means the non-proprietary, scientific or official name of a drug as approved by the Federal Government ;

(l) "Government Analyst" means a Federal Government Analyst or a Provincial Government Analyst appointed under section 16 ;

(m) "import", with its grammatical variations and cognate expressions, means to bring into Pakistan by sea, land or air ;

(n) "Inspector" means a Federal Inspector or a Provincial Inspector appointed under section 17 ;

(o) "label" means a display of written, printed or graphic matter upon the immediate container, or the outside container or wrapper of a drug package;

(p) "labelling" means all labels and other written, printed or graphic matter accompanying any drug;

(q) "licensing authority" means such authority as may be prescribed;

(r) "manufacture", in relation to a drug, means all operations involved in the production of the drug, including processing, compounding, formulating, filling, packing, repacking, altering, ornamenting, finishing and labelling with a view to its storage, sale and distribution, but does not include the compounding and dispensing or the packing of any drug in the ordinary course of retail business or on a prescription of a registered medical practitioner or dentist or of a veterinarian and "to manufacture" shall be construed accordingly;

(s) "misbranded drug" means a drug —

(i) which is not labelled in the prescribed manner; or

(ii) on the label or labelling of which any word, statement, or other matter or information required by the rules to appear on the label or labeling

is not prominently placed with such conspicuousness (as compared with other words, statements, designs, or devices on the label or labelling) and in such terms as may render it likely to be read and understood by the ordinary individual under customary conditions of purchase and use; or

(iii) which is not labelled with such directions for use and such warnings against use in indications where its use may be dangerous to health, or against unsafe dosage or duration of administration or application, in such manner and form as are necessary for the protection of users or as may be prescribed; or

(iv) the label or container of which, or anything accompanying which, bears any statement, design or device which makes any false claim for the drug or which is false or misleading in any particular; or

(v) which is so coloured, coated, powdered or polished that damage is concealed, or which is made to appear of better or greater therapeutic value than it really is; or

(vi) which is manufactured according to the specifications of a particular pharmacopoeia or any other document as may be prescribed and the label does not bear the name of that pharmacopoeia or document;

(t) "prescribed" means prescribed by rules;

(u) "Provincial Quality Control Board" means a Board set up under section 11;

(v) "Registration Board" means a Board set up under section 7;

(w) "registered drug" means any drug registered under section 7;

(x) "rules" mean rules made under this Act;

(y) "Drug Court" means a Court established under section 31;

(z) "specifications" when applied to a drug mean—

(i) such specifications as may be prescribed; or

(ii) when the specifications are not prescribed, the specifications as contained in the most recent edition of any of the following publications, namely:—

(1) the Pakistan Pharmacopoeia;

(2) the International Pharmacopoeia;

(3) the European Pharmacopoeia;

(4) the United States Pharmacopoeia;

(5) the British Pharmacopoeia;

(6) the British Pharmaceutical Codex;

(7) the United States National Formulary; and

(8) such other publication as may be prescribed:

Provided that, if the specifications do not appear in the most recent edition of any such publication, the specifications appearing in the next preceding edition of such publication in which the specifications appear shall apply; or

(iii) if no specifications are either prescribed or contained, in any of the publications referred to in sub-clause (ii), the specification approved for the purpose of registration under this Act;

(za) "sell" means sell, offer for sale, expose for sale, have in possession for sale and distribution and "to sell", "sold" or "sale" shall be construed accordingly;

(zb) "spurious drug" means a drug—

(i) which purports to be a drug but does not contain the active ingredient of that drug; or

(ii) which purports to be the product of a manufacturer, place or country of whom or of which it is not truly a product; or

(iii) which is imported or exported or sold or offered or exposed for sale under a particular name while actually it is another drug; or

(iv) the label of which bears the name of an individual or company purporting to be its manufacturer or producer which individual or company is fictitious or does not exist;

(zc) "storage" means storage for sale and "to store" or "stored" shall be construed accordingly; and

(zz) "sub-standard drug" means a drug which is not of specifications.

CHAPTER II
ADMINISTRATION AND ENFORCEMENT

4. Regulation and prohibition of import, etc., of drugs.— (1) The Federal Government shall regulate the import and export of drugs in the prescribed manner and for that purpose may make such orders and issue such directions to the importers and exporters as it may deem fit.

(2) If in the opinion of the Federal Government the public interest so requires, the Federal Government may, by notification in the official Gazette,—

(a) direct that a drug or a class of drugs specified in the notification, or drugs generally, shall not be imported or exported otherwise than under the authority of a licence issued under this Act or except by an importer or exporter or through an indentor registered in accordance with the rules;

(b) direct that a drug or class of drugs specified in the notification shall not be imported except by an agency of Government so specified; or

(c) prohibit the import or export of any drug or class of drugs specified in the notification.

[1][(3) Subject to sub-sections (1) and (2), only such drugs shall be imported which are on sale in the market of any of the western European countries, USA, Japan, Australia or any other country as may be prescribed]

5. Regulation of manufacture of drugs.— (1) The grant of licences to manufacture drugs shall be regulated in accordance with such conditions and procedure as may be prescribed, by a Central Licensing Board to be set up by the Federal Government and consisting of such representatives of the Federal Government and the Provincial Governments as may be prescribed.

(2) The members of the Central Licensing Board shall exercise such powers, including the powers of an Inspector, as may be prescribed.

(3) The Central Licensing Board shall [1][, with the approval of the Federal Government and by notification in the official Gazette,] make regulations to regulate the conduct of its business.

(4) Any member of the Central Licensing Board may, at any time, by writing under his hand addressed to the Federal Government, resign his office or shall vacate his office if the Federal Government, being of opinion that in the public interest it is necessary so to do, so directs.

(5) Subject to subsection (4), a member of the Central Licensing Board shall hold office for the prescribed period.

6. Regulation of sale of drugs. The Provincial Governments shall regulate the sale of drugs in the prescribed manner and may for that purpose make such orders, and issue such directions to the importers, manufacturers, stockists, retailers or other dealers of drugs, as they may deem fit.

7. Registration of drugs.— (1) The Federal Government shall cause all drugs to be registered in accordance with such conditions and procedure as may be prescribed and for that purpose set up a Registration Board, consisting of such number of persons, possessing such qualifications, as may be prescribed.

Explanation.— In this section, "drugs" means drugs which are in the finished form ready for use.

(2) The members of the Registration Board shall exercise such powers, including the powers of an Inspector, as may be prescribed.

[1]Added & ins. by Ordinance No. CXXVIII of 2002, ss. 3 & 4.

(3) The Registration Board shall [1][, with the approval of the Federal Government, and by notification in the official Gazette,] make regulations to regulate the conduct of its business.

(4) Any member of the Registration Board may, at any time, by writing under his hand addressed to the Federal Government, resign his office or shall vacate his office if the Federal Government, being of opinion that in the public interest it is necessary so to do, so directs.

(5) Subject to sub-section (4), the members of the Registration Board shall hold office for the prescribed period.

(6) The Federal Government shall, by notification in the official Gazette, fix the date after which no drug which is not registered shall be allowed to be exported, imported, manufactured, stored, distributed or sold.

(7) A person applying for the registration of a drug shall furnish such information in respect of the drug as may be prescribed, including information relating to its efficacy, safety and quality, or as may be required by the Registration Board for the purpose of the evaluation of the drug.

(8) Single-ingredient drugs shall be registered generally by their generic names while compound drugs shall be registered generally by their proprietary names.

Explanation .—In this subsection, —

(a) "Single-ingredient drugs" means drugs containing one active ingredient;

(b) "compound drugs" means drugs containing more than one active ingredient.

[1][(9) The registration of a drug shall be subject to such conditions as may be prescribed.]

(10) Where the Registration Board registers a drug, it shall inform the person applying for its registration and the Provincial Governments of its having done so and of the conditions subject to which it has been registered.

(11) If the Registration Board, on the basis of information received or an inquiry conducted by it, is of opinion that—

(a) the registration of a drug was procured by fraud or misrepresentation; or

(b) the circumstances in which a drug was registered no longer exist; or

(c) there has been a violation of the conditions subject to which a drug was registered; or

(d) it is necessary in the public interest so to do;

[1]Ins.& subs. by Ordinance No. CXXVIII of 2002, s. 5.

the Registration Board may, after affording to the person on whose application the drug was registered an opportunity of showing cause against the action proposed to be taken, cancel or suspend the registration or specify any further conditions to which the registration shall be subject and inform such person and the Provincial Governments accordingly.

(12) The Provincial Governments shall take all such steps as may be necessary to ensure compliance with the conditions subject to which a drug is registered and to prevent the manufacture or sale of a drug —

(a) which has not been registered; or

(b) the registration of which has been cancelled or stands suspended.

8. Pakistan National Formulary.— The Federal Government shall compile and publish in the official Gazette Pakistan National Formulary comprising all drugs allowed to be imported, manufactured or sold and such Formulary may be reviewed and modified from time to time.

9. Appellate Board.— (1) The Federal Government shall, in accordance with the rules, constitute an Appellate Board for the disposal of appeals preferred by persons aggrieved by any decision of the Central Licensing Board or the Registration Board or the licensing authority or a Board or Authority to which the powers of the Federal Government under section 12 have been delegated under sub-section (3) of that section and for revision of any such decision on its own motion.

(2) The Appellate Board shall consist of such representatives of the Federal Government and the Provincial Governments, including a Chairman, as the Federal Government may from time to time appoint.

(3) Subject to sub-section (4), the Chairman and other members of the Appellate Board shall hold office for the prescribed period.

(4) The Chairman or any other member of the Appellate Board may, by writing under his hand addressed to the Federal Government, resign his office or shall vacate his office if the Federal Government, being of opinion that in the public interest it is necessary so to do, so directs.

(5) The members of the Appellate Board shall exercise such powers, including the powers of an Inspector, as may be prescribed.

(6) The Appellate Board may appoint experts for the purposes of detailed study of any specific matter before it.

(7) The Appellate Board shall [1][, with the approval of the Federal Government and by notification in the official Gazette,] make regulations to regulate the conduct of its business.

[1]Ins. by Ordinance No. CXXVIII of 2002, s. 6.

[1][(8) The Appellate Board shall meet at least every month and shall decide any appeal preferred to it within sixty days of receipt of appeal unless the Board is prevented from doing so for sufficient cause to be recorded.]

[1]**[9A. Appeals to the Provincial Appellate Authority.**— (1) Any person aggrieved by any decision of the licensing authority may prefer appeal to the Provincial Appellate Authority.

(2) The Provincial Government shall constitute a Provincial Appellate Authority for the disposal of appeal preferred under sub-section (1) as may be prescribed.]

10. Expert Committees.— (1) The Federal Government may constitute committees of experts on Drugs Evaluation, on Pakistan Pharmacopoeia, on Advertising and on such other matters as may be necessary for the purposes of this Act.

(2) Each committee constituted under sub-section (1) shall consist of such members as the Federal Government may appoint from time to time and each such member shall hold office during the pleasure of the Federal Government.

11. Provincial Quality Control Board.— (1) Each Provincial Government shall set up a Provincial Quality Control Board consisting of such members, including a Chairman, as that Government may appoint from time to time.

(2) The Chairman and other members of the Provincial Quality Control Board shall hold office during the pleasure of the Provincial Government, on such terms and conditions as that Government may determine.

(3) The Provincial Government shall appoint a person to be the Secretary of the Provincial Quality Control Board and provide the Board with such staff as the Provincial Government may consider necessary.

(4) The Provincial Quality Control Board shall [1][, with the approval of the Provincial Government and by notification in the official Gazette,] make regulations to regulate the conduct of business.

(5) The following shall be the powers and functions of the Provincial Quality Control Board, namely: —

(a) to inspect any premises where any drug is being, or is to be, manufactured or sold and to recommend to the appropriate authority the cancellation or suspension of the licence to manufacture or sell drugs granted to any person who is found to be contravening, or to have contravened, any of the provisions of this Act, or the rules;

(b) to scrutinize the reports of Provincial Inspectors in respect of contraventions of this Act and reports of Government Analysts in respect of drugs sent to them by Provincial Inspectors for test and analysis and issue instructions to the Inspectors as to the action to be taken on such reports:

[1]Added and ins. by Ordinance No. CXXVIII of 2002, ss. 6 ,7 & 8.

Provided that the Provincial Quality Control Board may specify the class of cases in which a Provincial Inspector may make a complaint to the Drug Court, or take any other action, without the specific instructions of the Board;

(c) to exercise all the powers of an Inspector under this Act and the rules ; [1][*]

(d) to advise the Provincial Government on ways and means to ensure quality control of drugs manufactured in the Province[1][;]

[1][(e) to ascertain the names of such directors, partners and employees of the company, corporation, firm or institution who are *prima facie* responsible for the commission of any offence under this Act or the rules and allow an Inspector to institute prosecution only against such persons;

(f) to conduct annual validation of all instruments in the provincial drug testing laboratories and to recommend measures to upgrade such laboratories, if required;

(g) identify and accredit on payment of fee other laboratories in the Province with suitable facilities and expertise;

(h) to conduct training programs to update Government Analysts and for improving their knowledge according to latest analytical method and technology; and

(i) to submit a monthly report of decisions and activities to the Federal Government.]

(6) The Provincial Quality Control Board may entrust any of its powers or functions under sub-section (5) to any one or more of its members.

[1][**11A. Conflict of interest.**— No person who is a member of the Appellate Board, Central Licencing Board, a Provincial Quality Board, the Registration Board or a member of Expert Committee shall be a member of the any other board or committee of which he is a member to avoid any conflict of interest.]

12. Power to fix maximum prices of drugs, etc.— (1) The Federal Government may, by notification in the official Gazette,—

(a) fix the maximum price at which any drug specified in the notification is to be sold; and

(b) specify a certain percentage of the profits of manufacturers of drugs which shall be utilised, in accordance with the rules for purposes of research in drugs.

[1]Omitted, subs. added and ins. by Ordinance No. CXXVIII of 2002, ss. 8 & 9.

(2) For the purpose of the exercise of its powers under sub-section (1), the Federal Government may require a manufacturer, stockist, importer, exporter, retailer or other dealer in drugs to furnish such relevant information as may be necessary.

(3) The Federal Government may, by notification in the official Gazette, delegate any of its powers under this section to any Board or other authority.

13. Directions to Provincial Governments.— The Federal Government may give such directions to a Provincial Government as may appear to the Federal Government to be necessary for carrying into execution in the Province of any of the provisions of this Act or of any rule or order made thereunder or for maintaining supplies of drugs of standard quality at reasonable prices or for the achievement of uniformity in respect of any matter in different parts of Pakistan.

14. Federal Drug Laboratory and institutes, etc.— The Federal Government shall, as soon as may be, establish a Federal Drug Laboratory and may also set up such other institutes and drugs testing and research laboratories for the purposes of this Act as may be prescribed.

15. Provincial Drugs Testing Laboratory.— Each Provincial Government shall, as soon as may be, set up a Provincial Drug Testing Laboratory for such purposes as may be prescribed.

16. Government Analysts.— The Federal Government or a Provincial Government may, by notification in the official Gazette, appoint such persons it thinks fit, having the prescribed qualifications, to be the Federal Government Analysts or, as the case may be, Provincial Government Analysts, for such areas and in respect of such drugs or classes of drugs as may be specified in the notification:

Provided that no person who has any financial interest in the manufacture, import, export or sale of drugs shall be so appointed:

Provided further that a person serving under the Federal Government or another Provincial Government shall not be so appointed without the previous consent of that Government.

17. Inspectors.— The Federal Government or a Provincial Government may, by notification in the official Gazette, appoint such persons as it thinks fit, having the prescribed qualifications, to be Federal Inspectors or, as the case may be, Provincial Inspectors for the purposes of this Act within such local limits as it may assign to them respectively:

Provided that no person who has any financial interest in the manufacture, import, export or sale of any drug shall be so appointed:

Provided further that a person serving under the Federal Government or another Provincial Government shall not be so appointed without the previous consent of such Government.

18. Powers of Inspectors.— (1) Subject to the provisions of section 19 and of any rules made in this behalf, an Inspector may, within the local limits for which he is appointed, and in any other area with the permission of the licensing authority,—

(a) inspect any premises wherein any drug is manufactured, the plant and process of manufacture, the means employed for standardising and testing the drugs and all relevant records and registers;

(b) inspect any premises wherein any drug is sold or is stocked or exhibited for sale or is distributed, the storage arrangements and all relevant records and registers ;

(c) take samples of any drug which is being manufactured, or being sold or is stocked or exhibited for sale or is being distributed;

(d) enter and search, with such assistance, if any, as he considers necessary, any building, vessel or place, in which he has reason to believe that an offence under this Act or any rules has been or is being committed or may continue to be committed;

(e) call any person to be present as witness in the course of search or seizure or in connection with any other matter where the presence of witnesses is necessary;

(f) seize such drug and all materials used in the manufacture thereof and any other articles, including registers, cash-memos, invoices and bills, which he has reason to believe may furnish evidence of the commission of an offence punishable under this Act or any rules [1][:]

[1][Provided that where the contravention is such which can be remedied, the stocks shall not be seized upon undertaking in writing of the person not to sell drug without remedying the defect, under intimation to the Board concerned;]

(g) require any person to appear before him at any reasonable time and place to give statement, assistance or information relating to or in connection with the investigation of an offence under this Act or the rules:

Provided that the exemptions under sections 132 and 133 of the Code of Civil Procedure, 1908 (Act V of 1908), shall be applicable to requisitions for attendance under this clause;

(h) lock and seal any factory, laboratory, shop, building, store-house or godown, or a part thereof, where any drug is or is being manufactured, stored, sold or exhibited for sale in contravention of any of the provisions of this Act or the rules;

(i) forbid for a reasonable period, not exceeding [1][two] weeks or such further period, which shall not be more than three months, as the Inspector may, with the approval of the Provincial Quality Control Board, the Central Licensing Board, the Registration Board or the licensing authority, as the case may be, specify, any person in charge of any premises from removing or dispensing of any drug, article or other thing likely to be used in evidence of the commission of an offence under this Act or the rules; and

[1]Subs. & added by Ordinance No. CXXVIII of 2002, s. 10.

(j) exercise such other powers as may be necessary for carrying out the purposes of this Act or any rules:

Provided that the powers under clauses (f) to (j) shall be exercisable only by an Inspector specifically authorised in this behalf, by an order in writing, by the Government appointing him, subject to such conditions as may be specified in such order [1][.]

[1][* * * * * * *]

(2) The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), in so far as they are not inconsistent with the provisions of this Act, shall apply to searches and seizures made under this Act.

19. Procedure for Inspectors.— (1) Where an Inspector seizes any drug or any other article under section 18, he shall tender a receipt therefor in the prescribed form.

(2) Where an Inspector takes a sample of a drug for the purpose of test or analysis, he shall intimate such purpose in writing in the prescribed form to the person from whom he takes it and, in the presence of such person unless he wilfully absents himself, shall divide the sample into [1][five] portions and effectively seal and suitably mark the same and permit such person to add his own seal, if any, and mark to all or any of the portions so sealed and marked:

Provided that, where the sample is taken from premises whereon the drug is being manufactured, it shall be necessary to divide the sample into three portions only:

Provided further that, where the drug is made up in containers of small volume, instead of dividing a sample as aforesaid, the Inspector may, and if the drug be such that it is likely to deteriorate or be otherwise damaged by exposure shall, take three or four, as the case may be, of the said containers after suitably marking the same and, where necessary, sealing them:

Provided further that if the contents of one container are insufficient for the laboratory test and analysis, the Inspector may increase the number of the containers in order to make the sample sufficient for this purpose.

(3) The Inspector shall restore one portion of a sample so divided or one container, as the case may be, to the person from whom he takes it, and shall retain the remainder and dispose of the same within seven days as follows :-

(i) one portion or sample he shall send to the Government Analyst concerned for test and analysis;

(ii) the second he shall send to the Chairman Provincial Quality Control Board or the Central Licensing Board or the Registration Board, as the case may be; [1][*]

(iii) the third, where taken, he shall send to the warrantor, if any, named under the proviso to sub-section (3) of section 32 [1][; and]

[1]Subs. & omitted by Ordinance No. CXXVIII of 2002, ss. 10 & 11.

[1][(iv) the fourth, where taken, he shall send to the person purporting to be its manufacturer or importer, as the case may be]

(4) Where an Inspector seizes any drug containing any filthy or putrid substance, vermin, worm, rodent, insect or any foreign matter which is visible to the naked eye, and the sample is such that it cannot or need not be divided, he shall effectively seal and suitably mark the same and permit the person from whom he seizes the drug to add his own seal if any, and mark to it and shall produce the same before the Drug Court or the Central Licensing Board or the Registration Board, as the case may be, before which proceedings are instituted or action is initiated in respect of the drug.

(5) Where an Inspector takes any action under section 18,—

(a) he shall as soon as practicable ascertain whether or not the drug contravenes any of the provisions of this Act and, if it is ascertained that the drug does not so contravene, he shall forthwith revoke the order passed under the said section or, as the case may be, take such action as may be necessary for the return of the stock seized and payment for the samples taken, under intimation to the Board concerned ;

(b) if he seizes the stock of the drug, he shall, as soon as may be, inform the Board concerned and take its order as to the custody thereof:

Provided that where a Federal Inspector is not competent to take action under section 30, he shall as soon as may be report the matter and hand over the stock, if any, to the Provincial Inspector for further action under this Act.

(6) The Provincial Inspector on finding any contravention of this Act shall, unless the Board otherwise directs, always refer the case to the Provincial Quality Control Board and seek orders as to the action to be taken in respect of such contravention.

(7) The Federal Inspector on finding any contravention of this Act for which he is authorized shall, unless otherwise directed, always refer the case to the Central Licensing Board or the Registration Board or any other authority as may be specified for the purpose and seek any further orders as to the action to be taken in respect of such contravention.

20. Persons bound to disclose place where drugs are manufactured or kept.— Every person for the time being in charge of any premises whereon any drug is being manufactured or is kept for sale or distribution shall, on being required by an inspector so to do, disclose to the Inspector the place where the drug is being manufactured or is kept, as the case may be.

21. Disclosure of the name of the manufacturer.— Every person, not being the manufacturer of a drug or his agent for the distribution thereof, shall, if so required by an Inspector, disclose to him the name, address and other particulars of the manufacturer or other person from whom he acquired the drug.

22. Reports of Government Analysts.— (1) The Government Analyst to whom a sample of any drug has been submitted for test and analysis under sub-section (3) of section19 shall deliver to the Inspector submitting it a signed report in quadruplicate in the prescribed form and forward one copy thereof to the authority as may be prescribed.

[1]Added by Ordinance No. CXXVIII of 2002, s. 11.

(2) The Government Analyst, as far as may be, shall submit the report referred to in sub-section (1) within sixty days of the receipt by him of the sample of the drug and, if he is not able to do so for reasons beyond his control, shall communicate the reasons to the Inspector in writing and shall endorse its copy to the [1][Central Licensing Board or, as the case may be, the Registration Board or the Provincial Quality Control Board] who shall have the sample tested from the same or any other Government Analyst or a Government Drug Testing Laboratory or any other Laboratory and shall ensure the receipt of results of such test and analysis within a further period as may be prescribed and shall make the test report available to the Inspector for further action.

(3) On receipt of the report, the Inspector shall —

(a) deliver one copy thereof to the person from whom the sample was taken ;

(b) forward one copy to the warrantor, if any, named under the proviso to sub-section (3) of section 32;

(c) forward one copy to the [1][Central Licensing Board or, as the case may be, the Registration Board or the Provincial Quality Control Board] for its directions as to the action to be taken on the report; and

(d) retain the fourth copy for use in any prosecution or for any other purpose.

(4) Notwithstanding anything contained in any other law for the time being in force, any document purporting to be a report signed by a Government Analyst shall be admissible as evidence of the facts stated therein without formal proof and such evidence shall be conclusive unless the person from whom the sample was taken or the said warrantor has, within thirty days of the receipt of a copy of the report notified in writing to the Inspector or [1][Provincial Quality Control Board or, as the case may be, the Central Licensing Board or the Registration Board or the Drug Court] before which any proceedings in respect of the sample are pending that he intends to adduce evidence in controversion of the report.

(5) Where a person has, under sub-section (4), notified his intention of adducing evidence in controversion of a Government Analyst's report, [1][Provincial Quality Control Board or, as the case may be, the Central Licensing Board or the Registration Board or the Drug Court] may, of its own motion or in its discretion at the request either of the complainant or the accused, cause the sample of the drug lying with the Board concerned under sub-section (3) of section 19 to be sent for test or analysis to the Federal Drug Laboratory or any other laboratory specified for the purpose by the Federal Government which shall make the test or analysis and report in writing signed by, or under the authority of, the person for the time being incharge of the Federal Drug Laboratory, or, as the case may be, such other laboratory, the result thereof and such report shall be conclusive evidence of the facts stated therein.

(6) The cost of a test or analysis made by the Federal Drug Laboratory or other laboratory under sub-section (5) shall be paid by the complainant or accused as the Drug Court or the Board concerned shall direct.

[1]Subs. by Ordinance No. CXXVIII of 2002, s. 12.

CHAPTER III
PROHIBITIONS

23. Import, manufacture and sale of drugs.— (1) No person shall himself or by any other person on his behalf —

(a) export, import or manufacture for sale or sell

(i) any spurious drug;

(ii) any counterfeit drug;

(iii) any misbranded drug;

(iv) any adulterated drug;

(v) any substandard drug;

(vi) any drug after its expiry date;

(vii) any drug which is not registered or is not in accordance with the conditions of registration;

(viii) any drug which, by means of any statement, design or device accompanying it or by any other means, purports or claims to cure or mitigate any such disease or ailment, or to have any such other effect, as may be prescribed;

(ix) any drug if it is dangerous to health when used in the dosage or with the frequency, or for the duration specified, recommended or suggested in the labelling thereof; or

(x) any drug in contravention of any of the provisions of this Act or any rule;

(b) manufacture for sale any drug except under, and in accordance with the conditions of, a licence issued under this Act;

(c) sell any drug except under, and in accordance with the conditions of, a licence issued under this Act;

(d) import or export any drug the import or export of which is prohibited by or under this Act;

(e) import or export any drug for the import or export of which a licence is required, except under, and in accordance with the conditions of, such licence;

(f) supply an incorrect, incomplete or misleading information, when required to furnish any information under this Act or the rules;

(g) peddle, hawk or offer for sale any drug in a park or public street or on a highway, footpath or public transport or conveyance;

(h) import, manufacture for sale, or sell any substance, or mixture of substances, which is not a drug but is presented in a form or manner which is intended or likely to cause the public to believe it to be a drug;

(i) sell any drug without having a warranty in the prescribed form bearing the name and batch number of the drug issued,—

(i) in the case of a drug manufactured in Pakistan, by the manufacturer holding a valid licence to manufacture drugs and permission to manufacture that drug or by his authorised agent ;

(ii) in the case of an imported drug, by the manufacturer or importer of that drug or, if the drug is imported through an indentor by such indentor ; and

(j) apply an incorrect batch number to a drug.

(2) Nothing in sub-section (1) shall apply to the manufacture or import, subject to prescribed conditions, of small quantities of any drug for the purpose of clinical trial, examination, test, analysis or personal use ;

24. Control of advertisement.— No person shall himself or by any other person on his behalf advertise, except in accordance with such conditions as may be prescribed,—

(i) any drug ;

(ii) any substance used or prepared for use in accordance with the ayurvedic, unani, homoeopathic or biochemic system of treatment or any other substance or mixture of substances as may be prescribed ;

(iii) any remedy, treatment or offer of a treatment for any disease.

Explanation.— In this section, "advertise" means to make any representation by any means whatsoever for the purpose of promoting directly or indirectly the sale or disposal of a drug, a substance or a mixture of substances, a remedy or a treatment except the display of sign boards for a clinic, a dispensary or a hospital or such other institution offering treatment.

25. Control of sampling.— No person shall distribute or cause to be distributed any drug as a sample except in accordance with such conditions as may be prescribed.

26. Control of printing of labelling.— No person shall print any labelling in respect of any drug which is required to be registered under this Act but is not so registered after the date fixed by the Federal Government under sub-section (6) of section 7 or for a person who does not possess a licence under this Act to manufacture that drug.

CHAPTER IV
OFFENCES, PENALTIES AND PROCEDURE

27. Penalties.— (1) Whoever himself or by any other person on his behalf—

(a) exports, imports, manufactures for sale or sells any spurious drug or any drug which is not registered;

(b) manufactures for sale any drug without a licence ; or

(c) imports without licence any drug for the import of which a licence is required;

shall be punishable with imprisonment for a term which shall not be less than three years or more than ten years and with fine which may extend to one lakh rupees:

Provided that the Drug Court may, for any special reasons to be recorded, award a sentence of imprisonment for a term of less than three years.

(2) Whoever himself or by any other person on his behalf—

(a) imports, manufactures for sale or sells any counterfeit drug ; or

(b) gives to the purchaser a false warranty in respect of any drug sold by him that the drug does not in any way contravene the provisions of section 23 and is not able to prove that, when he gave the warranty, he had good and sufficient reason to believe the same to be true ; or

(c) applies or permits to be applied to any drug sold, or stocked or exhibited for sale, by him, whether on the container or a label or in any other manner, a warranty given in respect of any other drug ; or

(d) imports, manufactures for sale or sells any drug under a name other than the registered name ; or

(e) exports, imports, manufactures for sale or sells any drug with which any substance, which should not actually be its component, has been mixed or packed so as to reduce its quality or strength or for which any such substance has been substituted wholly or in part;

shall be punishable with imprisonment for a term which may extend to seven years, [1][or with fine which may extend to one lakh rupees, or with both].

(3) Whoever obstructs an Inspector in the exercise of any power conferred upon him by or under this Act, or disobeys the lawful authority of any Inspector, shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to ten thousand rupees, or with both.

[1]Subs. by Ordinance No. CXXVIII of 2002, s. 13.

(4) Subject to the provisions of sub-section (1), sub-section (2) and sub-section (3), whoever himself or by any other person on his behalf contravenes any of the provisions of this Act or any rule shall be punishable with imprisonment for a term which may extend to five years, or with fine which may extend to fifty thousand rupees, or with both.

28. Penalty for subsequent offence.— (1) Whoever having been convicted of an offence under sub-section (1) of section 27 is [1][convicted for a subsequent] offence under that sub-section shall be punishable with imprisonment for life or with imprisonment which shall not be less than five years and with fine which may extend to two lakh rupees.

(2) Whoever having been convicted of an offence under sub-section (2) of section 27 is [1][convicted for a subsequent] offence under that sub-section shall be punishable with imprisonment for a term which shall not be less than two years or more than ten years, or with fine which may extend to two lakh rupees, or with both.

(3) Whoever having been convicted of an offence under sub-section (4) of section 27 is [1][convicted for a subsequent] offence under that sub-section shall be punishable with imprisonment for a term which may extend to seven years, or with fine which may extend to one lakh rupees, or with both.

29. Forfeiture.— (1) Where any person has been convicted under this Act, for contravening any such provisions of this Act or any rule as may be prescribed in this behalf, the Drug Court may order that the stock of drug or substance by means of or in relation to which the offence was committed or anything of a similar nature belonging to or in the possession of the accused or found with such drug or substance, and if such contravention is punishable under sub-section (1) of section 27, any implements used in manufacture or sale of such drug and any receptacles, packages or coverings in which such drug is contained and the animals, vehicles, vessels or other conveyances, used in carrying such drug, be forfeited to the Federal Government or, as the case may be, the Provincial Government and, upon such order being made, such drug, substance, implements, receptacles, packages or coverings, animals, vehicles, vessels or conveyances may be disposed of as that Government may direct.

(2) Without prejudice to the provisions of sub-section (1), where the Drug Court is satisfied, on the application of an Inspector or otherwise, and after such inquiry as may be necessary, that a drug contravenes the provisions of this Act, the Drug Court may order that such drug be forfeited to the Federal Government or, as the case may be, the Provincial Government and, upon such order being made, such drug may be destroyed or otherwise disposed of as that Government may direct.

(3) An Inspector shall release any drug or article seized by him under this Act when he is satisfied that all the provisions of this Act and the rules with respect there to have been complied with.

30. Cognizance of offences.— (1) Subject to the provisions of section 19, no prosecution shall be instituted under this Chapter except—

[1]Subs. by Ordinance No. CXXVIII of 2002, s. 14.

(a) by a Federal Inspector, where the prosecution is in respect of a contravention of clause (h) of sub-section (1) of section 23 or section 24 or any of the provisions of this Act or the rules relating to the import or export of drugs or the manufacture for sale, or sale, of a drug which is not for the time being registered or for the manufacture for sale of which a licence is not for the time being in force; or

(b) by a Provincial Inspector:

Provided that, where the public interest so requires, the Federal Inspector may, with the prior permission of the Federal Government institute a prosecution for a contravention of any other provision of this Act.

(2) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), —

(a) an offence punishable under this Chapter other than an offence mentioned in sub-section (1) of section 27, shall be non-cognizable, and

(b) no court other than a Drug Court shall try an offence punishable under this Chapter.

(3) Nothing contained in this Chapter shall be deemed to prevent any person from being prosecuted under any other law for any act or omission which constitutes an offence punishable under this Chapter or to require the transfer to a Drug Court of any case which may be pending in any Court immediately before the establishment of the Drug Court.

31. Drug Courts.— (1) The Federal Government may, by notification in the official Gazette, establish as many Drug Courts as it considers necessary and, where it establishes more than one Drug Court, shall specify in the notification the territorial limits within which, or the class of cases in respect of which, each one of them shall exercise jurisdiction under this Act.

(2) A Drug Court shall consist of a person who is, or has been, or is qualified for appointment as, a Judge of a High Court, who shall be the Chairman, and two members being persons who, in the opinion of the Federal Government, are experts in the medical or pharmaceutical fields [1][:]

[1][Provided that for deciding applications of bail the Chairman and any one member shall constitute full quorum of a Drug Court.]

(3) A Drug Court shall sit at such place or places as the Federal Government may direct.

(4) A Drug Court shall have all the powers conferred by the Code of Criminal Procedure, 1898 (Act V of 1898), on a Court of Session exercising original jurisdiction.

(5) A Drug Court shall not, merely by reason of a change in its composition, be bound to recall and rehear any witness who has given evidence, and may act on the evidence already recorded by or produced before it.

[1]Subs. & added by Ordinance No. CXXVIII of 2002, s. 15.

(6) A Drug Court shall, in all matters with respect to which no procedure has been prescribed by this Act, follow the procedure prescribed by the Code of Criminal Procedure, 1898 (Act V of 1898), for the trial of summons cases by Magistrates.

(7) A person sentenced by a Drug Court may prefer an appeal to a bench of the High Court consisting of not less than two Judges within thirty days of the judgment.

(8) The provisions of sections 5 and 12 of the Limitation Act, 1908 (IX of 1908), shall be applicable to an appeal referred to in sub-section (7).

32. Pleas.— (1) Save as hereafter provided in this section, it shall be no defence in a prosecution under this Act to prove merely that the accused was ignorant of the nature, substance or quality of the drug in respect of which the offence has been committed or of the circumstances of its manufacture or import, or that a purchaser, having brought only for the purpose of test or analysis, has not been prejudiced by the sale.

(2) A drug shall not be deemed to be misbranded or adulterated or substandard only by reason of the fact that there has been added thereto some innocuous substance or ingredient because the same is required for the manufacture or preparation of the drug fit for carriage or consumption and not to increase the bulk, weight or measure of the drug or to conceal its inferior quality or other defect or there is a decomposed substance which is the result of a natural process of decomposition:

Provided that such decomposition is not due to any negligence on the part of the manufacturer of the drug or the dealer thereof and that it does not render the drug injurious to health or does not make it substandard.

(3) A person, not being the manufacturer of a drug or his agent for the distribution thereof, shall not be liable for a contravention of section 23 if he proves—

(a) that he did not know, and could not with reasonable diligence have ascertained, that the drug in any way contravened the provision of this Act and that the drug while in his possession remained in the same state as when he acquired it ; and

(b) that he acquired the drug from a duly licensed manufacturer or his authorised agent or an importer or an indentor resident in Pakistan under a written warranty in the prescribed form stating, in particular, the batch number of the drug and signed by such person that the drug does not in any way contravene the provisions of section 23 and that the drug while in his possession was properly stored and remained in the same state as when be acquired it and that the drug has been manufactured by a manufacturer holding a valid licence to manufacture drugs and permission to manufacture that drug:

Provided that a defence under clause (b) shall be open to a person only—

(i) if he has, within seven days of the service on him of the summons, sent to the Inspector a copy of the warranty with a written notice stating that he intends to rely upon it and giving the name and address of the warrantor, and

(ii) if he proves that he has, within the same period, sent written notice of such intention to the said warrantor.

33. Application of law relating to customs and powers of officers of customs.— (1) The law for the time being in force relating to customs and to goods the import of which is prohibited by or under the Customs Act, 1969 (IV of 1969), shall, subject to the provisions of section 27 of this Act, apply in respect of drugs the import of which is prohibited under this Act, and officers of customs and officers to whom any of the functions of an officer of customs have been entrusted under the said Act shall have the same powers in respect of such drugs as they have for the time being in respect of such goods as aforesaid.

(2) Without prejudice to the provisions of sub-section (1), an officer of customs or a Federal Inspector or any other person as may be authorised by the Federal Government in this behalf may detain any imported package which he suspects to contain any drug the import of which is prohibited under this Act, and shall forthwith report such detention to the licensing authority and, if required by it, forward the package or samples of any suspected drug found therein to a laboratory specified by it.

34. Offences by companies, etc.— Where the person guilty of an offence under this Act, is a company, corporation, firm or institution, every director, partner and employee of the company, corporation, firm or institution [1][with whose knowledge or consent the offence was committed shall be guilty of the offence]

35. Publication of offender's name.— (1) If any person is convicted of an offence under this Act, it shall be lawful for the Drug Court to cause the offender's name, place of residence, the offence of which he has been convicted and the penalty which has been inflicted upon him, to be published at the expense of such person in such newspapers or in such other manner as the Court may direct.

(2) The expenses of such publication shall be recoverable in the same manner as a fine is recoverable.

36. Powers to exempt.— Notwithstanding anything contained in this Act, the Federal Government may, if it is of opinion that the public interest so requires, at any time, of its own motion or on a representation made to it, by notification in the official Gazette, exempt any drug or class of drugs from the operation of any of the provisions of this Act, subject to such conditions, if any, and for such period, as may be specified in the notification.

37. Inspectors to be public servants.— Every Inspector shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860), and shall be officially subordinate to such authority as the Government appointing him may specify in this behalf.

38. Indemnity.— Except as otherwise expressly provided in this Act, no suit, prosecution or other legal proceeding shall lie against Government or any other authority or person for anything which is in good faith done or intended to be done under this Act or any rule.

39. Finality of orders, etc.— Save as otherwise expressly provided in this Act, every order passed or decision given by any Board, a Drug Court or any other authority under this Act shall be final and shall not be called in question by or before any Court or other authority.

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[1]Subs. by Ordinance No. CXXVIII of 2002, s. 16.

40. Publication of result of test or analysis, etc.— (1) It shall be lawful for the Federal Government to publish, in such manner as it may deem fit, the result of any test or analysis of any drug for public information and to pass such orders relating to the withdrawal of such drug from sale and its disposal as it may consider necessary.

(2) The Federal Government may, if it considers it necessary in the public interest so to do, publish for public information, in such manner as it may deem fit, any information relating to a drug or to the use of a drug in specified circumstances.

41. Cancellation or suspension of licences.— Where any person has been found to have contravened any of the provisions of this Act, or the rules in respect of any drug and the contravention is of such a nature that the import, export, manufacture or sale of any drug by such person is, in the opinion of the licensing authority or the Central Licensing Board, likely to endanger public health, that authority may, after giving such person an opportunity of being heard, cancel the licence to import, export, manufacture or sell drugs issued to such person or suspend such licence for a specified period.

42. Cancellation or suspension of registration of registered drugs.— Where any person has been found to have contravened any of the provisions of this Act, or the rules in respect of any registered drug, the Registration Board may, after giving such person an opportunity of being heard, cancel the registration of such drug or suspend such registration for a specified period.

CHAPTER V
MISCELLANEOUS

43. Power of Federal Government to make rules.— (1) Subject to section 44, the Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing provision, such rules may—

(a) prescribe the functions of the Federal Drug Laboratory and any other laboratory set up under section 14 or specified under section 22 or section 33 and the procedure for the submission to any such laboratory of samples of drugs for analysis or test, the forms of the laboratory's reports thereon and the fees payable in respect of such reports; and such other matters as may be necessary for any such laboratory to perform its functions;

(b) prescribe specifications, including the strength, potency, purity, quality or other property, of any drug, and the methods of test or analysis to be employed in determining whether a drug is of required specifications;

(c) prescribe the maximum proportion of any poisonous or other substance which may be added to or contained in any drug, or extracted or omitted therefrom; prohibit the import, manufacture, sale or stocking or exhibition for sale or distribution of any drug in which that proportion is exceeded and specify substances which shall be deemed to be poisonous;

(d) specify the drugs or classes of drugs for the import or export of which a licence is required, the testing of such drugs, and prescribe the form and

conditions of such licences, the authority empowered to issue the same, and the fees payable therefor;

(e) prescribe the places at which any specific drug or drugs may be imported prohibit their import at any other place, and control their import through any specified agency;

(f) prescribe the evidence to be supplied, whether by accompanying documents or otherwise, of the quality of drugs sought to be imported, the procedure of officers, of customs in dealing with such evidence and the manner of storage at places of import of drugs detained pending admission;

(g) prescribe the forms of licences for the manufacture for sale of drugs or any specified drugs or class of drugs, the form of application for such licences, the conditions subject to which such licence may be issued, the person under whose signature the same be issued and the fees payable therefor;

(h) require the date of manufacture and the date of expiry of potency to be clearly and truly stated on the label and container of any specified drug or class of drugs and prohibit the sale, stocking or exhibition for sale or distribution of the said drug or class of drugs after the expiry of a specified period from the date of manufacture or after the expiry date and prescribe the manner of disposal of such drug or class of drugs;

(i) prescribe the conditions to be observed in the packing in bottle, packages and other containers of drugs and prohibit the sale, stocking or exhibition for sale or distribution of drugs packed in contravention of such conditions;

(j) regulate the mode of packing and packaging, including its size, dimensions, fill and other specifications, the material used therefor and mode of labelling packed drugs and prescribe the matters which shall or shall not be included in such lebels or on the leaflets accompanying the drugs;

(k) require that the non-proprietary or chemical or accepted scientific name or the proprietary name of any specified drug or any ingredient thereof shall be displayed in the prescribed manner;

(l) prescribe the requirements and conditions in respect of good practices in the manufacture and quality control of drugs;

(m) prescribe conditions for distribution of samples for sales promotion of drugs;

(n) prescribe the procedure for introduction in Pakistan of a new drug;

(o) prescribe terms and conditions of members of the Central Licensing Board and the Registration Board;

(p) prescribe types of registration of drugs, the form of application for such registration, the conditions subject to which such registration may be granted,

the manner of registration and post-registration surveillance and deregistration of registered drugs and the fees payable therefor;

(q) prescribe conditions for registration of indentors, importers, wholesalers and distributors within Pakistan and any establishment within any foreign country engaged in the manufacture for export of a drug and prescribe conditions providing effective and adequate means, by arrangement with the Government of such foreign country or otherwise, to enable the licensing authority or the Registration Board to determine from time to time whether drugs manufactured in such establishment, if imported or offered for import into Pakistan, shall be refused admission where the public interest so requires;

(r) prescribe the form of warranty for manufactured drugs;

(s) specify offences in relation to which the stock of drugs, articles or things shall be liable to forfeiture under this Act;

(t) prescribe the qualifications, and regulate the procedure for exercise of powers and performance of functions, of Federal Inspectors;

(u) prescribe the laboratories to which the Federal Inspectors shall submit samples of drugs taken for the purpose of test and analysis and the form and procedure for submitting the report of such test and analysis and the fee payable therefor, where so required;

(v) prescribe measures for securing and maintaining supplies of drugs at reasonable prices, conditions to be met in respect of manufacture, production, pricing, keeping, movement and disposal of drugs and to fix prices, commissions, discount of the manufacturer, wholesaler, distributor, retailer or any other dealer of drugs, to control giving of bonus in cash or kind or in any other manner to any of the said parties and for collecting or calling for any information, statistics, records or books with a view to regulating the matters aforesaid;

(w) specify drugs which may be advertised and the conditions subject to which such drugs may be advertised;

(x) prescribe conditions subject to which small quantities of drugs may be imported or manufactured or exported for the purpose of examination, test or analysis, clinical trial or personal use; and

(y) prescribe any other matter which is to be, or may be, prescribed by the Federal Government.

(3) The power to make rules conferred by this section shall, except on the first occasion of the exercise thereof, be subject to the condition of previous publication.

44. Power of the Provincial Government to make rules.— (1) The Provincial Government may by notification in the official Gazette, make rules in respect of the following matters, namely:—

(a) the establishment of laboratories for testing and analysing drugs;

(b) the qualifications and the procedure, for exercise of powers and performance of functions of Provincial Inspectors;

(c) the forms of reports to be given by Government Analysts and the manner of application for test or analysis and the fees payable therefor;

(d) the conditions to regulate sale or storage or distribution of drugs or any specific drug or class of drugs;

(e) the offences against this Act or any rule in relation to which the stock of drugs shall be liable to confiscation and destruction under this Act;

(f) the forms of licences for the sale or distribution of drugs or any specified drug or class of drugs, the authority empowered to issue the same, the form of applications for such licences, the fees payable therefor and the conditions subject to which such licences may be issued;

(g) the procedure to be followed by the Provincial Quality Control Board; and

(h) any other matter which is to be or may be, prescribed by the Provincial Government.

(2) The power to make rules conferred by this section shall, except on the first occasion of the exercise thereof, be subject to the condition of previous publication.

45. Repeal and Savings.— (1) The Drugs Act, 1940 (XXIII of 1940), the Drugs (Generic Names) Act, 1972 (XXIV of 1972), and the Drugs Ordinance, 1976 (IV of 1976), are hereby repealed.

(2) Notwithstanding the repeal of the Drugs Act, 1940 (XXIII of 1940) by sub-section (1),—

(a) Any licence to manufacture for sale issued thereunder to any person, for the revalidation of which an application has already been made to the Central Licensing Board within the date specified by the Federal Government shall continue to be valid until orders are passed by the said Board in this behalf.

(b) Any licence for import or export or sale of drugs issued thereunder to any person, shall, unless it expires earlier under the terms thereof, continue to be valid for such periods as the Federal Government, or as the case may be the Provincial Government may by notification in the official Gazette, specify in this behalf:

Provided that in case of drugs to be imported or exported licences may continue to be issued under the rules framed under the Drugs Act, 1940, till the rules under this Act are framed or as the case may be, a date is fixed under sub-section (6) of section 7 in respect of drugs in the finished form ready for use.

RGN Dated: 20-02-2026

THE ELECTRICITY ACT, 1910

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THE ELECTRICITY ACT, 1910

[1]ACT No. IX OF 1910

[*18th March*, 1910]

An Act to amend the law relating to the supply and use of electrical energy

WHEREAS it is expedient to amend the law relating to the supply and use of electrical energy;

It is hereby enacted as follows:–

PART I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the [2][*] Electricity Act, 1910.

[3][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date[4] as the [5][Federal Government] may, by notification in the [6][official Gazette], direct in this behalf.

2. Definitions.— In this Act, expressions defined in the Telegraph Act, 1885 (XIII of 1885), have the meanings assigned to them in that Act, and, unless there is anything repugnant in the subject or context,—

(a) "aerial line" means any electric supply-line which is placed above ground and in the open air:

(b) "area of supply" means the area within which alone a licensee is for the time being authorized by his license to supply energy:

(c) "consumer" means any person who is supplied with energy by a licensee, or [7][who is the owner or occupier of the premises which] are for the time being connected for the purposes of a supply of energy with the works of a licensee:

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[1]The Act has been amended in its application to the Province of Punjab by Punjab Ordinance, XXIX of 1971.
The Act has been supplemented In Baluchistan by the Biritish Baluchistan Electricity (Emergency Powers) Regulation, 1947, (Reg. II of 1947), extended to the Leased Areas of Baluchistan, by the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950); and applied in the Federated Area of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499.
The Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., and extended to the Excluded Area of Upper Tanawal other that Phulera by the N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from the 1st June, 1951, *see* N.W.F.P. Gazette, Extraordinary, dated the 1st June, 1951.
It has also been extended to–
(i) the Baluchistan State Union, by the Baluchistan States Union. (Federal Laws)
(Extension) Order, 1953 (G.G.O, 4 of 1953);
(ii) the State of Bahawalpur, by the Bahawalpur (Extension of Federal Laws Order. 1953 (G.G.O.11 of 1953) and
(iii) the Khairpur State by G. G.O. 5 of 1953.
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (31 of 1960). s. 2. 2
[2]The word "Indian" omitted by A.O, 1949.
[3]Subs. by the Central Laws (Statute, Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October*, 1955), for sub-section (2) as amended by A O. 1949 and the Federal Law's (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 8,
[4]The 1st January, 1911, *see* Gen. R . & O.
[5]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which had been subs. by A.O., 1937 , for "G.G. in C".
[6]Subs. by A.O., 1937, for "Gazette of India"
[7]Subs. by the Electricity (Amdt.) Ordinance, 1979 (LXII of 1979), s. 2, for "whose premises". 3

(d) "daily fine" means a fine for each day on which an offence is continued after conviction therefor:

(e) "distributing main" means the portion of any main with which a service line is, or is intended to be, immediately connected: .

(f) "electric supply line" means a wire, conductor or other means used for conveying, transmitting or distributing energy together with any casing, coating, covering, tube, pipe or insulator enclosing, surrounding or supporting the same or any part thereof, or any apparatus connected therewith for the purpose of so conveying, transmitting or distributing such energy:

(g) "energy" means electrical energy when generated, transmitted, supplied or used for any purpose except the transmission of a message:

(h) "licensee" means any person licensed under Part II to supply energy:

(i) "main" means any electric supply, line through which energy is, or is intended to be, supplied by a licensee to the public:

(j) "prescribed" means prescribed by rules made under this Act:

(*k*) "public lamp" means an electric-lamp used for the lighting of any street:

[1][(1) "service line" means any electric supply-line through which energy is, or is intended to be, supplied by a li censee—

(*i*) to a single consumer either from a distributing main or immediately from the licensee's premises, or

(*ii*) from a distributing main to a group of consumers on the same premises or on adjoining premises supplied from the same point of the distributing main:]

(m) "street" includes any way, road, lane, square, court, alley passage or open space, whether a thoroughfare or not, over which the public have a right of way, and also the roadway and footway over any public bridge or causeway : and

(n) "works" includes electric supply-lines and any buildings, machinery or apparatus required to supply energy and to carry into effect the objects of a license granted under Part II.

PART II

SUPPLY OF ENERGY

Licenses

3. Grant of licenses.—(1) The [2][Provincial Government] may, on application made in the prescribed form and on payment of the prescribed fee (if any), grant to any person a license to supply energy in any specified area, and also to lay down or place electric supply-lines for the conveyance and transmission of energy,—

[1]Subs. by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 2, for the original clause (1).
[2]Subs. by A.O., 1937, for "L. G.". 4

(*a*) where the energy to be supplied is to be generated outside such area from a generating station situated outside such area to the boundary of such area, or

(*b*) where energy is to be conveyed or transmitted from any place in such area to any other place therein, across an intervening area not included therein, across such area.

(2) In respect of every such license and the grant thereof the following provisions shall have effect, namely :—

(*a*) any person applying for a license under this Part shall publish a notice of his application in the prescribed manner and with the prescribed particulars, and the license shall not be granted –

(i) until all objections received by the [1][Provincial Government] with reference thereto have been considered by it:

Provided that no objection shall be so considered unless it is received before the expiration of three months from the date of the first publication of such notice as aforesaid; and

(ii) until, in the case of an application for a license for an area including the whole or any part of any cantonment, fortress, arsenal, dockyard or camp or of any building or place in the occupation of the Government for naval or military purposes, the [1][Provincial Government] has ascertained that there is no objection to the grant of the license on the part of the [2][Engineer-in-Chief,[3][General Head Quarters, Pakistan]] ;

(b) where an objection is received from any local authority concerned, the [1][Provincial Government] shall, if in its opinion the objection is insufficient; record in writing, and communicate to such local authority its reasons for such opinion;

(c) no application for a license under this Part shall be made by any local authority except in pursuance of a resolution passed at a meeting of such authority held after one month's previous notice of the same and of the purpose thereof has been given in the manner in which notices of meetings of such local authority are usually given;

(d) a license under this Part—

(i) may prescribe such terms as to the limits within which, and the conditions under which, the supply of energy is to be compulsory or permissive, and as to the limits of price to be charged in respect of the supply of energy, and generally as to such matters as the [1][Provincial Government] may think fit ; and

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[1]Subs. by A. O., 1937, for "L. G.".
[2]Subs. by the Repealing and Amending Act, 1925 (XXXVII of 1925), s.2 and First Sch., for "Director of Military Works" which had been subs. for the original words "General Officer Commanding the Division" by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 3.
[3]Subs. by A. O., 1949, for "Army Headquarters, India". 5

(ii) save in cases in which under section 10, clause (b), the provisions of sections 5 and 7, or either of them, have been declared not to apply, every such license shall declare whether any generating station to be used in connection with the undertaking shall or shall not form part of the undertaking for the purpose of purchase under section 5 or section 7;

(e) the grant of a license under this Part for any purpose shall not in any way hinder or restrict the grant of a license to another person within the same area of supply for a like purpose;

(f) the provisions contained in the Schedule shall be deemed to be incorporated with, and to form part of, every license granted under this Part, save in so far as they are expressly added to, varied or excepted by the license, and shall, subject to any such additions, variations or exceptions which the [1][Provincial Government] is hereby empowered to make, apply to the undertaking authorized by the license:

Provided that, where a license is granted in accordance with the provisions of clause IX of the Schedule for the supply of energy to other licensees for distribution by them, then, in so far as such license relates to such supply, the provisions of clauses IV, V, VI, VII, VIII, and XII of the Schedule shall not be deemed to be incorporated with the license.

[2][* * * * * * *]

4. Revocation or amendment of licenses.–(1)The [1][Provincial Government] may, if in its opinion the public interest so requires, revoke a license in any of the following cases, namely:—

(*a*) where the licensee, in the opinion of the [1][Provincial Government], makes wilful and unreasonably prolonged default in doing anything required of him by or under this Act;

(*b*) where the licensee breaks any of the terms or conditions of his license the breach of which is expressly declared by such license to render it liable to revocation;

(*c*) where the licensee fails, within the period fixed in this behalf by his license or any longer period which the [1][Provincial Government] may substitute therefor by order under sub-section (3), clause *(b)*, and before exercising any of the powers conferred on him thereby in relation to the execution of works,—

(i) to show, to the satisfaction of the [1][Provincial Government], that he is in a position fully and efficiently to discharge the duties and obligations imposed on him by his license, or

(ii) to make the deposit or furnish the security required by his license;

(*d*) where the licensee is, in the opinion of the [1][Provincial Government], unable, by reason of his insolvency, fully and efficiently to discharge the duties and obligations imposed on him by his license.

[1]Subs. by A. O., 1937 for "L. G.".
[2]Sub-section (3) was omitted by the Devolution Act, 1920 (XXXVIII of 1920). s. 2 and First Sch. 6

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(2) Where the [1][Provincial Government] might, under subsection (1), revoke a license, it may, instead of revoking the license, [2][impose on the licensee a penalty, not exceeding ten thousand rupees, and permit the license to remain in force] subject to such further terms and conditions as it thinks fit to impose, and any further terms or conditions so imposed shall be binding upon, and be observed by, the licensee, and shall be of like force and effect as if they were contained in the license.

(3) Where in its opinion the public interest so permits, the [1][Provincial Government] may, on the application or with the consent of the licensee, and, if the licensee is not a local authority, after consulting the local authority (if any) concerned,—

(a) revoke a license as to the whole or any part of the area of supply upon such terms and conditions as it thinks fit, or

(b) make such alterations or amendments in the terms and conditions of a license, including the provisions specified in section 3, sub-section (2), clause *(f),* as it thinks fit.

5. Provisions where license of licensee, not being a local authority, is revoked.–Where the [1][Provincial Government] revokes under section 4, sub-section (1), the license of a licensee, not being a local authority, the following provisions shall have effect, namely:—

(a) the [1][Provincial Government] shall serve a notice of the revocation upon the licensee, and, where the whole of the area of supply is included in the area for which a single local authority is constituted, upon that local authority also, and shall in the notice fix a date on which the revocation shall take effect; and on and with effect from that date, all the powers and liabilities of the licensee under this Act shall absolutely cease and determine;

(b) where a notice has been served on a local authority under clause (a), the local authority may, within three months after the service of the notice, and with the written consent of the [1][Provincial Government], by notice in writing, require the licensee to sell, and the re upon the licensee shall sell, the undertaking to the local authority on payment of the value of all lands, buildings, works, materials and plant of the licensee suitable to, and used by him for, the purposes of the undertaking, other than a generating station declared by the license not to form part of the undertaking for the purpose of purchase, such value to be, in case of difference or dispute, determined by arbitration:

Provided that the value of such lands, buildings, works, materials and plant shall be deemed to be their fair market-value at the time of purchase, due regard being had to the nature and condition for the time being of such lands, buildings, works, materials and plant, and to the state of repair thereof, and to the circumstance that they are in such a position as to be ready for immediate working, and to the suitability of the same for the purposes of the undertaking but without any addition in respect of compulsory purchase or of goodwill or of any profits which may be or might have been made from the undertaking, or of any similar considerations;

[1]Subs. by A. O., 1937, for "L. G.".
[2]Subs. by the Electricity Act, (Amdt.) Ordinance, 1962 (VI of 19.62) s. 2. for "permit it to remain in force". 7

(c) where no purchase has been effected by the local authority under clause (b), and any other person is willing to purchase the undertaking, the [1][Provincial Government] may, if it thinks fit, with the consent of the licensee, or without the consent of the licensee in case the price is not less than that for which the local authority might have purchased the same, require the licensee to sell, and thereupon the licensee shall sell, the undertaking to such other person;

(d) where no purchase has been effected under clause (b) or clause (c) within such time as the [1][Provincial Government] may consider reasonable, or where the whole of the area of supply is not included in the area, for which a single local authority is constituted, the [1][Provincial Government] shall have the option of purchasing the undertaking and if the [1][Provincial Government] elects to purchase, the licensee shall sell the undertaking to the [1][Provincial Government] upon terms and conditions similar to those set forth in clause (b);

(e) where a purchase has been effected under any of the preceding clauses,–

(i) the undertaking shall vest in the purchasers free from any debts, mortgages or similar obligations of the licensee or attaching to the under taking:

Provided that any such debts, mortgages or similar obligations shall attach to the purchase-money in substitution for the undertaking; and

(ii) the revocation of the license shall extend only to the revocation of the rights, powers, authorities, duties and obligations of the licensee from whom the undertaking is purchased, and, save as aforesaid, the license shall remain in full force, and the purchaser shall be deemed to be the licensee:

Provided that where the [1][Provincial Government] elects to purchase under clause (d), the license shall, after purchase, in so far as the [1][Provincial Government] is concerned, cease to have any further operation;

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(f) where no purchase has been effected under any of the foregoing clauses, the licensee shall have the option of disposing of all lands, buildings, works, materials and plant belonging to the undertaking in such manner as he may think fit:

Provided that, if the licensee does not exercise such option within a period of six months from the date on which the same became exercisable, the [1][Provincial Government] may forthwith cause the works of the licensee in, under, over, along or across any street to be removed and every such street to be reinstated, and recover the cost of such removal and reinstatement from the licensee;

(g) if the licensee has been required to sell the undertaking, and if the sale has not been completed by the date fixed in the notice issued under clause (a), the purchaser may, with the previous sanction of the [1][Provincial Government], work the undertaking pending the completion of the sale.

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[1]Subs. by A. O., 1937, for "L. G." 8

6. Provisions where license of local authority is revoked.–(1) Where the [1][Provincial Government] revokes the license of a local authority under section 4, sub-section (1), and any person is willing to purchase the undertaking, the [1][Provincial Government] may, if it thinks fit, require the local authority to sell, and thereupon the local authority shall sell, the undertaking to such person on such terms as the [1][Provincial Government] thinks just.

(2) Where no purchase has been effected under sub-section (1), the licensee shall have the option of disposing of all lands, buildings, works, materials and plant belonging to the under-taking in such manner as he may think fit:

Provided that, if the licensee does not exercise such option within a period of six months from the date on which the same became exercisable, the [1][Provincial Government] may forthwith cause the works of the licensee in, under, over, along or across any street to be removed and every such street to be reinstated, and recover the cost of such removal and reinstatement from the licensee.

7. Purchase of undertaking.–(1) Where a license has been granted to any person not being a local authority, and the whole of the area of supply is included in the area for which a single local authority is constituted, the local authority shall, on the expiration of such period, not exceeding fifty years, and of every such subsequent period, not exceeding twenty years, as shall be specified in this behalf in the license, have the option of purchasing the undertaking, and, if the local authority, with the previous sanction of the [1][Provincial Government], elects to purchase, the licensee shall sell the undertaking to the local authority on payment of the value of all lands, buildings, works, materials and plant of the licensee suitable to, and used by him for, the purposes of the undertaking, other than a generating station declared by the license not to form part of the undertaking for the purpose of purchase, such value to be, in case of difference or dispute, determined by arbitration:

Provided that the value of such lands, buildings, works, materials and plant shall be deemed to be their fair market-value at the time of purchase, due regard being had to the nature and condition for the time being of such lands, buildings, works, materials and plant, and to the state of repair thereof and to the circumstance that they are in such a position as to be ready for immediate working, and to the suitability of the same for the purposes of the undertaking:

Provided also that there shall be added to such value as aforesaid such percentage, if any, not exceeding twenty per centum on that value as may be specified in the license, on account of compulsory purchase.

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(2) Where–

(a) the local authority does not elect to purchase under sub-section (1), or

(b) the whole of the area of supply is not included in the area for which a single local authority is constituted, or

(c) a licensee supplies energy from the same generating station to two or more areas of supply, each controlled by its own local authority, and has been granted a license in respect of each area of supply,

[1]Subs. by A.O. 1937 for "L. G,." 9

[1][Provincial Government] shall have the like option upon the like terms and conditions.

(3) Where a purchase has been effected under sub-section (1) or sub-section (2),—

(a) the undertaking shall vest in the purchasers free from any debts, mortgages or similar obligations of the licensee or attaching to the undertaking:

Provided that any such debts, mortgages or similar obligations shall attach to the purchase-money in substitution for the undertaking; and

(b) save as aforesaid, the license shall remain in full force, and the purchaser shall be deemed to be the licensee:

Provided that where the [1][Provincial Government] elects to purchase under sub-section (2), the license shall, after purchase, in so far as the [1][Provincial Government] is concerned, cease to have any further operation.

[2](4) Not less than two years' notice in writing of any election to purchase under this section shall be served upon the licensee by the local authority or the [1][Provincial Government], as the case may be.

(5) Notwithstanding anything hereinbefore contained, a local authority may, with the previous sanction of the [1][Provincial Government], waive its option to purchase and enter into an agreement with the licensee for the working by him of the undertaking until the expiration of the next subsequent period referred to in sub-section (1), upon such terms and conditions as may be stated in such agreement.

8. Provisions where no purchase and license revoked with consent of licensee.–Where, on the expiration of any of the periods referred to in section 7, sub-section (1), neither a local authority nor the [1][Provincial Government] purchases the undertaking, and the license is, on the application or with the consent of the licensee, revoked, the licensee shall have the option of disposing of all lands, buildings, works, materials and plant belonging to the undertaking in such manner as he may think fit:

Provided that, if the licensee does not exercise such option within a period of six months, the [1][Provincial Government] may proceed to take action as provided in section 5, clause (f), proviso.

9. Licensee not purchase, or associate himself with, other licensed undertakings or transfer his undertakings.–(1) The licensee shall not, at any time without the previous consent in writing of the [1][Provincial Government], acquire, by purchase or otherwise, the license or the undertaking of, or associate himself so far as the business of supplying energy is concerned with, any person supplying, or intending to supply, energy under any other license, and, before applying for such consent, the licensee shall give not less than one month's notice of the application to every local authority, both in the licensee's area of supply and also in the area or district in which such other person supplies, or intends to supply, energy:

Provided that nothing in this sub-section shall be construed to require the consent of the [1][Provincial Government] for the supply of energy by one licensee to another in accordance with the provisions of clause IX of the Schedule.

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[1]Subs. by A. O., 1937, for "L. G". 10

[2]This sub-section has been amended in the Punjab by the Punjab Electricity Act, 1939 (Punjab Act VI of 1939). 11

(2) The licensee shall not at any time assign his license or transfer his undertaking, or any part thereof, by sale, mortgage, lease, exchange or otherwise without the previous consent in writing of the [1][Provincial Government].

(3) Any agreement relating to any transaction of the nature described in sub-section (1) or sub-section (2), unless made with, or subject to such consent as aforesaid, shall be void.

10. General power for Government to vary terms of purchase.–Notwithstanding anything in sections 5, 7 and 8, the [1][Provincial Government] may, [2][* * *] ,in any license to be granted under this Act,–

(a) vary the terms and conditions upon which, and the periods on the expiration of which, the licensee shall be bound to sell his undertaking, or

(b) direct that, subject to such conditions and restrictions (if any) as it may think fit to impose, the provisions of the said sections or any of them shall not apply.

11. Annual accounts of licensee.–(1) Every licensee shall, unless expressly exempted from the liability by his license, or by order in writing of the [1][Provincial Government], prepare and render to the [1][Provincial Government] or to such authority as the [1][Provincial Government] may appoint in this behalf, on or before the prescribed date in each year, an annual statement of accounts of his undertaking made up to such date, in such form, and containing such particulars, as may be prescribed in this behalf.

(2) The licensee shall keep copies of such annual statement at his office, and sell the same to any applicant at a price not exceeding five rupees per copy.

Works

12. Provisions as to the opening and breaking up of streets, railways and tramways.–(1) Any licensee may, from time to time but subject always to the terms and conditions of his license, within the area of supply, or when permitted by the terms of his license to lay down or place electric supply-lines without the area of supply, without that area—

(a) open and break up the soil and payment of any street, railway or tramway;

(b) open and break up any sewer, drain or tunnel in or under any street, railway or tramway;

(c) lay down and place electric supply-lines and other works;

(d) repair, alter or remove the same; and

(e) do all other acts necessary for the due supply of energy,

(2) Nothing contained in sub-section (1) shall be deemed to authorize or empower a licensee, without the consent of the local authority or of the owner and occupier concerned, as the case may be, to lay down or place any electric supply-line or other work in, through or against any building, or on, over or under any land not dedicated to public use whereon, where over or where under any electric supply-line or work has not already been lawfully laid down or placed by such licensee:

[1]Subs. by A. O., 1937, for "L. G.".
[2]The words "with the previous sanction of the G.G. in C" omitted by the Devoluation Act, 1920 (XXXVIII of 1920), s. 2. and First Sch. 12

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Provided that any support of an aerial line or any stay or strut required for the sole purpose of securing in position any support of an aerial line may be fixed on any building or land or, having been so fixed, may be altered, notwithstanding the objection of the owner or occupier of such building or land, if the District Magistrate [1][* * *] by order in writing so directs:

Provided, also, that, if at any time the owner or occupier of any building or land on which any such support, stay or strut has been fixed shows sufficient cause, the District Magistrate [1][* * *] may by order in writing direct any such support, stay or strut to be removed or altered.

(3) When making an order under sub-section (2), the District Magistrate [2][* * *], shall fix the amount of compensation or of annual rent, or of both, which should in his opinion be paid by the licensee to the owner or occupier.

(4) Every order made by a District Magistrate [3][* * *] under sub-section (2) shall be subject to revision by the [4][Provincial Government].

(5) Nothing contained in sub-section (1) shall be deemed to authorize or empower any licensee to open or break up any street not repairable by [5][the, [6][Federal Government] or the Provincial Government] or a local authority, or any railway or tramway except such streets, railways or tramways (if any), or such parts thereof, as he is specially authorized to break up by his license, without the written consent of the person by whom the street is repairable or of the person for the time being entitled to work the railway or tramway unless with the written consent of the [4][Provincial Government]:

Provided that the [4][Provincial Government] shall not give any such consent as aforesaid, until the licensee has given notice by advertisement or otherwise as the [4][Provincial Government] may direct, and within such period as the [4][Provincial Government] may fix in this behalf, to the person above referred to, and until all representations or objections received in accordance with the notice have been considered by the [4][Provincial Government].

13. Notice of new works.–(1) Where the exercise of any of the powers of a licensee in relation to the execution of any works involves the placing of any works in, under, over, along or across any street, part of a street, railway, tramway, canal or waterway, the following provisions shall have effect, namely:—

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(a) not less than one month before commencing the execution of the works (not being a service line immediately attached, or intended to be immediately attached, to a distributing main, or the repair, renewal or amendment of existing works of which the character or position is not to be altered), the licensee shall serve upon the person responsible for the repair of the street or part of a street (hereinafter in this section referred to as "the repairing authority") or upon the person for the time being entitled to work the railway, tramway, canal or waterway (hereinafter in this section referred to as "the owner"),

[1]The original words "or, in a Presidency-town or Rangoon the Commissioner of Police" as amended by A. O., 1937, were omitted by A. O., 1949.
[2]The words "or the Commissioner of Police, as the case may be" omitted by A. O., 1949.
[3]The words "or a Commissioner of Police" omitted ibid.
[4]Subs. by A. O., 1937, for "L G.".
[5]Subs. ibid., for "the Govt.".
[6]Subs. by F.A.O., 1975 Art. 2 and Table, for "Central Government".

as the case may be, a notice in writing describing the proposed works, together with a section and plan thereof on a scale sufficiently large to show clearly the details of the proposed works, and not in any case smaller than one inch to eight feet vertically and sixteen inches to the mile horizontally and intimating the manner in which, and the time at which, it is proposed to interfere with or alter any existing works, and shall, upon being required to do so by the repairing authority or owner, as the case may be, from time to time give such further information in relation thereto as may be desired;

(b) if the repairing authority intimates to the licensee that it disapproves of such works, section or plan, or approves thereof subject to amendment, the licensee may, within one week of receiving such intimation, appeal to the [1][Provincial Government], whose decision, after considering the reasons given by the repairing authority for its action, shall be final;

(c) if the repairing authority fails to give notice in writing of its approval or disapproval to the license within one month, it shall be deemed to have approved of the works, section and plan, and the licensee, after giving not less than forty-eight hours' notice in writing to the repairing authority, may proceed to carry out the works in accordance with the notice and the section and plan served under clause *(a)*;

(d) if the owner disapproves of such works, section or plan, or approves thereof subject to amendment, he may, within three weeks after the service of the notice under clause (*a*), serve a requisition upon the licensee demanding that any question in relation to the works or to compensation, or to the obligations of the owner to others in respect thereof, shall be determined by arbitration, and thereupon the matter shall, unless settled by agreement, be determined by arbitration;

(e) where no requisition has been served by the owner upon the licensee under clause (*d*), within the time named, the owner shall be deemed to have approved of the works, section and plan, and in that case, or where after a requisition for arbitration the matter has been determined by arbitration, the works may, upon payment or securing of compensation, be executed according to the notice and the section and plan, subject to such modifications as may have been determined by arbitration or agreed upon between the parties;

(f) where the works to be executed consist of the laying of any underground service line immediately attached, or intended to be immediately attached, to a distributing main, the licensee shall give to the repairing authority or the owner, as the case may be, not less than forty-eight hours' notice in writing of his intention to execute such works;

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[1]Subs. by A. O., 1937, for "L. G.". 14

(g) where the works to be executed consist of the repair, renewal or amendment of existing works of which the character or position is not to be altered, the licensee shall, except in cases of emergency, give to the repairing authority, or to the owner, as the case may be, not less than forty-eight hours' notice in writing of his intention to execute such works, and, on the expiry of such notice, such works shall be commenced forthwith and shall be carried on with all reasonable despatch, and, if possible, both by day and by night until completed.

(2) Where the licensee makes default in complying with any of these provisions, he shall make full compensation for any loss or damage incurred by reason thereof, and, where any difference or dispute arises as to the amount of such compensation, the matter shall be determined by arbitration.

(3) Notwithstanding anything in this section, the licensee may, in case of emergency due to the breakdown of an underground electric supply-line, after giving notice in writing to the repairing authority or the owner, as the case may be, of his intention to do so, place an aerial line without complying with the provisions of sub-section (1):

Provided that such aerial line shall be used only until the defect in the underground electric supply-line can be made good, and in no case (unless with the written consent of the [1][Provincial Government] for a period exceeding six weeks, and shall be removed as soon as may be after such defect is removed.

14. Alteration of pipes or wires.–(1) Any licensee may alter the position of any pipe (not forming, in a case where the licensee is not a local authority, part of a local authority's main sewer), or of any wire under or over any place which he is authorized to open or break up, if such pipe or wire is likely to interfere with the exercise of his powers under this Act; and any person may alter the position of any electric supply lines or works of a licensee under or over any such place as aforesaid, if such electric supply-lines or works are likely to interfere with the lawful exercise of any powers vested in him.

(2) In any such case as aforesaid the following provisions shall, in the absence of an agreement to the contrary between the parties concerned, apply, namely:—

(a) not less than one month before commencing any alteration, the licensee or other person desiring to make the same (hereinafter in this section referred to as "the operator") shall serve upon the person for the time being entitled to the pipe, wire, electric supply-lines or works as the case may be (hereinafter in this section referred to as "the owner"), a notice in writing, describing the proposed alteration, together with a section and plan thereof on a scale sufficiently large to show clearly the details of the, proposed works, and not in any case smaller than one inch to eight feet vertically and sixteen inches to the mile horizontally, and intimating the time when it is to be commenced, and shall subsequently give such further information in relation thereto as the owner may desire;

[1]Subs. by A. O., 1937, for "L. G.". 15

(b) within fourteen days after the service of the notice, section and plan upon the owner, the owner may serve upon the operator a requisition to the effect that any question arising upon the notice, section or plan shall be determined by arbitration, and thereupon the matter shall, unless settled by agreement, be determined by arbitration;

(c) every arbitrator to whom a reference is made under clause (b) shall have regard to any duties or obligations which the owner is under, and may require the operator to execute any temporary or other works so as to avoid, as far as possible, interference therewith;

(d) where no requisition is served upon the operator under clause (b) within the time named, or where such a requisition has been served and the matter has been settled by agreement or determined by arbitration, the alteration may, upon payment or securing of any compensation accepted or determined by arbitration, be executed in accordance with the notice, section and plan and subject to such modifications as may have been determined by arbitration or agreed upon between the parties.;

(e) the owner may at any time before the operator is entitled to commence the alteration, serve upon the operator a statement in writing to the effect that he desires to execute the alteration himself and requires the operator to give such security for the repayment of any expenses as may be agreed upon or, in default of agreement, determined by arbitration;

(*f*) where a statement is served upon the operator under clause (e), he shall, not less than forty-eight hours before the execution of the alteration is required to be commenced, furnish such security and serve upon the owner a notice in writing intimating the time when the alteration is required to be commenced, and the manner in which it is required to be made; and thereupon the owner may proceed to execute the alteration as required by the operator;

(g) where the owner declines to comply, or does not, within the time and in the manner prescribed by a notice served upon him under clause (*f*), comply with the notice, the operator may himself execute the alteration;

(h) all expenses properly incurred by the owner in complying with a notice served upon him by the operator under clause (*f*) may be recovered by him from the operator.

(3) Where the licensee or other person desiring to make the alteration makes default in complying with any of these provisions, he shall make full compensation for any loss or damage incurred by reason thereof, and, where any difference or dispute arises as to the amount of such compensation, the matter shall be determined by arbitration.

15. Laying of electric supply-lines or other works near sewers, pipes or other electric supply-lines works.–(1) Where–

(a) the licensee requires to dig or sink, any trench for laying down any new electric supply-lines or other works, near to which any sewer, drain, water-course or work under the control of the [1][Provincial Government] or of any local authority, or any pipe, syphon, electric supply-line or other work belonging to any duly authorized person, has been lawfully placed, or

(b) any duly authorized person requires to dig or sink any trench for laying down or constructing any new pipes or other works, near to which any electric supply-lines or works of a licensee have been lawfully placed, the licensee or such duly authorized person, as the case may be (hereinafter in this section referred to as "the operator"), shall, unless it is otherwise agreed upon between the parties interested or in case of sudden emergency, give to the [1][Provincial Government] or local authority, or to such duly authorized person or to the licensee, as the case may be (hereinafter in this section referred to as "the owner"), not less than forty-eight hours' notice in writing before commencing to dig or sink the trench and the owner shall have the right to be present during the execution of the work, which shall be executed to the reasonable satisfaction of the owner.

(2) Where the operator finds it necessary to undermine, but not to alter, the position of any pipe, electric supply-line or work, he shall support it in position during the execution of the work, and before completion shall provide a suitable and proper foundation for it where so undermined.

(3) Where the operator (being the licensee) lays any electric supply-line across, or so as to be liable to touch, any pipes, lines or service-pipes or service-lines belonging to any duly authorized person or to any person supplying, transmitting or using energy under this Act, he shall not, except with the written consent of such person and in accordance with section 34, sub-section (1), lay his electric supply lines so as to come into contact with any such pipes, lines or service pipes or service-lines.

(4) Where the operator makes default in complying with any of the provisions of this section, he shall make full compensation for any loss or damage incurred by reason thereof.

(5) Where any difference or dispute arises under this, section, the matter shall be determined by arbitration.

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(6) Where the licensee is a local authority, the-references in this section to the local authority and to sewers, drains, water courses or works under its control shall not apply.

16. Streets, railways, tramways, sewers, drains or tunnels broken up to be reinstated without delay.–(1) Where any person, in exercise of any of the powers conferred by or under this Act, opens or breaks up the soil or pavement of any street, railway or tramway, or any sewer, drain or tunnel, he shall–

(a) immediately cause the part opened or broken up to be fenced and guarded;

(*b*) before sunset cause a light or lights, sufficient for the warning of passengers, to be set up and maintained until sunrise against or near the part opened or broken up;

[1]Subs. by A. 0., 1937, for "L, G.", 17

(*c*) with all reasonable speed fill in the ground and reinstate and make good the soil or pavement, or the sewer, drain or tunnel, opened or broken up, and carry away the rubbish occasioned by such opening or breaking up ; and

(*d*) after reinstating and making good the soil or pavement, or the sewer, drain or tunnel broken or opened up, keep the same in good repair for three months and for any further period, not exceeding nine months, during which subsidence continues.

(2) Where any person fails to comply with any of the provisions of sub-section (1), the person having the control or management of the street, railway, tramway, sewer, drain or tunnel in respect of which the default has occurred, may cause to be executed the work which the defaulter has delayed or omitted to execute, and may recover from him the expenses incurred in such execution.

(3) Where any difference or dispute arises as to the amount of the expenses incurred under sub-section (2), the matter shall be determined by arbitration. .

17. Notice to telegraph authority.–(1) A licensee shall, before laying down or placing, within ten yards of any part of any telegraph-line, any electric supply-line or other works [1][not being either service lines] or electric supply-lines for the repair, renewal or amendment of existing works of which the character or position is not to be altered), give not less than ten days notice in writing to the telegraph-authority, specifying–

(*a*) the course of the works or alteration proposed,

(*b*) the manner in which the works are to be utilised,

(*c*) the amount and nature of the energy to be transmitted, and

(*d*) the extent to, and manner in, which (if at all) earth returns are to be used; and the licensee shall conform with such reasonable requirements, either general or special, as may be laid down by the telegraph authority within that period for preventing any telegraph-line from being injuriously affected by such works or alterations:

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Provided that, in case of emergency (which shall be stated by the licensee in writing to the telegraph-authority) arising from defects in any of the electric supply-lines or other works of the licensee, the licensee shall be required to give only such notice as may be possible after the necessity for the proposed new works or alterations has arisen.

(2) Where the works to be executed consist of the laying [2][or placing] of any [3][*] service line [4][* * *], the licensee shall, not less than forty-eight hours before commencing the work, serve upon the telegraph-authority a notice in writing of his intention to execute such works.

[1]Subs. by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 4, for "not being service lines immediately attached or intended to be immediately attacked to a distributing main".
[2]Ins. *ibid.* 19
[3]The word "underground" omitted by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 4.
[4]The words "immediately attached, or intended to be immediately attached to a distributing main" omitted *ibid.*

18. Aerial lines.–(1) Save as provided in section 13, sub-section (3), nothing in this Part shall be deemed to authorize or empower a licensee to place any aerial line along or across any street, railway, tramway, canal or waterway unless and until the [1][Provincial Government] has communicated to him a general approval in writing of the methods of construction which he proposes to adopt:

Provided that the communication of such approval shall in no way relieve the licensee of his obligations with respect to any other consent required by or under this Act.

(2) Where any aerial line has been placed or maintained by a licensee in breach of the provisions of sub-section (1), the [1][Provincial Government] may require the licensee forthwith to remove the same, or may cause the same to be removed, and recover from the licensee the expenses incurred in such removal.

[2][(3) Where any tree standing or lying near an aerial line, or where any structure or other object which has been placed or has fallen near an aerial line subsequently to the placing of such line, interrupts or interferes with, or is likely to interrupt or interfere with, the conveyance or transmission of energy or the accessibility of any works, a Magistrate of the first class [3][* * *] may, on the application of the licensee, cause the tree, structure or object to be removed or otherwise dealt with, as he thinks fit.]

(4) When disposing of an application under sub-section (3), the Magistrate [4][* * *] shall, in the case of any tree in existence before the placing of the aerial line, award to the person interested in the tree such compensation as he thinks reasonable, and such person may recover the same from the licensee.

[5][*Explanation.*-For the purposes of this section, the expression "tree" shall be deemed to include any shrub, hedge, jungle growth or other plant.]

19. Compensation for damage.–(1) A licensee shall, in exercise of any of the powers conferred by or under this Act, cause as little damage, detriment and inconvenience as may be, and shall make full compensation for any damage, detriment or inconvenience caused by him or by any one employed by him.

(2) Save in the case Provided for in Section 12, Sub-section (3), where any difference or dispute arises as to the amount or the application of such compensation, the matter shall be determined by arbitration.

Supply

[6][**19A. Point where supply is delivered.–**For the purposes of this Act, the point at which the supply of energy by a licensee to a consumer shall be deemed to commence shall be determined in such manner as may be prescribed.]

[1]Subs. by A. O., 1937, for "L. G."
[2]Subs. by Act I of 1922, s. 5, for the original sub-section (3).
[3]The original words "or in a Presidency-town or Rangoon, the Commissioner of Police" as amended by A. O., 1937, were omitted by A. O., 1949.
[4]The words "or Commissioner of Police, as the case may be," omitted by A. O., 1949.
[5]*Explanation* ins. by Act I of 1922, s. 5. 20
[6]Section 19A ins. by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 6.

[1][**20. Power for licensee to enter premises and to remove fittings or other apparatus of licensee.–**(1) A Licensee or any person duly authorised by the licensee may, at any reasonable time, and on informing the occupier of his intention, enter the premises to which energy is or has been, or is to be, supplied by him, for the purpose of–

(a) examining, inspecting and testing the electric supply-lines, meters, maximum demand indicators or other measuring apparatus, electric wires, fittings, works and apparatus for the supply or use of energy, whether belonging to the licensee or to the consumer; or

(b) ascertaining the amount of energy supplied or the electrical quantity contained in the supply or the apparatus; or

(c) removing, where a supply of energy is no longer required, or where the licensee is authorised to take away and cut off such supply, any electric supply-lines, meters, maximum demand indicators or other measuring apparatus, fittings, works or apparatus belonging to the licensee:

Provided that, where a consumer's apparatus is involved, no person shall be deemed to have been so authorised by the licensee unless, at the time of entry into such premises, he is in possession of a written authorisation from the secretary, manager or any other officer of the licensee not below the rank of a Divisional Officer in the Public Works Department: Provided further that previous permission of the District Magistrate shall be necessary for making such entry into the premises of a domestic consumer.

(2) Where a consumer refuses to allow a licensee or any person authorised as aforesaid to enter his premises in pursuance of the provisions of sub-section (1) or, when such licensee or person has so entered, refuses to allow him to perform any act which he is authorised by that sub-section to perform, or fails to give reasonable facilities for such entry or performance, the licensee may, after the expiry of twenty-four hours from the service of a notice in writing on the consumer, cut off the supply to the consumer for so long as such refusal or failure- continues, but for no longer.]

21. Restrictions on licensee's controlling or interfering with use of energy.–(1) A licensee shall not be entitled to prescribe any special form of appliance for utilising energy supplied by him, or, save as provided by section 23, sub-section (2), or by section 26, sub-section (7), in any way to control or interfere with the use of such energy:

[2][Provided that no person may adopt any form of appliance, or use the energy supplied to him, so as unduly or improperly to interfere with the safety or efficient working of the electric supply-lines or works of the licensee or with the supply by the licensee of energy to any other person:

Provided further that, if the licensee requires a consumer, desiring to use, or using, the energy for running an electric motor excepting single phase motor for domestic use, to install a capacitor therewith, the consumer shall not so use the energy without installing the capacitor to the satisfaction of the licensee who, shall, if so required by the consumer, cause the consumer to be supplied with the capacitor on payment of its cost.]

[1]Subs. by the Electricity (Amdt.) Ordinance, 1979 (LXII of 1979), s. 3, for the original section 20 which had previously been amended by various enactments.
[2]Subs. by the Electricity (Amdt) Ordinance 1979 (LXII of 1979) s. 4, for the original Proviso.

[1][(2) Subject to the provisions of sub-section (1), a licensee may, with the previous sanction of the [2][Provincial Government], given-after consulting the local authority, where the licensee is not the local authority, make conditions not inconsistent with this Act or with his license or with any rules made under this Act, to regulate his relations with persons who are or intend to become consumers, and may, with the like sanction given after the like consultation add to or alter or amend any such conditions; and any conditions made by a licensee without such sanction shall be null and void:

Provided that any such conditions made before the 23rd day of January 1922 shall, if sanctioned by the [2][Provincial Government] on application made by the licensee before such date as the [1][Provincial Government] may, by general or special order, fix in this behalf, be deemed to have been made in accordance with the provisions of this sub-section.

(3) The [2][Provincial Government] may, after the like consultation, cancel any condition or part of a condition previously sanctioned under sub- section (2) after giving to the licensee not less than one month's notice in writing of its intention so to do.]

[3][(4)] Where any difference or dispute arises as to whether a licensee has prescribed any appliance or controlled or interfered with the use of energy in contravention of sub-section (1), the matter shall be either referred to an Electric Inspector, and decided by him or, if the licensee or consumer so desires, determined by arbitration.

22. Obligation on licensee to supply energy.–Where energy is supplied by a licensee, every person within the area of supply shall, except in so far as is otherwise provided by the terms and conditions of the license, be entitled, on application, to a supply on the same terms as those on which any other person in the same area is entitled in similar circumstances to a corresponding supply:

Provided that no person shall be entitled to demand, or to continue to receive, from a licensee a supply of energy for any premises having a separate supply unless he has agreed with the licensee to pay to him such minimum annual sum as will give him a reasonable return on the capital expenditure, and will cover other standing charges incurred by him in order to meet the possible maximum demand for those premises, the sum payable to be determined in case of difference or dispute by arbitration.

23. Charges for energy to be made without undue preference.–(1) A licensee shall not, in making any agreement for the supply of energy, show undue preference to any person, but may, save as aforesaid, make such charges for the supply of energy as may be agreed upon, not exceeding the limits imposed by his license.

(2) No consumer shall, except with the consent in writing of the licensee, use energy supplied to him under one method of charging in a manner for which a higher method of charging is in force.

[4][(3) In the absence of an agreement to the contrary, a licensee may charge for energy supplied by him to any consumer–

(*a*) by the actual amount of energy so supplied, or

(*b*) by the electrical quantity contained in the supply, or

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[1]Sub. sections (2) and (3) ins. by the Indian Electricity (Amdt.) Act, 1922 (I of 1922) s. 8.
[2]Subs. by A. O., 1937, for "L. G.". 22
[3]The original sub-section (2) was re-numbered as sub-section (4) by the Indian Electricity (Amdt.) Act, 1922, (I of 1922) s. 8.
[4]Sub-sections (3) and (4) ins. *ibid*., s. 9. 23

(*c*) by such other method as may be approved by the [1][Provincial Government].

(4) Any charges made by a licensee under clause *(c)* of sub-section (3) may be based upon, and vary in accordance with, any one or more of the following considerations, namely:—

(a) the consumer's load factor, or

(b) the power factor of his load, or

(c) his total consumption of energy during any stated period, or

(d) the hours at which the supply of energy is required.]

[2][**24. Discontinuance of supply to consumer neglecting to pay charge.–**(1) where any consumer neglects to pay any charge for energy or any sum, other than a charge for energy, assessed against him by a licensee in respect of supply of energy to his premises, the licensee may after giving not less than seven clear days' notice in writing to such consumer and without prejudice to his right to recover such charge or other sum by suit or otherwise, cut off the supply and for that purpose cut or disconnect any electric supply-line or other works, being the property of the licensee, through which energy may be supplied to such premises or to any other premises, other than domestic premises, running distinctly in the name of such consumer, and may discontinue the supply until such charge or other sum, together with any expenses incurred by him in cutting off and reconnecting the supply and the minimum charges on account of continued reservation of supply during the period of such discontinuance, are paid, but not loger.

(2) Where any difference or dispute as to any matter connected with any charge or other sum included in the bill of a licensee has been referred by a consumer under this Act to an Electric Inspector before the notice as aforesaid has been given by the licensee, the licensee shall not exercise the powers conferred by sub-section (1) until the Inspector has given his decision:

Provided that the prohibition contained in this sub-section shall not apply in any case in which the licensee has made a request in writing to the consumer for a deposit with the licensee of the undisputed charges and other sums and with the Electric Inspector of fifty per cent of the disputed charges and other sums and for the deposit with the licensee of further charges for supply of energy, as they accrue, and the consumer has failed to comply with such request with in a period of fifteen days from the date of such request or, as the case may be, from the date of receipt of bills in respect of further charges for supply of energy.]

25. Exemption of electric supply lines or other apparatus from attachment in certain cases.–Where any electric supply-lines, meters, fittings, works or apparatus belonging to a licensee are placed in or upon any premises, not being in the possession of the licensee, for the purpose of supplying energy, such electric supply-lines, meters, fittings, works and apparatus shall not be liable to be taken in execution under any process of any Civil Court or in any proceedings in insolvency against the person in whose possession the same may be. .

[1]Subs. by A. O.,1937, for "L. G.".
[2]Subs. by the the Electricity (Amdt). Ordinance, 1979 (LXII of 1979), s. 5, which has previously been amended by the Indian Electricity (Amdt.) Act, 1922, (I of 1922), s. 10. 24

26. Meters.–(1) In the absence of an agreement to the contrary, the amount of energy supplied to a consumer or the electrical quantity contained in the supply shall be ascertained by means of a correct meter, [1][, maximum demand indicator and other measuring apparatus] and the licensee shall, if required by the consumer, cause the consumer to be supplied with such a meter [1][maximum demand indicator and other measuring apparatus]:

Provided that the licensee may require the consumer to give him security for the price of a meter [1][, maximum demand indicator and other measuring apparatus] and enter into an agreement for the hire thereof, unless the consumer elects to purchase a meter [1][, maximum demand indicator and other measuring apparatus].

(2) Where the consumer so enters into an agreement for the hire of a meter [1][maximum demand indicator and other measuring apparatus] the licensee shall keep the meter [1][maximum demand indicator and other measuring apparatus] correct, and, in default of his doing so, the consumer shall, for so long as the default continues, cease to be liable to pay for the hire of the meter [1][maximum demand indicator and other measuring apparatus].

(3) Where the meter [1][maximum demand indicator and other measuring apparatus] is the property of the consumer, he shall keep the meter [1][maximum demand indicator and other measuring apparatus] correct, and, in default of his doing so, the licensee may, after giving him seven days' notice, for so long as the default continues, cease to supply energy through the meter [l][maximum demand indicator and other measuring apparatus].

(4) The licensee or any person dilly authorized by the licensee shall, at any reasonable time and on informing the consumer of his intention, have access to, and be at liberty to inspect and test, and for that purpose, if he thinks fit, take off and remove, any meter referred to in sub-section (1) ; and, except where the meter [1][, maximum demand indicator and other measuring apparatus] is so hired as aforesaid, all reasonable expenses of, and incidental to, such inspecting, testing, taking off and removing shall, if the meter [1][, maximum demand indicator and other measuring apparatus] is found to be otherwise than correct, be recovered from the consumer; and, where any difference or dispute arises as to the amount of such reasonable expenses, the matter shall be referred to an Electric Inspector, and the decision of such Inspector shall be final:

Provided that the licensee shall not be at liberty to take off or remove any such meter [1][maximum demand indicator and other measuring apparatus]if any difference or dispute of the nature described in sub-section (6) has arisen until the matter has been determined as therein provided.

(5) A consumer shall not connect any meter [1][maximum demand indicator and other measuring apparatus] referred to in sub-section (1) with any electric supply-line through which energy is supplied by a licensee, or disconnect the same from any such electric supply-line, without [2][obtaining the consent of the licensee in writing which shall not be un-reasonably withheld by the licensee].

[3][(5A) A consumer shall not injure any meter, maximum demand indicator or other measuring apparatus, or alter their indexes or prevent them from duly registering the amount of energy supplied or the electrical quantity contained in the supply.]

[1]Ins. by the Electricity (Amdt.) Ordinance, 1979 (LXII of 1979), s. 6. 25
[2]Subs. *ibid.*, for "giving to the licensee not less than forty-eight hours notice in writing of his intention."
[3]New sub-section (5A) ins. *ibid.*,

[1][(6) Where any difference or dispute arises between a licensee and a consumer as to whether any meter, maximum demand indicator or other measuring apparatus is or is not correct the matter shall be decided, upon the application of either party, by an Electric Inspector, within a period of ninety days from the date of receipt of such application, after affording the parties an opportunity of being heard, and where the meter, maximum demand indicator or other measuring apparatus has, in the opinion of the Electric Inspector, ceased to be correct, the Electric Inspector shall estimate the amount of energy supplied to the consumer or the electrical quantity contained in the supply, during such time as the meter, indicator or apparatus has not, in the opinion of the Electric Inspector, been correct; and, where the Electric Inspector, fails to decide the matter of difference or dispute within the said period or where either the licensee or the consumer decline to accept the decision of the Electric Inspector, the matter shall be referred to the Provincial Government whose decision shall be final:

Provided that, before either a licensee or a consumer applies to the Electric Inspector under this sub-section, he shall give to the other party not less than seven days' notice of his intention so to do.]

(7) In addition to any meter [2][maximum demand indicator and other measuring apparatus] which may be placed upon the premises of a consumer in pursuance of the provisions of sub-section (1), the licensee may place upon such [2][other] premises such meter, maximum demand indicator or other apparatus as he may think fit for the purpose of ascertaining or regulating either the amount of energy supplied to the consumer, or the number of hours during which the supply is given, or the rate per unit of time at which energy is supplied to the consumer, or any other quantity or time connected with the supply:

Provided that the meter, indicator or apparatus shall not, in the absence of an agreement to the contrary, be placed otherwise than between the distributing mains of the licensee and any meter referred to in sub-section (1):

Provided, also, that, where the charges for the supply of energy depend wholly or partly upon the reading or indication of any such meter, indicator or apparatus as aforesaid, the licensee shall, in the absence of an agreement to the contrary, keep the meter, indicator or apparatus correct; and the provisions of subsections (4), (5) [2][, 5A] and (6) shall in that case apply as though the meter, indicator or apparatus were a meter referred to in sub-section (1).

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Explanation.-A meter shall be deemed to be "correct" if it registers the amount of energy supplied, or the electrical quantity contained in the supply, within the prescribed limits of error, and a maximum demand indicator or other apparatus [3][* * *] shall be deemed to be "correct" if it complies with such conditions as may be prescribed in the case of any such indicator or other apparatus.

[4][**26A. Dishonest abstraction or consumption of energy.–**Notwithstanding anything contained in section 23, the licensee may charge the consumer on the basis of one or more of the following considerations for the amount of energy deemed to have been dishonestly abstracted, consumed or used, for the period during which the meter, maximum demand indicator or other measuring apparatus had, in the opinion of the licensee, remained connected, disconnected, injured, altered or prevented from registering the amount of energy supplied or the electrical quantity contained in the supply:—

[1]Subs. *ibid.*, for the original sub-section (6), which had been amended by A. O., 1937, and Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 11. 26
[2]Ins. by the Electricity (Amdt.) Ordinance, 1979 (LXII of 1979), s.6
[3]The words "referred to in sub-section (7)" omitted *ibid.*, s. 6.
[4]New section 26A ins. *ibid.*, s. 7. 27

(a) consumer's connected load or maximum demand in kilowatt during any period;

(b) consumer's maximum consumption of energy in kilowatt hours during any period;

(c) consumer's load factor;

(d) the power factor of consumer's load;

(e) the hours and the time for which the energy is deemed to have been abstracted, consumed or used by the consumer ; and

(f) the purpose for which the energy is deemed to have been abstracted, consumed or used by the consumer.]

27. Supply of energy outside area of supply.–Notwithstanding anything in this Act, the [1][Provincial Government] may, by order in writing, and subject to such conditions and restrictions, if any, as it thinks fit to impose, authorize any licensee to supply energy to any person outside the area of supply, and to lay down or place electric supply-lines for that purpose:

Provided, first, that no such authority shall be conferred on the licensee within the area of supply of another licensee without that licensee's consent, unless the [1][Provincial Government] considers that his consent has been unreasonably withheld:

Provided, secondly, that such authority shall not be conferred unless the person to whom the supply is to be given has entered into a specific agreement with the licensee for the taking of such supply:

Provided, thirdly, that a licensee on whom such authority has been conferred shall not be deemed to be empowered outside the area of supply to open or break up any street, or any sewer, drain or tunnel in or under any street, railway or tramway, or to interfere with any telegraph-line, without the written consent of the local authority or person by whom such street, sewer, drain or tunnel is repairable, or of the telegraph-authority, as the case may be, [2][unless the [1][Provincial Government], after such inquiry as it thinks fit, considers that such consent has been unreasonably withheld] :

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Provided, fourthly, that, save as aforesaid, the provisions of this Act shall apply in the case of any supply authorized under this section as if the said supply were made within the area of supply.

PART III

SUPPLY, TRANSMISSION AND USE OF ENERGY BY NON-LICENSEES

28. Sanction required by non-licensees in certain cases.–(1) No person, other than a licensee, shall engage in the business of supplying energy except with the previous sanction of the [1][Provincial Government] and in accordance with such conditions as the [1][Provincial Government] may fix in this behalf, and any agreement to the contrary shall be void:

[3][* * * * * * *]

[1]Subs. by A.O., 1937, for "L.G."
[2]Ins. by the Indian Electricity (Amdt.) Act 1922 (I of 1922), s. 12. 28
[3]The first proviso omitted by the Indian Electricity (Amdt.) Act, 1922 (I of 1921), s. 13.

Provided [2][*] that such sanction shall not be given within the area for which a local authority is constituted, without that local authority's consent, or within the area of supply of any licensee, without that licensee's consent, unlesss the [1][Provincial Government] considers that consent has been unreasonably withheld.

(2) Where any difference or dispute arises as to whether any person is or is not engaging, or about to engage, in the business of supplying energy within the meaning of sub-section (1), the matter shall be referred to the [1][Provincial Government], and the decision of the [1][Provincial Government] thereon shall be final.

29. Power for non-licensees to break up streets.–(1) The local authority may, by order in writing, confer and impose upon any person, who has obtained the sanction of the [1][Provincial Government] under section 28 to engage in the business of supplying energy, all or any of the powers and liabilities of a licensee under sections 12 to 19, both inclusive, and the provisions of the said sections shall thereupon apply as if such person were a licensee under Part II.

(2) A local authority, not being a licensee, shall, for the purpose of lighting any street, have the powers and be subject to the liabilities respectively conferred and imposed by sections 12 to 19, both inclusive, so far as applicable, as if it were a licensee under Part II.

(3) In cases other than those for which provision is made by sub-section (1), the person responsible for the repair of any street may, by order in writing, confer and impose upon any person who proposes to transmit energy in such street all or any of the powers and liabilities of a licensee under sections 12 to 19 (both inclusive), in so far as the same relate to_

(a) opening or breaking up of the soil or pavement of such street, or

(b) laying down or placing electric supply-lines in, under, along or across such street, or

(c) repairing, altering or removing such electric supply lines, and thereupon the provisions of the said sections shall, so far as aforesaid, apply to such person as if he were a licensee under Part II.

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(4) If no order is made within fourteen days after the receipt of an application for the same under sub-section (1) or sub-section (3), the order so applied for shall be deemed to have been refused, and every order, and every refusal to make an order, under sub-section (1) or sub-section (3), shall be subject to revision by the [1][Provincial Government].

[3][**29A. Application of section 18 to aerial lines maintained by railways.–**The provisions of sub-section (3) and (4) of section 18 and of the *Explanation* thereto shall apply in the case of any aerial line placed by any railway administration as defined in section 3 of the Railways Act, 1890 (IX of 1890), as if references therein to the licensee were references to the railway administration.]

30. Control of transmission and use of energy.–(1) No person, other than a licensee duly authorized under the terms of his license, shall transmit or use energy at a rate exceeding two hundred and fifty watts,—

[1]Subs. by A. O., 1937 for "L. G.".
[2]The word "also" omitted *ibid.* 29
[3]S. 29A ins. by the Indian Electricity (Amdt.) Act, 1923 (XL of 1923), s. 2.

(*a*) in any street, or

(*b*) in any place,

(i) in which one hundred or more persons are likely ordinarily to be assembled, or

(ii) which is a factory within the meaning of [1][Factories Act, 1934(XXV of 1934)], or

(iii) which is a mine within the meaning of the [2][Mines Act, 1923 (IV of 1923)] [3][or

[3](iv) to which the [4][Provincial Government], by general or special order, declares the provisions of this sub-section to apply,]

without giving not less than seven clear days' notice in writing of his intention to the District Magistrate, [5][* * *] and complying with such of the provisions of Part IV, and of the rules made there under, as may be applicable:

Provided that nothing in this section shall apply to energy used for the public carriage of passengers, animals or goods on, or for the lighting or ventilation of the rolling-stock of, any railway or tramway subject to the provisions of the Railways Act, 1890 (IX of 1890):

Provided, also that the [4][Provincial Government] may, by general or special order and subject to such conditions and restrictions as may be specified therein, exempt from the application of this section or of any such provision or rule as aforesaid any person or class of persons using energy on premises upon or in connection with which it is generated, or using energy supplied under Part II in any place specified in clause (*b*).

(2) Where any difference or dispute arises as to whether a place is or is not one in which one hundred or more persons are likely ordinarily to be assembled, the matter shall be referred to the [4][Provincial Government], and the decision of the [4][Provincial Government] thereon shall be final.

(3) The provisions of this section shall be binding on the [6][Government].

PATR IV

GENERAL

Protective Clauses

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Second Sch., for "Indian Factories Act, 1911".
[2]Subs. *ibid* for "Indian Mines Act, 1901".
[3]The word "or" and sub-clause (iv) ins. by Act I of 1922 s. 14.
[4]Subs. by A. O., 1937, for "L. G.".
[5]The original words "or in a Presidency-town or Rangoon to the Commissioner of Police" as amended by A. O., 1937, were omitted by the Federal Laws (Revision and Declaration) Act. 1951 (XXVI of 1951), s. 3 and Second Sch. 30
[6]Subs. by A. O., 1961, Art. 2, for "Crown" (*with effect from the 23rd March,* 1956).

31. Protection of railways and canals, docks, wharves and piers.–No person shall, in the generation, transmission, supply or use of energy, in any way injure any railway, tramway, canal or waterway or any dock, wharf or pier vested in or controlled by a local authority, or obstruct or interfere with the traffic on any railway, tramway, canal or water-way.

32. Protection of telegraphic, telephonic and electric signaling lines.–(1) Every person generating, transmitting, supplying or using energy (hereinafter in this section referred to as the) operator' shall take all reasonable precautions in constructing, laying down and placing his electric supply-lines and other works and in working his system, so as not injuriously to affect, whether by induction, or otherwise the working of any wire or line used for the purpose of telegraphic, telephonic, or electric signalling communication, or the currents in such wire or line.

(2) Where any difference or dispute arises between the operator and the telegraph-authority as to whether the operator has constructed, laid down or placed his electric supply-lines or other works, or worked his system, in contravention of sub-section (1), or as to whether the working of any wire, line or current is or is not injuriously affected thereby, the matter shall be referred to [1][the [2][Federal Government] ; and [1][the [2][Federal Government]; unless [3][it] is of opinion that the wire or line has been placed in unreasonable proximity to the electric supply-lines or works of the operator after the construction of such lines or works, may direct the operator to make such alterations in, or additions to, his system as may be necessary in order to comply with the provisions of this section, and the operator shall make such alterations or additions accordingly:

Provided that nothing in this sub-section shall apply to the repair, renewal or amendment of any electric supply-line so long as the course of the electric supply-line and the amount and nature of the energy transmitted thereby are not altered.

(3) Where the operator makes default in complying with the requirements of, this section, he shall make full compensation for any loss or damage incurred by reason thereof, and, where any difference or dispute arises as to the amount of such compensation, the matter shall be determined by arbitration.

Explanation.-For the purposes of this section, a telegraph line shall be deemed to be injuriously affected if telegraphic, telephonic or electric signaling communication by means of such line is, whether through induction or otherwise prejudicially interfered with by an electric supply line or work or by any use made thereof.

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33. Notice of accidents and inquiries.–[4][(1) If any accident occurs in connection with the generation, transmission, supply or use of energy in, or in connection with, any part of the electric supply-lines or other works of any person, and the accident results or is likely to have resulted in loss of life or personal injury, such person shall give notice of the occurrence, and of any loss of life or personal injury actually occasioned by, the accident, in such form and within such time and to such authorities as the [5][Provincial Government] may, by general or special older, direct.]

(2) The [2][Provincial Government] may, if it thinks fit, require any Electric Inspector, or any other competent person appointed by it in this behalf, to inquire and report—

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[1]Subs. by A. O., 1937, for "the L. G.", which had been subs. for "G. G. in C." by the Devolution Act, 1920 (XXXVIII of 1920), s. 2 and First Sch.
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[3]Subs. by Act XXXVIII of 1920, s. 2 and First Sch for "he". 31
[4]Subs. by the Indian Electricity (Amdt.) Act, 1922 (I of 1922),: s. 15, for the original sub-section (1).
[5]Subs. by A. O., 1937, for "L. G.".

(a) as to the cause of any accident affecting the safety of the public, which may have been occasioned by, or in connection with the generation, transmission, supply or use of energy, or

(*b*) as to the manner in, and extent to, which the provisions of this Act or of any license or rules thereunder, so far as those provisions affect the safety of any person, have been complied with.

34. Prohibition of connection with earth, and power for Government to interfere in certain cases of default.–(1) No person shall, in the generation, transmission supply or use of energy, permit any part of his electric supply-lines to be connected with earth except so far as may be prescribed in this behalf or may be specially sanctioned by the [1][Provincial Government.]

(2) If at any time it is established to the satisfaction of the [1][Provincial Government]—

(a) that any part of an electric supply-line is connected with earth contrary to the provisions of sub-section (1), or

(b) that any electric supply-lines or other works for the generation, transmission, supply or use of energy are attended with danger to the public safety or to human life or injuriously affect any telegraph-line, or

(c) that any electric supply-lines or other works are defective so as not to be in accordance with the provisions of this Act or of any rule thereunder,

[1][Provincial Government] may, by order in writing, specify the matter complained of and require the owner or user of such electric supply-lines or other works to remedy it in such manner as shall be specified in the order, and may also in like manner forbid the use of any electric supply-line or works until the older is complied with or for such time as is specified in the order.

Administration and Rules

35. Advisory Boards.–(1) The [2][* * *] [1][Provincial Government] may, for the whole or any part of the Province, by notification in the [3][official] Gazette], [4][* * *], constitute an Advisory Board.

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(2) [5][The Board] shall consist of a chairman and not less than two other members.

[6][* * * * * * *]

[7][(3) [8][The Provincial Government] may, by general or special order,–

[1]Subs. *ibid.*, for the words "Local Government" which had been subs., for "Governor General in Council" by the Devolution Act, 1920 (XXXVIII of 1920), s. 2 and First Sch. 32

[2]The words "Central Government may, for the whole or any part of Pakistan and each" as amended by A. O., 1937, A. O., 1949, and the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch.(with effect from the 14th October, 1955), have been omitted by A. O., 1964, Art. 2 and Sch.

[3]Subs. by A. O., 1937, for "Gazette of India".

[4]The words "or the local official Gazette, as the case may be" omitted, *ibid.*

[5]Subs. by A. O., 1964, Art. 2 and Sch. for "Every such Board".

[6]Sub-section (3) omitted by the Indian Electricity (Amdt) Act, 1922 (I of 1922), s. 16.

[7]The original sub-section (4) was re-numbered as sub-section (3), *ibid.*

[8]The original words "The G.G. in C. or the L.G. as the case may be have successivly been amended by A.O., 1937 and A. O., 1964, Art. 2 and Sch., to read as above.

[1][(*a*) determine the number of members of which [2][the Board] shall be constituted and the manner in which such members shall be appointed,]

[1][(*b*)] define the duties and regulate the procedure of [2][the Board],

[1][(*e*)] determine the tenure of office of the members of [2][the Board], and

[1][(*d*)] give directions as to the payment of fees to, and the travelling expenses incurred by, any member of [2][the Board] in the performance of his duty.

36. Appointment of Electric Inspectors.–[3][* * * * * * *]

(2) The [4][Provincial Government) may, by notification in the [5][official Gazette], appoint duly qualified persons to be Electric Inspectors within such areas as may be assigned to them respectively; and every Inspector so appointed shall [6][* * *] exercise the powers and perform the functions of an Electric Inspector under this Act subject to such restrictions as the [4][Provincial Government] may direct.

(3) In the absence of express provision to the contrary in this Act, or any rule thereunder, an appeal shall lie from the decision of an Electric Inspector to the [7][Provincial Government] or, if the Provincial Government, by general or special order, so directs, to the Advisory Board].

[8][**36A. Electricity Board.–**[9][(1) A Board to be called the Federal Electricity Board shall be constituted to exercise the powers conferred by section 37.

(2) The Federal Electricity Board shall consist of the following members, namely:—

(*a*) a Chairman to be nominated by the Federal Government;

(*b*) one member each to be nominated by the Provincial Governments of the Punjab, North-West Frontier Province, Sind and Baluchistan;

(*c*) one member to be nominated by the Federal Government for Islamabad Capital Territory; and

(*d*) one member to be nominated by the Chairman of the Railway Board:

Provided that if at any time it seems fit to do so the Federal Government may appoint not more than two additional members.]

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[1]Clauses *(a), (b)* and *(c)* were re-lettered as clauses *(b), (c)* and (d) respectively, by Act I of 1922, s. 16.
[2]Subs. by A.O., 1964, Art. 2 and Sch. for "any such Board".
[3]The original sub-section (1) as amended by A. O., 1937, has been omitted by A.O., 1964, Art. 2 and Sch.
[4]Subs. by A. O., 1937, for "L. G.".
[5]Subs. *ibid.*, for "local official Gazette".
[6]The words "except in relation to mines, oil-fields and railways" which were ins. by A. O., 1937, have been omitted by A. O., 1964, Art. 2 and Sch.
[7]Subs. by A. O., 1964, Art. 2 and Sch., for certain original words as amended by A. O., 1937 and the Indian Electricity (Amdt.) Act, 1922 (I of 1922) s. 17.
[8]Section 36A ins. by the Indian Electricity (Amdt.) Act, 1937 (X of 1937), s. 3.
[9]Subs. by the Federal Laws (Revision and Declaration) Ordinance 1981 (27 of 1981), s. 3 and Second Sch., for sub-sections (1) and (2) which had been amended by various enactments from time to time.

(3) Any vacancy occurring in the Board [1][* * *], shall be filled as soon as may be by a nomination made by the authority by whom the member vacating office was nominated.

(4) The Board shall have full power to regulate by by-laws or otherwise its own procedure and the conduct of all business to be transacted by it.

(5) The powers of the [2][Federal Electricity Board] may be exercised notwithstanding any vacancy in the Board.]

37. Power for Board to make rules.–(1) The [3][Federal Electricity Board may make rules] to regulate the generation transmission, supply and use of energy and, generally, to carry out the purposes and objects of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may—

(a) prescribe the form of applications for licenses and the payments to be made in respect thereof;

(b) regulate the publication of notices;

(c) prescribe the manner in which objections with reference to any application under Part II are to be made;

(d) provide for the preparation and submission of accounts by licensees in a specified form;

(e) provide for the securing of a regular, constant and sufficient supply of energy by licensees to consumers and for the testing at various parts of the system of the regularity and sufficiency of such supply and for the examination of the records of such tests by consumers;

(f) provide for the protection of persons and property from injury by reason of contact with, or the proximity of, or by reason of the defective or dangerous condition of, any appliance or apparatus used in the generation, transmission, supply or use of energy;

(g) for the purposes of electric traction regulate the employment of insulated returns, or of uninsulated metallic returns of low resistance, in order to prevent fusion or injurious electrolytic action of or on metallic pipes, structures or substances, and to minimise, as far as is reasonably practicable, injurious interference with the electric wires, supply-lines and apparatus of parties other than the owners of the electric traction system, or with the currents therein, whether the earth is used as a return or not;

[1]The words "otherwise than by the expiry of the term of office of the member referred to in clause (*e*) of sub-section (2)" omitted by Ordinance XXI of 1960, s. 3 and 2nd Sch., (*with effect from the 14th October*, 1955).

[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 s. 3, and Second Sch., for "Electricity Board" which had been amended by A. O., 1964, Art. 2 and Sch.

[3]Subs. by Ord. XXVII of 1981, s. 3 and Second Schedule for "Electricity Board may make rules for the whole of the Province or any part thereof" which had been amended by Act X of 1937, s. 4, A. O., 1949 and A. O., 1964, Art. 2 and Sch., to read as above.

See the Indian Electricity Rules, 1937, published with the Notification of the G. of 1. (Indurstries and Labour Department), No. F. 601, dated the 27th March, 1937. These rules, though made by the G.G. in C., are to be deemed to have been made by the Central Electricity Board: *see* the Rules and Regulations Continuance Act, 1937 (XXIV of 1937). 35

(h) provide for preventing telegraph-lines and magnetic observatories or laboratories from being injuriously affected by the generation, transmission, supply or use of energy;

(i) prescribe the qualifications to be required of Electric Inspectors;

(j) authorize any Electric Inspector or other officer of a specified rank and class to enter, inspect and examine any place, carriage or vessel in which he has reason to believe any appliance or apparatus used in the generation, transmission, supply or use of energy to be, and to carry out tests therein, and to prescribe the facilities to be given to such inspectors or officers for the purposes of such examinations and tests; [1][*]

(k) authorize and regulate the levy of fees for any such testing or inspection and, generally, for the services of Electric Inspectors under this Act; [2][and

[2](l) provide for any matter which is to be or may be prescribed.

[2](3) Any rules made in pursuance of clause (*f*) or clause (*h*) of sub-section (2) shall be binding on the [3][Government]].

[4][(4)] In making any rule under this Act the [5][Federal Electricity Board] may direct that every breach thereof shall be punishable with fine which may extend to three hundred rupees, and, in the case of a continuing breach with a further daily fine which may extend to fifty rupees.

38. Further provisions respecting rules.–(1) The power to make rules under section 37 shall be subject to the condition of the rules being made after previous publication.

(2) The date to be specified in accordance with clause (3) of section 23 of the General Clauses Act, 1897 (X of 1897) , as that after which a draft of rules proposed to be made under section 37 will be taken into consideration shall not be less than three months from the date on which the draft of the proposed rules was published for general information.

[6][* * * * * * *]

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[7][(3)] All rules made under section 37 shall be published in the [8][official Gazette] and on such publication shall have effect as if enacted in this Act.

Criminal Offences and Procedure

[1]The word "and" omitted by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 18.
[2]The word "and" clause (1) and sub-section (3) ins., *ibid.*
[3]Subs. by A. O., 1961, Art. 2 for "Crown" (*with effect from the 23rd March,* 1956).
[4]Sub-section (3) was re-numbered as sub-section (4), by Act I of 1922, s. 18.
[5]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981, s. 3 and Second Sch., for "Electricity Board" which had been amended by A. O., 1964 Art 2 and Sch. and Act 10 of 1937, s. 4. 36
[6]Sub-section (3) omitted by the Indian Electricity (Amdt.) Act., 1937 (X of 1937), s. 5.
[7]The original sub-section (4) was re-numbered as sub-section (3), ibid.
[8]Subs. by A. O., 1964, Art. 2 and Sch., for "Gazette of Pakistan which had been subs. by A. O., 1949, for "Gazette of India".

[1][**39. Theft of energy.–**(1) Whoever dishonestly abstracts, consumes or uses energy shall be punished with imprisonment of either description for a term which may extend to three ears or with fine which may extend to [2][five million] rupees, or with both; and the existence of any device, contrivance or artificial means for such abstraction, consumption or use shall be *prima facie* evidence of such abstraction, consumption for use.

(2) Whoever abets, or conspires in, the commission of acts mentioned in sub-section (1) shall be deemed to have committed an offence under sub-section (1).

Explanation.-A person shall be deemed to have dishonestly abstracted, consumed or used energy–

(a) if he is found to have tampered or interferred with the set order of wiring connections of any meter, measuring apparatus, including kilowatt meter, kilowatt hour meter, kilovolt ampere hour meter, kilovolt ampere reactive hour meter, current transformers, potential tranformers or their respective fuses, installed by the licensee for the supply and registration of energy; or

(b) if he is found to have prevented by drilling hole in the casing covering or glass, or by jamming the mechanism by mechanical, magnetic or by any other means, any meter, maximum demand indicator or other measuring apparatus from duly registering the amount of energy supplied or the electrical quantity contained in the supply; or

(c) if he is found, without written consent of the licensee, to have connected his installations, appliances and apparatus for the consumption or use of energy with the licensee's works directly without passing through a meter, maximum demand indicator or other measuring apparatus.]

[3][**39A. Penalty for installation of artificial means, etc.–**(1) Whoever installs or uses any device, contrivance or artificial means for dishonest abstraction, consumption or use of energy of a licensee, whether he derives any benefit therefrom or not, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine which may extend to [4][five million] rupees, or with both; and if it is proved that any device, contrivance or artificial means for such abstraction, consumption or use exists or has existed on a premises, it shall be presumed, unless the contrary is proved, that such person has committed an offence under this sub-section.

(2) Whoever abets, or conspires in, the commission of any act mentioned in sub-section (1) shall be deemed to have committed an offence under that sub-section.

Explanation.— In this section, "artificial means" includes–

(a) making of direct electrical connection from the aerial line through artificial jumper;

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[1]Subs. by the Electricity (Amdt.) Ordinance. 1979, (LXII of 1979) s. 8, for section 39.
[2]Subs. by Ord. XV of 1999.s.2. 37
[3]Section 39-A ins. by the Electricity (Amdt) Ordinance, 1979 (LXII of 1979) s.9 This section has been substituted an its application to Provinces of the Punjab, N.W.F.P, Sind and Baluchistan s. 10.
[4]Subs.by Ord. XV of 1999, s.3.38

(b) making of direct electrical connection from transformers, cable, meter's main terminals and from consumer's installations through artificial wiring;

(c) disconnecting the potential link from the meter terminals by means of a plier, screw driver, cutter or any other instrument;

(d) breaking the glass cover of a meter or drilling hole in the casing or covering of a meter by any means;

(e) stopping or slowing the revolutions of a meter disc by artificial magnet; and

(f) stopping or slowing or reversing the revolutions of the meter disc by changing the phase sequence of meter through artificial electrical circuit.]

40. Penalty for maliciously wasting energy or injuring works.–Whoever maliciously causes energy to be wasted or diverted or, with intent to cut off the supply of energy, cuts or injures, or attempts to cut or injure, any electric supply-line or works, shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

41. Penalty for unauthorized supply of energy by non-licensees.–Whoever, in contravention of the provisions of section 28, engages in the business of supplying energy shall be punishable with fine which may extend to three thousand rupees, and, in the case of a continuing contravention, with a daily fine which may by extend to three hundred rupees.

42. Penalty for illegal or defective supply or for non-compliance with order.–Whoever–

(a) being a licensee, save as permitted under section 27 or section 51 or by his license, supplies energy or lays down or places any electric supply-line or works outside the area of supply; or

(b) being a licensee, in contravention of the provisions of this Act or of the rules thereunder or in breach of the conditions of his license and without reasonable excuse, the burden of proving which shall lie on him, discontinues the supply of energy or fails to supply energy; or

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(c) makes default in complying with any order issued to him under section 34, sub-section (2); shall be punishable with fine which may extend to one thousand rupees, and, in the case of a continuing offence or default, with a daily fine which may extend to one hundred rupees.

43. Penalty for illegal transmission or use of energy.–Whoever, in contravention of the provisions of section 30, transmits or uses energy without giving the notice required thereby, shall be punishable with fine which may extend to five hundred rupees, and, in the case of a continuing offence, with a daily fine which may extend to fifty rupees.

[1][**44. Penalty for interference with meters or licensee's works and for improper use of energy.–**Whoever–

[1]Subs. by the Electricity (Amdt.) Ordinance, 1979 (LXII of 1979), s. 11. for section 44. 39

(a) connects any meter, maximum demand indicator or other measuring apparatus referred to in section 26, with any electric supply-line through which energy is supplied by a licensee, or disconnects the same from any such electric supply-line without the licensee's consent in writing; or

(b) lays, or causes to be laid, or connects up any works for the purpose of communicating with any other works belonging to a licensee, without such licensee's consent in writing; or

(c) uses the energy supplied to him by a licensee under one method of charging in a manner for which a higher method of charging is in force without the licensee's consent in writing, or adopts any appliance or uses energy supplied to him by a licensee in a manner prejudicial to the safety or efficient working of the licensee's electric supply-line or works, or deals with it in a manner so as to interfere with the efficient supply of energy by the licensee to any other person ; shall be punishable with fine which may extend to [1][five million] rupees, and, in the case of a continuing offence, with a daily fine which may extend to[1][five thousand] rupees; and if it is proved that any artificial means exist or have existed for making such connection as is referred to in clause (a), or such communication as is referred to in clause (b), or for facilitating such improper use of energy as is referred to in clause (c), and that the meter, maximum demand indicator or other measuring apparatus is under the custody or control of the consumer, whether it is his property or not, it shall be presumed, until the contrary is proved, that such connection, communication or improper use, as the case may be, has been knowingly and wilfully caused by such consumer.]

45. Penalty for extinguishing public lamps.–Whoever maliciously extinguishes any public lamp shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to three hundred rupees, or with both.

46. Penalty for negligently wasting energy or injuring works.–Whoever negligently causes energy to be wasted or diverted, or negligently breaks, throws down or damages any electric supply-line, post, pole or lamp or other apparatus connected with the supply of energy, shall be punishable with fine which may extend to two hundred rupees.

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47. Penalty for offences not otherwise provided for.–Whoever, in any case not already provided for by sections 39 to 46 (both inclusive), makes default in complying with any of the provisions of this Act, or with any order issued under it, or, in the case of a licensee, with any of the conditions of his license, shall be punishable with fine which may extend to one hundred rupees, and, in the case of a continuing default, with a daily fine which may extend to twenty rupees:

Provided that, where a person has made default in complying with any of the provisions of sections 13, 14, 15, 17 and 32, as the case may be, he shall not be so punishable if the Court is of opinion that the case was one of emergency, and that the offender complied with the said provisions as far as was reasonable in the circumstances.

[1]Subs. by Ord. XV of 1999, s.4. 40

48. Penalties not to affect other liabilities.–The penalties imposed by sections 39 to 47 (both inclusive) shall be in addition to, and not in derogation of, any liability in respect of the payment of compensation or, in the case of a licensee, the revocation of his license, [1][or the payment of penalty in lieu thereof,] which the offender may have incurred.

49. Penalties where works belong to Government.–The provisions of section 39, 40, 44, 45 and 46 shall, so far as they are applicable, be deemed to apply also when the acts made punishable thereunder are committed in the case of energy supplied by, or of works belonging to, [2][the [3][Federal Government]or any Provincial Government].

50. Institution of prosecutions.–No prosecution shall be instituted against any person for any offence against this Act or any rule, license or order thereunder, except at the instance of the Government or an Electric Inspector, or of a person aggrieved by the same.

[4][50A. Cognizance of offences, etc.–(1) No court inferior to that of a Magistrate of the first class shall try an offence punishable under this Act.

(2) Notwithstanding anything contained in section 32 of the Code of Criminal Procedure, 1898 (Act V of 1898), it shall be lawful for any Magistrate of the first class to pass any sentence authorised by this Act.]

Supplementary

51. Exercise in certain cases of powers of telegraph authority.–Notwithstanding anything in sections 12 to 16 (both inclusive) and sections 18 and 19, the [5][Provincial Government] may, by order in writing, for the placing of appliances and apparatus for the transmission of energy, confer upon any public officer or licensee, subject to such conditions and restrictions (if any) as the [5][Provincial Government] may think fit to impose, and to the provisions of the Telegraph Act, 1885 (III of 1885), any of the powers which the telegraph-authority possesses under that Act, with respect to the placing of telegraph-lines and posts for the purposes of a telegraph established or maintained by the Government or to be so established or maintained.

52. Arbitration.–Where any matter is, by or under this Act, directed to be determined by arbitration, the matter shall, unless it is otherwise expressly provided in the license of a licensee, be determined by such person or persons as the [6][Provincial Government] may nominate in that behalf on the application of either party; but in all other respects the arbitration shall be subject to the provisions of the [7][*] Arbitration Act, [8][1940] (X of 1940).

53. Service of notices, orders or documents.–(1) Every notice, order or document by or under this Act required or authorized to be addressed to any person may be served by post or left,-

(a) where [9][the [3][Federal Government] or the Provincial

[1]Ins. by the Electricity Act (Amdt.) Ordinance, 1962 (VI of 1962) s,3.
[2]Subs, by A. O.. 1949 for "any Government in British India" which was previously subs, by A, O., 1937, for "the Govt.",
[3]Subs, by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[4]Ins. by Ord. XV of 1999, s.5.
[5]Subs. by A. O.,' 1937, for "L.G.", which had been subs, by the Indian Electricity (Amdt.) Act, 1922 (I of 1922) s. 20 for "G. G. in C,".
[6]Subs. by A. O., 1937, for "L, G,".
[7]The word "Indian" omitted by the Repealing and Amending Act. 1940(XXXII of 1940), s. 3 and Second Sch,
[8]Subs. by the Arbitration Act, 1940 (X of 1940), s. 49 (2) and Fourth Sch., for "1899" (with effect from the Ist July, 1940).
[9]Subs. by A, O., 1937, for "the Govt,". 41

Government] is the addressee, at the office of [1][such officer as the [2][Federal Government] or [3][Provincial Government], as the case may be, may designate in this behalf];

[4][* * * * * * *]

(*b*) where a local authority is the addressee, at the office of the local authority;

(*c*) where a Company is the addressee, at the registered office of the Company or, in the event of the registered office of the Company not being in [5][Pakistan], at the head office of the Company in [5][Pakistan];

(*d*) where any other person is the addressee, at the usual or last known place of abode or business of the person.

(2) Every notice, order or document by or under this Act required or authorized to be addressed to the owner or occupier of any premises shall be deemed to be properly addressed if addressed by the description of the "owner" or "occupier" of the premises (naming the premises), and may be served by delivering it, or a true copy thereof, to some person on the premises, or, if there is no person on the premises to whom the same can with reasonable diligence be delivered, by affixing it on some conspicuous part of the premises.

54. Recovery of sums recoverable under certain provisions of Act.–[6][Any penalty imposed under section 4, sub-section (2), every sum] declared to be recoverable by section 5, clause (f), section 6, sub-section (2), section 14, sub-section (2), clause (h), section 16, sub-section (2), section 18, sub-section (2), or sub-section (4) or section 26, sub-section (4), and every fee leviable under this Act, may be recovered, on application to a Magistrate having jurisdiction where the person liable to pay the same is for the time being resident, by the distress and sale of any moveable property belonging to such person.

[7][**54A. Charges for supply of energy recoverable as arrears of land revenue.–**(1) Notwithstanding anything contained in this Act or in any other law for the time being in force or in any instrument or agreement, the charges for supply of energy or any other sum outstanding against a consumer under this Act shall be recoverable as an arrear of land revenue.

(2) A licensee, or any person duly authorised by the licensee, may apply, with a certificate showing the amount outstanding against a consumer, to the Collector of the district concerned for the recovery of the said amount, and the Collector shall, thereupon proceed to recover the same from such consumer, or his sureties, or from all of them, as an arrear of land revenue.

54B. Requisition of Police assistance.–Where a license, or any person duly authorised by him in this behalf, requires any police assistance for carrying out the purposes of this Act, he may make an application to the District Magistrate or Assistant Commissioner of the sub-division concerned and the District Magistrate or, as the case may be, the Assistant Commissioner may direct the officer in charge of the police station concerned to render the assistance required.

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[1]Subs. by Act I of 1922, s. 21, for "the Secretary in the Public Works Department," .
[2]Subs. by F.A.O 1975, Art. 2 and Table, for "Central Government" which had been subs. by A.O, 1937, for "G. G. in C".
[3]Subs. by A.O., 1937, for "L. G".
[4]Clause (*aa*) which was ins. by A. O., 1937, omitted by A. O., 1949.
[5]Subs. by A. O., 1949, for "India".
[6]Subs. by the Electricity Act (Amdt.) Ordinance, 1962 (VI of 1962), s. 4 for "Every sum". 42
[7]New sections 54A. 54B and 54C ins. by the Electridty (Amdt.) Ordinance: 1979 (LXII of 1979), s. 12. 43

54C. Bar of Jurisdiction.–(1) Where a licensee gives a notice referred to in sub-section (1) of section 24 or discontinues supply of energy to a premises under the provisions of this Act, no court shall make an order prohibiting the licensee from discontinuing supply of energy to the premises, or requiring him to restore supply of energy to such premises, and any such order made before the commencement of the Electricity (Amendment) Ordinance, 1979, shall cease to have effect:

Provided that nothing contained herein shall apply to a case in which the plaintiff, applicant or appellant, within a period of thirty days of the aforesaid date or at the time of filing the suit, application or appeal, as the case may be, deposits with the court the amount assessed against him by the licensee and all further charges of the licensee as and when they become due; and in the event of his failing to do so, any order prohibiting the licensee from discontinuing the supply of energy to the premises or requiring him to restore the supply of energy to the premises, if already made, shall cease to have effect.

(2) Where an amount has been deposited under sub-section (1), the court shall direct it to be deposited in a scheduled bank in the name of the licensee on an undertaking being furnished by the licensee to the effect that in case the suit or appeal is decided against him, he shall repay the said amount to the plaintiff or appellant, as the case may be, with such reasonable return as the court may determine.]

55. Delegation of certain functions of Provincial Government to Electric Inspectors.–The [1][Provincial Government] may, by general or special order, authorize the discharge of any of its functions under section 13 or section 18 [2][or section 34, sub-section (2),] or clause V, sub-clause (2), or clause XIII of the Schedule by an Electric Inspector.

56. Protection for acts done in good faith.–No suit, prosecution or other proceeding shall lie against any public officer, or any servant of a local authority, for anything done, or in good faith purporting to be done, under this Act.

57. Amendment of the Land Acquisition Act, 1894.–(1) In section 40, sub-section (1), clause (b), and section 41, sub-section (5), of the Land Acquisition Act, 1894 (I of 1894), the term "work" shall be deemed to include electrical energy supplied, or to be supplied, by means of the work to be constructed.

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(2) The [1][Provincial Government] may, if it thinks fit, on the application of any person, not being a company, desirous of obtaining any land for the purposes of his undertaking, direct that he may acquire such land under the provisions of the Land Acquisition Act, 1894 (I of 1894), in the same manner and on the same conditions as it might be acquired if the person were a company.

58. Repeals and savings.–(1) The Indian Electricity Act, 1903 (III of 1903), is hereby repealed:

Provided that every application for a license made and every license granted under the said Act shall be deemed to have been made and granted under this Act.

(2) Northing in this Act shall be deemed to affect the terms of any license which was granted, or of any agreement which was made, by or with the sanction of the Government for the supply or use of electricity before the commencement of this Act.

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[1]Subs. by A.O.1937, for "L.G".
[2]Ins.by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s.22. 44

THE SCHEDULE

PROVISIONS TO BE DEEMED TO BE INCORPORATED WITH, AND TO FORM PART OF, EVERY LICENSE GRANTED UNDER PART II, SO FAR AS NOT ADDED TO, VARIED OR EXCEPTED BY THE LICENSE

[See section 3, sub-section (2), clause (f)]

Security and Accounts

1. Security for execution of works of licensee not being local authority.–Where the licensee is not a local authority, the following provisions as to giving security shall apply, namely:–

(a) The licensee shall, within the period fixed in that behalf by his license, or any longer period which the [1][Provincial Government] may substitute therefor by order under section 4, sub-section (3), clause (b), of the Electricity Act, 1910, before exercising any of the powers by the license conferred on him in relation to the execution of works, show, to the satisfaction of the [1][Provincial Government], that he is in a position fully and efficiently to discharge the duties and obligations imposed upon him by the license throughout the area of supply.

(b) The licensee shall also, within the period fixed in that behalf by his license, or any longer period which the [1][Provincial Government] may substitute therefor by order under section 4, sub-section (3), clause (b), of the Electricity Act, 1910, and before exercising any of the powers conferred on him in relation to the execution of works, deposit or secure to the satisfaction of the [1][Provincial Government] such sum (if any) as may be fixed by the license, or, if not so fixed, by the [1][Provincial Government].

(c) The said sum deposited or secured by the licensee under the provisions of this clause shall be repaid or released to him on the completion of the works or at such earlier date or dates and by such instalments, as may be approved by the [1][Provincial Government].

II. Audit of accounts of licensee not being local authority.–Where the licensee is not a local authority, the following provisions as to the audit of accounts shall apply, namely:—

(a) The annual statement of accounts of the undertaking shall, before being rendered under section 11 of the Electricity Act, 1910, be examined and audited by such person as the [1][Provincial Government] may appoint or approve in this behalf, and the remuneration of the auditor shall be such as the [1][Provincial Government] may direct, and his remuneration and all expenses incurred by him in or about the execution of his duties, to such an amount as the [1][Provincial Government] shall approve, shall be paid by the licensee on demand.

[1]Subs. by A. O., 1937, for "L.G.". 45

(b) The licensee shall afford to the auditor, his clerks and assistants, access to all such books and documents relating to the undertaking as are necessary for the purposes of the audit, and shall, when required, furnish to him and then all vouchers and information requisite for that purpose, and afford to him and them all facilities for the proper execution of his and their duty.

(c) The audit shall be made and conducted in such manner as the [1][Provincial Government] may direct.

(d) Any report made by the auditor, or such portion thereof as the [1][Provincial Government] may direct, shall be appended to the annual statement of accounts of the licensee, and shall thenceforth form part thereof.

(e) Notwithstanding the foregoing provisions of this clause, the [1][Provincial Government] may, if it thinks fit, accept the examination and audit of an auditor appointed by the licensee.

III. Separate accounts.–The licensee shall, unless the [1][Provincial Government] otherwise directs, at all times keep the accounts of the capital employed for the purposes of the undertaking distinct from the accounts kept by him of any other undertaking or business.

Compulsory works and supply

IV. Execution of work after commencement of license.–The licensee shall, within a period of three years after the commencement of the license, execute to the satisfaction of the [1][Provincial Government] all such works as may be specified in the license in this behalf or, if not so specified, as the [1][Provincial Government] may, by order in writing issued within six months of the date of the commencement of the license, direct.

V. Provisions as to laying down of further distributing mains.–(l) Where, after the expiration of two years and six months from the commencement of the license, a requisition is made by six or more owners or occupiers of premises in or upon any street or part of a street within the area of supply or by the [1][Provincial Government] or a local authority charged with the public lighting thereof, requiring the licensee to provide distributing mains throughout such street or part thereof, the licensee shall comply within six months with the requisition, unless,—

(*a*) where it is made by such owners or occupiers as aforesaid, the owners or occupiers making it do not, within fourteen clear days after the service on them by the licensee of a notice in writing in this behalf, tender to the licensee a written contract duly executed and with sufficient security binding themselves to take, or guaranteeing that there shall be taken, a supply of energy for not less than two years to such amount as will in the aggregate produce annually, at the current rates charged by the licensee, a reasonable return to the licensee; or

(*b*) where it is made by the [1][Provincial Government] or a local authority, the [1][Provincial Government] or local authority, as the case may be, does not, within the like period, tender a like contract binding itself to take a supply of energy for not less than seven years for the public lamps in such street or part thereof.

[1]Subs. by A. O.,1937, for "L. G.". 46

(2) Where any difference or dispute arises between the licensee and such owners or occupiers as to the sufficiency of the security offered under this clause, or as to the amount of energy to be taken or guaranteed as aforesaid, the matter shall be referred to the [1][Provincial Government], and either decided by it or, if it so directs, determined by arbitration.

(3) Every requisition under this clause shall be signed by the maker or makers thereof and shall be served on the licensee.

(4) Every requisition under this clause shall be in a form to be prescribed by rules under the Electricity Act, 1910; and copies of the form shall be kept at the office of the licensee and supplied free of charge to any applicant.

VI. Requisition for supply to owners or occupiers in vicinity.–(1) Where [2][after distributing mains have been laid down under the provisions of clause IV or clause V and the supply of energy through those mains or any of them has commenced] a requisition is made by the owner or occupier of any premises situate within [3][the area of supply] requiring the licensee to supply energy for such premises, the licensee shall, within one month from the making of the requisition [2][or within such longer period as the Electric Inspector may allow,] supply, and, save in so far as he is prevented from doing so by cyclones, floods, storms or other occurrences beyond his control, continue to supply, energy in accordance with the requisition:

Provided, first, that the licensee shall not be bound to comply with any such requisition unless and until the person making it-

(a) within fourteen days after the service on him by the licensee of a notice in writing in this behalf, tenders to the licensee a written contract, in a form approved by the [1][Provincial Government], duly executed and with sufficient security, binding himself to take a supply of energy for not less than two years to such amount as with produce, at current rates charged by the licensee, a reasonable return to the licensee, and

(b) if required by the licensee so to do, pays to the licensee the cost of so much of any service line as may be laid down or placed for the purposes of the supply upon the property in respect of which the requisition is made, and of so much of any service line as it may be necessary for the said purposes to lay down or place beyond one hundred feet from the licensee's distributing main although not on that property:

[4][Provided, secondly, that the licensee shall be entitled to discontinue such supply–

(a) if the owner or occupier of the premises to which the supply is made by the licensee has not already given security, or if any security already given by him has become invalid, or there is change of owner or occupier and such owner or occupier fails to furnish security according to the prevalent rate, as the case may be, within seven days after the service upon him of notice from the licensee requiring him so to do, or

[1]Subs. by A. O., 1937, for "L. G." . 47
[2]Ins. by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 23.
[3]Subs. *ibid.*, for "one hundred yards from any distributing main".
[4]Subs. by the Electricity (Amdt.) Ordinance, 1979 (LXII of 1919), s. 13, for the proviso. 48

(b) if the owner or occupier of the premises to which the supply is made adopts any appliance, or uses the energy supplied to him by the licensee for any purpose, or deals with it in any manner, so as unduly or improperly to interfere with the efficient supply of energy to any other person by the licensee, or

(c) if the electric wires, fittings, works and apparatus in such premises are not in good order and condition, and are consequently likely to affect injuriously the use of energy by the licensee, or by other persona, or

(d) if the owner or occupier makes any alteration of or addition to, any electric wires, fittings, works or apparatus within such premises as aforesaid, and does not notify the same to the licensee before the same are connected to the source of supply, with a view to their being examined, tested, accounted or charged for, or

(e) if the owner or occupier of the premises to which the supply is made has:–

(i) used it in a manner prejudicial to the safety or sufficient working of the licensee's electric supply lines or works;

(ii) used it under one method of charging in a manner for which a higher method of charging is in force;

(iii) broken, tempered with or counterfeited the licensee's seal, casing or covering affixed or placed to protect any meter, maximum demand indicator or other measuring apparatus referred to in section 26 ;

(iv) altered the index of any such meter, maximum demand indicator or other measuring apparatus;

(v) prevented any such meter, maximum demand indicator or other measuring apparatus from duly registering the energy supplied or the electrical quantity contained in the supply; or

(vi) presented the supply, consumption or use of energy from being duly registered by any such, meter, maximum demand indicator or other measuring apparatus; but the licensee shall reconnect the supply with all reasonable speed on the cessation of the act or default or both, as the ease may be, which entitled him to discontinue it:]

Provided, thirdly, that the maximum rate per unit of time at which the owner or occupier shall be entitled to be supplied with energy shall not exceed what is necessary for the maximum consumption on his premises, and, where the owner or occupier has required a licensee to supply him at a specified maximum rate, he shall not be entitled to alter that maximum, except after one month's notice in writing to the licensee, and the licensee may recover from the owner or occupier any expenses incurred by him by reason of such alteration in respect of the service lines by which energy is supplied to the property beyond one hundred feet from the licensee's distributing main, or in respect of any fittings or apparatus of the licensee upon that property: and

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Provided, fourthly, that, [1][if any requisition is made for a supply of energy and] the licensee can prove, to the satisfaction of an Electric Inspector,____

(a) that [2][the nearest distributing main] is already loaded up to its full current-carrying capacity, or

(b) that, in case of a larger amount of current being transmitted by it, the loss of pressure will seriously affect the efficiency of the supply to other consumers in the vicinity, the licensee may refuse to accede to the requisition for such reasonable period not exceeding six months, as such, Inspector may think sufficient for the purpose of amending the distributing main or laying down or placing a further distributing main.

(2) Any service line laid for the purpose of supply in pursuance of a requisition under sub-clause (1) shall, notwithstanding that a portion of it may have been paid for by the person making the requisition, be maintained by the licensee.

[3][(3) Where any difference or dispute arises as to the amount of energy to be taken or guaranteed as aforesaid, or as to the cost of any service line, or as to the amount of the expenses incurred under the third proviso to sub-clause (1), the matter shall be referred, on the application of either party, to an Electric Inspector who, within a maximum period of ninety days from the date of such application, and after affording the parties an opportunity of being heard, shall decide the matter; and where the Electric Inspector fails to decide the matter within the said period or where either party declines to accept the decision of the Electric Inspector, the matter shall be referred to the Provincial Government whole decision shall be final.]

(4) Every requisition under this clause shall be signed by the maker or makers thereof and shall be served on the licensee.

(5) Every requisition under this clause shall be in a form to be prescribed by rule under the Electricity Act, 1910; and copies of the forms shall be kept at the office of the licensee and supplied free of charge to any applicant.

[4][**VII. Further provisions as to laying of service lines.–**The licensee shall, before commencing to lay down or place a service line in any street in which a distributing main has not already been laid down or placed, serve upon the local authority (if any) and upon the owner or occupier of all premises abutting on so much of the street as lies between the points of origin and termination of the service line so to be laid down or placed, twenty-one days' notice stating that the licensee intends to lay down or place a service line, and intimating that, if within the said period the local authority or any five or more of such owners or occupiers require, in accordance with the provisions of the license, that a supply shall be given for any public lamps or to their premises, as the case may be, the necessary distributing main will be laid down or placed by the licensee at the same time as the service line.]

[1]Subs. by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s.23 for "in the event of any requisition being made for a supply of energy from any distributing main of which".
[2]Subs. *ibid.*, for "it".
[3]Subs. by the Electricity (Amdt.) Ordinance, 1979 (LXII of 1979), s. 13, for sub-clause (3). 50
[4]Subs. by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 24, for the original clause.

VIII. Supply for public lamps.–(1) Where [1][after distributing mains have been laid down under the provisions of clause IV or clause V and the supply of energy through those mains or any of them has commenced] a requisition is made by the [2][Provincial Government] or by a local authority requiring the licensee to supply for a period of not less than seven years energy for any public lamps within the [3][area of supply], the licensee shall supply, and, save in so far as he is prevented from doing so by cyclones, floods, storms or other occurrences beyond his control, continue to supply, energy for such lamps in such quantities as the [2][Provincial Government] or the local authority, as the case may be, may require.

(2) The provisions of sub-clause (*b*) of the first proviso, of sub-clauses (*c*) and (d) of the second proviso, and of the third and fourth provisos to sub-clause (1) and the provisions of sub-clauses (2) and (3) of clause VI shall, so far as may be, apply to every case in which a requisition for the supply of energy is made under this clause as if the [2][Provincial Government] or local authority were an owner or occupier within the meaning of those provisions.

Supply by bulk-licensees

IX. Special provisions applying to supply by bulk-licensees.–(1) Where, and in so far as, the licensee (hereinafter in this clause referred to as "the bulk-licensee") is authorised by his license to supply energy to other licensees for distribution by them (hereinafter in this clause referred to as "distributing-licensees") the following provisions shall apply, namely:—

(a) any distributing-licensees within the bulk-licensee's area of supply may make a requisition on the bulk-licensee, requiring him to give a supply of energy and specifying the point, and the maximum rate per unit of time, at which supply is required, and the date upon which the supply is to commence, such date being fixed after the date of receipt of the requisition so as to allow an interval that is reasonable with regard to the locality and to the length of the electric supply-line and the amount of the plant required;

(b) such distributing-licensee shall, if required by the bulk-licensee so to do, enter into a written agreement to receive and pay for a supply of energy for a period of not less than seven years of such an amount that the payment to be made for the same at the rate of charge for the time being charged for such supply shall not be less than such an amount as will produce a reasonable return to the bulk-licensee on the outlay (excluding expenditure on generating plant then existing and any electric supply-line then laid down or placed) incurred by him in making provision for such supply;

(c) the maximum rate per unit of time at which a distributing licensee shall be entitled to be supplied with energy shall not exceed what is necessary for the purposes for which the supply is required by him, and need not be increased except upon a fresh requisition made in accordance with the foregoing provisions;

[1]Ins. *ibid.,* s. 25.
[2]Subs. by A. O.,1937, for "L. G.".
[3]Subs. by Act I of 1922,s. 25, for "distance of one hundred yards from any distributing main". 51

(d) if any difference or dispute arises under this clause, it, shall be determined by arbitration, and, in the event of such arbitration, the arbitrator shall have regard to the following amongst other considerations, namely:—

(i) the period for which the distributing-licensee is prepared to bind himself to take energy; 52

(ii) the amount of energy required and the hours during which the bulk-licensee is to supply it;

(iii) the capital expenditure incurred or to be incurred by the bulk-licensee in connection with the aforesaid supply of energy; and

(iv) the extent to which the capital expended or to be expended by the bulk-licensee in connection with such supply may become unproductive upon the discontinuance thereof.

(2) Notwithstanding anything in sub-clause (1), the bulk-licensee shall give a supply of energy to any distributing-licensee within his area of supply applying therefor, even although the distributing-licensee desires to be supplied with only a portion of the energy required for distribution by him:

Provided that the distributing-licensee shall, if so required by the bulk-licensee, enter into an agreement to take such energy upon special terms (including a minimum annual sum to be paid to the bulk-licensee) to be determined, if necessary, by arbitration in the manner laid down in sub-clause (1) (d).

(3) The maximum price fixed by a license for energy supplied to a distributing-licensee shall not apply to any partial supply given under sub-clause (2).

(4) Every distributing-licensee, who is supplied with energy by a bulk-licensee and intends to discontinue to receive such supply, shall give not less than twelve months' notice in writing of such intention to the bulk-licensee:

Provided that, where the distributing-licensee has entered into a written agreement with the bulk-licensee to receive and pay for a supply of energy for a certain period, such notice shall be given so as not to expire before the end of that period.

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Charges

X. Method of Charging. [1][* * * * * * *]

[1]The first part of the clause up to and including sub-clause (*c*) omitted by the Indian E1ectricity (Amdt.) Act, 1922 (I of 1922), s. 26. 53

[1][(1)] [2][* * *] Where the licensee charges by any method [3][approved by the [4][Provincial Government] in accordance with section 23, sub-section (3), clause (*c*), of the Electricity Act, 1910,] any consumer who objects to that method may, by not less than one month's notice in writing, require the licensee to charge him, at the licensee's option, either by the actual amount of energy supplied to him or by the electrical quantity contained in the supply, and thereafter the licensee shall not, except with the consent of the consumer, charge him by another method.

[1][(2)] [5][* * *] Before commencing to supply energy through any distributing main, the licensee shall give notice, by public advertisement, of the method by which he proposes to charge for energy so supplied; and, where the licensee has given such notice, he shall not be entitled to change that method of charging without giving not less than one month's notice in writing of such change to the [4][Provincial Government], to the local authority (if any) concerned, and to every consumer of energy who is supplied by him from such distributing main.

[1][(3)] [6][* * *] If the consumer is provided with a meter in pursuance of the provisions of section 26, sub-section (1), of the Electricity Act, 1910, and the licensee changes the method of charging for the energy supplied by him from the distributing main, the licensee shall bear the expense of providing a new meter, or such other apparatus as may be necessary by reason of the new method of charging.

XI. Maximum charges.–Save as provided by clause IX, sub-clause (3), the prices charged by the licensee for energy supplied by him shall not exceed the maxima fixed by his license, or, in the case of a method of charge approved by the [4][Provincial Government], such maxima as the [4][Provincial Government] shall fix on approving the method:

Provided, that, if, at any time after the expiration of seven years from the commencement of the license, the [4][Provincial Government] considers [7][* * *] that the maxima so fixed or approved as aforesaid should be altered, it [8][shall refer the matter to an Advisory Board, and, if the Board recommends any alteration, may make an order in accordance with such recommendation], which shall have effect from such date as may be mentioned therein:

Provided, also, that, where an order in pursuance of the foregoing proviso has been made, no further order altering the maxima fixed thereby shall be made until the expiration of another period of five years.

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[9][**XIA. Minimum charges.**–A licensee may charge a consumer a minimum charge for energy of such amount and determined in such manner as may be specified by his license; and such minimum charge shall be payable notwithstanding that no energy has been used by the consumer during the period for which such minimum charge is made.]

[1]The first, second and third provisos were re-numbered as sub-clauses (1), (2) and (3), respectively, by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 26.
[2]The words "Provided, first, that" omitted, *ibid.*
[3]Subs. *ibid.,* for "so approved by the L. G.".
[4]Subs. by A. O., 1937, for "L. G.".
[5]The words "Provided, secondly, that" omitted by Act I of 1922, s. 26".
[6]The words "Provided, thirdly, that" omitted, *ibid.* 54
[7]The words "or is satisfied" omitted by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 27.
[8]Subs. *ibid.,* for "may, after such inquiry (if any) as it thinks fit, make an order accordingly".
[9]This clause was ins., *ibid.,* s. 28. 55

XII. Charge for supply for public lamps.–The price to be charged by the licensee and to be paid to him for energy supplied for the public lamps, and the mode in which those charges are to be ascertained, shall be settled by agreement between the licensee and the [1][Provincial Government] or the local authority, as the case may be, and, where any difference or dispute arises, the matter shall be determined by arbitration.

Testing and Inspection

XIII. Licensee to establish testing stations and keep instruments for testing.–The licensee shall establish at his own cost and keep in proper condition such number of testing stations, situated at such places within reasonable distance from any distributing main, as the [1][Provincial Government] may direct for the purpose of testing the pressure or periodicity of the supply of energy in the distributing main, and shall supply and keep in proper condition thereat, and on all premises from which he supplies energy such instruments for testing as an Electric Inspector may approve, and shall supply energy to each testing station for the purpose of testing.

XIV. Facilities for testing.–The licensee shall afford all facilities for inspection and testing of his works and for the reading, testing and inspection of his instruments, and may, on each occasion of the testing of his works or the reading, testing or inspection of any instruments, be represented by an agent, who may be present, but shall not interfere with the reading, testing or inspection.

XV. Testing of works.–On the occasion of the testing of any works of the licensee by an Electric Inspector reasonable notice thereof shall be given to the licensee; and the testing shall be carried out at such suitable hours as, in the opinion of the Electric Inspector, will least interfere with the supply of energy by the licensee, and in such manner as the Electric Inspector may think fit ; but, except under the provisions of an order made in each case in that behalf by the [1][Provincial Government], the Electric Inspector shall not be entitled to have access to, or interfere with, the works of the licensee at any points other than those at which the licensee him-self has access to the same:

Provided that the licensee shall not be held responsible for any interruption or irregularity in the supply of energy which may be occasioned by, or required by the Electric Inspector for the purpose of, any such testing as aforesaid:

Provided, also, that the testing shall not be made in regard to any particular portion of the works oftener than once in any three months, unless in pursuance of an order made in each case in that behalf by the [1][Provincial Government].

Plans

XVI. Plan of area of supply to be made and kept open for inspection.–(l) The licensee shall, after commencing to supply energy, forthwith cause a plan to be made of the area of supply, and shall cause to be marked thereon the alignment [2][and, in the case of underground works, the approximate depth] below the surface or all his then existing electric supply-lines. streetdis tributing boxes and other works, and shall once in every year cause that plan to be duly corrected so as to show the electric supply-lines, street-distributing boxes and other works for the time being in position. The licensee shall also, if so required by an Electric Inspector, cause to be made sections showing the approximate level of all his existing underground works other then service lines.

[1]Subs. by A. O., 1937, for "L. G.".
[2]Subs. by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 29, for "and the approximate height above or depth". 56

[1][(2) Every such plan shall he drawn to such scale as the [2][Provincial Government] may require: provided that no scale shall be required unless maps of the locality on that scale are for the time being available to the public.

(3) Every such section shall be drawn to horizontal and vertical scales which shall be such as the [2][Provincial Government] may require.]

(4) Every plan and section so made or corrected, or a copy thereof, marked with the date when it was so made or corrected, shall be kept by the licensee at his principal office or place of business within the area of supply, and shall at all reasonable times be open to the inspection of all applicants, and copies thereof shall be supplied on such terms and conditions as may be prescribed by rules under the Electricity Act, 1910.

(5) The licensee shall, if required by an Electric Inspector and, where the licensee is not a local authority, by the local authority (if any) concerned, supply free of charge to such Electric Inspector or local authority a copy of every such plan or section duly corrected so as to agree with the original kept at the principal office or place of business of the licensee.

Additional notice of certain works

XVII. Notice to Electric Inspector.–On the day next preceding the commencement of any such works as are referred to in section 13 of the Electricity Act, 1910, the licensee shall, in addition to any other notices which he may be required to give, serve upon the Electric Inspector, or such officer as the [2][Provincial Government] may appoint in this behalf for the area of supply, a notice in writing stating that he is about to commence the works, and ,the nature and position of the same.

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Date:-22.04.2024

[1]Subs. by the Indian Electricity (Amdt.) Act, 1922 (I of 1922), s. 29. for the original sub-clauses (2) and (3).
[2]Subs. by A. O., 1937, for "L.G.".

THE ELECTRICITY CONTROL ORDINANCE, 1965

CONTENTS

1. Short title, extent and commencement
2. Control of production, distribution, etc. of electrical energy
3. Penalty, etc.
4. Saving as to orders
5. Indemnity
6. Cognizance of offences
7. Delegation of powers
8. Effect of provisions inconsistent with other enactments
9. Service of Order (IX of 1910)

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THE ELECTRICITY CONTROL ORDINANCE, 1965

ORDINANCE NO. XXVIII of 1965

[10th *September*, 1965]

AN

ORDINANCE

to provide for powers to control the production, distribution, use and consumption of electrical energy during an emergency throughout Pakistan

WHEREAS it is expedient to provide for powers to control the production, distribution, use and consumption of electrical energy throughout Pakistan;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred by Article 29 of the Constitution, read with clause (2) of Article 131 thereof and of all other powers enabling him in that behalf the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Electricity Control Ordinance, 1965.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Control of production, distribution, etc. of electrical energy.—(1) The [1][Federal Government] so far as it appears to it to be necessary or expedient for maintaining supplies and services essential to the life of the community in an emergency, may, by order in writing, provide for—

(*a*) regulating or prohibiting the production, distribution, use or consumption, of electrical energy;

(*b*) collecting any information or statistics for the purpose of any of the matters mentioned in clause (a);

(*c*) any incidental or supplementary matter including, in particular,—

(i) the entering and inspection of premises to which the order relates with a view to securing compliance therewith; and

(ii) the grant or issue of a licence, permit, certificate or other document.

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(2) An order made under sub-section (1) may apply either to persons or undertakings generally or to any particular person or undertaking or class of persons or undertakings, and either to the whole or any part of any undertaking, and may have effect either generally or in any particular area.

3. Penalty, etc.—(1) Whoever contravenes any order made under section 2, shall be punishable with imprisonment for a term which may extend to six months, or with fine, or with both.

(2) Where the person, guilty of an offence under sub-section (1), is a company or other body corporate, every director, manager, secretary, agent, or other officer or person concerned with the management of its business shall, unless he proves that the offence was committed without his knowledge or consent or that he exercised due diligence to prevent its commission be deemed to be guilty of such offence and be punishable accordingly.

4. Saving as to orders.—No order, made under section 2, shall be called in question in any court.

5. Indemnity.—(1) No suit, prosecution or other legal proceeding shall lie against any person for anything in good faith done or intended to be done, in pursuance of any order made under this Ordinance.

(2) No suit or other legal proceeding shall lie against the [1][Federal Government] for any damage caused or likely to be caused by anything in good faith done or intended to be done, in pursuance of any order made under this Ordinance.

6. Cognizance of offences.—No court shall take cognizance of any offence punishable under this Ordinance except on a report in writing of the facts constituting the offence made by an officer authorized in this behalf by the [1][Federal Government].

7. Delegation of powers.—The [1][Federal Government] may, by notification in the official Gazette, direct that any power conferred on it by this Ordinance shall, in such circumstances and under such conditions, if any, as may be specified in the notification, be exercisable also by a Provincial Government or by any officer or authority subordinate to the [1][Federal Government] or to the Provincial Government.

8. Effect of provisions inconsistent with other enactments.—The provisions of this Ordinance or any order made thereunder shall have effect notwithstanding anything inconsistent therewith contained in any other law.

9. Service of Order (IX of 1910).—Every order made under this Ordinance shall, so far as may be, be served in the manner prescribed under section 53 of the Electricity Act, 1910.

RGN Date:-29.03.2024

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

THE EXECUTION OF THE PUNISHMENT OF WHIPPING ORDINANCE, 1979

CONTENTS

1. Short title, extent, application and commencement
2. Definitions
3. Ordinance to override other laws
4. Specifications of whip
5. The conditions and mode of execution of punishment of whipping
6. Custody of convict pending execution of punishment, etc.
7. Power to make rules

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THE EXECUTION OF THE PUNISHMENT OF WHIPPING ORDINANCE, 1979

[1]ORDINANCE NO. IX OF 1979

[10th February, 1979]

An Ordinance to make provision relating to the execution of the punishment of whipping.

WHEREAS it is expedient to make provision relating to the execution of the punishment of whipping;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW THEREFORE**,** in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977, *(C.M.L.A. Order No. I of 1977)*, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent, application and commencement.—(1) This Ordinance may be called the Execution of the Punishment of Whipping Ordinance, 1979.

(2) It extends to the whole of Pakistan.

(3) It applies to the execution of the punishment of whipping imposed under any law for the time being in force.

(4) It shall come into force on the twelfth day of Rabi-ul-Awwal, 1399 Hijri, that is, the tenth day of February, 1979.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context, "authorized medical officer" means a medical officer, howsoever designated, authorized by Government.

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3. Ordinance to override other laws. The provisions of this Ordinance shall have effect notwithstanding anything contained in any other law the time being in force.

4. Specifications of whip. The whip, excluding its handle, shall be of one single piece and preferably be made of leather, or a cane or a Branch of a tree, having no knob or joint on it, and its length and thickness shall not exceed 1.22 meters and 1.25 cm. respectively.

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[1]This Ordinance has been applied to the Provincially Administered Tribal Areas of Baluchistan, by Baluchistan Govt. Notification No. S.O.(TA)3(46)/79, dated 29-4-1979, *see* Baluchistan Gazette, 1979, Ext. (Issue No. 58), dated 14-6-1979.

This Ordinance has been applied to the Federally Administered Tribal Areas, by S. R. O. No. 362 (I)/79, dated 23-4-1979, *see* Gaz. of P., 1979, Ext.. Pt. II, p. 632.

This Ordinance has been applied to the Provincially Administered Tribal Areas of the N.W.FP. by N.W.F.P. Government Notification No. 127-HD (TA III / 79-II. dated the 26th May. 1979, *see* N.W.F.P., Government Gazette, Ext., 1979, p. 1101.

5. The conditions and mode of execution of punishment of whipping. The following provisions shall apply to the execution of the punishment of whipping, namely:—

(a) before the execution of the punishment commences, the convict shall be medically examined by the authorized medical officer so as to ensure that the execution of the punishment will not cause the death of the convict;

(b) if the convict is too old or too weak, having regard to the sentence of whipping awarded, the number of stripes shall be applied in such manner and with such intervals that the execution of the punishment does not cause his death.

(c) if the convict is ill, the execution of the punishment shall be postponed until the convict is certified by the authorized medical officer to be physically fit to undergo the punishment;

(d) if the convict is a woman who is pregnant, the execution of the punishment shall be postponed until the expiration of a period of two months after the birth of the child or miscarriage, as the case may be;

(e) if, at the time of the execution of the punishment, the weather is too cold or too hot, the execution shall be postponed until the weather has become normal;

(f) the punishments shall be executed in the presence of the authorized medical officer at such public place as [1]* * * the Provincial Government may appoint for the purpose;

(g) the person appointed to execute the punishment shall be impartial and of mature understanding;

(h) he shall apply the whip with moderate force without raising his hand above his head so as not to lacerate the skin of the convict;

(i) after he has applied a stripe, he shall rise the whip aloft and shall not pull it off;

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(j) the stripes shall be spread over the body of the convict, so, however, that the stripes shall not be applied on the head, face, stomach or chest or the delicate parts of the body of the convict;

(k) such clothes of the convict shall be left on the body of the convict as are required by the Injunctions of Islam to be put on;

(l) the stripes shall be applied, in the case of a male, while he is standing and, in the case of a female, while she is sitting; and

(m) if, after the execution of the punishment has commenced the authorized medical officer is of the opinion that there is apprehension of the death of the convict, the execution of the punishment shall be postponed until the authorized medical officer certifies him physically fit to undergo the remainder of the punishment.

[1]Omitted by the Execution of the Punishment of Whipping (Amdt.) Ordinance, 1984 (I of 1984). s.2.

6. Custody of convict pending execution of punishment, etc.—(1) In the case of a convict to whom only the punishment of whipping has been awarded, he shall until the execution of the punishment is completed, be dealt with as if sentenced to simple imprisonment.

(2) If, in the opinion of the authorized medical officer, a convict cannot, because of old age, ill-health or for any other reason, undergo the whole or any part of the punishment of whipping, the case shall be referred to the Court which may order the execution of the punishment in such manner as it may deem fit.

7. Power to make rules. The Provincial Government may, by notification in the official Gazette, make rules for the purpose of carrying into effect the provisions of this Ordinance.

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THE EXIT FROM PAKISTAN (CONTROL) ORDINANCE, 1981.

CONTENTS

1. Short title, extent and commencement
2. Power to prohibit exit from Pakistan
3. Review
4. Punishment
5. Power to make rules

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THE EXIT FROM PAKISTAN (CONTROL) ORDINANCE, 1981.

ORDINANCE No. XLVI OF 1981

[31st December, 1981]

An Ordinance to provide for the control of exit of certain persons from Pakistan.

WHEREAS it is expedient to provide for the control of exit of certain persons from Pakistan;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Provisional Constitution Order, 1981 (C.M.L.A. Order No. 1 of 1981), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:

1. Short title, extent and commencement.— (1) This Ordinance may be called the Exit from Pakistan (Control) Ordinance, 1981.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Power to prohibit exit from Pakistan.— (1) The Federal Government may, by order, prohibit any person or class of persons from proceeding from Pakistan to a destination outside Pakistan, notwithstanding the fact that such person is in possession of valid travel documents.

(2) Before making an order under sub-section (1), it shall not be necessary to afford an opportunity of showing cause against the order.

(3) If, while making an order under sub-section (1) it appears to the Federal Government that it will not be in the public interest to specify the grounds on which the order is proposed to be made, it shall not be necessary for the Federal Government to specify such grounds.

3. Review.—(1) Any person aggrieved by an order of the Federal Government under sub-section (1) of section 2 may, within fifteenth days of the making of the order, make a representation to the Federal Government for a review of the order, setting out in the representation the grounds on which he seeks the review.

(2) The Federal Government may, after giving the person making a representation an opportunity of being heard, make such order as it may deem fit.

(3) Subject to the order of the Federal Government in review, an order under sub-section (1) of section 2 shall be final and shall not be called in question before any court or other authority.

4. Punishment.— Whoever contravenes, or attempts or conspires to contravene, or abets the contravention of, any order made under sub-section (1) of section 2 shall be punishable with imprisonment for a term which may extend to five years.

5. Power to make rules.—The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

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THE EXPLOSIVES ACT, 1884

[1]ACT NO. IV OF 1884

[26th *February*, 1884]

An Act to regulate the manufacture, possession, use, sale, transport and importation of Explosives.

WHEREAS it is expedient to regulate the manufacture, possession, use, sale, transport and importation of explosives; It is hereby enacted as follows:—

1. Short Title.— (1) This Act may be called the [2]* Explosives Act, 1884; and

[3][(2) **Local extent**. It extends to the whole of Pakistan].

2. Commencement.— (1) This Act shall come into force on such day[4] as the [5][Federal Government], by notification in the [6][official Gazette], appoints:

[7][* * * * * * *]

3.Repealed. [8][* * * * * * *]

4. Definitions.— In this Act, unless there is something repugnant in the subject or context,—

[9][(1) "explosives"—

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[1]This Act has been declared, under s. 5, of the Scheduled Districts Act, 1874 (Act No. XIV of 1874), to be in force in Baluchistan,— *see* Gazette of India, 1931, Pt. II-A, p. 358.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O.3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499.
This Act has been extended to the Baluchistan States Union, *see* the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953), as amended by the Baluchistan States Union (Federal Laws) (Extension) (Second Amdt.) Order, 1953 (G. G. O. 19 of 1953).
It has been extended to the State of Bahawalpur, *see* the Bahawalpur (Extension of Federal Laws) Order 1953 (G. G. O. 11 of 1953), as amended by the Bahawalpur (Extension of Federal Laws) (Amdt.) Order, 1953 (G. G. O. 21 of 1953).
It has also been extended to the Khairpur State, *see* G. G. O. 5 of 1953, as amended by G. G. O. 24 of 1953.
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (Ordinance No. XXXVII of 1960), s. 2.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950. It has been extended to the Excluded Area of Upper Tanawal other than Phulera by the N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from 1st June, 1951, *see* N.W.F.P. Gazette, Extraordinary, dated 1-6-1951.
For the law relating to explosive substances, *see* also the Explosive Substances Act, 1908 (Act No. VI of 1908).
[2]Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (P. O. 4 of 1949).
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955).
[4]The 1st July 1887__ see Gazette of India, 1887, Pt. I, p. 307.
[5]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), Art. 2 and Table.
[6]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), Art. 2 and Sch.
[7]Rep. by the Amending Act, 1891 (Act No. XII of 1891).
[8]Rep. by the Indian Ports Act, 1889 (Act No. X of 1889), s. 2 and Sch. II.
[9]Subs. by Ordinance No. CV of 2002, s. 3.

(a) means gunpowder, nitroglycerine, nitroglycol, gun cotton, dinitrotoluence, trinitro toluene, picric acid, dinitro-phenol, trinitro resorcinol (styphnic acid), cyclo trimethylence trinitramine, penta erythritol tetranitrate, tetryl, nitroguanidine, lead azide, lead styphynate, fulminate of mercury or any other metal, diazo dinitro phenol, coloured fires or any other substances whether a single chemical compound or a mixture of substances, whether solid or liquid or gaseous used or manufactured with a view to produce a practical effect by explosion or pyrotechinic effect; and

(b) includes,—

(i) chemical compounds, compositions or mixture of which will produce, upon release of its potential energy, a sudden outburst of gases, thereby exerting high pressures on its surroundings. Explosives may be solid, liquid or gas, nitro compound or in the form of water gel or slurry [1][emulsion];

(ii) fog signals, fireworks, fuses, rockets, precussion-caps, detonators, cartridges, ammunition of all descriptions and every adaptation or preparation of an explosives as defined in this clause; and

(iii) such other substance as the Federal Government may, by notification in the official Gazette, specify for the purposes of this sub-section.]

[1][(1A) "illegal activities" means any actions involving the manufacturing, storage, possession, procurement, sale, transport, import, export or use of explosives without any licence under this Act and rules made thereunder;

(1B) "deliberate explosion" means incidents of any intentional acts or attempt thereof whether successful or failed involving the use, attempted use or preparation of improvised explosive devices attacks, using improvise explosive device precursors, which may include chemical, explosive, technical or physical materials;

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(1C) "major violations" means actions that cause significant risks to public life and their safety in terms of terrorism, involving unlawful trade or violate core provisions of this Act and rules made thereunder and includes unauthorized manufacturing of explosives, large scale possession without licence, smuggling or supplying explosives to criminals or any other person without having valid licence;

(1D) "malicious intent" means a deliberate, willful or premeditated act to cause harm, endanger public life and their safety or violate the law with knowledge of its illegality and potential consequences and includes manufacturing explosives for terrorism, selling explosives to banned groups or proscribed organizations or intentionally bypassing explosives protocols;]

[2][(2) "manufacture" includes the preparation of explosive or any component parts of an explosive, the admixture or other treatment of the same, the breaking up or unmaking of any explosive,

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[1]Ins., and added by Act No. XVII of 2025, s.2
[2]Subs. by Ordinance No. CV of 2002, s. 3.

or making fit for use any damaged explosive of the processing of any substance or matter with a view to causing an explosion, implosion or disintegration, and the process of remaking, altering or repairing any explosive;]

[1][(2A) "minor violations" means procedural or technical violations by a licensee that do not directly endanger public life and their safety or do not involve in unlawful trade and includes failure to maintain records, operation on expired licences or minor storage non-compliance, cash payment or excess transportation;

(2B) "non-malicious intent" means unintentional violations arising from negligence, lack of awareness or accidental circumstances without deliberate and harmful purpose and include administrative errors in licensing paperwork, accidental possession due to oversight or minor safety lapses;]

(3) "vessel" includes every ship, boat and other vessel used in navigation, whether propelled by oars or otherwise:

(4) "carriage" includes any carriage, wagon, cart, truck, vehicle or other means of conveying goods, or passengers by land, in whatever manner the same may be propelled:

[2][(5) "master",—

(a) in relation to any vessel or ship means any person, other than a pilot, harbour master, assistant harbour master or berthing master, having for the time being the charge or control of such vessel or aircraft, as the case may be;

(b) in relation to any boat belonging to a ship, means the master of that ship; and

(c) in relation to aircraft means captain of the aircraft;]

(6) "import" means to bring into [3][Pakistan] by sea [2][, air] or land.

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[2][(7) "aircraft" means any machine which can derive support in the atmosphere from the reactions of the air, other than the reactions of the air against the earth's surface, and includes balloons, whether fixed or free, airships, kites, gliders and flying machines, for this ordinance aircraft means cargo aircraft;

[2][(8) "export" means taking out of Pakistan to a place outside Pakistan by land, sea or air;

(9) "prescribed" means prescribed by rules; and

(10) "rules" means any rules made under the Act.]

[1]Added by Act No. XVII of 2025, s.2
[2]Subs., ins and added by Ordinance No. CV of 2002, s. 3.
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October,* 1955).

5. Power to make rules as to licensing of the manufacture, possession, use, sale, transport and importation of explosives.— (1) The [1][Federal Government] [2][, in consultation with the provincial Governments,] may for any part of [3][Pakistan], [4][* * *] make rules consistent with this Act to regulate or prohibit, except under and in accordance with the conditions of a license granted as provided by those rules, the manufacture, possession, use, sale, transport [2][, import and export] of explosives, or any specified class of explosives.

(2) Rules under this section may provide for all or any of the following, among other matters, that is to say:—

(a) the authority by which licenses may be granted;

(b) the fees to be charged for licenses, and the other sums (if any) to be paid for expenses by applicants for licenses;

(c) the manner in which applications for licenses must be made, and the matters to be specified in such applications;

(d) the form in which, and the conditions on and subject to which, licenses must be granted;

(e) the period for which licenses are to remain in force; [2][*]

(f) the exemption absolutely or subject to conditions of any explosives from the operation of the rules [2][;]

[2][(g) the authority to which appeals may be preferred and the procedure to be followed by such authority;

(h) the total quantity of explosives that a licensee may possess in a given period of time; and

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(i) the import and export of explosives by land, sea or air.]

(3) [5][* * * * * * *]

[5][**5A. Offences of minor and major violations**.— (1) Where a licensee commits no minor violations which are non-malicious, he shall be liable to an administrative penalty not exceeding half a million rupees.

[1]Subs. by the Central Adaption of Laws Order, 1964 (P. O. 1 of 1964), Art. 2 and Sch.
[2]Ins., subs. & omitted by Ordinance No. CV of 2002, s. 3.
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October,* 1955).
[4]Rep. by the Government of India (Adaptation of Indian Laws) Order, 1937.
[5]Omitted and Ins. by Act No. XVII of 2025, ss. 3 and 4.

(2) Where a licensee commits minor violations which are malicious, he shall be liable to an administrative penalty not exceeding one million rupees.

(3) Where a licensee commits major violations which are non-malicious, he shall be liable to imprisonment not exceeding three years or a fine not exceeding ten million rupees or both.

(4) Where a licensee commits major violations which are malicious, he shall be liable to imprisonment not exceeding seven years or a fine not exceeding twenty million rupees or both.

(5) Whoever commits any act involving the manufacturing, storage, possession, procurement, sale, transport, import, export or use of explosives without any licence under this Act and rules made thereunder shall be liable to the punishments provided for in the Explosive Substances Act, 1908 (VI of 1908).

5B. Trial of offences.— The offences under this Act and under the Explosive Substances Act, 1908 (VI of 1908) shall be tried by the Anti-terrorism Court established under the Anti-terrorism Act, 1997 (XXVII of 1997).]

[1][**6. Power of the Federal Government to prohibit the manufacture, possession, use, sale, transport, import or export of specially dangerous explosives**.— (1) Notwithstanding anything contained in this Act, the Federal Government may from time to time, by notification in the official Gazette, prohibit, either absolutely or subject to conditions, the manufacture, possession, use, sale, transport, import or export of any explosive which is of so dangerous a character that, in the opinion of the Federal Government, it is expedient for the public safety to issue such notification.

(2) The Customs Act, 1969 (IV of 1969), shall have effect in relation to any explosive with regard to the importation of which a notification has been issued under sub -section (1), and the vessel, carriage or aircraft containing such explosive, as the said Act, have has in relation to any article the importation of which is prohibited or regulated thereunder, and shall apply accordingly to the vessel, carriage or aircraft containing such article.

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(3) Any person manufacturing, possessing, using, selling, transporting, importing or exporting any explosive in contravention of a notification issued under sub-section (1), shall be punishable with fine which may extend to [2][two million] rupees, and, in the case of importation by water , the owner and master of the vessel and in the case of importation by air, the owner and the master of the aircraft, in which the explosive is imported shall, in the absence of reasonable excuse, each be punishable with fine which may extend to [2][two million] rupees.

[1][**6A. Prohibition of manufacture, possession, sale or use, transport, import and export of explosives by young persons and certain other persons**.— (1) Notwithstanding anything contained in this Act—

(a) any person—

[1]Subs.& ins. by Ordinance No. CV of 2002, s. 5
[2]Subs. by Act No. XVII of 2025, s. 5.

(i) who has not completed the age of eighteen years; or

(ii) who has been sentenced on conviction of any offence involving violence or moral turpitude for a term of not less than six months at any time during a period of five years after the expiration of the sentence; or

(iii) who has been ordered to execute under the Code of Criminal Procedure, 1898 (Act V of 1898), a bond for keeping the peace or for good behavior, at anytime during the terms of the bond; or

(iv) whose licence under this Act has been cancelled, for contravention of the provisions of this Act or of the rules made thereunder, at any time during a period of five years from the date of cancellation of such licence;

shall not—

(i) manufacture, sell, transport import or export any explosive; or

(ii) possess or use any such explosive as the Federal Government may, having regard to the nature thereof, by notification in the official Gazette, specify; and

(b) no person shall sell, deliver or dispatch any explosive to a person whom he knows or has reason to believe at the time of such sale, delivery or dispatch—

(i) to be prohibited under clause (a) to manufacture, sell, use, transport, import, export, or possess such explosive; or

(ii) to be of unsound mind or having physical disability.

(2) Whoever—

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(a) manufactures, possesses, sells, transports, imports or exports any explosive in contravention of the provision of clause (a) of sub-section (1); or

(b) sells, delivers or dispatches any explosive in contravention of the provisions of clause (b) of sub-section (1).

shall be punishable with a fine [1][which may extend to two million] rupees.]

[1][**6B. Jurisdiction**.— (1) The administrative penalties under sub-sections (1) and (2) of section 5A shall be imposed by the Department of Explosives in the prescribed manner.

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[1]Subs., and ins. by Act No. XVII of 2025, ss.6 and 7.

(2) The Anti-terrorism Court established under the Anti-terrorism Act, 1997 (XXVII of 1997) shall have jurisdiction to try the offences under sub-sections (3) and (4) of section 5A.

(3) Any person aggrieved by the decision of Anti-terrorist Court under sub-section (2) may prefer an appeal before the concerned High Court within thirty days from the date of communication of such decision or order.]

7. Power to make rules conferring powers of inspection, search, seizure, detention and removal.— (1) The [1][Federal Government] [2][* * *] may make rules consistent with this Act authorizing any officer, either by name or in virtue of his office—

(a) to enter, inspect and examine any place, carriage [1][, aircraft] or vessel in which an explosive is being manufactured, possessed, used, sold, transported [1][, exported] or imported under a license granted under this Act, or in which he has reason to believe that an explosive has been or is being manufactured, possessed, used, sold, transported [1][, exported] or imported in contravention of this Act or of the rules made under this Act;

(b) to search for explosives therein;

(c) to take samples of any explosive found therein on payment of the value thereof; and

(d) to seize, detain, remove and, if necessary, destroy any explosive found therein.

(2) The provisions of the [3][Code of Criminal Procedure, 1898(Act V of 1898)] relating to searches under that Code shall, so far as the same are applicable, apply to searches by officers authorized by rules under this section.

8. Notice of accidents.— [4][(1)] Whenever there occurs in or about, or in connection with, any place in which an explosive is manufactured, possessed or used, or any carriage [1][,aircraft] or vessel either conveying an explosive or on or from which an explosive is being loaded or unloaded, any accident by explosion or by fire attended with loss of human life or serious injury to person or property, or of a description usually attended with such loss or injury, the occupier of the place, or the master of the vessel [1][or aircraft],or the person in charge of the carriage, as the case may be, shall [4][within such time and in such manner as may be by rule prescribed give notice thereof and of the attendant loss of human life or personal injury, if any, to the [5][Director General Explosives] and to the officer in charge of the nearest police-station.

[4][(2) Whoever in contravention of sub-section (1) fails to give notice of any accident shall be punishable with fine which may extend to [5][half a million] rupees or if the accident is attended by loss

[1]Ins. by Ordinance No. CV of 2002, ss. 7 and 8.
[2]Rep. by the Government of India (Adaptation of Indian Laws) Order, 1937.
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and Sch., II.
[4]Re-numbered, subs., and added by Ordinance, 1945 (Ordinance No. XVIII of 1945), s. 2.
[5]Subs. by Act No. XVII of 2025, ss. 8 and 10.

of human life, with imprisonment for a term which may extend to three months, or with fine, or with both.]

[1][**9.Inquiry into accidents**.— (1) Where any accident such as is referred to in section 8 occurs in or about or in connection with any place, carriage [2][, aircraft] or vessel under the control of any of [3][the armed forces of Pakistan], an inquiry into the causes of the accident shall be held by the naval, military, or air force authority concerned, and where any such accident occurs in any other circumstances, the district Magistrate [4][* * *] shall, in cases attended by loss of human life, or may, in any other case, hold or direct a Magistrate sub-ordinate to him to hold, such an inquiry.

(2) Any person holding an inquiry under this section shall have all the powers of a Magistrate in holding an inquiry into an offence under the Code of Criminal Procedure, 1898(V of 1898) and may exercise such of the powers conferred on any officer by rules under section 7 as he may think it necessary or expedite to exercise for the purposes of the inquiry.

(3) The person holding an inquiry under this section shall make a report to the [2][Federal Government] stating the causes of the accident and its circumstances.

(4) The [2][Federal Government] may make rules—

(a) to regulate the procedure at inquiries under this section;

(b) to enable the [5][Director General Explosives] to be present or represented at any such inquiry;

(c) to permit the [5][Director General Explosives] or his representative to examine any witnesses at the inquiry;

(d) to provide that where the [5][Director General Explosives] is not present or represented at any such inquiry, a report of the proceedings thereof shall be sent to him;

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(e) to prescribe the manner in which and the time within which notices referred to in section 8 shall be given.

9A. Inquiry into more serious accidents.— (1) The [2][Federal Government] may, where it is of opinion, whether or not it has received the report of an inquiry under section 9, that an inquiry of more formal character should be held into the causes of an accident such as is referred to in section 8, appoint the [5][Director General Explosives] or any other competent person to hold such inquiry, and may also appoint one or more persons possessing legal or special knowledge to act as assessors in such inquiry.

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[1]Subs. by Ordinance No. XVIII of 1945, s. 2.
[2]Ins., and subs. by Ordinance No. CV of 2002, ss. 9 and 2.
[3]Subs. by the Central Laws (Adaptation) Order, 1961 (P. O. 1 of 1961), Art 2 and Sch. *(with effect from the 23rd March*, 1956).
[4]Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (P. O. 4 of 1949), Sch.
[5]Subs. by Act No. XVII of 2025, s. 10.

(2) Where the [1][Federal Government] orders an inquiry under this section, it may also direct that any inquiry under section 9 pending at the time shall be discontinued.

(3) The person appointed to hold an inquiry under this section shall have all the powers of a Civil Court under the Code of Civil Procedure, 1908(V of 1908), for the purposes of enforcing the attendance of witnesses and compelling the production of documents and material objects; and every person required by such person as aforesaid to furnish any information shall be deemed to be legally bound so to do within the meaning of section 176 of the Pakistan Penal Code (XLV of 1860).

(4) Any person holding an inquiry under this section may exercise such of the powers conferred on any officer by rules under section 7 as he may think it necessary or expedient to exercise for the purposes of the inquiry.

(5) The person holding an inquiry under this section shall make a report to the [1][Federal Government] stating the causes of the accident and its circumstances, and adding any observations which he or any of the assessors may think fit to make; and the [1][Federal Government] shall cause every report so made to be published at such time and in such manner as it may think fit.

(6) The [1][Federal Government] may make rules for regulating the procedure at inquiries under this section.]

[1][**9B. Offences by companies**— Where the person guilty of an offence under this Act, is a company, corporation, firm or institution, every director, partner and concerned employee of the company, corporation, firm or institution shall, unless he proves that the offence was committed without his knowledge or consent, be guilty of the offence.]

[2][**9C**. **Assistance by organizations, etc**.— (1) In performance of his functions, the Director General Explosives may by an order in writing—

(a) call for information from any person for the purpose of satisfying himself whether there has been any contravention of the provisions of this Act or any rules made thereunder;

(b) require any person to produce or deliver any document or thing useful or relevant to the inquiry or investigation under this Act:

(c) examine any person acquainted with the facts; or

(d) seek expert opinion by co-opting any person in service of the Federal or Provincial Government or any body under control of such Government.

(2) The information, expert opinion or assistance sought by the Director General Explosives under sub-section (1) shall be provided by the person from whom such information, expert opinion or assistance is sought.]

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[1]Ins., and subs. by Ordinance No. CV of 2002, ss. 2 and 10.
[2]Ins. by Act No. XVII of 2025, s. 9.

10. Forfeiture of explosives.— When a person is convicted of an offence punishable under this Act or the rules made under this Act, the Court before which he is convicted may direct that the explosive, or ingredient of the explosive, or the substance (if any) in respect of which the offence has been committed, or any part of that explosive, ingredient or substance, shall, with the receptacles containing the same, be forfeited.

[1][**11. Distress of aircraft or vessel.**— Where the owner or master of any aircraft or vessel is adjudged under this Act or the rules, to pay a fine for any offence committed with, or in relation to, that aircraft or vessel, the Court may, in addition to any other power it may have for the purpose of compelling payment of the fine, direct it to be levied by distress and sale of,—

(a) the aircraft and its furniture or so much of the furniture; or

(b) the vessel and the tackle, apparel and furniture of such vessel or so much of the tackle, apparel and furniture thereof,

as is necessary for the payment of the fine.]

12. Abetment and attempts.— Whoever abets, within the meaning of the Pakistan Penal Code (XLV of 1860), the commission of an offence punishable under this Act, or the rules made under this Act, or attempts to commit any such offence and in such attempt does any act towards the commission of the same, shall be punished as if he had committed the offence.

13. Power to arrest without warrant persons committing dangerous offences.— Whoever is found committing any act for which he is punishable under this Act or the rules under this Act, and which tends to cause explosion or fire in or about any place where an explosive is manufactured or stored, or any railway or port, or any carriage, [1][aircraft or vessel], may be apprehended without a warrant by a Police-officer, or by the occupier of, or the agent or servant of, or other person authorized by the occupier of, that place, or by any agent or servant of, or other person authorized by, the railway administration of conservator of the port [1][or the officer-in-charge of the air port], and be removed from the place where he is arrested and conveyed as soon as conveniently may be before a [6][Judicial Magistrate].

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[2][**14. Saving and power to exempt**.— (1) Nothing in this Act, except sections 8, 9 and 9A, shall apply to the manufacture, possession, use, transport or [1][, import and export] of any explosive—

(a) by any of [3][the armed forces of Pakistan] in accordance with rules or regulations made by [3][* * *] the [4][Federal Government];

(b) by any person employed under [5][the [1][Federal Government] [4][* * *]] in execution of this Act.

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[1]Subs. & ins. by Ordinance No. CV of 2002, ss. 11, 12 and 14.
[2]Subs. by Ordinance No. XVIII of 1945, s. 4.
[3]Subs., and omitted by the Central Laws Adaptation Order, 1961 (P. O. 1 of 1961), Art 2 and Sch. *(with effect from the 23rd March*, 1956).
[4]Subs., and omitted by the Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), Art. 2 and Sch.
[5]Subs. by the Central Adaptation of Laws Order, 1964 (P. O. 1 of 1964), Art. 2 and Sch.
[6]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and Sch., II.

(2) The [1][Federal Government] may by notification in the official Gazette exempt, absolutely or subject to any such conditions as it may think fit to impose, any explosive from all or any of the provisions of this Act.

15. Saving of Arms Act, 1878.— Nothing in this Act shall affect the provisions of the Arms Act,1878 [2][and the Pakistan Arms Ordinance, 1965 (W.P. Ordinance No. XX of 1965).]

Provided that an authority granting a license under this Act for the manufacture, possession sale, transport [1][,import and export] of an explosive may, if empowered in this behalf by the rules under which the license is granted, direct by an order written on the license that it shall have the effect of a like license granted under the said Arms Act (XI of 1878).

16. Saving as to liability under other law.— Nothing in this Act or the rules under this Act shall prevent any person from being prosecuted under any other law for any act or omission which constitutes an offence against this Act or those rules, or from being liable under that other law to any other or higher punishment or penalty than that provided by this Act or those rules: Provided that a person shall not be punished twice for the same offence.

17. Extension of definition of "explosive" to other explosive substances.— The [1][Federal Government] may, from time to time, by notification in the [3][official Gazette], declare[4] that any substance which appears to the [1][Federal Government] to be specially dangerous to life or property, by reason either of its explosive properties or of any process in the manufacture thereof being liable to explosion, shall be deemed to be an explosive within the meaning of this Act, and the provisions of this Act (subject to such exceptions, limitations and restrictions as may be specified in the notification) shall accordingly extend to that substance in like manner as if it were included in the definition of the term "explosive" in this Act.

18. Procedure for making publication and confirmation of rules.— [5](1) An authority making rules under this Act shall, before making the rules, publish a draft of the proposed rules for the information of persons likely to be affected thereby.

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(2) The publication shall be made in such manner as the [1][Federal Government], from time to time, by notification in the [3][official Gazette] prescribes.

(3) There shall be published with the draft a notice specifying a date at or after which the draft will be taken into consideration.

(4) The authority making the rules shall receive and consider any objection or suggestion which may be made by any person with respect to the draft before the date so specified.

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[1]Subs. by Ordinance No. CV of 2002, ss. 2 and 14.
[2]Ins. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and 2nd Sch.
[3]Subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.
[4]Picric acid with certain exceptions has been declared to be an Explosive within the meaning of this Act, see Gazette of India, 1926, Pt. I, p. 1264.
[5]Sub-sections (1) to (4) of section 18 were deemed to have been omitted during the Continuance of the Explosives (Amdt.) Ordinance, 1945 (Ordinance No. XVIII of 1945), since rep. by the Federal Laws (Revision and Declaration) Act, 1951 (Act No. XXVI of 1951), s. 2.

(5) A rule made under this Act shall not take effect [1][***] until it has been published in the [1][official Gazette], [1][* * *].

(6) The publication in the [1][official Gazette] of a rule purporting to be made under this Act shall be conclusive evidence that it has been duly made, and, if it requires sanction, that it has been duly sanctioned.

(7) All powers to make rules conferred by this Act may be exercised from time to time as occasion requires.

[2][**19. Transportation of explosives by air.**— The transportation of explosives by air shall be carried out by cargo and other permissible aircraft and not by passenger aircraft in accordance with the rules and regulations of International Civil Aviation Organization (ICAO), International Air Transport Association (IATA) and Civil Aviation Authority of Pakistan (CAA).

20. Removal of difficulties.— If any difficulty arises in giving effect to any provision of this Ordinance, the Federal Government may, by notification in the official Gazette, make such provisions, not inconsistent with the provisions of this Ordinance, as may appear to it to be appropriate or necessary for the purpose of removing such difficulty.]

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Dated. 07-07-2025

[1]Rep., and subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.
[2]Ins. by Ordinance No. CV of 2002, s. 15.

THE EXTRADITION ACT, 1972

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THE EXTRADITION ACT, 1972

ACT No. XXI OF 1972

[*25th September, 1972*]

An Act to consolidate and amend the law relating to the extradition of fugitive offenders.

WHEREAS it is expedient to consolidate and amend the law relating to the extradition of fugitive offenders;

It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title, extent, commencement and application.—(1) This Act may be called the Extradition Act, 1972.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such date as the Federal Government may, by notification in the official Gazette, appoint.

(4) It shall apply in relation to the return of persons to, and to persons returned from,—

(*a*) a treaty State, subject to a declaration under section 3, if any; and

(*b*) a foreign State not being a treaty State, subject to a direction under section 4.

2. Definitions. —(1) In this Act, unless there is anything repugnant in the subject or context,—

(*a*) "extradition offence" means an offence the act or omission constituting which falls within any of the descriptions set out in the Schedule and, if it took place within, or within the jurisdiction of, Pakistan, would constitute an offence against the law of Pakistan and also—

(i) in the case of a treaty State, an offence a person accused of which is, under the extradition treaty with that State, to be returned to or from that State; and

(ii) in the case of a foreign State not being a treaty State, an offence specified in a direction issued under section 4;

(*b*) "extradition treaty" means a treaty or agreement between Pakistan and a foreign State for the extradition to or from such State of a person accused or convicted of an extradition offence;

(*c*) "foreign State" includes every constituent part, colony or dependency of such State;

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(*d*) "fugitive offender" means the person who, being accused or convicted of an extradition offence is, or is suspected to be, in any part of Pakistan;

(*e*) "prescribed" means prescribed by rules made under this Act;

(*f*) "treaty State" means a foreign State with which an extradition treaty is for the time being in operation.

(2) In determining for the purposes of this Act whether an offence against the law of a foreign State falls within a description set out in the Schedule, any special intent or state of mind or special circumstances of aggravation which may be necessary to constitute that offence under the law shall be disregarded.

3. Treaty State.—(1) As soon as may be after the commencement of this Act, the Federal Government shall publish in the official Gazette a list of the foreign States with which an extradition treaty is in operation, specifying in respect of each such State the offences persons accused of which are, under the treaty, to be returned to or from that State.

(2) Whenever there is concluded an extradition treaty between Pakistan and a foreign State, the Federal Government may, by notification in the official Gazette, declare such State to be a treaty State for the purposes of this Act.

(3) A declaration under sub-section (2) in relation to a foreign state shall specify the offences persons accused of which are, under the extradition treaty with that State, to be returned to or from that State and may provide that this Act shall apply in relation to that State with such modification as may be set out therein; and the provisions of this Act shall have effect accordingly.

4. Application of Act to non-treaty States.—(1) Where the Federal Government considers it expedient that the persons who, being accused or convicted of offences at places within, or within the jurisdiction of, a foreign State, are or are suspected to be in Pakistan should be returned to the State, notwithstanding that there is no extradition treaty with that State, it may, by notification in the official Gazette, direct that the provisions of this Act shall, with respect to such offences and subject to such modifications, exceptions, conditions and qualifications, if any, as may be specified therein, have effect in relation to that State.

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(2) Where a direction under sub-section (1) in relation to a foreign State is in force, the provisions of this Act shall, with respect to the offences specified in that direction, have effect in relation to such State as if it were a treaty State.

CHAPTER II

SURRENDER OF FUGITIVE OFFENDERS

5. Liability of fugitive offenders to be surrendered.—(1) Subject to the provisions of sub-section (2), every fugitive offender shall be liable to be apprehended and surrendered in the manner provided in this Act, whether the offence in respect of which his surrender is sought was committed before or after the commencement of this Act and whether or not a court in Pakistan has jurisdiction to try that offence.

(2) No fugitive offender shall be surrendered—

(*a*) if the offence in respect of which his surrender is sought is of a political character or if it is shown to the satisfaction of the Federal Government or of

the Magistrate or court before whom he may be produced that the requisition for his surrender has, in fact, been made with a view to his being tried or punished for an offence of a political character;

(*b*) if the offence in respect of which his surrender is sought is not punishable with death or with imprisonment for life or a term which is not less than twelve months;

(*c*) if the prosecution for the offence in respect of which the surrender is sought is, according to the law of the State asking for the surrender, barred by time;

(*d*) if there is no provision in the law of, or in the extradition treaty with, the State asking for the surrender that the fugitive offender shall not, until he has been restored or has had an opportunity of returning to Pakistan, be detailed or tried in that State for any offence committed prior to his surrender, other than the extradition offence proved by the facts on which the surrender is based;

(*e*) if it appears to the Federal Government that he is accused or alleged to have been convicted of such an offence that if he were charged with that offence in Pakistan he would be entitled to be discharged under any law relating to previous acquittal or conviction ;

(*f*) if he has been accused of some offence in Pakistan, not being the offence for which his surrender is sought, or is undergoing sentence under any conviction in Pakistan, until after he has been discharged, whether by acquittal or on the expiration of his sentence or otherwise;

(*g*) if it is shown to the satisfaction of the Federal Government or of the Magistrate or court before whom he may be produced that he might if surrendered be prejudiced at his trial or punished, detained or restricted in his personal liberty by reason of his race, religion, nationality or political opinions.

6. Requisition for surrender of fugitive offender. A requisition for the surrender of a fugitive offender shall be made to the Federal Government—

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(*a*) by a diplomatic representative in Pakistan of the State asking for the surrender; or

(*b*) by the Government of the State asking for the surrender through the diplomatic representative of Pakistan in that State; or

(*c*) in such other manner as may have been settled by arrangement between the Federal Government and the Government of the State asking for the surrender.

7. Order of Magisterial enquiry. Where a requisition is made under section 6, the [1][Secretary of the Division to which business of this Act stands allocated may, if he] thinks fit, issue an order to

[1]Subs. by Act No. XXI of 2025, s. 2.

enquire into the case to any Magistrate of the first class who would have had jurisdiction to enquire into the extradition offence to which the requisition relates if it had been an offence committed within the local limits of his jurisdiction.

8. Magisterial enquiry.—(1) On receipt of an order under section 7, the Magistrate shall issue a summon or a warrant for the arrest of the fugitive offender according as the case appears to be one in which according to the law of Pakistan a summon or warrant would ordinarily issue.

(2) When the fugitive offender appears or is brought before him, the Magistrate shall enquire into the case in the same manner, and have the same jurisdiction and powers, as nearly as may be, as if the case were one triable by a court of session and shall take such evidence as may be produced in support of the requisition and on behalf of the fugitive offender, including any evidence to show that the offence of which the fugitive offender is accused or alleged to have been convicted is an offence of a political character or is not an extradition offence.

9. Receipt in evidence of exhibits, depositions, etc.—(1) In any proceedings against a fugitive offender under this Act, exhibits and depositions, whether or not they are received or taken in the presence of the person against whom they are used, and copies thereof, and official certificates of facts and judicial documents stating facts, may, if duly authenticated, be received as evidence.

(2) Warrants, depositions or statements on oath which purport to have been issued, received or taken by any Court of Justice outside Pakistan, or copies thereof, and certificates of, or judicial documents stating the fact of, conviction before any such Court, shall be deemed duly authenticated—

(*a*) if the warrant purports to be signed by a Judge, Magistrate, or officer of the State where the same was issued or acting in or for such State;

(*b*) if the depositions or statements or copies thereof purport to be certified, under the hand of a Judge, Magistrate or officer of the State where the same were taken or acting in or for such State, to be the original depositions or statements or to be true copies thereof, as the case may require;

(*c*) if the certificate of, or judicial document stating the fact of, a conviction purports to be certified by a Judge, Magistrate or officer of the State where the conviction took place or acting in or for such State; and

(*d*) if the warrant, depositions, statements, copies, certificates and judicial documents, as the case may be, are authenticated by the oath of some witness or by the official seal of a minister of the State where the name were respectively issued, taken or given.

(3) For the purposes of this section, "warrant" includes any judicial document authorising the arrest of any person accused or convicted of an offence.

10. Magistrate to report after enquiry. If, after the enquiry under section 8, the Magistrate is of opinion—

(a) that a *prima facie* case has not been made out in support of the requisition for surrender of the fugitive offender, he shall discharge the fugitive offender and make a report to that effect to the Federal Government;

(b) that a *prima facie* case has been made out in support of such requisition, he shall—

(*i*) report the result of his enquiry to the Federal Government ;

(*ii*) forward, together with such report, any written statement which the fugitive offender may desire to submit for the consideration of the Federal Government; and

(*iii*) subject to any provision relating to bail, commit the fugitive offender to prison to await the orders of the Federal Government.

11. Removal and delivery of the fugitive offender. If, upon receipt of the report and statement under clause (b) of section 10, the Federal Government is of opinion that the fugitive offender ought to be surrendered, it may issue a warrant for the custody and removal of the fugitive offender and for his delivery at a place and to a person to be named in the warrant:

Provided that the fugitive offender shall not be so delivered until after the expiration of fifteen days from the date he has been taken in custody under such warrant.

12. Discharge of person apprehended if not surrendered within two months. If a fugitive offender who, in pursuance of this Act, has been taken into custody to await his surrender, is not conveyed out of Pakistan within two months after such committal, the High Court, upon application made to it by or on behalf of the fugitive offender and upon proof that reasonable notice of the intention to make such application has been given to the Federal Government, may order such prisoner to be discharged unless sufficient cause is shown to the contrary.

13. Power to the Federal Government to discharge a fugitive offender. If it appears to the Federal Government that by reason of the trivial nature of the case or by reason of the application for the surrender of a fugitive offender not being made in good faith or in the interest of justice or for any other reason it would be unjust or inexpedient to surrender the fugitive offender, it may, by order, at any time stay the proceedings under this Act against him and direct any summons or warrant issued under this Act to be cancelled and the fugitive offender, if he is in custody or under detention, to be discharged.

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14. Simultaneous requisitions. If requisitions for the surrender of a fugitive offender are received from more than one treaty State, the Federal Government may, having regard to the circumstances of the case, surrender the fugitive offender to such State as it may think fit.

CHAPTER III

SURRENDER TO PAKISTAN OF PERSONS ACCUSED OF EXTRADITION OFFENCES

15. Requisition for surrender of persons to Pakistan. A requisition for the surrender to Pakistan of a person who, being accused or convicted of an extradition offence, is or is suspected to be in a treaty State may be made by the Federal Government—

(a) to the diplomatic representative in Pakistan of that State;

(b) to the Government of that State through the diplomatic representative of Pakistan in that State; or

(c) in such other manner as may have been settled by arrangement between the Federal Government and the Government of that State.

16. A person surrendered by a treaty State not to be tried for previous offence. A person surrendered by a treaty State in pursuance of a requisition under section 15 shall not, until he has been restored or has had an opportunity of returning to that State, be tried in Pakistan for an offence committed prior to the surrender, other than the extradition offence proved by the facts on which the surrender is based.

17. Return of the persons surrendered to Pakistan. The Federal Government may, if it thinks fit, on the request of a person surrendered to Pakistan in pursuance of a requisition under section 15, arrange for him to be sent back at the cost of the Federal Government and with as little delay as possible to the State by which he was so surrendered if—

(a) proceedings against him for the offence for which he was surrendered are not begun within the period of six months from the day of his arrival in Pakistan; or

(b) he is acquitted or discharged on his trial for that offence.

CHAPTER IV

MISCELLANEOUS

18. Jurisdiction as to offences committed at sea or in air. Where the offence in respect of which the surrender of a fugitive offender is sought was committed on board any vessel on the high seas or any aircraft in the air outside Pakistan or the Pakistan territorial waters and such vessel or aircraft comes into any port or aerodrome of Pakistan with the fugitive offender on board, the Federal Government and any Magistrate having jurisdiction in such port or aerodrome may exercise the powers conferred on it or him by this Act.

19. Release of persons arrested on bail. The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), relating to bail shall apply to a fugitive offender arrested or detained under this Act in the same manner as they would apply if he were accused of committing in Pakistan the offence of which he is accused or has been convicted; and in relation to such bail the Magistrate before whom he is brought shall have, as far as may be, the same powers and jurisdiction as a court of session under that Code.

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20. Property found on fugitive offender. Everything found in the possession of a fugitive offender at the time of his arrest which may be material as evidence in proving the extradition offence may be delivered up with the fugitive offender on his surrender, subject to the rights, if any, of third parties with respect thereto.

21. Lawfulness of custody and re-taking under warrant issued under Act. It shall be lawful for any person to whom a warrant is directed in pursuance of the provisions of this Act to receive, hold in custody and convey the fugitive offender mentioned in the warrant to the place named in the warrant, and, if such offender escapes out of any custody to which he may be delivered in pursuance of such warrant, he may be re-taken as a person accused of an offence against the law of Pakistan may be re-taken upon an escape.

22. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(*a*) the form in which a requisition for the surrender of a fugitive offender may be made;

(*b*) the removal of fugitive offenders apprehended or in custody under this Act and their control and maintenance until such time as they are handed over to the persons entitled to receive them;

(*c*) the seizure and disposition of any property which is the subject of, or required for proof of, any alleged offence with respect to which this Act applies; and

(*d*) the form and manner in which the Magistrate may be required to make his report to the Federal Government under this Act.

23. Power to amend the Schedule. The Federal Government may, by notification in the official Gazette, amend the Schedule so as to add any entry thereto or modify or omit any entry therein.

24. [1][Omitted]

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[*See* section 2 (1) (*a*)]

EXTRADITION OFFENCES

1. Culpable homicide.
2. Maliciously or wilfully wounding or inflicting grievous bodily harm.
3. Rape.
4. Procuring or trafficking in women or young persons for immoral purposes.
5. Kidnapping, abduction or false imprisonment or dealing in slaves.
6. Stealing, abandoning, exposing or unlawfully detaining a child.
7. Bribery.
8. Perjury or subornation of perjury or conspiring to defeat the course of justice.
9. Arson.
10. An offence concerning counterfeit currency.
11. An offence against the law relating to forgery.
12. Stealing, embezzlement, fraudulent conversion, fraudulent false accounting, obtaining property or credit by false pretences, receiving stolen property or any other offence in respect of property involving fraud.

[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and II Sch.

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13. Burglary, house-breaking or any similar offence.

14. Robbery.

15. Blackmail or extortion by means of threats or by abuse of authority.

16. An offence against bankruptcy law or company law.

17. Malicious or wilful /damage to property.

18. Acts done with the intention of endangering vehicles, vessels or aircraft.

19. An offence against the law relating to dangerous drugs or narcotics.

20. Piracy.

21. Revolt against the authority of the master of a ship or the commander of an aircraft.

22. Contravention of import or export prohibitions relating to precious stones, gold and other precious metals.

[1][22.A Illicit dealing in arms, ammunition or explosive material used in their production]

23. Aiding and abetting, or counselling or procuring the commission of, or being an accessory before or after the fact to, or attempting or conspiring to commit, any of the aforesaid offences.

[2][24. Financing for terrorism,]

[3][25. Money Laundering]

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RGN Dated.04-09-2025

[1]Ins. by S.R.O. No. 67(KE)/98, dated the 11-2-1998 see Gaz. of P. 1998 Ext., Pt-II, p. 477.
[2]Added by S.R.O. 1051(1)/08, dated: 08-10-2008.
[3]Added by S.R.O. 246 (I)/2009, dt: 16-3-2009.

THE FEDERAL INVESTIGATION AGENCY ACT, 1974

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THE FEDERAL INVESTIGATION AGENCY ACT, 1974

[1]ACT No. VIII OF 1975

[13th January, 1975]

An Act to provide for the constitution of a Federal Investigation Agency

WHEREAS it is expedient to provide for the constitution of a Federal Investigation Agency for the investigation of certain offences committed in connection with matters concerning the Federal Government, and for matters connected therewith;

It is hereby enacted as follows: —

1. Short title, extent and commencement. — (1) This Act may be called the Federal Investigation Agency Act, 1974.

(2) It extends to the whole of Pakistan and also applies to all citizens of Pakistan and public servants, wherever they may be.

(3) It shall come into force at once.

2. Definitions. — In this Act, unless there is anything repugnant in the subject or context, —

(a) "Agency" means the Federal Investigation Agency constituted under section 3;

(b) "Code" means the Code of Criminal Procedure, 1898 (Act V of 1898);

(c) "Director-General" means the Director-General of the Agency;

(d) "Provincial Police" means the Police constituted by a Provincial Government under the Police Act, 1861 (V of 1861);

(e) "public servant" means a public servant as defined in section 21 of the Pakistan Penal Code (Act XLV of 1860), and includes an employee of any corporation or other body or organization set up, controlled or administered by [2][, or under the authority of,] the Federal Government;

(f) "Special Police" means the Pakistan Special Police Establishment constituted under the Pakistan Special Police Establishment Ordinance, 1948 (VIII of 1948);

(g) "specified persons" means the persons who were appointed to posts in or under a Provincial Police in pursuance of Article 3 of the Special Police and Provincial Police (Amalgamation) Order, 1962 (P. O. No. I of 1962); and

(h) "rules" means rules made under this Act.

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[1]For Statement of Objects and Reasons, *see* Gaz. of P., 1974, Ext., Pt. III, p.1385.
[1]Applied to PATA (NWFP), see NWFP Gaz. Ext., dated 26-5-2000.
[2]Ins. by the Prevention of Corruption Laws (Amdt.) Act, 1977 (13 of 1977), s.2 and Sch.,

3. Constitution of the Agency. — (1) Notwithstanding anything contained in any other law for the time being in force, the Federal Government may [1]constitute an Agency to be called the Federal Investigation Agency for inquiry into, and investigation of, the offences specified in the Schedule, including an attempt or conspiracy to commit, and abetment of, any such offence.

(2) The Agency shall consist of a Director-General to be appointed by the Federal Government and such number of other officers as the Federal Government may, from time to time, appoint to be members of the Agency.

4. Superintendence and administration of the Agency.—(1) The superintendence of the Agency shall vest in the Federal Government.

(2) The administration of the Agency shall vest in the Director-General who shall exercise in respect of the Agency such of the powers of an Inspector General of Police under the Police Act, 1861 (V of 1861), as may be prescribed by rules.

5. Powers of the members of the Agency.—(1) Subject to any order which the Federal Government may make in this behalf, the members of the Agency shall, for the purpose of an inquiry or investigation under this Act, have throughout Pakistan such powers, including powers relating to search, arrest of persons and seizure of property, and such duties, privileges and liabilities as the officers of a Provincial Police have in relation to the investigation of offences under the Code or any other law for the time being in force.

(2) Subject to rules, if any, a member of the Agency not below the rank of a Sub-Inspector may, for the purposes of any inquiry or investigation under this Act, exercise any of the powers of an officer in charge of a police-station in any area in which he is for the time being and, when so exercising such powers, shall be deemed to be an officer-in-charge of a police-station discharging his functions as such within the limits of his station.

(3) Without prejudice to the generality of the provisions of sub-section (1) and sub-section (2), any member of the Agency not below the rank of a Sub-Inspector authorised by the Director-General in this behalf may arrest without warrant any person who has committed, or against whom a reasonable suspicion exists that he has committed, any of the offences referred to in sub-section (I) of section 3.

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(4) For the purpose of the exercise by the members of the Agency of the powers of an officer in charge of a police-station, "Police-station" includes any place declared, generally or specially, by the Federal Government to be a police-station within the meaning of the Code.

(5) If, in the opinion of a member of the Agency conducting an investigation, any property which is the subject-matter of the investigation is likely to be removed, transferred or otherwise disposed of before an order of the appropriate authority for its seizure is obtained, such member may, by order in writing, direct the owner or any person who is, for the time being, in possession thereof not to remove, transfer or otherwise dispose of such property in any manner except with the previous permission of that member and such order shall be subject to any order made by the Court having jurisdiction in the matter.

[1]For notification constituting the Agency, *see* Gaz. of P., 1975, Ext., Pt. II, p.146.

(6) Any contravention of an order made under sub-section (5) shall be punishable with rigorous imprisonment for a term which may extend to one year, or with fine, or with both.

[2]**[57. Certain Officers of the Agency deemed to be Public Prosecutors.—** Notwithstanding anything contained in any order law for the time being in force the Assistant Directors (Legal) and the Deputy Directors (Law) of the Agency shall be deemed to be Public Prosecutors and shall be competent to institute and conduct any proceedings in cases sent up for trial by the Agency in the Special Courts constituted under any law and the courts subordinate to the High Court.]

6. Power to amend the Schedule.— The Federal Government may, by notification in the official Gazette, amend the Schedule so as to add any entry thereto or modify or omit any entry therein.

7. Delegation of powers.— The Director-General may, by order in writing, direct that all or any of his powers under this Act or the rules shall, subject to such conditions, if any, as may be specified in the order, be exercisable also by any member of the Agency so specified.

8. Indemnity.— No suit, prosecution or other legal proceeding shall lie against the Federal Government, any member of the Agency or any other person exercising any power or performing any function under this Act or the rules for anything which is in good faith done or intended to be done under this Act or the rules.

9. Power to make rules. — (1) The Federal Government may, by notification in the official Gazette, make rules[1] for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely: —

(a) the terms and conditions of service of the Director-General and other members of the Agency and the qualifications for recruitment to various posts;

(b) the powers and functions of the members of the Agency in relation to the conduct of inquiries and investigations;

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(c) the nature and extent of the assistance which the Agency may provide to Provincial investigating agencies;

(d) the powers of the Inspector General of Police under the Police Act, 1861 (V of 1861), which shall be exercisable by the Director-General; and

(e) the manner in which rewards may be given to the members of the Agency or of the public for rendering commendable services.

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[1]For the Federal Investigation Agency Rules, 1975, *see* S.R.O. No. 130(I)/75, dated 22-1-75, *vide* Gaz. of P., 1975, Ext., (Islamabad), Pt.II, p.146 and for the Federal Investigation Agency (Appointment, Promotion and Transfer) Rules, 1975, *see* S.R.O. 340(I)/75, dt.19-3-1975, *see* Gaz. of Pt., 1975, Ext., Pt. II, pp.467-476.

[2]Ins. by the Federal Investigation Agency (Amdt.) Ord. (109 of 02), s.2.

10. Repeal. — (1) The Pakistan Special Police Establishment Ordinance, 1948, (VIII of 1948), and the Special Police and Provincial Police (Amalgamation) Order, 1962 (P. O. No. I of 1962), hereinafter referred to respectively as the said Ordinance and the said Order, are hereby repealed.

(2) Upon the repeal of the said Ordinance, —

(a) all persons who were members of the Special Police immediately before such repeal, including the specified persons, shall stand transferred to the Agency and shall, subject to sub-section (5), be entitled to the same terms and conditions to which they were entitled immediately before such repeal; and

(b) any inquiry or investigation pending with the Special Police immediately before such repeal shall continue to be conducted by the Agency.

(3) Notwithstanding the repeal of the said Order, but subject to sub-section (4), every specified person shall continue to be appointed in or under the provincial Police in or under which he was holding a post immediately before the commencement of this Act.

(4) On the recommendation of the Director-General, and with the concurrence of the Provincial Government concerned, the Federal Government may direct that such of the specified persons referred to in sub-section (3) as may, within thirty days of the commencement of this Act, express their willingness to serve in or under the Agency shall be appointed to posts in or under the Agency.

(5) A specified person referred to in clause (a) of sub-section (2), and a person in respect of whom a direction is issued under sub-section (4) shall, upon the repeal of the said Ordinance or, as the case may be, the issue of such direction, cease to hold a post in or under the Provincial Police concerned and shall be entitled to the same terms and conditions of service to which he was entitled immediately before such repeal or the issue of such direction.

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THE SCHEDULE

[*See* sections 3(1) and 6]

(1) Offences punishable under sections [a][120-B, 121, 122, 123, 123-A, 124, 124-A], [h][161, 162, 163, 164, 165, 165-A, 168, 169], [d][175, 182, 183, 186, 187, 188, 189], [c][201], [e][216], [b][217, 218], [e][223], [d][224, 225], [e][225-A], [e][245], [b][255, 256, 257, 258, 259, 260, 261, 263], [f][295-A] [x][295-B] [f][295-C, 298, 298-A], [a][300, 301, 302, 324, 332, 333, 334, 335, 336, 337, 337-A, 337-B, 337-C, 337-D, 337-E, 337-F] , [d][342, 348], [b][353], [a][365-A], [b][366-B], [d][383], [b][402-A, 402-B, 402-C, 403, 404], [i][406], [c][407,408], [h][409], [c][411, 418, 419], [i][420], [a][435, 436, 440], [k][462A, 462B, 462C, 462D, 462E, 462F], [l][462H, 462I, 462J, 462K, 462L, 462M] , [d][466], [c][467], [i][468, 471], [c][472], [d][473, 474, 475, 476], [b][477-A, 489-A, 489-B, 489-C, 489-D, 489-E], [j][489-F], [d][499, 500, 501, 502] [x][505] [d][506, 507], of the Pakistan Penal Code (Act XLV of 1860).

[m][1-A] Section25-D and Section 29 of Telegraphic Act, 1885.

[b][2] Offences punishable under the Explosive Substance Act, 1908 (VI of 1908).

[b][3] Offences punishable under the Official Secret Act. 1923 (XIX of 1923).

[b][4] Offences punishable under the Foreigners Act, 1946 (XXXI of 1946).

[g][5] Offences punishable under the Prevention of Corruption Act, 1947 (II of 1947).

[b][6] Offences punishable under the Foreign Exchange Regulation Act. 1947.

[b][7] Offences punishable under the Import and Export (Control) Act. 1950(XXXIX of 1950).

[b][8] Offences punishable under Banking Companies Ordinance, 1962 (LVII of 1962).

[b][9] Offences punishable under the Pakistan Arms Ordinance, 1965 (W.P. Ord XX of 1965).

[b][10] Offences punishable under section the 156 of the Customs Act, 1969(IV of 1969).

[b][11] Offences punishable under the Foreign Exchange Repatriation Regulation, 1972.

[b][12] Offences punishable under the Foreign Assets (Declaration) Regulation 1972.

[b][13] Offences punishable under the National Registration Act 1973(LVI of 1973). (Omitted)

[b][14] Offences punishable under the High Treason (Punishment) Act, 1973 (LXVIII of 1973).

[b][15] Offences punishable under the Prevention of Anti-National Activities Act,1974 (VII of 1974).

[b][16] Offences punishable under the Banks (Nationalization) Act, 1974 (XIX of1974).

[b][17] Offences punishable under the Passport Act, 1974 (XX of 1974).

[b][18] Offences punishable under the Drugs Act, 1976 (XXXI of 1976).

[b][19] Offences punishable under Emigration Ordinance, 1979 (XVIII of 1979).

[b][20] Offences punishable under the Exit from Pakistan (Control) Ordinance, 1981(XLVI of 1981).

[n][21] Offences punishable under the Anti-Terrorism Act, 1997(XXVII of 1997) to the extent of dealing with cases which:

[1] have Inter-provincial scope, or

[2] are entrusted to the Agency by the Federal Government

[o][22] Offences punishable under the Prevention & Control of Human Trafficking Ordinance 2002.

[p][23] Offences punishable under the Pakistan Telecommunication (Re-organization) Act, 1996 (XVII of 1996).

[q][24] Offences punishable under the National Database and Registration Authority Ordinance, 2002.

[r][25] Offences punishable under Section 36 & 37 of the Electronic Transmission Ordinance, 2002 (L1 of 2002).

[s][26] Offences punishable under the Copyright Ordinance, 1962 (XXXIV of 1962).

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[t][27] Offences punishable under the Prevention of Electronic Crime Ordinance 2007.
[u][28] Offences punishable under the Anti-Money Laundering Ordinance, 2007 (XLV of 2007).
[v][29] Offences punishable under the Electricity Act, 1910 (IX of 1910).
[w][30] Offences punishable under the Protection of Pakistan Act, 2014 (X of 2014).
[x][31] Offences punishable under the Anti-Money Laundering Act, 2010 (VII of 2010).
[l][32] Offences punishable under the Prevention of Electronic Crime Act, 2016.
[y][33] Offences punishable under the Transplantation of Human Organs and Tissues act, 2010.
[z][34] Offences punishable under the Prevention of Smuggling of Migrant Act, 2018 (XXVIII of 2018).
[z][35] Offences punishable under the Prevention of Trafficking in persons Act, 2018 (XXXIV of 2018).
[z/1][36] Offences punishable under Public Properties (Removal of Encroachment) Ordinance, 2021(Ord No. XVI of 2021).

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a. S. R. O. 704 (I)/2004. dated 18 August 2004, [693 (2004)/Ex. Gaz.] [F. No. 4/14/2003-POLL (2)]
b. S. R. O. 826(I)/97 dated 20 September 1997, [No. 1/18/97-FIA.I.]
c. S. R. O. 113(I)/2002 dated 18 February 2002, [128(2002)/Ex. Gaz.]
d. S. R. O. 381(I)/2012 dated 18 April 2012, [2428(2012)/Ex. Gaz.] [No. 7/13/2012-FIA.]
e. S. R. O. 31(KE)/15, dated 22 December 2014, [No. 1/12/2014-FIA]
f. S. R. O. 620(I)/2018, dated 18 May 2018, [5925(2018)/Ex. Gaz.] [No. 1/2/2017-FIA]
g. S.R.O 1113(I)/2008, dated 24.10.2008 [No. 4/33/2008- Estt. FIA.]
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k. S. R. O. 67(KE)/2013 dated 03 September 2013, [F. No. 1/4/2013-FIA]
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t. S. R. O. 206(I)/2008 dated 04 March 2008, [2213(2008)/Ex. Gaz.]
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w. S. R. O. 5(KE)/2016 dated 7 January 2016, [F. No. 1/5/2015-(FIA)]
x. MOI Notification No. [F. No. 4/24/2022-FIA, dated 3rd November 2022]
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THE HIGH TREASON (PUNISHMENT) ACT, 1973

CONTENTS

1. Short title, extent and commencement
2. Punishment for high treason, etc.
3. Procedure

THE PAKISTAN CODE

THE HIGH TREASON (PUNISHMENT) ACT, 1973

ACT NO. LXVIII OF 1973

[26*th* *September*, 1973]

An Act to provide for the punishment of persons found guilty of acts of abrogation or subversion of a Constitution or of high treason

WHEREAS it is necessary to provide for the punishment of persons found guilty of acts of abrogation or subversion of a Constitution or of high treason;

It is hereby enacted as follows :—

1. Short title, extent and commencement.—(1) This Act may be called the High Treason (Punishment) Act, 1973.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Punishment for high treason, etc.—A person who is found guilty—

(a) of having committed an act of abrogation or subversion of a Constitution in force in Pakistan at any time since the twenty-third day of March, 1956, or

(b) of high treason as defined in Article 6 of the Constitution, shall be punishable with death or imprisonment for life.

3. Procedure.—No court shall take cognizance of an offence punishable under this Act except upon a complaint in writing made by a person authorised by the Federal Government in this behalf.

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RGN Date: 06-05-2024

THE IDENTIFICATION OF PRISONERS ACT, 1920

CONTENTS

1. Short title and extent
2. Definitions
3. Taking of measurements, etc., of convicted persons
4. Taking of measurements, etc., of non-convicted persons
5. Power of Magistrate to order a person to be measured or photographed
6. Resistance to the taking of measurements, etc.
7. Destruction of photographs and records of measurements, etc., on acquittal
8. Power to make rules
9. Bar of suits

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THE IDENTIFICATION OF PRISONERS ACT, 1920

[1]ACT No. XXXIII OF 1920

[9th September, 1920]

An Act to authorise the taking of measurements and photographs of convicts and others.

WHEREAS it is expedient to authorise the taking of measurements and photographs of convicts and others;

It is hereby enacted as follows:—

1.Short title and extent.—(1) This Act may be called the Identification of Prisoners Act, 1920; and

[2][(2) It extends to the whole of Pakistan.]

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,-

(a) "measurements" include finger impressions and foot-print impressions;

(b) "police officer" means an officer-in-charge of a police-station, a police officer making an investigation under Chapter XIV of the Code of Criminal Procedure, 1898 (V of 1898), [3]or any other police officer not below the rank of sub-inspector; and

(c) "prescribed" means prescribed by rules made under this Act.

3. Taking of measurements, etc., of convicted persons. Every person who has been-

(a) convicted of any offence punishable[4] with rigorous imprisonment for a term of one year or upwards, or of any offence which would render him liable to enhanced punishment on a subsequent conviction, or

(b) ordered to give security for his good behavior under section 118 of the Code of Criminal Procedure, 1898 (V of 1898), shall, if so required, allow his measurements and photograph to be taken by a police officer in the prescribed manner.

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[1]For Statement of Objects and Reasons, see Gazette of India, 1920, Pt. V, p. 162; and for Proceedings in Council, see ibid., 1920, Pt. VI, pp. 1037 and 1143.
This Act has been amended in its application to the Province of Sind by Bombay Acts 11 of 1922, 4 of 1935 and 21 of 1935.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., and extended to the Excluded Area of Upper Tanawal (N.W.F.P) other than Phulera with effect from such date and subject to such modifications as may be notified, see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.)
[2]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2), as amended by A.O., 1949, and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8.
[3]In the application of the Act to the Province of Sind, certain words have been ins. here by the Identification of Prisoners (Bombay Amdt.) Act, 1922 (Bom. 11 of 1922), s. 3.
[4]In the application of the Act to Province of Sind, certain words have been ins. here by the Identification of Prisoners (Bombay Second Amdt.) Act, 1935 (Bom. 21 of 1935), s. 2.

[1]**[4. Taking of measurements, etc., of non-convicted persons.** Any person who has been arrested in connection with an offence punishable with rigorous imprisonment for a term of one year or upwards shall, if so required by a police officer, allow his measurements to be taken in the prescribed manner.

5. Power of Magistrate to order a person to be measured or photographed. If a Magistrate is satisfied that, for the purposes of any investigation or proceeding under the Code of Criminal Procedure, 1898[2] (V of 1898), it is expedient to direct any person to allow his measurements or photograph to be taken, he may make an order to that effect, and in that case the person to whom the order relates shall be produced or shall attend at the time and place specified in the order and shall allow his measurements or photograph to be taken, as the case may be, by a police officer:

Provided, that no order shall be made directing any person to be photographed except by a Magistrate of the first class:

Provided further, that no order shall be made under this section unless the person has at some time been arrested in connection with such investigation or proceeding.

6. Resistance to the taking of measurements, etc.—(1) If any person who under this Act is required to allow his measurements or photograph to be taken resists or refuses to allow the taking of the same, it shall be lawful to use all means necessary to secure the taking thereof.

(2) Resistance to or refusal to allow the taking of measurements or photographs under this Act shall be deemed to be an offence under section 186 of the Pakistan Penal Code (XLV of 1860).

7. Destruction of photographs and records of measurements, etc., on acquittal. Where any person who, not having been previously convicted of an offence punishable with rigorous imprisonment for a term of one year or upwards, has had his measurements taken or has been photographed in accordance with the provisions of this Act is released without trial or discharged or acquitted by any Court, all measurements and all photographs (both negatives and copies) so taken shall, unless the Court or (in a case where such person is released without trial) the District Magistrate or Sub-Divisional Officer [3]for reasons to be recorded in writing otherwise directs, be destroyed or made over to him.

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8. Power to make rules.— (1) The [4][Provincial Government] may make rules for the purpose of carrying into effect the provisions of this Act.

(2) In particular and without prejudice to the generality of the foregoing provisions, such rules may provide for-

(*a*) restrictions on the taking of photographs of persons under section 5;

(*b*) the places at which measurements and photographs may be taken;

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[1]In the application of the Act to the Province of Sind, a different section has been subs. for this section by the Identification of Prisoners (Bombay Amdt.) Act, 1935 (Bom. 4 of 1935), s. 2, and further amended by Bom. Act 21 of 1935, s. 3.

[2]In the application of the Act to the Province of Sind, certain words have been ins. here by the Identification of Prisoners (Bombay Amdt.) Act, 1922 (Bom. 11 of 1922), s. 3.

[3]In the application of the Act to Bombay, certain words have been ins. here by the Identification of Prisoners (Bombay Amdt.) Act, 1922 (Bom. 1 of 1922), s. 4.

[4]Subs. by A.O., 1937, for "L.G.".

(*c*) the nature of the measurements that may be taken;

(d) the method in which any class or classes of measurements shall be taken;

(e) the dress to be worn by a person when being photographed under section 3 ; and

(f) the preservation, safe custody, destruction and disposal of records of measurements and photographs.

9. Bar of suits. No suit or other proceeding shall lie against any person for anything done, or intended to be done, in good faith under this Act or under any rule made thereunder.

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THE INDECENT ADVERTISEMENTS PROHIBITION ACT, 1963

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1. Short title, extent and commencement
2. Definitions
3. Prohibition against persons advertising, displaying, etc., indecent advertisements
4. Penalty
5. Confiscation of documents, etc., containing indecent advertisements
6. Offences by companies
7. Complaint by a police officer
8. Jurisdiction to try offences
9. Officers to be deemed to be public servants
10. Indemnity
11. Other laws not affected
12. Power to exempt from application of Act
13. Power to make rules

*14.

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*Omitted

THE INDECENT ADVERTISEMENTS PROHIBITION ACT, 1963

Act No. XII OF 1963

[18th *June,* 1963]

An Act to prohibit indecent Advertisements

WHEREAS it is expedient to provide for the prohibition of indecent advertisements;

AND WHEREAS the national interest of Pakistan in relation to the achievement of uniformity within the meaning of clause (2) of Article 131 of the Constitution requires Central legislation in the matter;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Indecent Advertisements Prohibition Act, 1963.

(1) It extends to the whole of Pakistan.

(2) It shall come into force at once.

2. **Definitions.—**In this Act, unless there is anything repugnant in the subject or context,—

(a) "advertisement" includes any notice, circular or other document, displayed on any house, building or wall, or published in any newspaper or periodical, and any announcement made orally or by any means of producing or transmitting light or sound, but does not include trade circulars issued by manufacturers of drugs to medical practitioners;

(b) "indecent" includes whatsoever may amount to any incentive to sensuality and excitement of impure thoughts in the mind of an ordinary man of normal temperament, and has the tendency to deprave and corrupt those whose minds are open to such immoral influence, and which is deemed to be detrimental to public morals and calculated to produce pernicious effect, in depraving and debauching the minds of persons;

(c) "taking any part in the publication of any advertisement" includes—

(i) the writing, typing, stamping, drawing, announcing, printing or transmitting of the advertisement ;

(ii) the publication of any advertisement outside Pakistan by or at the instance of a person residing in Pakistan ;

(d) "public place" means any place where an advertisement can be seen or heard by members of the public.

3. Prohibition against person advertising, displaying, etc., indecent advertisements.—Subject to the provisions of this Act—

(i) no person shall take any part in the publication of any advertisement which is indecent ; and

(ii) no person having the ownership, possession or control of any property or public place shall knowingly allow any advertisement which is indecent to be displayed on such property or place, or to be announced therefrom.

4. Penalty.—Whoever cotrnavenes any of the provisions of this Act shall, on conviction, be punishable—

(a) in the case of a first conviction, with imprisonment which may extend to six months, or with fine, or with both; and

(b) in the case of any subsequent conviction, with imprisonment which may extend to one year, or with fine, or with both.

5. Confiscation of documents, etc., containing indecent advertisements.—Any person authorised by the [1][Provincial Government] in this behalf may, at any time, seize and detain any document, article or thing which such person has reason to believe contains any advertisement which contravenes any of the provisions of this Act and the court trying such contravention may direct that such document (including all copies thereof), article or thing shall be forfeited to the Government.

6. Offences by companies.—(1) If the person contravening any of the provisions of this Act is a company, every person who at the time the offence was committed, was in charge of, and was responsible to, the company for the conduct of the business of the company as well as the company shall be deemed to be guilty of the contravention and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment provided in this Act if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission on such offence.

(2) Notwithstanding anything contained in sub-section (1), where any offence under this Act has been committed by a company and it is proved that the offence was committed with the consent or connivance of, or is attributable to any neglect on the part of, any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation.—For the purpose of this section—

(a) 'company' means any body corporate and includes a firm or other association of individuals, and

(b) 'director' in relation to a firm means a partner in the firm.

7. Complaint by a police officer.—Without prejudice to the right of any other person to make a complaint of an offence under this Act, a police officer not below the rank of sub-inspector who receives information that such an offence has been committed, shall, if he is satisfied as to the truth of the information, make a complaint of the offence in writing to the nearest [2][Judicial Magistrate] having jurisdiction.

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[1]Subs. by F.A.O., 1975(P.O. NO. 4 of 1975), Art. 2 and Sch., for "Central Government".
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.

8. Jurisdiction to try offences.—No Court inferior to that of a Magistrate of the first class shall try any offence punishable under this Act.

9. Officers to be deemed to be public servants.—Every person authorised under section 5 shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

10. Indemnity.—No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Act.

11. Other laws not affected.—The provisions of this Act shall be in addition to, and not in derogation of, the provisions of any other law for the time being in force.

12. Power to exempt from application of Act.—lf, in the opinion of the [1][Provincial Government], public interest so requires, it may, by notification in the official Gazette, direct that the provisions of section 3 shall not apply, or shall apply subject to such conditions as may be specified in the notification, to, or in relation to, the advertisement of any specified drug or class of drugs.

13. Power to make rules.—The [1][Provincial Government] may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

14. [2][Omitted]

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Date: - 18.04.2024

[1]Subs. by F.A.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Sch., for "Central Government".
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.

THE INVESTIGATION FOR FAIR TRIAL ACT, 2013

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THE INVESTIGATION FOR FAIR TRIAL ACT, 2013

ACT NO. I OF 2013

[20th February, 2013]

An Act to provide for investigation for collection of evidence by means of modern techniques and devices to prevent and effectively deal with scheduled offences and to regulate the powers of the law enforcement and intelligence agencies and for matters connected therewith or ancillary thereto

WHEREAS in order to prevent the law enforcement and intelligence agencies from using their powers arbitrarily it is necessary regulate the said powers and provide for their permissible and fair uses in accordance with law and under proper executive and judicial oversight;

AND WHEREAS further being mindful that the existing laws neither comprehensively provide for nor specifically regulate advance and modern investigative techniques such as covert surveillance and human intelligence, property interference, wire tapping and communication interception that are used extensively in other jurisdictions to successfully prevent the offences and as an indispensable aid to the law enforcement and administration of justice;

AND WHEREAS in order to neutralize and prevent the threat or any attempt to carry out scheduled offenses it is necessary that the law enforcement and other agencies be given certain specific authorizations to obtain evidence in time and only in accordance with law;

AND WHEREAS it is also in order to declare the admissibility and use of the material obtained during lawful investigation under the present law, in judicial proceedings and all other legal proceedings or processes to ensure fair trial:

It is hereby enacted as follows:—

1. Short title, extent and commencement. — (1) This Act may be called the Investigation for Fair Trial Act, 2013.

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(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Application. — (1) The provisions of this Act shall apply to—

(a) all citizens of Pakistan within or outside Pakistan;

(b) all persons within Pakistan or on board on any ship or aircraft registered in Pakistan wherever it may be; and

(c) all transactions or communications originated or concluded within Pakistan or originated or concluded outside Pakistan by any person.

(2) Any person liable for investigation under the provisions of this Act for a scheduled offence committed partly or fully outside Pakistan shall be dealt with according to the provisions of this Act in the same manner as if such an offence had been committed within Pakistan.

CHAPTER 1

DEFINITIONS

3. Definitions. — In this Act, unless there is anything repugnant in the subject or context,—

(a) "applicant" means, Directorate General Inter Services Intelligence, the three Services Intelligence Agencies, Intelligence Bureau and Police;

(b) "authorized officer", means any officer not below the rank of BPS-20 or equivalent who is working with the applicant and is notified under Section 4 to represent the applicant when making application or taking up any proceedings under this Act;

(c) "competent authority" includes the Judge;

(d) "Court" means the High Court;

(e) "Designated Agency or Body" means any one or more Agency or Body designated by the Federal Government through notification for the purposes of this Act, having capability for implementing warrant of interception;

(f) "expert", means a person qualified or trained or experienced in conducting surveillance or interception who is nominated by the applicant or the Federal Government as an expert for analysis of the intercepted materials;

(g) "Intercepted material" means evidence collected under Section 17 and will refer,--

(i) for the purposes of `Surveillance" to include,—

(a) data, information or material in any documented form, whether written, through audio visual device, CCTV, still photography, observation or any other mode of modem devices or techniques obtained under this Act; and

(b) documents, papers, pamphlets, booklets; and

(ii) for the purposes of `Interception" to, include-mails, SMS, IPDR (internet protocol detail record) or CDR (cell detail record) and any form of computer based or cell phone based communication and voice analysis. It also includes any means of communication using wired or wireless or IP (internet protocol) based media or gadgetry;

(h) "Judge" means a Judge of the High Court;

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(i) "Minister" means the Federal Minister for Interior;

(j) "Register" means the register maintained under subsection (2) of Section 9 by the Judge, containing the serial number of the file received by the Judge in Chambers which has been returned to the applicant for safe custody, and the register shall also contain name, contact, address of the authorized person and the applicant;

(k) "Suspect" means a person in respect of whom there is a suspicion that he may be involved in any scheduled offence and includes foreigners and groups as well as organizations;

(l) "Schedule" means schedule to this Act;

(m) "Scheduled offence" means an offence specified in schedule I;

(n) "Service provider" means any person, entity or company related to any equipment, technology, data, circumstances that given it ability or power or control to implement the warrants issued under Sections 11 and 21;

(p) "Warrant" means warrant of surveillance or interception, and includes warrant issued under Sections 11 whereby the applicant is allowed by the Judge to collect evidence through interception, recording through audio or video or any means of communication or surveillance of movements and actions through minimum interference in property and privacy of any person including human intelligence.

CHAPTER-2

APPLICATION FOR WARRANT

4. Notification of authorized officer.— The applicant shall, before making an application, first notify an appropriate officer not below BPS-20or equivalent, duly authorized by him to represent the said applicant for making an application under this Act.

5. Record of Suspicious Conduct.— In case where any official of an applicant has reasons to believe that any person is likely to be associated with or is beginning to get associated with, any act leading to a scheduled offence, or is in the process of beginning to plan such an act, or is indulging in such a conduct or activity that arises suspicion that he is likely to plan or attempt to commit any scheduled offence and, therefore, it may be necessary to obtain warrant of surveillance or interception, he shall prepare a report thereof with supporting.

6. Material to be placed before the Minister.--An official of the applicant who has prepared the report under Section 5 shall present the same through the Head of the Department to the Minister for permission to make application to the Judge for issuance of the warrant of surveillance or interception.

7. Action by the Minister on the material presented to him.—(1) The Minister shall examine the report with supporting material and through a written order may either decline the permission sought or grant permission fully or partly.

(2) No application shall be made to the Judge except with prior written permission of the Minister.

8. Application for issuance of warrant.— After permission from the Minister, application for issuance of warrant shall be made by the authorized officer to the Judge,--

(a) preferably in the manner prescribed in schedule II;

(b) in case, the nature of warrant requested to be issued requires different description, then the application shall be made in writing on the letter head of the applicant justifying the issuance of warrant by mentioning all necessary details with supporting material alongwith proposed draft for warrant; and

(c) the application for the issuance of warrant shall be accompanied by,—

(i) a signed statement and affidavit of the authorized officer that the contents of the report and application are true and correct to the best of his information, knowledge and belief, and that the warrant shall be used only and exclusively for preventing or lawfully investigating a scheduled offence or to collect evidence in respect thereof and the same shall neither be misused in any manner, nor shall the approval of the warrant, be abused to interfere or intervene in the privacy of any person; and

(ii) details of all warrants obtained previously in respect of the person against whom the warrant is sought

CHAPTER-3

ISSUE OF WARRANTS

9. Judge to issue warrant in Chambers. — (1) The warrant of surveillance or interception shall be issued by the Judge in chamber.

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(2) The authorized officer shall personally present the application in chambers of the concerned Judge who after considering the same shall pass appropriate orders under Section 11. The file on which the orders shall be passed, shall be returned to the authorized officer for safe-custody who shall be duty bound to bring the same on any subsequent related hearings. The Judge shall cause to be maintained a register as provided for in Section 3(j).

10. Considerations for issuance of warrant. — (1) The Judge while passing an order for issuance of warrant shall consider the following, namely: —

(a) the issuance of requested warrant will enable the applicant to collect evidence; and

(b) the material or statement of the authorized officer whether indicates a reasonable threat or possibility of an attempt to commit a scheduled offence.

(2) The Judge while passing an order for the issuance of warrant shall ensure that:--

(a) the authorized officer is properly authorized to represent the applicant;

(b) the issuance of warrant shall not unduly interfere in the privacy of any person or property.

11. Issuance of warrant of surveillance or interception.— After considering the matters specified in Section 10, the Judge shall,—

(a) pass an order allowing the issuance of warrant in the manner prescribed in schedule IV or as presented before him in a proposed draft form;

(b) pass an order allowing the issuance of warrant with some modifications;

(c) pass an order allowing the issuance of warrant, but may make any observations regarding the manner and method of its implementation;

(d) restrict requested duration of any existing warrant; and

(e) decline to issue the warrant, if the Judge has reasons to believe that warrant is being procured with *mala fide* intention and the process under the Act is being abused.

12. Form of the warrant. — (1) The warrant shall be issued ordinarily in the manner prescribed in schedule IV:

Provided that the warrant may also be issued in a manner proposed by the authorized officer under Section 8(b) with or without modifications by the Judge.

(2) The warrant shall be signed by the Judge and a seal of the Court shall be affixed.

13. Record of the orders. — (1) While issuing the warrant, the Judge shall make a formal order indicating reasons for accepting the request of the applicant. The original copy of the formal order shall be given to the applicant for safe custody.

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(2) The formal order and its record shall not be made public and shall be kept in safe custody.

14. Duration of warrant of interception. — Warrant shall be issued for a period of not longer than six days:

Provided that it may be re-issued after the said period by the Judge upon the request of the authorized officer of the applicant, if, after examining the gist of the intelligence and evidence collected by the applicant thus far, he is satisfied that as a consequence of issuance of warrant, suitable progress is being made and there is sound justification for re-issuance of warrant for another period not exceeding sixty days. Thereafter, the same consideration shall apply for every request for reissue of warrant for further periods not exceeding sixty days at a time.

15. Sanction in case of arbitrary request for warrant. Where the Judge is of the view that any request for the issuance of warrant is based on insufficient or irrelevant considerations or it has resulted in undue and inappropriate interference in the privacy of any person or that the material and information collected or received within the period mentioned in Section 14 demonstrate that the

officer concerned did not apply himself fully while making an application for the warrant, then he may recommend departmental action against the officer concerned.

CHAPTER-4

EXECUTION OF WARRANTS

16. Authorization under the warrant. — (1) The warrant of surveillance or interception to be issued by the Judge may authorize and allow the lawful doing of any or all of the following acts, namely—

(a) interception and recording of telephonic communication of the suspect with any person;

(b) video recording of any person, persons, premises, event, situation etc;

(c) interception or recording or obtaining of any electronic transaction including but not limited to e-mails, SMS etc;

(d) interception and taking over of any equipment used in the communication in respect of which the warrant is issued, including but not limited to telephone, cell phone, mobile sims, electronic database, demonstrating linking of electronic communication with the database belonging to the persons in respect of whom the warrant has been issued:

Provided that the Judge shall authorize take-over of equipment only where the material or statement of the authorized officer discloses a substantial threat or possibility or an attempt to commit a scheduled offence;

(e) collection of evidence through any modern devices in addition to the ones mentioned above;

(f) use of human intelligence;

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(g) covert surveillance and property interference; and

(h) access to any information or data in any form related to a transaction, communication or its content.

(2) Any other form of surveillance or interception that the Federal Government may notify in this behalf.

17. Method of executing the Warrant. — (1) Where the warrant is issued, the applicant in case of the warrant of interception, shall approach the designated agency or body, for serving the same on service provider in the manner provided for in Schedule III and the designated agency or body shall duly serve the said warrant on the service provider or give effect to it within seven days.

(2) The service provider shall not extend technical facilities of interception to any person or organization other than the Designated Agency or Body.

(3) Where nature of surveillance or interception is such that it is not necessary to serve the warrant on anyone, then the same shall not be served and its issuance alone shall be sufficient basis to collect evidence.

(4) While executing the warrants each applicant shall act within the mandate provided for it under the law.

18. Indemnity for service provider. — Access granted by the service provider in accordance with this law shall not be called in question under any law by any person who may have been prejudiced by such access.

19. Immunity service provider. — The service provider shall have immunity in any civil or criminal legal proceedings that any person may commence against his corporate entity or against his office bearers or employees, for having complied with the warrant issued under this Act.

20. Service provider to cooperate. — In the event the service provider declines, fails or interferes in any manner in the execution of warrant then he shall be liable to have committed an offence under this Act for obstructing investigation and justice and shall be punished with fine upto ten million rupees.

21. Service provider to ensure confidentiality. — The service provider shall also be responsible for ensuring the confidentiality of the execution of warrant from his staff members except those necessary to execute the warrant and in case of unauthorized disclosure or misuse of data by any of his staff member, the officials of the service provider and the concerned staff shall be punished with imprisonment which may extend to one year or with fine which may extend to ten million rupees.

CHAPTER-5

ADMISSIBILITY OF MATERIAL OBTAINED UNDER THE WARRANT

22. Registration of case.— (1) The evidence including data, information and material collected or received pursuant to the warrant shall be examined by the officer authorized by the applicant in this behalf and if he is satisfied that the same discloses elements of commission, harbouring, abetting or conspiring or attempting to commit any scheduled offence, he may immediately cause registration of a report (FIR) under Section 154 of the Code of Criminal Procedure, 1898 (Act V of 1898) and in that event he shall hand over all the evidence including material, information, and data to the concerned Investigating Officer so that it forms part of his record for the purposes of investigation and prosecution:

Provided that before the evidence is handed over to the Investigating Officer, the authorized officer shall certify that it has been collected strictly in accordance with the warrant and has not been tampered with or altered in any manner whatsoever.

(2) If the evidence which has been collected or received in respect of scheduled offence is insufficient to justify registration of a report (FIR) under Section 154 of the Code of Criminal Procedure, 1898 (Act V of 1898), such evidence including data, information and material collected or received shall be kept confidential in safe custody and shall not be used without the permission of the Court.

23. Admissibility of warrant based information. —(1) Notwithstanding anything contained in the Qanun-e-Shahadat Order, 1984 (P.O. 10 of 1984) or any other law for the time being in force, the evidence including data, information, documents or any other material collected or received under this Act shall be admissible as evidence in the legal proceedings.

(2) Nothing contained in sub-section (1), shall debar the admissibility of evidence collected or received, prior to the coming into force or this Act, under the provisions of any other law for the time being in force.

24. Presumption of validity of warrant.— The warrant of surveillance and interception whenever presented in the Trial Court or any other Court, shall be presumed to have been validly and lawfully issued.

(2) The intercepted material collected or received pursuant to the warrant of surveillance or interception under this Act and the material based on which the warrant of surveillance or interception was applied for by the applicant shall be admissible in evidence.

25. Report of expert.— In case where an analysis of the intercepted material collected pursuant to the warrant of surveillance or interception is required, then the same shall be carried out by a person referred to in Section 3(f) being suitably qualified, trained or experienced, who shall be deemed to be an expert as described under Section 510 of the Code of Criminal Procedure, 1898 (Act V of 1898) and his report shall have the same effect as given to the report of the experts of different fields mentioned in the said section.

26. Non-discloser. — Any person performing any function under this Act who fails to secure complete secrecy of the process or makes any disclosure which may compromise future capabilities of intelligence gathering shall, in addition to any other punishment to which he may be liable under applicable law and rules, be punished with imprisonment of upto five years or with fine of upto ten million rupees or with both.

CHAPTER-6

REVIEW AND OVERSIGHT

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27. Oversight by Review Committee. – (1) A Review Committee Comprising Ministers of Defence, Interior and Law shall on a six monthly basis call for reports from all the applicants about the warrants obtained by them and assess administrative aspects including if the evidence collected pursuant to the warrants of surveillance or interception has been helpful in prevention of offences and of aid to prosecution or has been able to achieve the object and purposes of this Act.

(2) The Committee, based on the said assessment, may issue appropriate orders or instructions in respect of working of any applicant for compliance or guidance.

28. Representation. – (1) In case the applicant is not satisfied with the declining of the request for the issuance of the warrant of surveillance or interception, it may prefer a representation to the Chief Justice of High Court concerned, for Constitution of a Division Bench of two Judges for hearing in chambers.

(2) The Division Bench to whom the representation is entrusted may either set aside the decision of the Judge and issue the warrant or uphold the view taken by the judge.

(3) Nothing in this Act shall bar the applicant to approach the Judge again for issue of warrant in respect of the same person on basis of fresh grounds or new material.

29. Complaints against misuse of warrant.—(1) The Judge shall also be competent to hear a complaint from any person including the Designated Agency or Body who claims that the warrant is being misused or that the applicant is conducting surveillance or interception beyond the scope of the warrant.

(2) If the complaint under sub-section (1) after hearing both the parties is proved to be true the Judge may direct the applicant to transfer the investigation to some other Investigating Officer and also initiate departmental proceedings against the officer against home the complaint was filed and report the result of the departmental proceedings to the Judge within such period as the Judge may deem fit:

Provided that for sufficient reasons shown the Judge may extend the period for submission of the report.

(3) A person aggrieved by decision of a Judge under sub-section (2) may file a representation to the Chief Justice of High Court concerned within thirty days, for constitution of a Division Bench for hearing and deciding the representation in chambers.

30. Powers of the Judge— The Judge shall have powers under the Act to make any charges, modification, extensions, date of applicability of the warrants already issued etc., only upon the request of the applicant, who may approach the concerned Judge to further clarify any ambiguity or to seek advice or request the required changes in view of the changing or unique circumstances.

CHAPTER 7

MUTUAL LEGAL ASSISTANCE

31. Warrants to be served outside Pakistan.—(1) Warrants obtained under the Act shall be executable outside Pakistan as well as in foreign jurisdictions, either directly on the concerned service providers or through mutual legal assistance mechanism as agreed between Pakistan and the concerned foreign state as provided under the law, treaty or agreement.

(2) The warrant issued under the Act shall be processed for execution outside Pakistan through the Designated Agency or Body.

32. Warrants received from outside Pakistan.– Warrants received from outside Pakistan may be executed by the Designated Agency or Body in the light of mutual legal assistance mechanism as agreed between Pakistan and the concerned foreign state as provided under the law, treaty or agreement.

CHAPTER 8

CONFIDENTIALITY OF PROCEEDINGS

33. Confidentiality of proceedings.— The Judge shall ensure that during any proceedings under this Act, no disclosure of any source or information or proceedings is made that may compromise the future capability of the applicant"s intelligence gathering in any manner whatsoever.

34. Prohibition of misuse of intercepted material—(1) The material intercepted pursuant to the warrant of surveillance or interception shall not be used by any official of the applicant or of the Court or any other person associated with any function under this Act other than in accordance with the provisions of this Act.

(2) Any person who violates the provisions of sub-section (1), shall be punished with imprisonment of upto five years or with fine upto ten million rupees or with both.

35. Unauthorized surveillance or interception.— Any person who carries out any surveillance or interception except in accordance with the provision of this Act shall in addition to any other punishment to which he may be liable under any other law for the time being in force be punished with imprisonment for upto three years and shall also be liable to fine.

CHAPTER 9

MISCELLANEOUS

36. Power to make rules, issue guidelines and orders.— The Federal Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Act, and issue guidelines or orders in pursuance of this Act and the rules made thereunder.

37. Power to amend the Schedule.— The Federal Government may by notification in the Official Gazette amend Schedules II, III and IV by adding any entry therein, omitting any entry therefrom or modifying any entry therein.

38. Act to have effect notwithstanding existing laws.— The provisions of this Act shall have effect, notwithstanding anything contained in any other law for the time being in force including the Code of Criminal Procedure, 1898 (Act V of 1898) and Qanun-e-Shahadat, 1984 (P.O. 10 of 1984).

39. Removal of difficulty.— If any difficulty arises in giving effect to any provision of this Act, for a period of one year from its coming into force the Federal Government may, by Order not inconsistent with the provisions of the Act, remove the difficulty.

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SCHEDULE I

[See Section 3(1)]

1. The Private Military Organizations Abolition and Prohibition Act, 1974, (IV of 1974) to the extent of terrorist activities;

2. Offences under the Prevention of Anti-National Activities Act, 1974 (VII of 1974) to the extent of terrorist activities;

3. Offences under the Anti-Terrorism Act, 1997 (XXVII of 1997);

4. Offences under the Pakistan Nuclear Regulatory Authority Ordinance, 2001 (III of 2001) to the extent of terrorist activities;

5. Offences under the National Command Authority Act, 2010 (V of 2010) to the extent of Anti-Terrorism Act, 1997 (XXVII of 1997) only.

SCHEDULE II

[See Section 8]

Application for issuances of warrant of surveillance or interception:

To,

_____

Sir,

The applicant makes a request to this Court that it may consider appropriate to allow to be collected and later produced (in case of prosecution) evidence including material, data, information, electronic transactions etc. that may become available because of modern devices or techniques, by allowing the issuance of warrant of surveillance and interception under Sections 9 to 12 of Investigation for Fair Trial Act, 2012 and submits the following particulars:

Name of applicant _____

Address _____

Name of officer authorized under Section 4 of the Act _____
(enclose copy of authorization)

Rank / grade _____

Contact address of officer _____

Date of order by applicant"s concerned authority _____
(enclose copy)

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Name or particulars or address of suspect or that of premises or both (to the extent necessary to identify the suspect:

_____

Nature of evidence to be collected through surveillance or interception requested under warrant;

(For example, recording of cell phone, interception of sms or e-mails, human intelligence, property interference collection of material, data, video making, concealed camera, recording equipment etc….)

_____

_____

_____

Supporting material and Statement of belief about suspect"s likely involvement in crime [accompanied by affidavit as per Section 8(c)(i) 1].

_____

_____

Signature of authorized officer _____

Seal of the authorized officer _____

Attested copy to be forwarded to Designated Agency or Body for Interception of:—

(1) _____

(2) _____

(3) _____

(4) _____

SCHEDULE III

[See Section 17]

Summary of warrant under Section 17 of `the Investigation for Fair Trial Act 2012"

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It is affirmed that warrant of interception pursuant to Sections 9 to 12 of "the Investigation for Fair Trial Act, 2012" is issued on ———————— day of ———————— and attested copy of the same has been received and is retained in our record.

It is further affirmed that the said warrant authorizes the lawful interception of

1. _____

2. _____

3. _____

4. _____

To: _____ (Service Provider)

Please ensure compliance.

Designated Agency or Body [under Section 3(e) of the Act].

Through Official _____

Address _____

Contact _____

Signature of Head of Designated Agency or Body

Official seal of Designated Agency or Body with date

SCHEDULE IV

[See Section 11]

PART I
(to be filled by the applicant)

1. This warrant of surveillance or interception is issued under Sections 9 to 12 of `the Investigation for Fair Trial Act, 2012", to enable the applicant to collect evidence through surveillance or interception of: *(Provide briefly nature of evidence being allowed to be collected by the concerned Court under the present warrant).*

_____

_____

_____

_____

_____

For an initial period of _____days starting with effect from_____ *(Date if request made in retrospect)*.

2. Where applicable, the warrant allowed to be served on;

Mr./Entity / _____

_____

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to extend fullest cooperation to the holder or application of the warrant and facilitate in its execution technically and logistically and through any other appropriate means and also ensure full confidentiality of implementing of the warrants and not to misuse evidence so collected.

PART II

(For official use only)

After examining the request of the applicant, the Court is satisfied that requirements prescribed under the Investigation for Fair Trial Act, 2012 for the issuance of the warrants have been fulfilled and accordingly, the warrant is allowed to be issued in terms expressed above.

Signed
Judge
Seal of Court

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THE KARACHI ELECTRICITY CONTROL ACT, 1952

CONTENTS

1. Short title, extent and commencement
2. Definition of "licensee"
3. Control of production, distribution, etc., of electrical energy
4. Delegation of Powers
5. Continuance of existing orders
6. Penalty, etc.
7. Saving as to orders
8. Protection of action under this Act
9. Cognizance of offences
10. Effect of inconsistent provisions with other enactments
11. Service of orders
12. Repeal

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THE KARACHI ELECTRICITY CONTROL ACT, 1952

ACT NO. LVII OF 1952

[14th December, 1952]

An Act to provide for the continuance of powers to control the production, distribution, use and consumption of electrical energy.

WHEREAS it is necessary to provide for the continuance of powers to control the production, distribution, use and consumption of electrical energy in the [1][Karachi Division];

It is hereby enacted as follows: —

1. Short title, extent and commencement.—(1) This Act may be called the Karachi Electricity Control Act, 1952.

(2) It extends to the [1][Karachi Division].

(3) It shall come into force at once, and shall be deemed to have taken effect in the [1][Karachi Division] immediately on the expiry of the Sind Electricity Control Act, 1947 (Sind Act III of 1947).

2. Definition of "licensee". In this Act "licensee" shall have the meaning assigned to it in clause (h) of section 2 of the Electricity Act, 1910 (IX of 1910).

3. Control of production, distribution, etc., of electrical energy.—(1) The [1][Provincial Government] so far as it appears to it to be necessary or expedient for maintaining supplies and services essential to the life of the community may by order provide for—

(a) regulating or prohibiting the production, distribution, use or consumption of electrical energy;

(b) regulating the rates which may be charged by any undertaking for supplying electrical energy and for relaxing any maximum or minimum limits otherwise imposed on such rates;

(c) the levy by a licensee, notwithstanding any stipulation to the contrary contained in any agreement, of a surcharge under specified circumstances on the price charged in respect of supply of electrical energy;

(d) collecting any information or statistics for the purpose of any of the matters mentioned in the preceding clauses;

(e) any incidental or supplementary matter for which it thinks expedient for the purpose of any such order to provide including, in particular—

[1]Subs. by A. O., 1964, Art. 2 and Sch.

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(i) the entering and inspection of premises to which the order relates with a view to securing compliance therewith;

(ii) the grant or issue of a licence, permit, certificate or other document and the charging of a fee therefor.

(2) An order made under sub-section (1) may apply either to persons or undertakings generally or to any particular person or undertaking or class of persons or undertakings and either to the whole or any part of any undertaking, and so as to have effect either generally or in any particular area.

4. Delegation of Powers.—(1) The [1][Provincial Government] may by order direct that any power conferred on it by section 3 shall, in such circumstances and under such conditions if any, as may be specified in the direction, be exercised by any officer or authority subordinate to it.

(2) All orders made before the commencement of this Act under the authority of the [2][Federal Government] delegating or purporting to delegate any power or duty to any person or authority in the Federal Capital in respect of any of the matters specified in section 3 shall be deemed to be made under section 3 of this Act, and shall have effect accordingly.

5. Continuance of existing orders. Any order made under the Sind Electricity Control Act, 1947 (Sind Act III of 1947), or which might have been made under that Act if that Act had continued to be in force after the date of its expiry and purporting to be in force immediately before the commencement of this Act shall so far as it is not inconsistent with the provisions of this Act be deemed to have been made under the provisions of this Act and shall have effect accordingly subject to the provisions of this Act.

6. Penalty, etc.—(1) If any person contravenes any order made or deemed to be made under section 3 of this Act, he shall be punishable with imprisonment for a term which may extend to six months or with fine or with both.

(2) Where the person guilty of the contravention is a company or other body corporate, the managing director, manager, secretary, or other principal officer managing its business shall be deemed to be guilty of the contravention and be punishable accordingly.

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7. Saving as to orders.—(1) No order made or deemed to be made under section 3 of this Act shall be called in question in any Court.

(2) Where an order purports to have been made and signed by any officer or authority in exercise of any of the powers conferred by or deemed to be conferred by or under the Sind Electricity Control Act, 1947 (Sind Act III of 1947), or this Act, a Court shall presume that such order was so made and signed by that officer or authority.

8. Protection of action under this Act.—(1) No suit, prosecution or other legal proceeding shall lie against any person for anything done or intended to be done in good faith in pursuance of any order made or deemed to have been made under this Act.

[1]Subs. by A. O., 1964, Art. 2 and Sch.
[2]Subs. by F.A.O., 1975 Art. 2 and Table.

(2) No suit or other legal proceeding shall lie against the [1][Government] for any damage caused or likely to be caused by anything in good faith done or intended to be done in pursuance of any order made or deemed to have been made under this Act.

9. Cognizance of offences. No Court shall take cognizance of any offence punishable under this Act except on a report in writing of the facts constituting the offence made by such public servant as may be authorised by the [1][Provincial Government] in this behalf.

10. Effect of inconsistent provisions with other enactments. Any order made or deemed to be made under the provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law.

11. Service of orders. Every order made under this Act shall so far as may be, be served in the manner prescribed under section 53 of the Electricity Act, 1910 (IX of 1910).

12. Repeal. The Sind Electricity Control Act, 1947 (Sind Act III of 1947), in its extension to the Capital of the Federation, is hereby repealed.

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RGN Date: 22-05-2024

[1]Subs. by A.O., 1964, Art., 2 and Sch.

THE MOTION PICTURES ORDINANCE, 1979

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THE MOTION PICTURES ORDINANCE, 1979.

ORDINANCE No. XLIII OF 1979

[3rd September,1979]

An Ordinance to provide for the censorship of films and the regulations of exhibition of films by means of cinematographs

WHEREAS it is expedient to provide for the censorship of films and the regulation of exhibition of films by means of cinematographs, and for matters connected therewith or incidental thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action ;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 (*C. M. L. A. Order No. 1 of 1977*), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.— (1) This Ordinances may be called the Motion Pictures Ordinance, 1979.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definition. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Board" means a Board established under section 3 ;

(b) "Chairman", in relation to a Board, means the Chairman of the Board ;

(c) "cinematograph" includes any apparatus for the reproduction of moving pictures or series of pictures ;

(d) "film" means cinematographic film or other materials used for projection by cinematograph ;

(e) "place" includes a house, building, tent and any means of transport, whether by sea, land or air ; and

(f) "prescribed" means prescribed by rules made under this Ordinance.

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CHAPTER II

ESTABLISHMENT OF THE BOARD

3. Constitution of Board.—(1) The Federal Government may, by notification[1] in the official Gazette, constitute as many Boards as it may think fit for the purpose of examining and certifying films for public exhibition, and shall declare the area in respect of which each such Board shall exercise its powers under this Ordinance.

(2) A Board shall consist of a Chairman and not less than five members to be appointed by the Federal Government.

(3) The Chairman and members of the Board shall hold office during the pleasure of the Federal Government and receive such salary and allowances, if any, as may be determined by the Federal Government.

4. Uncertified film not to be exhibited.—(1) No person shall make or arrange a public or private exhibition of a film by means of cinematograph unless the film has been duly certified for public exhibition by the Board, provided that nothing in this sub-section shall be deemed to apply to the exhibition, in the residential premises of any person, of a film which only records events in the life of such person or any member of his family.

(2) Any person desiring to submit any film for certification for public exhibition shall, in the prescribed manner, make an application to the Board for a certificate in respect thereof along with its re-recording, print or such equivalent material as the Board may determine, including sound tracks of speech, songs, music and effect, and the Board may, after examining the film, or having it examined, in the prescribed manner:—

(a) sanction the film for unrestricted public exhibition ; or

(b) sanction the film for such restricted public exhibition as may be prescribed ; or

(c) direct the applicant to carry out such excisions in the film as the Board considers necessary before sanctioning the film for unrestricted or restricted public exhibitions; or

(d) refuse to sanction the film for public exhibition.

(3) Where the Board directs that any portion of the film be excised, the Board shall, subsequent to the rejection of appeal, if any, or the expiration of thirty days from the order, if there is no appeal, destroy or cause to be destroyed all prints of sound and picture and original exposed negatives of the excised portions.

5. Certification of films.— (1) If, after examining a film or having it examined, the Board considers that the film is suitable for unrestricted public exhibition or that, though not suitable for such exhibition, it is suitable for restricted public exhibition, it shall grant to the person applying for certification of the film a certificate of the appropriate category, and shall in all cases cause the film to be marked in the prescribed manner.

[1]For such Notification *see* S.R.O. 181(1)/80, dated 10-2-80, Gaz. of P., 1980, Extra. Pt. II, pp. 182-185.

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(2) An order refusing to grant a certificate, or an order suspending a certificate, or an order decertifying a certified film shall be published in the official Gazette.

(3) Subject to the other provisions of this Ordinance a certificate granted under this section shall be valid for such area and period as the Board may, by notification in the official Gazette specify in this behalf.

6. Principles of guidance in certifying films.— (1) A film shall not be certified for public exhibition if, in the opinion of the Board, the film or any part thereof is prejudicial to the glory of Islam or the integrity, security or defence of Pakistan or any part thereof, friendly relations with foreign States, public order, decency or morality or amounts to the commission of, or incitement to, an offence.

(2) Subject to the provisions of sub-section (1), for the guidance of the Board in the exercise of its powers under this Ordinance, the Federal Government may issue a Censorship Code and such directions as it may think fit.

7. Appeals. Any person applying for a certificate in respect of a film who is aggrieved by any order of the Board,—

(a) refusing to grant a certificate; or

(b) granting only a restricted certificate ; or

(c) directing the applicant to carry out any excisions ;

may, within thirty days of the date of such order, prefer an appeal to the Federal Government and the appeal shall be disposed of in the prescribed manner and the order of the Federal Government shall be final:

Provided that before passing an order under this section an opportunity shall be provided to the appellant of being heard.

8. Powers to suspend exhibition of films in certain cases.—(1) A Board may, if it has reason to believe that a film in respect of which a certificate has been granted by it under section 5 has been or is being exhibited in contravention of any of the conditions subject to which it has been certified, by order suspend the exhibition of the film for such period as may be specified in the order.

(2) The [1][Zila Nazim], in respect of the whole or any part of his district, may, if he is of the opinion that any film which is being publicly exhibited is likely to cause a breach of the peace, by order suspend the exhibition of the film for such period not exceeding one month as may be specified in the order.

(3) While an order under sub-section (1) or sub-section (2) is in force in respect of a film, such film shall be deemed to be an uncertified film in respect of the area specified in the order.

(4) For the purpose of inspecting the exhibition of films and the proper enforcement of the provisions of this Ordinance relating to such exhibition, the Board may, by order in writing, authorise such persons as it may deem fit for such area as may be specified in the order.

[1]Subs. by Ordinance No. CVIII of 2002, s. 2.

(5) Where a film in respect of which no certificate has been granted under this Ordinance is exhibited, or a film certified as suitable for restricted public exhibition is exhibited otherwise than as certified, or a film is exhibited in contravention of any of the other provisions of this Ordinance, any police officer not below the rank of Inspector may, upon a report in writing made by the Board or by a person authorised by it in this behalf, or under the orders of the [1][Zila Nazim], enter any place licensed for the exhibition of films in which there is reason to believe that the film has been or is being exhibited, search it and seize the film and projection equipment.

(6) A copy of an order under sub-section (1) or sub-section (2), together with a statement of the reasons thereof shall forthwith be forwarded to the Federal Government and the Federal Government may either discharge the order or, by notification in the official Gazette, direct that the film shall be deemed to be an uncertified film in respect of such area as may be specified in the notification.

9. Revisional powers of the Federal Government.—(1) Notwithstanding anything contained in this Ordinance, the Federal Government may at any stage call for the record of any proceedings in relation to any film which is pending before or has been decided by the Board and, after such inquiry into the matter as it considers necessary, and without notice to the person who has applied for certification of the film or to whom a certificate in respect of the film has been granted or to the distributor or exhibitor of such film, make such order in relation thereto as it thinks fit.

(2) Without prejudice to the powers conferred on it by sub-section (1), the Federal Government may, by notification in the official Gazette, direct that—

(a) a film or class of films in respect of which a certificate has been granted under this Ordinance or under the Censorship of Films Act, 1963 (XVIII of 1963), shall be deemed to be an uncertified film or class of films in the whole or any part of Pakistan:

Provided that no such order shall be made by the Federal Government unless it is satisfied that it is necessary to do so in the interest of the glory of Islam or the integrity, security or defence of Pakistan or any part thereof, friendly relations with foreign States, public order, decency or morality, or to prevent the commission of, or incitement to, an offence; or

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(b) a film which has been sanctioned for unrestricted public exhibition under section 5 or to which a "U" certificate has been granted under the Censorship of Films Act, 1963 (XVIII of 1963), shall be deemed to be a film in respect of which a restricted certificate has been granted.

10. Information and documents to be given to distributors and exhibitors with respect to certified films. Any person who, delivers any certified film to any distributor or exhibitor shall, in such manner as may be prescribed, notify to the distributor or exhibitor, as the case may be, the title and length of the film, the number and nature of the certificate granted in respect thereof and the conditions, if any, subject to which it has been granted and such other particulars as may be prescribed.

11. Powers to direct exhibition of films for examination. For the purpose of exercising any of the powers conferred on it by this Ordinance, the Federal Government or the Board may require any film to be exhibited before it or before any person specified by it in this behalf.

[1]Subs. by Ordinance No. CVIII of 2002, s. 2 [31.10.2002]

12. Vacancies, etc., not to invalidate proceedings. No act or proceeding of the Board shall be deemed to be invalid by reason only of the existence of a vacancy in, or defect in the constitution of, the Board.

CHAPTER III

REGULATION OF EXHIBITION BY MEANS OF CINEMATOGRAPH

13. Licensing of places for exhibition of films.—(1) Save as otherwise provided in this Chapter, no person shall give a public exhibition by means of cinematograph elsewhere than in a place licensed under this Ordinance or otherwise than in compliance with any condition and restriction imposed by such licence.

(2) The authority having power to grant a licence under this Ordinance, hereinafter referred to as the licensing authority, shall be the Provincial Government:

Provided that the Provincial Government may, by notification in the official Gazette, specify for the whole or any part of the Province such other authority as it may specify in the notification to be the licensing authority for the purposes of this Chapter.

(3) The licensing authority shall not grant a licence under this Chapter in respect of any place unless it is satisfied that—

(a) the rules made under this Chapter have been complied with ; and

(b) adequate precautions have been taken in respect of the place for which the licence is to be given to provide for the safety and health of persons attending exhibition therein.

(4) Subject to the foregoing provisions of this section, the licensing authority may grant a licence under this Chapter to such applicant as it deems fit and on such terms and conditions and subject to such restriction as it may determine [1][, including the maximum charges for the admission of persons to the exhibition of a film in a place in respect of which such licence is granted].

(5) Where the authority specified by the Provincial Government under the proviso to sub-section (2) to be the licensing authority consists of more persons than one, no decision of the licensing authority shall be invalid by reason only of the existence of a vacancy in, or defect in the constitution of, the said authority.

14. Directions as to screening of documentarise, etc. The Federal Government or the Provincial Government may, from time to time, issue to any person to whom a licence has been granted under this Chapter any directions for the purpose of regulating the exhibition of any film or class of films so that scientific films, films intended for educational or cultural purposes, films dealing with news or current events, documentary films and indigenous films secure an adequate opportunity of being exhibited, and such directions shall be deemed to be additional conditions and restrictions subject to which the licence has been granted.

[1]Added by the Motion Pictures (Amdt.) Ordinance, 1982 (7 of 1982), s. 2.

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CHAPTER IV

MISCELLANEOUS

15. Delegation of powers. The Federal Government may, by notification in the official Gazette, delegate all or any of the powers exerciseable by it under this Ordinance to such authority or person as may be specified in the notification.

16. Certain persons to be public servants. The Chairman, members and employees of a Board and persons empowered under sub-section (4) of section 8 shall, when acting or purporting to act in pursuance of any of the provisions of this Ordinance, be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

17. Bar to legal proceedings.—(1) No suit or other legal proceeding shall lie against the Federal Government, a Provincial Government, a Board, or any officer or member thereof, as the case may be, in respect of anything which is in good faith done or intended to be done under this Ordinance.

(2) No Court shall grant an injunction or make any interim order in respect of any order passed under section 8 or section 9.

18. Penalties and procedure.—(1) Whoever—

(a) exhibits or causes or permits to be exhibited in any place, or abets the exhibition of, any film which has not been certified by the Board or which, when exhibited, does not display the prescribed mark or has been altered or tampered with since such mark was affixed thereto ; or

(b) without lawful authority, alters or tampers with, in any way, any film after it has been certified ; or

(c) fails to comply with the provisions of section 5 or of any order made under this Ordinance ;

shall be punishable with imprisonment for a term which may extend to three years, or with fine which may extend to one lac rupees, or with both, and, in the case of a continuing offence, with a further fine which may extend to ten thousand rupees for each day during which the offence continues.

(2) If the owner or person incharge of a cinematograph on any place uses it or allows it to be used in contravention of the provisions of this Ordinance or the rules made thereunder, or of the conditions and restrictions upon or subject to which any licence has been granted under this Ordinance, he shall be punishable, with imprisonment for a term which may extend to one year, or with fine which may extend to ten thousand rupees, or with both, and, in the case of a continuing offence, with a further fine which may extend to two thousand rupees for each day during which the offence continues.

(3) If any person is convicted of any offence punishable under sub-section (1) or sub-section (2) committed by him in respect of any film, the Court may further direct that the film and the cinematograph used for its exhibition may be forfeited to the Board.

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[1][(3A) Whoever charges for the admission of any person to the exhibition of a film in a place licenced under this Ordinance any amount in excess of the maximum charges fixed under sub-section (4) of section 13, or sells to any person a ticket for such admission at a cost higher than the maximum charges so fixed, shall be punished with the punishment provided for in sub-section (2).]

(4) Where the person convicted of an offence under this section is the holder of a licence granted under section 13, the licensing authority may revoke the licence.

(5) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (V of 1898), no Court shall take cognizance of an offence punishable under this section except upon a complaint in writing made by the Board or the licensing authority or persons authorised by any of them.

19. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules[2] for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely :—

(a) the manner in which the Board may exercise its powers, including the establishment of centers at different places and the delegation of any of the powers of the Board to any member nominated by the Federal Government in that behalf ;

(b) the procedure of the Board and all matters ancillary thereto, and the fees to be charged by it.

(c) the conditions subject to which any certificate may be granted under Chapter II and the circumstances in which such certificate shall be refused ;

(d) the, manner in which appeals under section 7 may be preferred, heard, and disposed of ;

(e) the terms, conditions and restrictions, if any, under which licences may be granted under Chapter 11 ; and

(f) any other matter which is to be or may be prescribed.

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20. Power to exempt. The Federal Government may, by order in writing, exempt, subject to such conditions and restrictions, as it may impose, any film or class of films or cinematograph exhibition or class of cinematograph exhibitions from all or any of the provisions of this Ordinance or the rules made thereunder.

21. Repeals and savings.—(1) The Cinematograph Act, 1918 (II of 1918), and the Censorship of Films Act, 1963 (XVIII of 1963), are hereby repealed.

(2) Notwithstanding the repeal of any Act by sub-section (1), and without prejudice to the provisions of section 24 of the General Clauses Act, 1897 (X of 1897), everything done, order passed, action taken or obligation, liability, penalty or punishment incurred under any of the provisions of the said Act, shall, if not inconsistent with the provisions of this Ordinance, continue in force and be deemed to have been done, passed, taken or incurred under the provisions of this Ordinance.

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[1]Ins. by the Motion Pictures (Amdt.) Ordinance, 1982 (7 of 1982), s. 3

[2]For such rules, see S.R.O. 279(I)/80, dated 8-3-80, Gaz. of P., 1980, Extra., P. II, pp. 306-23.

THE MUSSALMAN WAKF ACT, 1923

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THE MUSSALMAN WAKF ACT, 1923

ACT NO. XLII OF 1923

[5*th* *August,* 1923]

An Act to make provision for the better management of wakf property and for ensuring the keeping and publication of proper accounts in respect of such properties.

WHEREAS it is expedient to make provision for the better management of wakf property and for ensuring the keeping and publication of proper accounts in respect of such properties ;

It is hereby enacted as follows :—

PRELIMINARY

1. Short tittle, extent and commencements.—(1) This Act may be called the Mussalman Wakf Act, 1923 ;

[1][(2) It extends to the whole of Pakistan.]

(3) This section shall come into force at once ; and

(4) The [2][Provincial Government] may, by notification in the [2][official Gazette], direct that the remaining provisions of this Act, or any of them which it may specify, shall come into force in the Province, or any specified part thereof on such date as it may appoint in this behalf.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context**.—**

(a) "benefit" does not include any benefit which a mutwalli is entitled to claim solely by reason of his being such mutwalli ;

(b) "Court" means the Court of the District Judge or, within the limits of the ordinary original civil jurisdiction of a High Court, such Court, subordinate to the High Court, as the [2][Provincial Government] may, by notification in the [2][official Gazette], designate in this behalf ;

(c) "mutwalli" means any person appointed either verbally or under any deed or instrument by which a wakf has been created or by a Court of competent jurisdiction to be the mutwalli of a wakf, and includes a naib-mutwalli or other person appointed a mutwalli to perform the duties of the mutwalli, and, save as otherwise provided in this Act, any person who is for the time being administering any wakf property ;

(d) "prescribed" means prescribed by rules made under this Act ; and

(e) "wakf" means the permanent dedication by a person professing the [3][Muslim] faith of any property for any purpose recognised by the [3][Muslim] law as religious, pious or charitable, but does not include any wakf, such as is described in section 3 of the [3][Muslim] Wakf Validating Act, 1913, under which any benefit is for the time being claimable for himself by the person by whom the wakf was created or by any of his family or descendants.

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[1]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch., (*with effect from the 14th October, 1955)*.
[2]Subs. by A. O., 1937.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O., No. 4 of 1975), Art. 2 and Table.

STATEMENTS OF PARTICULARS

3. Obligation to furnish particulars relating to wakf.—(1) Within six months from the commencement of this Act every mutwalli shall furnish to the Court within the local limits of whose jurisdiction the property of the wakf of which he is the mutwalli is situated or to any one of two or more such Courts, a statement containing the following particulars, namely :—

(*a*) a description of the wakf property sufficient for the identification thereof ;

(*b*) the gross annual income from such property ;

(*c*) the gross amount of such income which has been collected during the five years preceding the date on which the statement is furnished, or of the period which has elapsed since the creation of the wakf, whichever period is shorter ;

(*d*) the amount of the Government revenue and cesses, and of all rents, annually payable in respect of the wakf property ;

(*e*) an estimate of the expenses annually incurred in the realisation of the income of the wakf property, based on such details as are available of any such expenses incurred within the period to which the particulars under clause (*c*) relate ;

(*f*) the amount set apart under the wakf for—

(i) the salary of the mutwalli and allowances to individuals ;

(ii) purely religious purposes;

(iii) charitable purposes;

(iv) any other purposes; and

(*g*) any other particulars which may be prescribed.

(2) Every such statement shall be accompanied by a copy of the deed or instrument creating the wakf or, if no such deed or instrument has been executed or a copy thereof cannot be obtained, shall contain full particulars, as far as they are known to the mutwalli, of the origin, nature and objects of the wakf.

(3) Where—

(*a*) a wakf is created after the commencement of this Act, or

(*b*) in the case of a wakf such as is described in section 3 of the Mussalman Wakf Validating Act, 1913 (VI of 1913), the person creating the wakf or any member of his family or any of his descendants is at the commencement of this Act alive and entitled to claim any benefit thereunder,

the statement referred to in sub-section (1) shall be furnished, in the case referred to in clause (*a*), within six months of the date on which the wakf is created or, if it has been created by a written document, of the date on which such document is executed, or, in the case referred to in clause (*b*), within six months of the date of the death of the person entitled to such benefit as aforesaid, or of the last survivor of any such persons, as the case may be.

4. Publications of particulars and requisition of further particulars.—(1) When any statement has been furnished under section 3, the Court shall cause notice of the furnishing thereof to be affixed in some conspicuous place in the Court-house and to be published in such other manner, if any, as may be prescribed, and thereafter any person may apply to the Court by a petition in writing, accompanied by the prescribed fee, for the issue of an order requiring the mutwalli to furnish further particulars or documents.

(2) On such application being made, the Court may, after making such inquiry, if any, as it thinks fit, if it is of opinion that any further particulars or documents are necessary in order that full information may be obtained regarding the origin, nature or objects of the wakf or the condition or management of the wakf property, cause to be served on the mutwalli an order requiring him to furnish such particulars or documents within such time as the Court may direct in the order.

STATEMENT OF ACCOUNTS, AND AUDIT

5. Statement of accounts.—Within three months after the thirty-first day of March next following the date on which the statement referred to in section 3 has been furnished, and thereafter within three months of the thirty-first day of March in every year, every mutwalli shall prepare and furnish to the Court to which such statement was furnished a full and true statement of accounts, in such form and containing such particulars as may be prescribed, of all moneys received or expended by him on behalf of the wakf of which he is the mutwalli during the period of twelve months ending on such thirty-first day of March or, as the case may be, during that portion of the said period during which the provisions of this Act have been applicable to the wakf:

Provided that the Court may, if it is satisfied that there is sufficient cause for so doing, extend the time allowed for the furnishing of any statement of accounts under this section.

6. Audit of Accounts.—Every statement of accounts shall, before it is furnished to the Court under section 5, be audited—

(a) in the case of a wakf the gross income of which during the year in question, after deduction of the land-revenue and cesses, if any, payable to the Government, exceeds two thousand rupees, by a person who is the holder of a certificate granted by the [1][Federal Government] under section 144 of the Companies Act, 1913 (VII of 1913), or is a member of any institution or association the members of which have been declared under that section to be entitled to act as auditors of companies throughout [2][Pakistan] ; or

(b) in the case of any other wakf, by any person authorised in this behalf by general or special order of the said Court.

GENERAL PROVISIONS

7. Mutwalli entitled to pay cost of audit, etc., from wakf funds.— Notwithstanding anything contained in the deed or instrument creating any wakf, every mutwalli may pay from the income of the wakf property any expenses properly incurred by him for the purpose of enabling him to furnish any particulars, documents or copies under section 3 or section 4 or in respect of the preparation or audit of the annual accounts for the purposes of this Act.

[1]Subs. by the Federal Adaptation Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[2]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October*, 1955).

8. Verification.—Every statement of particulars furnished under section 3 or section 4, and every statement of accounts furnished under section 5, shall be written in the language of the Court to which it is furnished, and shall be verified in the manner provided in the Code of Civil Procedure, 1908 (V of 1908), for the signing and verification of pleadings.

9. Inspection and copies.— Any person shall, with the permission of the Court and on payment of the prescribed fee, at any time at which the Court is open, be entitled to inspect in the prescribed manner, or to obtain a copy of, any statement of particulars or any document furnished to the Court under section 3 or section 4, or any statement of accounts furnished to it under section 5, or any audit report made on an audit under section 6.

PENALTY

10. Penalties.— Any person who is required by or under section 3 or section 4 to furnish a statement of particulars or any document relating to a wakf, or who is required by section 5 to furnish a statement of accounts, shall, if he, without reasonable cause the burden of proving which shall be upon him, fails to furnish such statement or document, as the case may be, in due time, or furnishes a statement which he knows or has reason to believe to be false, misleading or untrue in any material particular, or, in the case of a statement of accounts, furnishes a statement which has not been audited in the manner required by section 6, be punishable with fine which may extend to five hundred rupees, or, in the case of a second or subsequent offence, with fine which may extend to two thousand rupees.

RULES

11. Power to make rules.—(1) The [1][Provincial Government] may, after previous publication, by notification in the [1][official Gazette], make rules to carry into effect the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(*a*) the additional particulars to be furnished by mutwallis under clause (*g*) of sub-section (1) of section 3;

(*b*) the fees to be charged upon applications made to a Court under sub-section (1) of section 4;

(*c*) the form in which the statement of accounts referred to in section 5 shall be furnished, and the particulars which shall be contained therein;

(*d*) the powers which may be exercised by auditors for the purpose of any audit referred to in section 6, and the particulars to be contained in the reports of such auditors;

(*e*) the fees respectively chargeable on account of the allowing of inspections and of the supply of copies, under section 9;

(*f*) the safe custody of statements, audit reports and copies of deeds or instruments furnished to Courts under this Act; and

(*g*) any other matter which is to be or may be prescribed.

[1]Subs. by A. O., 1937.

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12. Saving.—Nothing in this Act shall—

(a) affect any other enactment for the time being in force in [1][Pakistan] providing for the control or supervision of religious or charitable endowments; or

(b) apply in the case of any wakf the property of which—

(*i*) is being administered by the Treasurer of Charitable Endowments, the Administrator General or the official Trustee; or

(*ii*) is being administered either by a receiver appointed by any Court of competent jurisdiction, or under a scheme for the administration of the wakf which has been settled or approved by any Court of competent jurisdiction or by any other authority acting under the provisions of any enactment.

13. Exemption.— The [2][Provincial Government] may, by notification in the [2][official Gazette], exempt from the operation of this Act or of any specified provision thereof any wakf or wakfs created or administered for the benefit of any specified section of the [3][Muslim] community.

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Date: 11-10-2024

[1]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955).*
[2]Subs. by A. O., 1937.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.

THE OFFENCE OF ZINA (ENFORCEMENT OF HUDOOD) ORDINANCE, 1979.

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THE OFFENCE OF ZINA (ENFORCEMENT OF HUDOOD) ORDINANCE, 1979.

[1]ORDINANCE NO. VII OF 1979

[10th February, 1979]

An Ordinance to bring in conformity with the Injunctions of Islam the law relating to the offence of zina.

WHEREAS it is necessary to modify the existing law relating to *zina* so as to bring it in conformity with the injunctions of Islam as set out in the Holy Quran and Sunnah;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 *(C.M.L.A. Order No. I of 1977)*, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:

1. Short title, extent and commencement.— (1) This Ordinance may be called the Offence of *Zina* (Enforcement of Hudood) Ordinance, 1979.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on the twelfth day of Rabi-ul-Awwal, 1399 Hijri, that is, the tenth day of February, 1979.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context:—

(a) "adult" means a person who has attained, being a male, the age of eighteen years or, being a female, the age of sixteen years, or has attained puberty;

[2][(aa) "confession" means, notwithstanding any judgement of any court to the contrary, an oral statement, explicitly admitting the commission of the offence of zina, voluntarily made by the accused before a court of sessions having jurisdiction in the matter or on receipt of a summons under section 203A of the Code of Criminal Procedure, 1898 (Act V of 1898)];

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[1]This Ordinance has.been applied to the Provincially Administered Tribal Areas of Baluchistan, by Baluchistan Govt. Notification No. S. O. (TA)-3 (46)/79, dated 29-4-1979, see Baluchistan Gazette. 1979, Ext. (Issue No. 58), dated 14-6-1979.

This Ordinance has been applied to the Federally Administered Tribal Areas by S.R.O. No. 362(I)/97, dated 23-4-1979, see Gaz. of P., Ext., Pt II, p. 632.

This Ordinance has been applied to the Provincially Administered Tribal Areas of the N. W. F. P. by N. W. F. P., Government Notification No. 127-HD (TA) III/79-H, dated 26th May, 1979, see N. W. F. P., Government Gazette Ext., 1979, p. 1101.

[2]Ins. by Act VI of 06, s. 10.

(b) hadd" means punishment ordained by the Holy Quran or Sunnah;

[1](c) * * * * * * *

(d) "Muhsan" means

(i) a Muslim adult man is not insane and has had sexual inter-course with a Muslim adult woman who, at the time he had sexual inter-course with her, was married to him and was not insane; or

(ii) a Muslim adult woman who is not insane and has had sexual inter-course with a Muslim adult man who, at the time she had sexual inter-course with him, was married to her and was not insane; and

[1](e) * * * * * * *

[1](3) * * * * * * *

4. Zina. A man and a woman are said to commit *'zina'* if they willfully have sexual inter-course without being [1]* married to each other.

[1]* * * * * * *

5. *Zina* liable to hadd.— (1) *Zina* is zina liable to *hadd* if—

(a) it is committed by a man who is an adult and is not insane with a woman to whom he is not, and does not suspect himself to be, married; or

(b) it is committed by a woman who is an adult and is not insane with a man to whom she is not, and does not suspect herself to be, married.

(2) Whoever is guilty of *zina* liable to *hadd* shall, subject to the provisions of this Ordinance:-

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(a) if he or she is a *'muhsan'* be stoned to death at a public place; or

(b) if he or she is not a *'muhsan'* be punished, at a public place, with whipping numbering one hundred stripes.

(3) No punishment under sub-section (2) shall be executed until it has been confirmed by the Court to which an appeal from the order of conviction lies: and if the punishment be of whipping, until it is confirmed and executed, the convict shall be dealt with in the same manner as if sentenced to simple imprisonment.

[2]**[5A. No case to be converted, lodged or registered under certain provisions.** No complaint of zina under section 5 read with section 203A of the Code of Criminal Procedure, 1898 and no case where an allegation of rape is made shall at any stage be converted into a complaint of

[1]Omitted by Act VI of 06, ss. 10-11& 12.
[2]Ins. by Act VI of 06, s. 12-A.

fornication under section 468B of the Pakistan Penal Code (Act XLV of 1860) and no complaint of fornication shall at any stage be converted into a complaint of zina under section 5 of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 (Ordinance No. VII of 1979) or an offence of similar nature under any other law for the time being in force.].

[1]6. * * * * * * *

[1]7. * * * * * * *

8. Proof of *zina* [1][* *] liable to *hadd*. Proof of Zina [1][* *] liable to hadd shall be in one of the following forms, namely:

(a) the accused makes before a Court of competent jurisdiction a confession of the commission of the offence; or,

(b) at least four Muslim adult male witnesses about whom the Court is satisfied having regard to the requirements of *tazkiyah al-shuhood* that they are truthful persons and abstain from major sins (*kabir*) give evidence as eye-witnesses of the act of penetration necessary to the offence;

Provided that, if the accused is a non-Muslim the eye-witnesses may be non-Muslim.

Explanation.- In this section "*tazkiyah al-shuhood*" means the mode of inquiry adopted by a Court to satisfy itself as to the credibility of a witness.

9. Cases in which *hadd* shall not be enforced.— (1) In a case in which the offence of '*zina*' [1][* *] is proved only by the confession of the convict, '*hadd*', or such part of it as is yet to be enforced shall not be enforced if the convict retracts his confession before the hadd or such part is enforced.

(2) In a case in which the offence of '*zina*' [1][* *] is proved only by testimony, *hadd*, or such part of it as is yet to be enforced. shall not be enforced if any witness resiles from his testimony before *hadd* or such part is enforced, so as to reduce the number of eye-witnesses to less than four.

[1](3) * * * * * * *

[1](4) * * * * * * *

[1]10. * * * * * * *

[1]11 * * * * * * *

[1]12 * * * * * * *

[1]13 * * * * * * *

[1]14 * * * * * * *

[1]15 * * * * * * *

[1]16 * * * * * * *

[1]Omitted by Act VI of 06, s. 13,14,15,16 & 17.

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17. Mode of execution of punishment of stoning to death. The punishment of stoning to death awarded under section 5 [1][* *] shall be executed in the following manner namely:

Such of the witnesses who deposed against the convict as may be available shall start stoning him, and while stoning is being carried on, he may be shot dead, whereupon stoning and shooting shall be stopped.

[1]18 * * * * * * *

[1]19 * * * * * *

20. Application of Code of Criminal Procedure, 1898 and amendment.– (1) The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), hereafter in this section referred to as the Code, shall apply, '*mutatis mutandis*', in respect of cases under this Ordinance:

[1]* * * * * * *

[2][Provided [1][*] that an offence punishable under this Ordinance shall be triable by a Court of Session and not by a Magistrate authorised under section 30 of the said Code and an appeal from an order of the Court of Sessions shall lie to the Federal Shariat Court:

Provided further that a trial by a Court of Session under this Ordinance shall ordinarily be held at the headquarters of the Tehsil in which the offence is alleged to have been committed.]

(2) The provisions of the Code relating to the confirmation of the sentence of death shall apply, *mutatis mutandis*, to confirmation of sentences under this Ordinance.

[1](3) * * * * * * *

(4) The provisions of sub-section (3) of section 391 or section 393 of the Code shall not apply in respect of the punishment of whipping awarded under this Ordinance.

[1](5) * * * * * * *

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(6) in the Code, section 561 shall stand repealed.

21. Presiding Officer of Court to be a Muslim. The Presiding Officer of the Court by which a case is tried, or an appeal is heard, under this Ordinance, shall be a Muslim.

Provided that, if the accused is a non-Muslim, the Presiding Officer may be a non-Muslim.

22. Saving. Nothing in this Ordinance shall be deemed to apply to the cases pending before any Court immediately before the commencement of this Ordinance, or to offence, committed before such commencement.

[1]Omitted by Act VI of 06, ss. 16 and 18.
[2]Added by Offence of *Zina* (Enforcement of Hudood)(Amdt) Ordinance, 1980 (20 of 1980),s.2.

THE OFFENCES AGAINST PROPERTY (ENFORCEMENT OF HUDOOD) ORDINANCE, 1979

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THE OFFENCES AGAINST PROPERTY (ENFORCEMENT OF HUDOOD) ORDINANCE, 1979

[1]ORDINANCE NO. VI OF 1979

[*10th February, 1979*]

An Ordinance to bring in conformity with the injunctions of Islam the law relating to certain offences against property.

WHEREAS it is necessary to modify the existing law relating to certain offences against property, so as to bring it in conformity with the injunctions of Islam as set out in the Holy Quran and Sunnah;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 *(C.M.L.A. Order No. 1 of 1977)*, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

PRELIMINARY

1. Short title, extent and commencement.—(1) This Ordinance may be called the Offences against Property (Enforcement of *Hudood*) Ordinance, 1979.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on the twelfth day of Rabi-ul-Awwal, 1399 Hijri, that is, the tenth day of February, 1979.

2. Definition.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "adult" means a person who has attained the age of eighteen years or puberty:

(b) "authorised medical officer" means a medical officer, howsoever designated, authorised by Government;

(c) "*Hadd*" means punishment ordained by the Holy Quran or Sunnah;

(d) "*Hirz*" means an arrangement made for the custody of property;

Explanation 1. Property placed in a house, whether its door is closed or not, or in an almirah or a box or other container or in the custody of a person, whether he is paid for such custody or not is said to be in *hirz*.

[1] This Ordinance has been applied to the Provincially Administered Tribal Areas of Baluchistan, by Baluchistan Govt. Notification No. S.O. (TA)-3 (46)/79, dated 29-4-1979, see Baluchistan Gazette, 1979, Ext. (Issue No. 58, dated 14-6-1979).
This Ordinance has been applied to the Federally Administered Tribal Areas, by S.R.O. No. 362 (l)/79, dated 23-4-1979, see Gaz. of P., 4979, Ext., Pt. II, p. 632.
This Ordinance has also been applied to the Provincially Administered Tribal Areas of the N.W.F.P. by Notification No. 127-HD (T.A. HI)/79-H, dated the 26th May, 1979, see Gaz. of N.W.F.P. Ext. 1979, p. 1101.

Explanation 2. If a single family is living in a house, the entire house will constitute a single hirz, but if two or more families are living in one house severally, the portion in the occupation of each family will constitute separate *hirz*.

(e) "Imprisonment for life" means imprisonment till death;

(f) " *nisab* " means the '*nisab*' as laid down in section 6;

(g) "*tazir*" means any punishment other than *hadd;* and all other terms and expressions not defined in this Ordinance shall have the same meaning as in the Pakistan Penal Code (Act XLV of 1860), or the Code of Criminal Procedure, 1898 (Act V of 1898).

3. Ordinance to override other laws. The provisions of this Ordinance shall have effect notwithstanding anything contained in any other for the time being in force.

4. Two kinds of theft. Theft may be either theft liable to *hadd* or theft liable to *tazir*.

5. Theft liable to *hadd*. Whoever, being an adult, surreptitiously commits, from any *hirz*, theft of property of the value of the *nisab* or more not being stolen property, knowing that it is or is likely to be of the value of the *nisab* or more is, subject to the provisions of this Ordinance, said to commit theft liable to *hadd*.

Explanation 1. In this section "stolen property" does not include property which has been criminally misappropriated or in respect of which criminal breach of trust has been committed.

Explanation 2. In this section, "surreptitiously" means that the person committing the theft commits such theft believing that the victim of theft does not know of his action. For surreptitious removal of property it is necessary that, if it is day-time, which includes one hour before sunrise and two hours after sunset, surreption should continue till the completion of the offence and, if it is night, subreption need not continue after commencement of the offence.

6. *Nisab*— The *nisab* for theft liable to *hadd* is four decimal four five seven (4.457) grams of gold, or other property of equivalent value, at the time of theft.

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Explanation.— If theft is committed from the same *hirz* in more than one transaction, or from more than one *hirz* and the value of the stolen property in each case is less than the *nisab*, it is not theft liable to *hadd* even if the value of the property involved in all cases adds up to, or exceeds, the *nisab*.

Illustrations

(a) A enters a house occupied by a single family and removes from various rooms property the value of which adds up to, or exceed the *nisab*. Such theft is liable to *hadd* even though the value of the property removed from any of the rooms does not amount to the *nisab*. If the house is occupied by more than one family and the value of the property removed from the *hirz* of any one family is less than the *nisab*, then the theft is not liable to *hadd* even though the value of the properties removed adds up to, or exceeds, the *nisab*.

(b) A enters a house several times and removes from the house on each occasion property the value of which does not amount to the *nisab*. Such theft is not

liable to *hadd* even though the value or the properties removed adds up to, or exceeds, the *nisab*.

7. Proof of theft liable to *hadd*. The proof of theft liable to *hadd* shall be in one of the following forms namely:

(a) the accused pleads guilty of the commission of theft liable to *hadd*; and

(b) at least two Muslim adult male witnesses, other than the victim of the theft, about whom the Court is satisfied, having regard to the requirements of *tazkiyah-al-shuhood*, that they are truthful persons and abstain from major sins (*kabair*), give evidence as eye-witnesses of the occurrence:

Provided that, if the accused is a non-Muslim, the eye-witnesses may be non-Muslim:

Provided further that the statement of the victim of theft or the person authorised by him shall be recorded before the statements of the eye-witnesses are recorded.

Explanation.—In this section, tazkiyah-al-shuhood means the mode of inquiry adopted by a Court to satisfy itself as to the credibility of a witness.

8. Commission of theft liable to *hadd* by more than one person. Where theft liable to *hadd* is committed by more than one person and the aggregate value of the stolen property is such that, if the property is divided equally amongst such of them as have entered the *hirz* each one of them gets a share which amounts to, or exceeds the *nisab* the *hadd* shall be imposed on all of them who have entered the *Hirz*, whether or not each one of them has moved the stolen property of any part thereof.

9. Punishment of theft liable to *hadd*.—(1) Whoever commits theft liable to *hadd* for the first time shall be punished with amputation of his right hand from the joint of the wrist.

(2) Whoever commits theft liable to *hadd* for the second time shall be punished with amputation of his left foot up to the ankle.

(3) Whoever commits theft liable to *hadd* for the third time, or any time subsequent thereto, shall be punished with imprisonment for life.

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(4) Punishment under sub-section (1) or sub-section (2) shall not be executed unless it is confirmed by the Court to which an appeal from the order of conviction lies, and until the punishment is confirmed and executed the convict shall be dealt with in the same manner as if sentenced to simple imprisonment.

(5) In the case of a person sentenced to imprisonment for life under sub-section (3), if the [1][Appellate Court] is satisfied that he is sincerely penitent, he may be set at liberty on such terms and conditions as the Court may deem fit to impose.

(6) Amputation shall be carried out by an authorised medical officer.

(7) If, at the time of the execution of *hadd* the authorised medical officer is of the opinion that the amputation of hand or foot may cause the death of the convict, the execution of *hadd* shall be postponed until such time as the apprehension of death cases.

[1] Subs, by the Offences Against Property (Enforcement of Hudood) (Amdt.) Ordinance, 1980 (19 of 1980), s. 2, for "High Court".

10. Cases in which *Hadd* shall not be imposed. *Hadd* shall not be imposed in the following cases, namely:

(a) when the offender and victim of the theft are related to each other as-

(i) spouses;

(ii) ascendants, paternal or maternal;

(iii) descendants, paternal or maternal;

(iv) brothers or sisters of father or mother; or

(v) brothers or sisters or their children;

(b) when a guest has committed theft from the house of his host;

(c) when a servant or employee has committed theft from the *hirz* of his master or employer to which he is allowed access;

(d) when the stolen property is wild grass, fish, bird, dog, pig, intoxicant, musical instrument or perishable foodstuffs for the preservation of which provision does not exist;

(e) when the offender has a share in the stolen property the value of which, after deduction of his share, is less than the *nisab*;

(f) when a creditor steals his debtor's property the value of which after deduction of the amount due to him, is less than the *nisab*;

(g) when the offender has committed theft under *ikrah* or *iztrar*:

Explanation.— In this clause,-

(i) "*Ikrah*" means putting any person in fear of injury to the person, property or honour of that or any other person; and

(ii) "*iztrar*" means a situation in which a person is in apprehension of death due to extreme hunger or thirst.

(h) when the offender, before his apprehension, has, on account of repentance, returned the stolen property to the victim and surrenders himself to the authority concerned.

11. Case in which *Hadd* shall not be enforced.—(1) *Hadd* shall not be enforced in the following cases, namely:-

(a) when theft is proved only by the confession of the convict, but he retracts his confession before the execution of *hadd*;

(b) when theft is proved by testimony, but before the execution of *hadd*, any witness resiles from his testimony so as to reduce the number of eye-witnesses to less than two;

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(c) when, before the execution of *hadd* the victim withdraws his allegation of theft or states that the convict had made a false confession or that any of the eye-witnesses have deposed falsely, and the number of eye-witnesses is thereby reduced to less than two; and

(d) when the left hand or the left thumb or at least two fingers of the left hand or the right foot of the offender are either missing of entirely unserviceable.

(2) In the case mentioned in clause (a) of sub-section (1) the Court may order retrial.

(3) In a case mentioned in clause (b), or clause (c), or clause (d) of sub-section (1), the Court may award *tazir* on the basis of the evidence on record.

12. Return of stolen property.—(1) If the stolen property is found in the original or in an identifiable form, or in a form into or for which it may have been converted or exchanged, it shall be caused to be returned to the victim, whether it is in the possession of, or has been recovered from the offender or any other person.

(2) If the stolen property is lost or consumed while in the offender's possession and the *hadd*, is enforced against him, the offender shall not be required to pay compensation.

13. Theft liable to *tazir*. Whoever commits theft which is not liable to *hadd* or for which proof in either of the forms mentioned in section 7 is not available, or for which *hadd* may not be imposed or enforced under this Ordinance, shall be liable to *tazir*.

14. Punishment for theft liable to *tazir*. Whoever commits theft liable to *tazir* shall be awarded the punishment provided for the offence of theft in the Pakistan Penal Code (Act XLV of 1860).

15. Definition of *haraabah*. When any one or more persons, whether equipped with arms or not, make show of force for the purpose of taking away the property of another and attack him or cause wrongful restraint or put him in fear of death or hurt, such person or persons, are said to commit *haraabah*.

16. Proof of *haraabah*. The provisions of section 7 shall apply *mutatis mutandis* for the proof of *haraabah*.

17. Punishment for *haraabah*.—(1) Whoever, being an adult, is guilty of *haraabah* in the course of which neither any murder has been committed nor any-property has been taken away shall be punished with whipping not exceeding thirty stripes and with rigorous imprisonment until the Court is satisfied of his being sincerely penitent:

Provided that the sentence of imprisonment shall in no case be less than three years.

(2) Whoever, being an adult, is guilty of *haraabah* in the course of which no property has been taken away but hurt has been caused to any person shall, in addition to the punishment provided for in sub-section (1), be punished for causing such hurt in accordance with such other law as may for the time being be applicable.

(3) Whoever, being an adult, is guilty of *haraabah* in the course of which no murder has been committed but property the value of which amounts to, or exceeds, the *nisab* has been taken

away shall be punished with amputation of his right hand from the wrist and of his left foot from the ankle:

Provided that, when the offence of *haraabah* has been committed conjointly by more than one person, the punishment of amputation shall be imposed only if the value of share of each one of them is not less than the *nisab*;

Provided further that, if the left hand or the right foot of the offender is missing or is entirely unserviceable, the punishment of amputation of the other hand or foot, as the case may, shall not be imposed, and the offender shall be punished with rigorous imprisonment for a term which may extend to fourteen years and with whipping not exceeding thirty stripes.

(4) Whoever, being an adult, is guilty of *haraabah* in the course of which he commits murder shall tie punished with death imposed as *hadd*.

(5) Punishment under sub-section (3), except that under the second proviso thereto, or under sub-section (4), shall not be executed unless it is confirmed by the Court to which an appeal from the order of conviction lies, and if the punishment be of amputation, until it is confirmed and executed, the convict shall be dealt within the same manner as if sentenced to simple imprisonment.

(6) The provisions of sub-section (6) and sub-section (7) of section 9 shall apply to the execution of the punishment of amputation under this section.

18. Cases in which punishment of amputation or death for *haraabah* shall not be imposed or enforced. The punishment of amputation or death shall not be imposed or enforced for the offence of *haraabah* in cases in which *hadd* may not be imposed for theft liable to *hadd* and the provisions of section 10 and section 11 shall apply *mutatis mutandis* to such cases.

19. Return of property taken away during *haraabah*. The provisions of section 12 shall apply, *mutatis mutandis* for return of the property taken away during *haraabah* so however, that sub-section (2) of the said section shall have effect as if, for the word "*Hadd*" therein, the words "punishment of amputation or death" were substituted.

20. Punishment for *haraabah* liable to *tazir*. Whoever commits *haraabah* which is not liable to the punishment provided for in section 17, or for which proof in either of the forms mentioned in section 7 is not available, or for which punishment of amputation or death may not be imposed or enforced under this Ordinance, shall be awarded, the punishment provided in the Pakistan Penal Code (Act XLV of 1860) for the offence of dacoity, robbery or extortion, as the case may be.

21. Punishment for *rassagiri* or *patharidari*.—(1) Whoever extends patronage, protection or assistance in any form to, or harbours, any person or group of persons engaged in the theft of cattle, on the understanding that he shall receive one or more of the cattle in respect of which the offence is committed, or a share in the proceeds thereof, is said to commit "r*assagiri*" or "p*atharidari*".

(2) Whoever commits "*rassagiri*" or "*patharidari*" shall be punished with rigorous imprisonment for a term which may extend to fourteen years, or with whipping not exceeding seventy stripes, and with confiscation of all his immovable property and with fine.

22. Punishment for attempts to commit offence punishable by this Ordinance. Whoever attempts to commit an offence punishable under this Ordinance, or to cause such an offence to be

committed, and in such attempt does any act towards the commission of the offence, shall, where no express provision is made by this Ordinance for the punishment of such attempt, be punished with imprisonment of either description for a term which may extend to ten years.

Illustrations

(a) A makes an attempt to steal some jewels by breaking open a box, and finds after so opening the box that there is no jewel in it. He has done an act towards the commission of theft, and therefore, is guilty under this section.

(b) A makes an attempt to pick the pocket of Z by thrusting his hand into Z's pocket. A fails in the attempt in consequence of Z's having nothing in his pocket A is guilty under this section.

23. Application of certain provisions of Pakistan Penal Code (Act XLV of 1860). (1) Unless otherwise expressly provided in this Ordinance, the provisions of sections 34 to 38 of Chapter II, section 71 and section 72 of Chapter III and section 149 of Chapter VIII of the Pakistan Penal Code, (Act XLV of 1860), shall apply, *mutatis mutandis* in respect of offences under this Ordinance.

(2) Whoever is guilty of the abetment of and offence liable to *hadd* under this Ordinance shall be liable to the punishment provided for such offence as *tazir*.

24. Application of Code of Criminal Procedure, 1898.—(1) The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), shall apply, *mutatis mutandis,* in respect of cases under this Ordinance:

Provided that, if it appears in evidence that the offender has committed a different offence under any other law, he may, if the Court is competent to try that offence and to award punishment therefore, be convicted and punished for that offence [:][1]

[2][Provided further that an offence punishable under section 9 or section 17 shall be triable by a Court of Session and not by a Magistrate authorised under section 30 of the said Code and an appeal from an order under either of the said sections, [3][or from an order under any provision of this Ordinance which impose a sentence of imprisonment for a term exceeding two years,] shall lie to the Federal Shariat Court;

Provided further that a trial by a Court of Session under this Ordinance shall ordinarily be held at the headquarters of the Tehsil in which the offence is alleged to have been committed.]

(2) The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), relating to the confirmation of the sentence of death, shall apply, *matatis mutandis*, to confirmation of sentences under this Ordinance.

(3) The provisions of sub-section (3) of section 391 or section 393 of the Code of Criminal Procedure, 1898 (Act V of 1898), shall not apply in respect of the punishment of whipping awarded under this Ordinance.

[1]Subs, by the Offences Against Property (Enforcement of Hudood) (Amdt.) Ordinance. 1980 (19 of 1980) s. 3, for full stop.
[2]Added ibid.,
[3]Ins. by the Offences Against Property (Enforcement of Hudood) (Amdt.) Ordinance, 1982 (2 of 1982), s. 2.

(4) The provisions of Chapter XXIX of the Code of Criminal Procedure, 1898 (Act V of 1898), shall not apply in respect of punishments awarded under section 9 or section 17 of this Ordinance.

25. Presiding Officer of Court be a Muslim. The Presiding Officer of the Court by which a case is tried, or an appeal is heard, under this Ordinance shall be a Muslim:

Provided that, if the accused is a non-Muslim, the Presiding Officer may be a non-Muslim.

26. Saving. Nothing in this Ordinance shall be deemed to apply to cases pending before any Court immediately before the commencement of this Ordinance, or to offences committed before such commencement.

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THE PAKISTAN (EXCHANGE OF PRISONERS) ORDINANCE, 1948

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THE PAKISTAN (EXCHANGE OF PRISONERS) ORDINANCE, 1948

ORDINANCE NO. XII OF 1948

[19th March, 1948]

An Ordinance to implement an agreement with [1]* * * *India regarding the exchange of certain classes of prisoners between* [1]* * * *Pakistan and* [1]* * * *India.*

WHEREAS an agreement has been reached between the two [1][countries] to exchange certain classes of prisoners;

AND WHEREAS an emergency has arisen which makes it necessary immediately to implement the said agreement in so far as Pakistan is concerned;

NOW, THEREFORE, in exercise of the powers conferred by section 42 of the Government of India Act, 1935 (26 Geo. 5, c. 2.), as adapted by the Pakistan (Provisional Constitution) Order, 1947, the Governor-General is pleased to make and promulgate the following Ordinance:—

PART I
PRELIMINARY

1. Short title, extent and commencement.—(1) This Ordinance may be called the Pakistan (Exchange of Prisoners) Ordinance, 1948.

[2][(2) It shall extend to the Punjab, the North-West Frontier and Baluchistan, in the first instance, but may at any time by notification in the Gazette of Pakistan be extended to any other part of Pakistan.

(3) It shall come into force in the Punjab, the North-west Frontier and Baluchistan at once, and in any other part of Pakistan on such date as the Government of the Province concerned may by notification in the official Gazette specify.]

2. The provisions of this Ordinance shall have force and operation notwithstanding anything contrary or repugnant thereto in any other law for the time being in force.

THE PAKISTAN CODE

PART II
OF THE TRANSFER OF PRISONERS

3. Power of the Provincial Government to order removal of transferable prisoners. A Provincial Government may issue a warrant for the custody and removal of any transferable prisoner from any prison or other place of detention, and for his delivery at a place and to a person specified in the warrant:

Provided that such person specified in the warrant shall be an official of [1]* * * India, or of any Province thereof, or of any State that has acceded thereto, who has been duly authorised in writing by name or designation of office, to receive such prisoner.

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[1]Omitted and subs. by A.O. 1961 (with effect from the 23rd March, 1956).
[2]Subs. by the Central Laws (Statute reform) Ordinance No. XXI of 1960 (with effect from the 14th October, 1955), s. 3 and 2nd Schedule.

4. Officer-in-Charge of prison or place of detention to deliver custody of transferable prisoner. Upon presentation of a warrant issued under section 3 the Officer-in-Charge of the prison or other place of detention where the transferable prisoner named in the warrant is confined shall cause him to be delivered to the person to whom the warrant is directed together with the warrant of commitment, the history sheet and all other documents relating to him, and personal effects taken from him at the time of his admission, and such person shall furnish to such Officer-in-Charge a written receipt in respect of such delivery.

5. Avoidance of jurisdiction of Courts and authorities over transferable prisoners.—(1) Upon the delivery of custody of a transferable prisoner in compliance with a warrant issued under section 3 to the person, being an official of [1]* * * India or of any Province thereof or of any State that has acceded thereto, all Courts and authorities whatsoever in Pakistan shall cease to have and exercise jurisdiction in relation to such prisoner, in respect of the offence or other matter which was the cause of his confinement or detention in any Province of Pakistan.

(2) The Provincial Government may requisition the record of any proceedings (including judicial proceedings) relating to any transferable prisoner for whose removal a warrant has been issued under section 3, from any court or office where such record may be kept, and may direct that such record shall be delivered along with such prisoner to the person being an official of [1]* * * India or of any Province thereof or of any State that has acceded thereto specified in the aforesaid warrant, or otherwise forwarded to an appropriate authority in [1]* * * India.

6. Examination of witnesses on commission.—(1) If in relation to any criminal matter pending before a Court in [1]* * * India against any transferable prisoner who has been transferred to [1][that country] under this Part, a letter of request issued by such Court is produced before the District Magistrate of any district in Pakistan for the examination of any witness residing in such district, the District Magistrate shall issue a commission for the purpose to any Magistrate subordinate to him.

(2) Such Magistrate shall summon and examine the witness in the presence of a duly authorised police or law officer of [1][Pakistan or] the concerned Provincial Government and so far as may be possible, an agent of the accused or of [1]* * * India or of the Government of the concerned Province of [1][that country], and in respect of such examination, the Magistrate shall exercise all [2][the powers for the examination of witnesses under law Code of Criminal Procedure, 1908 (Act V of 1908)].

(3) When the commission has been duly executed, it shall be returned, together with the evidence taken under it to the District Magistrate, and the District Magistrate shall then transmit the papers so received along with the letter of request, to the issuing Court, through such channel as may be prescribed.

[1]Omitted and subs. by A.O. 1961 (with effect from the 23rd March, 1956).
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and Sch. II.

PART III

OF THE REPATRIATION OF PRISONERS

7. Custody and removal of repatriated prisoners.—(1) The Provincial Government or any District Magistrate, Additional District Magistrate or Sub-Divisional Magistrate specially authorised in this behalf by the Provincial Government may issue warrants for the custody and removal of repatriated prisoners.

(2) A warrant under sub-section (1) may be directed to an official, by name or designation of office, and shall specify the place at which custody of the repatriated prisoner, together with any property and documents which may have been sent along with him, shall be received, and the prison to which he is to be removed.

8. Delivery of repatriated prisoner at prison. Upon presentation of a warrant issued under section 7, the Officer-in-Charge of the prison specified therein shall receive such repatriated prisoner and any property and documents which may be produced along with him, and

(a) **Detention where warrant is received with prisoner.** where a warrant, writ or order of commitment to any prison or place of detention in which he was held immediately before repatriation is produced along with such prisoner, shall detain him according to the exigency of such warrant, writ or order, subject to any warrant, writ or order which may be issued thereafter in respect of such prisoner by any Court or authority exercising jurisdiction under the provisions of this Part, and

(b) **Detention where no warrant is received with prisoner.** where no warrant, writ or order of commitment is produced along with such prisoner, such Officer-in-Charge shall forthwith report the case, with all necessary details, to the District Magistrate and to the High Court, and shall in the meantime detain such prisoner.

9. Missing warrant to be reconstructed.—(1) Upon receipt of a report under clause (b) of section 8, the District Magistrate shall, with all convenient speed, procure the records (including judicial records) relating to such prisoner, and after such enquiry as he deems necessary, shall determine the nature and term of the detention which such prisoner was undergoing immediately before his repatriation, and shall draw up a warrant accordingly, commiting such prisoner to the prison where he is detained for the balance of such term, or until further orders are received from any Court or authority having jurisdiction in the case.

(2) **Report to High Court.** Such warrant of commitment shall be forwarded to the Officer-in-Charge of the said prison, and the District Magistrate shall, at the same time, forward the original record, or a complete copy of his proceedings to the High Court.

(3) **Bail in case of delay.** If any enquiry under sub-section (1) is prolonged beyond a period of two months from the date on which the repatriated prisoner was received at the prison, the District Magistrate shall release such prisoner on bail, unless he has reason to believe that such prisoner has been convicted of a prescribed offence and is undergoing a sentence of which the balance exceeds two years.

(4) The bail bond required under sub-section (3) may be with or without sureties and shall be in such form as may be prescribed.

10. High Court's jurisdiction. The High Court shall have, in relation to a repatriated prisoner, the same jurisdiction which it has in relation to a person who has been arrested or detained within the limits of its appellate jurisdiction, in the same circumstances in which such prisoner was arrested or detained in [1]* * * India immediately before his repatriation.

11. Entrustment of case to Courts sub-ordinate to the High Court.—(1) The Provincial Governments may, in respect of any repatriated prisoner or any class or group of repatriated prisoners by order specify the Court, other than the High Court, which shall have or exercise jurisdiction in any case or cases which may have been pending against such prisoner or prisoners, immediately before his or their repatriation:

Provided that such Court shall be a Court which would have had jurisdiction to enquire into or try such case or cases, if the offence or offences involved had been committed within its jurisdiction.

(2) On the making of an order under sub-section (1) every case mentioned in such order shall be deemed to have been transferred for disposal to the Court specified in such order, and such Court shall proceed to hear and decide upon such case according to law, as if the offence to which it relates had been committed within the local limits of its jurisdiction, and all the provisions of the Code of Criminal Procedure (V of 1898) (including the provisions relating to appeal and revision) and of all other laws in force in the Province [2]* * * shall apply to such proceedings.

(3) **Evidence already recorded to be evidence in the case.** In any proceedings under sub-section (2), all evidence, both oral and documentary, which has been duly received in the earlier proceedings against the repatriated prisoner held prior to his repatriation may, if duly authenticated, be received as evidence, for the same purposes as it may have been received if it had been recorded by a Court exercising similar jurisdiction in [1]* * * Pakistan.

(4) Exhibits, depositions and copies thereof shall be deemed to be duly authenticated if they purport to be duly signed, verified or certified by a judge or Magistrate having jurisdiction at the place, where the earlier proceedings against the repatriated prisoner, prior to his repatriation, were held.

12. Treatment of prisoners who are repatriated while in police custody.—(1) The Provincial Governments may, in respect of any repatriated prisoner who, immediately before repatriation was held under arrest or detention in police custody, during or after completion of a police investigation, specify a Magistrate of the first class who shall have and exercise jurisdiction.

(2) Every repatriated prisoner, in respect of whom an order has been made under sub-section (1) shall be produced without delay before the Magistrate specified in the order, and such Magistrate may take cognizance of any offence that such repatriated prisoner may be reported by a police officer to have committed, and may grant him bail.

[1]Omitted by A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956).
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and Sch. II.

(3) Where the repatriation was effected before completion of the police investigation, or the Magistrate is of the opinion that the evidence is deficient, the repatriated prisoner shall be released upon his entering into a bond with or without sureties as the Magistrate may direct, to appear if and when so required, and in the meantime, the Magistrate may order such further enquiry into the substance of the allegations as he thinks fit.

(4) In every case falling under sub-section (3), the Magistrate may, if he is satisfied at any stage that there is no prospect of securing sufficient evidence to justify commencement of proceedings against the repatriated prisoner, direct that such prisoner be discharged from his bond.

13. Bar to proceedings.—(1) No proceedings shall be taken against a repatriated prisoner unless the offence for which he has been arrested or detained is also an offence under the law in force in Pakistan or in the Province thereof to which he has been repatriated.

(2) **Prior sanction for prosecution.** Where the offence charged against a repatriated prisoner is one for which a prosecution could not have been instituted in 1* * * India or, if the offence had been committed in Pakistan, in any Court in Pakistan, without the sanction of an authority specified by the relevant laws, no prosecution shall be instituted against such prisoner, nor shall any proceedings be commenced or continued against him without the sanction of the authority specified for the purpose by the law in force in the Province or, failing such authority, of the [1][[2][Federal Government] or] the Provincial Government.

14. Power of provincial Governments in relation to prisoners detained for reasons of security. In relation to any repatriated prisoner whose detention immediately before his repatriation had been ordered under any law authorising preventive detention for reasons connected with public order the [2][Federal Government] or the Provincial Government shall have the same power in respect of extension or reduction of the term of detention as it possesses in relation to persons detained for reasons of security or under any law for the time being in force for preserving the public safety or security.

15. Power of Government to suspend, remit or commute sentences. The 2[Federal Government] or Provincial Government shall have the same power to suspend, remit or commute a sentence of punishment awarded to a repatriated prisoner, whether before or after his repatriation, as it possesses in relation to persons who have been sentenced in [1][Pakistan] or the Province for offences committed within [3][Pakistan] or the Province.

16. Power of Courts to grant bail. The High Courts and every Court specified by the Provincial Government under section 11 shall have, in respect of any repatriated prisoner who is rendered subject to the jurisdiction of such Court under the provisions of this Part, the same power of granting bail under the Code of Criminal Procedure (V of 1898), as such Courts would have had if such prisoner had been arrested or detained in the first instance in Pakistan.

[1]Omitted and subs. by A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956).
[2]Subs. by F.A.O., 1975.
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and II Schedule.

PART IV

GENERAL

17. Lawfulness of custody and retaking upon escape. It shall be lawful for any person to whom a warrant under section 3 or section 7 is directed, to receive, hold in custody, convey and deliver the transferable or repatriated prisoner named in the warrant as directed therein, and if any such prisoner escapes out of any custody to which he may be delivered in pursuance of any such warrant, he may be rearrested and taken in custody as a person accused or convicted of an offence against the law of [1]* * * Pakistan or of any Province thereof.

18. Power to make rules.—(1) The [2][Federal Government] may make rules to carry out the purposes of this Ordinance.

(2) Without prejudice to the generality of the power conferred by sub-section (1), such rules may provide for the following matters, namely:—

(a) the channel through which communication and return of letters of request to District Magistrates under section 6 shall be effected;

(b) the specification of offences for the purposes of sub-section (3) of section 9; and

(c) any other matter which may or ought to be prescribed.

19. Definitions. In this Ordinance, unless the subject or context otherwise requires—

(a) the expression "prison" includes a central, district or subsidiary jail, a judicial lock-up, a police lock-up, and every place which is used as a place of detention for persons who have been arrested or detained under any law for the time being in force;

(b) the expression "prisoner" includes every person who is detained in a prison by order of a competent authority;

(c) the expression "transferable prisoner" means any Hindu, including any member of a Scheduled Caste, or any Sikh who is in custody in any prison in Pakistan under lawful orders of a duly empowered Court or other authority and who is willing to be transferred to [1]* * * India under the provisions of Part II;

(d) the expression "repatriated prisoner" means a member of any of the classes specified in the first column of the Schedule who being in custody in a prison or other place of detention in a Province or State specified in the second column of the said Schedule is conveyed and delivered by a duly authorised official of [1]* * * India or of the Government of any Province thereof or of any State that has acceded thereto in compliance with the orders of such Government to an official of [1]* * * Pakistan or of the Government, of any Province thereof; and

(e) "prescribed" means prescribed by rules made under this Ordinance.

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[1]Omitted by A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956).
[2]Subs. by F.A.O., 1975.

SCHEDULE
(*Section 19*)

Class	***Province or state***
Members of a Civil Service of the [1][Government] in Pakistan and Personnel of the Pakistan Land, Naval and Air Forces.	All the Provinces of [1]* * * India and all States that have acceded to [1][India].
Muslims	The Province of East Pubjab, the States of Alwar and Bharatpur and the States Previously known as the Punjab States excluding [2]*, Bahawalpur and Khairpur.
Muslims (convicted or under trial or under detention on or after 15th August 1947).	Delhi.

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RGN Date: 04-07-2024

[1]Subs. and omitted by A.O., 1961, Art. 2 and Sch., (with effect from the 23rd March, 1956).
[2]Omitted by Act No. LIV of 1950, s. 2.

THE PAKISTAN NAMES AND EMBLEMS (PREVENTION OF UNAUTHORISED USE) ACT, 1957

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Prohibition of use of name or emblem and penalty
4. Prohibition of grant or registration of patent, trade-mark, etc.
5. Amendment of the Schedule
6. Previous sanction for prosecution
7. Act not to prejudice other law
8. Power to make rules

THE SCHEDULE

THE PAKISTAN CODE

THE PAKISTAN NAMES AND EMBLEMS (PREVENTION OF UNAUTHORISED USE) ACT, 1957

ACT NO. XXVIII OF 1957

[30th *April, 1957*]

An Act to prevent unauthorised use of certain names and emblems

WHEREAS it is expedient to provide for the prevention of unauthorised use of certain names and emblems;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Pakistan Names and Emblems (Prevention of Unauthorised Use) Act, 1957.

(2) It extends to the whole of Pakistan and applies to all citizens of Pakistan wherever they may be.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) "competent authority" means any authority competent under any law for the time being in force to grant a patent or to register a trade-mark or design or a company, firm or other body of persons ;

(b) "design" means the design as defined in clause (5) of section 2 of the Patents and Designs Act, 1911 (II of 1911);

(c) "emblem" means the flag, emblem, seal, insignia or coat-of-arms specified in the Schedule and includes a pictorial or illustrative representation or colourable imitation of any emblem ;

(d) "name" means a name specified in the Schedule and includes any abbreviation of a name ;

(e) "patent" means a patent as defined in clause (11) of section 2 of the Patents and Designs Act, 1911 (II of 1911) ;

(f) "trade-mark" means a trade-mark as defined in clause (1) of sub-section (1) of section 2 of the Trade Marks Act, 1940.

THE PAKISTAN CODE

3. Prohibition of use of name or emblem and penalty.—(1) No person shall, except with the previous permission in writing of, and in accordance with the conditions, if any, imposed by, the [1][Prime *Moister] or any officer authorised by it in this behalf, use or continue to use a name or emblem in any trade-mark or design or in the title of any patent or for the purposes of any trade, business, calling or profession, or for any other purpose whatsoever.

(2) Whoever contravenes the provisions of sub-section (1) shall be punished with fine which may extend to five hundred rupees.

4. Prohibition of grant or registration of patent, trade-mark, etc.—(1) Notwithstanding anything contained in any other law for the time being in force, no competent authority shall—

(a) register a trade-mark or design which bears a name or an emblem,

(b) register a company or firm or other body of persons which bears a name, or

(c) grant a patent in respect of an invention which bears in its title a name.

(2) If any question arises whether or not a trade-mark or design bears an emblem, the competent authority shall refer it to the [1][Prime Minister] whose decision thereon shall be final.

5. Amendment of the Schedule.—The [2][Federal Government] may, by notification in the official Gazette, add to, amend or alter the Schedule and any such addition, amendment, or alteration shall have effect as if it had been made by this Act.

6. Previous sanction for prosecution.— No person shall be proceeded against for an offence under this Act except with the previous sanction of the [1][Prime Minister] or an officer authorized by [1][him] in this behalf by a general or special order.

7. Act not to prejudice other law.—The provisions of this Act shall be in addition to and not in derogation of any other law for the time being in force.

8. Power to make rules.— (1) The [2][Federal Government] may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

THE PAKISTAN CODE

(2) In making any rule under sub-section (1) the [2][Federal Government] may provide that a contravention of the rule shall be punishable with fine which may extend to two hundred rupees.

THE SCHEDULE

1. The name, title or semblance of Quaid-i-Azam Mohammad Ali Jinnah and any variation thereof.

2. The Pakistan flag.

3. The official seal, emblem, insignia or coat-of-arms of Government.

4. A seal, emblem or insignia used by any department of Government.

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*As appear in Gazette.
[1]Subs. by Act No. XXVIII of 2026, ss, 2-4.
[2]Subs. by The Federal Adaptation of Laws Order 1975 (President's Order No. 4 of 1975, Art. 2 and Table.

5. The name, emblem or official seal of—

(i) the United Nations Organisation [1][.]

(ii) the World Health Organisation.

[1][(iii) The World Meteorological Organisation.

(iv) The International Civil Aviation Organisation.]

[2][(v) The International Atomic Energy Agency.]

THE PAKISTAN CODE

Date: 07-04-2026

[1]Subs. by the Ministry of Interior (Home Division) Notifn. No. S.R.O. 145 (K), dated the 18th February, 1960, for ",or", *see* Gaz. of P., 1960, Ext. p. 217.

[2]Added by the Ministry of Interior (Home Division) Notification. No. S.R.O. 1019 (K)/61, dated the 20th October, 1961, *see* Gaz. of P., 1961, pt. I, p. 418.

THE POISONS ACT, 1919

CONTENTS

1. Short title and extent
2. Power of the Provincial Government to regulate possession for sale and sale of any poison
3. Power to prohibit importation into Pakistan of any poison except under licence
4. Power to regulate possession of any poison in certain areas
5. Presumption as to specified poisons
6. Penalty for unlawful importation, etc.
7. Power to issue search warrants
8. Rules
9. Savings
10. [*Repeal*]

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THE POISONS ACT, 1919

[2]ACT No. XII OF 1919

[*3rd September, 1919*]

An Act to consolidate and amend the law regulating the importation, possession and sale of poisons [3]* * *.

WHEREAS it is expedient to consolidate and amend the law regulating the importation, possession and sale of poisons [4]* * *;

It is hereby enacted as follows:-

1. Short title and extent.—(1) This Act may be called the Poisons Act, 1919.

[5][(2) It extends to the whole of Pakistan.]

2. Power of the Provincial Government to regulate possession for sale and sale of any poison.— (1) [6]* * *, the [7][Provincial Government] may by rule regulate within the whole or any part of the territories under its administration the possession for sale and the sale, whether wholesale or retail, of any specified poison.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for–

(a) the grant of licences to possess any specified poison for sale, wholesale or retail, and the fixing of the fee (if any) to be charged for such licences ;

(b) the classes of persons to whom alone such licences may be granted ;

(c) the classes of persons to whom alone any such poison may be sold ;

(d) the maximum quantity of any such poison which may be sold to any one person;

(e) the maintenance by vendors of any such poison of registers of sales, the particulars to be entered in such registers, and the inspection of the same ;

(f) the safe custody of such poisons and the labelling of the vessels, packages or coverings in which any such poison is sold or possessed for sale ; and

(g) the inspection and examination of any such poison when possessed for sale by any such vendor.

[2]For Statement of Objects and Reasons, *see* Gazette of India, 1919, Pt. V, p. 22 ; and for Proceedings in Council, *s*., 1919, Pt. VI, pp. 170 and 872.
This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.-W.F.P., subject to certain modifications ; and extended to the Excluded Area of Upper Tanawal (N.- W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, *see* N.- W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950) ; and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. 1, p. 1499.
[3]The words "throughout British India" omitted by A. O., 1949 Sch.
[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2) as amended by A. O., 1949, and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8.)
[5]The words "Subject to the control of the G. G. in C." rep. by A. O., 1937.
[6]Subs. *ibid.*, for "L. G.".

THE PAKISTAN CODE

3. Power to prohibit importation into Pakistan of any poison except under licence. The [1][Federal Government] may, by notification in the [2][official Gazette], prohibit, except under and in accordance with the conditions of a licence, the importation into [3][Pakistan] [4][across any customs frontier defined by the [5][Federal Government]] of any specified poison, and may by rule regulate the grant of licences.

4. Power to regulate possession of any poison in certain areas.—(1) The [6][Provincial Government] [7]* * * may by rule regulate the possession of any specified poison in any local area in which the use of such poison for the purpose of committing murder or mischief by poisoning cattle appears to it to be of such frequent occurrence as to render restrictions on the possession thereof desirable.

(2) In making any rule under sub-section (1), the [6][Provincial Government] may direct that any breach thereof shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both, together with confiscation of the poison in respect of which the breach has been committed, and of the vessels, packages or coverings in which the same is found.

5. Presumption as to specified poisons. Any substance specified as a poison in a rule made or notification issued under this Act shall be deemed to be a poison for the purposes of this Act.

6. Penalty for unlawful importation, etc.—(1) Whoever-

(a) commits a breach of any rule made under section 2, or

(b) imports [8]* * * without a licence [9][into [3][Pakistan] across a customs frontier defined by the [10][Federal Government]] any poison the importation of which is for the time being restricted under section 3, or

(c) breaks any condition of a licence for the importation of any poison granted to him under section 3, shall be punishable,—

(i) on a first conviction, with imprisonment for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both, and

(ii) on a second or subsequent conviction, with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which was previously amended by A. O., 1937, for "G. G. in C.".
[2]Subs. by A.O. 1937 for "Gazette of India".
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 74th October, 1955*), for " the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3 (2) and 4, for "British India".
[4]Ins. by A. O., 1937.
[5]Subs. by F.A.O., 1975 Art. 2 and Table, for "Central Government".
[6]Subs. by A. O., 1937 for "L. G.".)
[7]The words "subject to the control of the G.G. in C." were rep. by A. O., 1937. The word s"subject to the control" had been substituted for the words "with the previous sanction" by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I.
[8]The words "into British India" rep. by. A. O., 1937.
[9]Ins., *ibid*.
[10]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".

(2) Any poison in respect of which an offence has been committed under this section, together with the vessels, packages or coverings in which the same is found, shall be liable to confiscation.

7. Power to issue search warrants.—(1) The District Magistrate, [1][and] the Sub-divisional Magistrate [2]* * *, may issue a warrant for the search of any place in which he has reason to believe or to suspect that any poison is possessed or sold in contravention of this Act or any rule thereunder, or that any poison liable to confiscation under this Act is kept or concealed.

(2) The person to whom the warrant is directed may enter and search the place in accordance therewith, and the provisions of the Code of Criminal Procedure, 1898 (V of 1898), relating to search of warrants shall as far as may be, be deemed to apply to the execution of the warrant.

8. Rules.-(1) In addition to any other power to make rules hereinbefore conferred [3]* * * the [4][Provincial Government] may make rules generally to carry out the purposes and objects of this Act [5][except section 3].

(2) Every power to make rules conferred by this Act shall be subject to the condition of the rules being made after previous publication.

(3) All rules made by the [6][Federal Government] or by the [7][Provincial Government] under this Act shall be published in the [8][official Gazette] and on such publication shall have effect as if enacted in this Act.

9. Savings.—(1) Nothing in this Act or in any licence granted or rule made thereunder shall extend to, or interfere with, anything done in good faith in the exercise of his profession as such by a medical or veterinary practitioner.

(2) Notwithstanding anything hereinbefore contained, the [7][Provincial Government] may [9]* * * by general or special order declare that all or any of the provisions of this Act [10][except section 3] shall be deemed not to apply to any article or class of articles of commerce specified in such order, or to any poison or class of poisons used for any purpose so specified.

(3) The authority on which any power to make rules under this Act is conferred may, by general or special order, either wholly or partially-

(a) exempt from the operation of any such rules, or

(b) exclude from the scope of the exemption provided by sub-section (1),

any person or class of persons either generally or in respect of any poisons specified in the order.

10. [*Repeal of Act I of 1904.*] *Rep. by the Repealing Act. 1927 (XII of 1927).*

Date: 11-09-2024

[1]Ins. by A. O., 1949, Sch
[2]The words and commas "and, in a Presidency-town, the Commissioner of Police" omitted *ibid*.
[3]The words "and subject to the control of the G. G. in C." were rep. by A. O., 1937. The word "and" had been subs., for the words "the G. G.. in C. or" by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I.
[4]Subs. by A.O 1937 for "L.G"
[5]Ins. A. O., 1937.
[6]Subs. *ibid.*, for "L. G."
[7]Subs. by para. 4 of A. O., 1937, for "Gazette of India or the local official Gazette, as the case may be". Strictly the substitution would read "official Gazette or the official Gazette, as the case may be" but the last nine words have been omitted as being obviously redundant
[8]The words "in its discretion" rep. by A. O., 1937
[9]Ins. *ibid.*

THE PREVENTION OF ANTI-NATIONAL ACTIVITIES ACT, 1974

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THE PREVENTION OF ANTI-NATIONAL ACTIVITIES ACT, 1974

ACT NO. VII OF 1974

[9th February, 1974]

An Act to provide for the more effective prevention of certain anti-national and treasonable activities

WHEREAS the freedom of association guaranteed by Article 17 of the Constitution is subject to any reasonable restrictions imposed by law in the interest of morality or public order;

AND WHEREAS it is expedient to provide for the more effective prevention of certain anti-national and treasonable activities of individuals and associations and for matters connected therewith;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Prevention of Anti-National Activities Act, 1974.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "anti-national activity", in relation to an individual or association, means any thing done by such individual or association, whether by committing an act or by words, either spoken or written, or by signs or by visible representation or otherwise,—

(i) which is intended, or supports any claim, to bring about, on any ground whatsoever, the secession of a part of the territory of Pakistan from the Federation, or which incites any individual or group of individuals to bring about secession;

(ii) which disclaims, questions, disrupts or is intended to disrupt the sovereignty and territorial integrity of Pakistan;

(iii) which in any manner encourages or incites, or is intended or is likely or tends to encourage or incite, the public or any group thereof to create, open or continue any regional front or '*mahaz*' of any kind based on racial, linguistic or similar ideologies and considerations with a view to disrupting the unity of the people of Pakistan; or

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(iv) which in any manner propagates or advocates that the citizens of Pakistan comprise more than one nationality;

(b) "association" means any combination or body of individuals;

(c) "prescribed" means prescribed by rules made under this Act;

(d) "secession of a part of the territory of Pakistan from the Federation" includes the assertion of any claim to determine whether such part will remain a part of the territory of Pakistan;

(e) "Tribunal" means the Tribunal constituted under section 5;

(f) "anti-national association" means any association which has for its object, or which indulges in, any anti-national activity, or which encourages or aids persons to undertake any anti-national activity, or of which members undertake such activity.

CHAPTER II
ANTI-NATIONAL ASSOCIATIONS

3. Declaration of an association as anti-national.—(1) If the Federal Government is satisfied that any association is, or has become, an anti-national association, it may, by notification in the official Gazette, declare such association to be anti-national.

(2) Every such notification shall specify the grounds on which it is issued and such other particulars as the Federal Government may consider necessary:

Provided that nothing in this sub-section shall require the Federal Government to disclose any fact which it considers to be against the public interest to disclose.

(3) Every such notification shall have effect from the date of its publication in the official Gazette.

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(4) Every such notification shall be served on such association in such manner as the Federal Government may think fit, and all or any of the following modes may be followed in effecting such service, namely:—

(a) affixing a copy of the notification to some conspicuous part of the office, if any, of the association; or

(b) serving a copy of the notification, where possible, on the principal office-bearers, if any of the association; or

(c) such other manner as may be prescribed.

4. Reference to Tribunal.—(1) Where any association has been declared anti-national by notification issued under section 3, the Federal Government shall, within thirty days from the date of

the publication of the notification, refer the notification to the Tribunal for the purpose of adjudicating whether or not there is sufficient cause for declaring the association anti-national.

(2) On receipt of a reference under sub-section (I), the Tribunal shall, by notice in writing, call upon the association affected to show cause, within thirty days from the date of the service of such notice, why the association should not be declared anti-national.

(3) After considering the cause, if any, shown by the association or the office-bearers or members thereof, the Tribunal shall hold an inquiry in the manner specified in section 9 and, after calling for such further information as it may consider necessary from the Federal Government or from any office-bearer or member of the association, it shall decide whether or not there is sufficient cause for declaring the association anti-national and make, as expeditiously as possible and in any case within a period of six months from the date of the issue of the notification under section 3, such order as it may deem fit either confirming the declaration made in the notification or cancelling the declaration.

(4) The order of the Tribunal made under sub-section (3) shall be published in the official Gazette.

5. Tribunal.—(1) The Federal Government may, by notification in the official Gazette, constitute, as and when necessary, a Tribunal to be known as the Anti-National Activities Prevention Tribunal consisting of a person who is a Judge of a High Court, to be appointed by the Federal Government in consultation with the Chief Justice of the High Court of which he is a Judge.

(2) If, for any reason, a vacancy occurs in the Tribunal, then the Federal Government shall appoint another person in accordance with the provisions of this section to fill the vacancy and the proceedings may be continued before the Tribunal from the stage at which the vacancy occurs.

(3) The Federal Government shall make available to the Tribunal such staff as may be necessary for the discharge of its functions under this Act.

(4) Subject to the provisions of section 9, the Tribunal shall have power to regulate its own procedure in all matters arising out of the discharge of its functions, including the place at which it will hold its sittings.

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(5) The Tribunal shall, for the purpose of making an inquiry under this Act, have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (Act V of 1908), while trying a suit in respect of the following matters, namely:—

(a) the summoning and enforcing the attendance of any witness and examining him on oath;

(b) the discovery and production of any document or other material object;

(c) the reception of evidence on affidavit;

(d) the requisitioning of any public record from any court or office;

(e) the issuing of commission for the examination of a witness.

(6) Any proceeding before the Tribunal shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 of the Pakistan penal Code (Act XLV of 1860), and the Tribunal shall be deemed to be a civil court for the purposes of section 195 and Chapter XXXV of the Code of Criminal Procedure, 1898 (Act V of 1898).

6. Finality, and cancellation, of notification.—(1) Subject to the provisions of sub-section (2), a notification issued under section 3 shall, if the declaration made therein is confirmed by the Tribunal by an order made under section 4, become final.

(2) Notwithstanding anything contained in sub-section (I), the Federal Government may, at any time, either on its own motion or on the application of any person aggrieved thereby, cancel a notification issued under section 3, whether or not the declaration made therein has been confirmed by the Tribunal.

7. Power to prohibit the use of funds of an anti-national association.—(1) Where any association has been declared anti-national by a notification issued under section 3 and the Federal Government is satisfied, after such inquiry as it may think fit, that any person has custody of any money, securities or credits which are being used or are intended to be used for the purposes of the anti-national association, the Federal Government may, by order in writing, prohibit such person from paying, delivering, transferring or otherwise dealing in any manner whatsoever with such moneys, securities or credits or with moneys, securities or credits which may come into his custody after the making of the order, save in accordance with the written orders of the Federal Government; and a copy of such order shall be served upon the person so prohibited in the manner specified in sub-section (3).

(2) The Federal Government may endorse a copy of an order made under sub-section (1) for investigation to any officer of the Government, and such copy shall be a warrant whereunder such officer may enter in or upon any premises of the person to whom the order is directed, examine the books of such person, search for moneys, securities or credits, and make inquiries from such person or any officer, agent or servant of such person, touching the origin of any dealings in any moneys, securities or credits which the investigation officer may suspect are being used or are intended to be used for the purposes of the anti-national association.

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(3) A copy of an order made under sub-section (I) shall be served in the manner provided in the Code of Criminal Procedure, 1898 (Act V of 1898), for the service of a summon or, where the person to be served is a corporation, company, bank or other association, it shall be served on any secretary, director or other officer or person concerned with the management thereof, or by leaving it or sending it by post addressed to the corporation, company, bank or other association at its registered office, or where there is no registered office, at the place where it carries on business.

(4) Any person aggrieved by an order made under sub-section (I) may, within ninety days from the date of the service of such order, make an application to the District Judge within the local limits of whose jurisdiction such person voluntarily resides or carries on business or personally works for gain, to establish that the moneys, securities or credits to which the order relates are not being used, or are not intended to be used, for the purposes of the anti-national association and the District Judge shall decide the question.

(5) Except so far as is necessary for the purposes of any proceedings under this section, no information obtained in the course of any investigation made under sub-section (2) shall be divulged by any person without the consent of the Federal Government.

(6) In this section, "security" includes a document whereby any person acknowledges that he is under a legal liability to pay money, or whereunder any person obtains a legal right to the payment of money.

8. Power to notify places used for purposes of an anti-national association.—(1) Where an association has been declared anti-national by a notification issued under section 3, the Federal Government may, by notification in the official Gazette, notify any place which in its opinion is used for the purposes of such association, hereinafter referred to as the notified place.

Explanation.— For the purposes of this sub-section, "place includes a house or building, or part thereof, and a tent or vessel".

(2) On the issue of a notification under sub-section (I) in respect of any place, the District Magistrate within the local limits of whose jurisdiction such notified place is situate, or any officer not below the rank of [1][an Executive Magistrate] authorised by him in writing in this behalf, shall make, in the presence of two respectable witnesses, a list of all movable properties found in such place.

(3) If, in the opinion of the District Magistrate, any articles mentioned in the list are, or may be used for the purposes of the anti-national association, he may make an order prohibiting any person from using the articles have in accordance with the written orders of the District Magistrate.

(4) The District Magistrate may thereupon make an order that no person who, at the date of the notification, was not residing in the notified place shall, without the permission of the District Magistrate, enter, or be on or in, the notified place:

Provided that no such order shall be made in respect of any person who is a near relative of, or has any professional business with, any person who was residing in the notified place at the date of the notification.

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(5) Where in pursuance of sub-section (4) any person is granted permission to enter, or to be on or in, the notified place, that person shall, while acting under such permission, comply with such orders for regulating his conduct as may be given by the District Magistrate.

(6) Any police officer, not below the rank of a sub-inspector, or any other person authorised in this behalf by the Federal Government may search any person entering, or seeking to enter or being on or in, the notified place and may detain any such person for the purpose of searching him:

Provided that no female shall be searched in pursuance of this sub-section except by a female.

(7) If any person is in the notified place in contravention of an order made under sub-section (4), then, without prejudice to any other proceedings which may be taken against him, he may be removed therefrom by any police officer or by any other person authorised in this behalf by the Federal Government.

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[1]Subs by Ord. XXVII of 1981, s.3, sch-II.

(8) Any person aggrieved by a notification issued in respect of a place under sub-section (I) or by an order made under sub-section (3) or sub-section (4) may, within thirty days from the date of the notification or order, as the case may be, make an application to the District Judge within the local limits of whose jurisdiction such notified place is situate—

(a) for a declaration that the place has not been used for the purpose of the anti-national association; or

(b) for setting aside the order made under sub-section (3) or sub-section (4),

and on receipt of the application the District Judge shall, after giving the parties an opportunity of being heard, decide the question.

9. Procedure to be followed in the disposal of applications under this Act. —Subject to any rules that may be made under this Act, the procedure to be followed by the Tribunal in holding any inquiry under sub-section (3) of section 4 or by the District Judge in disposing of any application under sub-section (4) of section 7 or sub-section (8) of section 8 shall, so far as may be, be the procedure laid down in the Code of Civil Procedure, 1908 (Act V of 1908), for the investigation of claims and the decision of the Tribunal or the District Judge, as the case may be, shall be final.

CHAPTER III
OFFENCES AND PENALTIES

10. Penalty for being member of an anti-national association. —Whoever is and continues to be a member of an association declared anti-national by a notification issued under section 3 or takes part in meetings of any such association, or contributes to, or receives or solicits any contribution for the purpose of, any such association or in any way assists the operations of any such association, shall be punishable with imprisonment for a term which may extend to two years, and shall also be liable to fine.

11. Penalty for dealing with funds of an anti-national association. —If any person on whom an order has been served under sub-section (1) of section 7 in respect of any moneys, securities or credits pays, delivers, transfers or otherwise deals in any manner whatsoever with such money, securities or credits in contravention of the order, he shall be punishable with imprisonment for a term which may extend to three years, and shall also be liable to fine, and, notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), the court trying such contravention may also impose on such person an additional fine to recover from him the amount of the moneys or credits, or the market value of the securities, in respect of which the order has been contravened or such part thereof as the court may deem fit.

12. Penalty for contravention of an order made in respect of a notified place.—(1) Whoever knowingly and wilfully is in, or effects or attempts to effect entry into, a notified place in contravention of an order made under sub-section (4) of section 8 in respect thereof shall be punishable with imprisonment for a term which may extend to one year, and shall also be liable to fine.

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(2) Whoever uses any article in contravention of an order in respect thereof made under sub-section (3) of section 8 shall be punishable with imprisonment for a term which may extend to one year, and shall also be liable to fine.

13. Punishment for anti-national activities.—(1) Whoever—

(a) takes part in or commits, or

(b) advocates or abets, or attempts to advocate or abet, the commission of,

any anti-national activity, shall be punishable with imprisonment for a term which may extend to seven years, and shall also be liable to fine.

(2) Whoever, in any way, assists any anti-national activity of any association declared anti-national under section 3, shall be punishable with imprisonment for a term which may extend to five years, and shall also be liable to fine.

CHAPTER IV
MISCELLANEOUS

14. Continuance of association. —An association shall not be deemed to have ceased to exist by reason only of any formal act of its dissolution or change of name but shall be deemed to continue so long as any actual combination for the purposes of such association continues between any members thereof.

15. Bar of jurisdiction, etc.—(1) Save as otherwise expressly provided in this Act, no order made or proceeding taken under section 3, section 7 or section 8 by the Federal Government or the District Magistrate or any officer authorised in this behalf by the Federal Government or the District Magistrate shall be called in question in any court, and no injunction shall be granted by any court or other authority in respect of any action taken or to be taken in pursuance of any power conferred by or under this Act.

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(2) Any person aggrieved by a decision of the Tribunal may, within ninety days from the date of such decision, prefer an appeal to the Supreme Court.

(3) Any person aggrieved by a decision of a District Judge may, within ninety days from the date of such decision, prefer an appeal to the High Court.

16. Prosecution for offences under this Act.—No court shall take cognizance of any offence punishable under this Act except with the previous sanction of the Federal Government or a Provincial Government or an officer authorised by either Government in this behalf.

17. Protection of action taken in good faith.—(1) No suit or other legal proceeding shall lie against the Government in respect of any loss or damage caused or likely to be caused by anything which is in good faith done or intended to be done in pursuance of this Act or any rules or orders made thereunder.

(2) No suit, prosecution or other legal proceeding shall lie against the District Magistrate or any officer authorised in this behalf by the Government or the District Magistrate in respect of anything which is in good faith done or intended to be done in pursuance of this Act or any rules or orders made there under.

18. Power to delegate. —The Federal Government may, by notification in the official Gazette, direct that all or any of its powers under section 7 or section 8 shall, in such circumstances and under such conditions, if any, as may be specified in the notification, be exercisable also by any Provincial Government and the Provincial Government may, with the previous approval of the Federal Government, by order in writing direct that any power which has been so directed to be exercised by it shall, in such circumstances and under such conditions, if any, as may be specified in the direction, be exercisable by any person subordinate to the Provincial Government, not being a person below the rank of Sub-divisional Magistrate, as may be so specified.

19. Act, etc., to override other laws. —The provisions of this Act or any rule or order made thereunder shall have effect notwithstanding anything inconsistent therewith contained in any enactment other than this Act or any instrument having effect by virtue of any enactment other than this Act.

20. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the service of notices or orders issued or made under this Act and the manner in which such notices or orders may be served, where the person to be served is a corporation, company, bank or other association;

(b) the procedure to be followed by the Tribunal or a District Judge in holding any inquiry or disposing of any application under this Act.

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21. Repeal, etc.—(1) In the Prevention of Anti-National Activities Ordinance, 1973 (XXIX of 1973), section 21 shall be omitted and shall be deemed always to have been omitted and the Criminal Law Amendment Act, 1908 (XIV of 1908), shall stand revived and shall have effect and shall be deemed always to have had effect as if it had never been repealed by the said Ordinance.

(2) The Prevention of Anti-National Activities Ordinance, 1973 (XXIX of 1973), is hereby repealed.

RGN Date: 21-05-2024

THE PREVENTION OF GAMBLING ACT, 1977

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THE PREVENTION OF GAMBLING ACT, 1977

[1]ACT NO. XXVIII OF 1977

[21st May, 1977]

An Act to provide for the prevention of gambling

WHEREAS it is expedient to provide for the prevention of gambling;

AND WHEREAS the Proclamation of Emergency referred to in Article 280 of the Constitution of the Islamic Republic of Pakistan is in force;

It is hereby enacted as follows:—

1. Short title, extent and commencement:— (1) This Act may be called the Prevention of Gambling Act, 1977.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "common gaming-house" means any house, room, tent, enclosure, vehicle, vessel or other place whatsoever in which any instruments of gaming are kept or used for gaming purposes—

(i) with a view of profit or gain of any person owning, occupying or keeping such house, room, tent, enclosure, vehicle, vessel or other place, whether by way of charge for the use of such house, room, tent, enclosure, vehicle, vessel or place or instruments or otherwise howsoever; or

(ii) with or without a view of such profit or gain, if the gaming for the purpose of which such instruments are so kept or used is gaming on any figures or numbers or dates to be subsequently ascertained or disclosed, or on the occurrence or non-occurrence of any natural event;

(b) "gaming" includes wagering or betting, including a wager or bet made in respect of any horse, mare or gelding running in competition with any other horse, mare or gelding, or of the rider thereof;

(c) "instruments of gaming" includes any article used or intended to be used as a means or appurtenance of, or of carrying on or facilitating, gaming, and any documents used as a register or record or evidence of any gaming; and

[1] For Statement of Objects and Reasons, see Gaz. of P., 1977, Ext., Pt. III, p. 3544.
This Act has ceased to have effect w.e.f. 15-3-78 clue to the revocation of Proclamation of Emergency on 15-9-77, under Article 232 of the Constitution of Pakistan. 1973 except the Islamabad Capital Territory.

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(d) "prescribed" means prescribed by rules made under this Act.

3. Penalty for owning or keeping or having charge of a common gaming-house:— (1) Whoever—

(a) being the owner or occupier, or having the use, of any house, room, tent, enclosure, vehicle, vessel or other place, keeps or uses, or knowingly or wilfully permits the same to be occupied, kept or used by any other person as a common gaming-house; or

(b) has the care or management, or in any manner assists in conducting the business, of any common gaming house; or

(c) advances or furnishes money for the purpose of gaming with persons frequenting any common-gaming-house,

shall be punishable with imprisonment for a term which shall not be less than one month nor more than one year, or with fine which shall not be less than one hundred rupees nor more than one thousand rupees, or with both.

(2) In a prosecution under sub-section (1), it shall not be necessary to prove that the person found playing was playing for any money, wager or stake.

4. Penalty for being found in common gaming house:— (1) Whoever is found in any common gaming-house playing or gaming with cards, dice, counters, money or other instruments of gaming, or for the purpose of gaming, whether for any money, wager or stake or otherwise, shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to five thousand rupees, or with both.

(2) Any person found in any common gaming-house during any gaming or playing therein shall be presumed, until the contrary be proved, to have been there for the purpose of gaming.

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5. Penalty for gaming in a public place. Whoever is found gaming in any public place, street or thoroughfare, shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to five hundred rupees, or with both.

6. Penalty for gaming in private places, etc. Whoever is found gaming in any house, room, tent, enclosure, vehicle, vessel or other place shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

7. Enhanced punishment for subsequent offences. Whoever, having been convicted of any offence under this Act, again commits any such offence shall be punishable for every such subsequent offence with imprisonment for a term which may extend to three years, or with fine which may extend to two thousand rupees, or with both.

8. Power to enter and search. If a District Magistrate, Sub-divisional Magistrate, Magistrate of the first class upon information and after such inquiry as he thinks necessary, has reason to believe that any place is used as a common gaming-house, or that an offence under section 6 is being committed at or in any place, he may—

(a) enter such place at any time with such assistance as he may require and using such force as may be necessary:

Provided that, if such place is in the actual occupancy of a woman who, according to custom, does not appear in public, the officer so entering such place shall give notice to her that she is at liberty to withdraw and, after allowing reasonable time for her to withdraw and giving her reasonable facility for withdrawing, may enter the place;

(b) search such place for any instruments of gaming kept or concealed therein, and also the person of all those who are found in that place, except the women;

(c) seize and take possession of gaming moneys and securities for money and articles of value reasonably suspected to have been used or intended to be used for the purpose of gaming which are found therein or upon any person found therein; and

(d) take into custody all persons, except women, found in that place, whether or not then actually gaming.

9. Presumption with respect to common gaming-house and persons present therein. When any cards, dice, gaming-tables, gaming clothes, gaming-boards or other instruments of gaming are found in any house, room, tent, enclosure, vehicle, vessel or other place entered or searched under the provisions of section 8, or upon any person found therein, it shall be presumed, until the contrary is proved, that such house, room, tent, enclosure, vehicle, vessel or other place is used as a common gaming-house and that any person found therein was there present for the purpose of gaming, although no play was actually seen by the officer making the entry or search.

10. Tender of pardon to an accomplice. Any person who shall have been concerned with any gaming contrary to this Act and who shall be examined as a witness before a Magistrate on the trial of any person for a breach of any of the provisions of this Act relating to gaming and who, upon such examination, shall in the opinion of the Magistrate make true and faithful discovery to the best of his knowledge of all things as to which he shall be so examined, shall thereupon receive from the said Magistrate a certificate in writing to this effect and shall be freed from all prosecutions under this Act for anything done before that time in respect of such gaming.

[1]**11. Saving.—**Nothing in this Act shall apply to games played in a Tourist Complex which is established and maintained under, and in accordance with the terms of, a licence granted by the Provincial Government and to which only foreigners are admitted.

[2] **[l2. Act to override other laws, etc**:—(1) This Act shall have effect notwithstanding anything contained in any other law for the time being in force.]

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[1]This section is not applicable in ICT vide (Amdt.) Act, 1987 (Act No. XIII of 1987) s.2.
[2] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 5 and Sch. 4 (to the extent of I.C.T.)

THE PREVENTION OF SEDITIOUS MEETINGS ACT, 1911

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THE PREVENTION OF SEDITIOUS MEETINGS ACT, 1911

[1]Act No. X of 1911

[22nd March, 1911]

An Act to consolidate and amend the law relating to the prevention of public meetings likely to promote sedition or to cause a disturbance of public tranquility.

WHEREAS it is expedient to consolidate and amend the law relating to the prevention of public meetings likely to promote sedition or to cause a disturbance of public tranquility; It is hereby enacted as follows :-

1. Short title and extent.— (1) This Act may be called the Prevention of Seditious Meetings Act, 1911.

(2) It extends to [2][the whole of Pakistan], but shall have operation only in such [3][Province or parts of a Province] as the [4][Provincial Government] may from time to time notify in the [5][official Gazette].

2. Power of provincial Government to notify proclaimed areas.— (1) The [6][Provincial Government] may [7]* * * by notification in the [7][official Gazette], declare the whole or any part of a Province, in which this Act is for the time being in operation, to be a proclaimed area.

(2) A notification made under sub-section (1) shall not remain in force for more than six months, but nothing in this sub-section shall be deemed to prevent the [5][Provincial Government] [6]* * * from making any further notifications in respect of the same area from time to time as it may think fit.

3. Definition.— (1) In this Act, the expression "public meeting" means a meeting which is open to the public or any class or portion of the public.

(2) A meeting may be a public meeting notwithstanding that it is held in a private place and notwithstanding that admission thereto may have been restricted by ticket or otherwise.

4. Notice to be given of public meetings.—(1) No public meeting for the furtherance or discussion of any subject likely to cause disturbance or public excitement, or for the exhibition or distribution of any writing or printed matter relating to any such subject, shall be held in any proclaimed area –

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1911, Pt. V. p 100 ; and for Report of Select Committee, *see ibid*., 1911, Pt. V, p. 100 ; and for Proceedings in Council, *see ibid*., 1911, Pt. VI, pp. 362 and 452.
This Act has been amended to the extent of Islamabad Capital Territory *see*, Ordinance No. XXVII of 1981, s. 5 and 4th Sch.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "all the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "the whole of British India".
[3]Subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for "Provinces or parts of Provinces".
[4]Subs. by A.O., 1937 for "G. G. in C.".
[5]Subs *ibid*., for "Gazette of India".
[6] Subs. *ibid*., for "L. G.".
[7]The words "with the previous sanction of the G. G. in C." rep., *ibid*

(a) unless written notice of the intention to hold such meeting and of the time and place of such meeting has been given to the District Magistrate [1]* * *at least three days previously ; or

(b) unless permission to hold such meeting has been obtained in writing from the District Magistrate [1]* * *

Power of Magistrate to cause report to be taken. (2) The District Magistrate or any Magistrate of the first class authorized by the District Magistrate in this behalf may, by order in writing, depute one or more Police-Officers, not being below the rank of head constable, or other persons, to attend any such meeting for the purpose of causing a report to be taken of the proceedings.

Exception- (3) Nothing in this section shall apply to any public meeting held under any statutory or other express legal authority [2]* * *, or to any public meetings or class of public meetings exempted for that purpose by the [3][Provincial Government] by general or special order.

5. Power to prohibit public meetings. The District Magistrate [4] * * *, may at any time, by order in writing, of which public notice shall forthwith be given, prohibit any public meeting in a proclaimed area, if, in his opinion, such meeting is likely to promote sedition or disaffection or to cause a disturbance of the public tranquility.

6. Penalties. (1) Any person concerned in the promotion or conduct of a public meeting held in a proclaimed area contrary to the provisions of section 4 shall be punished with imprisonment for a term which may extend to six Months, or With fine, or with both.

(2) Any public meeting which has been prohibited, under section 5 shall be deemed to be an unlawful assembly within the meaning of Chapter VIII of the Pakistan Penal Code (XLV of 1860) and of Chapter IX of the Code of Criminal Procedure, 1898 (V of 1898).

7. Penalty for delivery of speeches in public places. Whoever, in a proclaimed area, in a public place or a place of public resort, otherwise than at a public meeting held in accordance with, or exempted from, the provisions of section 4, without the permission in writing of the Magistrate of the District [5]* * *, previously obtained, delivers any lecture, address or speech on any subject likely to cause disturbance or public excitement to persons then present, may be arrested without warrant, and shall be punished with imprisonment for a term which may extend to six months, or with fine, or with both.

8. Cognizance of offences: No Court inferior to that [6]* * * of a Magistrate of the first class or Sub-divisional Magistrate shall try any offence against this Act.

9. [*Repeals.*] *Rep. by the Repealing Act, 1927 (XII of 1927), s. 2 and Schedule.*

Date: 11-09-2024

[1]The words and comma "or the Commissioner of Police, as the case may be" omitted by A. O., 1949, Sch.
[2]The words "or to public meetings convened by a sheriff" omitted by A. O., 1949, Sch.
[3]Subs. by A. O 1937, for "L. G."
[4]The words and comma "or the Commissioner of Police, "the case may be" omitted by A. O., 1949, Sch
[5]The words and comma "or of the Commissioner of Police, as the case may be" omitted, *ibid.*
[6]The words "of a Presidency Magistrate or" omitted, *ibid*.

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THE PREVENTION OF SMUGGLING ACT, 1977

Act No. XXII of 1977

[5th May, 1977]

An Act to provide for effective prevention of smuggling and for matters connected therewith.

WHEREAS it is expedient to provide for effective prevention of smuggling and for matters connected therewith.

It is hereby enacted as follows:—

CHAPTER I
PRELIMINARY

1. Short title, extent and commencement.— (1) This Act may be called the Prevention of Smuggling Act, 1977.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such [1]day as the Federal Government may, by notification in the official Gazette, appoint.

2. Definitions.— (1) In this act, unless there is anything repugnant in the subject or context,—

(a) "associate" in relation to a person, means—

(i) any individual who is or has been residing in the residential premises, including out-houses and servant-quarters, of such person;

(ii) any individual who is or has been managing the affairs or keeping the accounts of such person;

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(iii) any association of persons, body of individuals, partnership firms, or private limited company within the meaning of companies Act, 1913 (VII of 1913), of which such person is or has been a member, partner or director;

(iv) any individual who is or has been a member, partner or director of an association of persons, body of individuals, partnership firm or a private limited company referred to in sub-clause (iii);

(v) a trustee of any trust created by such person; or

(vi) where the Special Judge, for reasons to be recorded, considers that any property of such person is held on his behalf by any other person, such other person;

[1]I.e. the 16th day of May, 1977, see Gaz. of P., 1977, Ext. (Islamabad), Pt. II, p. 829.

(b) "prescribed" means prescribed by rules made under this Act;

(c) "property" includes property held outside Pakistan and any interest in property;

(d) "property acquired by smuggling" means property acquired, whether before or after the commencement of this Act, by any person the aggregate value of the property held by whom exceeds one lac rupees, either wholly or partly.

Explanation.—In this clause, "value" means the market-value at the time the property in question was acquired;

(e) "relative", in relation to a person, means—

(i) spouse of the person;

(ii) brother or sister of the person; .

(iii) brother or sister of the spouse of the person;

(iv) any lineal ascendant or descendant of the person;

(v) any lineal ascendant or descendant of the spouse of the person;

(vi) spouse of a person referred to in sub-clauses (ii), (iii), (iv) or (v); or

(vii) any lineal descendant of a person referred to in sub-clause (ii) or (iii);

(f) "smuggling" has the same meaning as in clause (s) of section 2 of the Customs Act, 1969 (IV of 1969), but, in Chapter II, relates only to the taking of goods out of Pakistan;

(g) "Special Appellate Court" means a Special Appellate Court constituted under section 46; and

(h) "Special Judge" means a Special Judge appointed under section 44.

(2) Expressions used in this Act but not herein defined shall have the same meaning as are assigned to them in the Code of Criminal Procedure, 1898 (V of 1898) or the Customs Act, 1969 (IV of 1969).

CHAPTER II
PREVENTIVE DETENTION

3. Preventive detention.— (1) In order to maintain supplies essential to the community, if the Federal Government or a Provincial Government is satisfied that, for preventing any person from indulging in smuggling, it is necessary to detain him, it may, by an order in writing, direct the arrest and detention of such person for such period as may, subject to the provisions of this Act, be specified in the order.

(2) When an order of detention is made by the Provincial Government, it shall immediately forward to the Federal Government a report in respect of that order and, when such order is made by the Federal Government, it shall immediately intimate this fact to the Provincial Government of the Province in which such person ordinarily resides.

(3) An order of arrest under sub-section (1) may be addressed to a police officer or any other person and such officer or person shall have the power to arrest the person mentioned in the order and, in doing so, he may use such force as may be necessary.

(4) The police officer or other person, as the case may be, arresting a person in pursuance of an order under sub-section (1) shall commit the arrested person to such custody as may be specified under sub-section (5).

(5) Every person in respect of whom a detention order has been made shall be detained in such custody and under such conditions as to maintenance, interviews or communication with others, discipline and punishment for breach of discipline as the Federal Government may, by general or special order, specify.

(6) Where a detention order has been made under subsection (1) against any person, the Government making the order shall, as soon as may be, but not later than fifteen days from the date of detention, communicate to such person the grounds on which the order has been made and shall afford him the earliest opportunity of making a representation against the order:

Provided that the Government may refuse to disclose facts the disclosure of which it considers to be against the public interest.

(7) Where a representation is made to the Government under sub-section (6), it may, on consideration of the representation and giving the person detained an opportunity of being heard, modify, rescind or confirm the order.

4. Powers to deal with an absconding person.—(1) If the Federal Government, or as the case may be, a Provincial Government has reason to believe that a person in respect of whom a detention order has been made is absconding or is concealing himself so that the order cannot be executed that Government may:—

(a) send a report in writing of the fact to the Magistrate having jurisdiction in the place where such person ordinarily resides or has his property, and thereupon the Magistrate shall take proceedings under sections 87, section 88 and section 89 of the Code of Criminal Procedure, 1898 (Act V of 1898) in respect of such person and his property as if the detention order were a warrant issued by such Magistrate; or

(b) by order published in the official Gazette or any news paper, direct such person to appear before such officer, at such place and within such period as may be specified in the order; and if such person fails to comply with such direction, he shall, unless he proves that it was not possible for him to comply therewith and that he had, within the period specified in the order, informed the officer mentioned in the order of the reason which rendered compliance therewith

impossible and of his whereabouts, be punishable with imprisonment for a term which may extend to two years, or with fine, or with both.

(2) A police officer, not below the rank of sub-inspector, if satisfied on the receipt of credible information that a person against whom an order of arrest and detention has been made under sub-section (1) of section 3 is present within his jurisdiction, may arrest him without a warrant in the same manner as he would have done if such order of arrest had been addressed to him and thereupon commit the arrested person to such custody as may be specified under sub-section (5) of section 3, or, if he receives any requisition in this behalf from the police officer or other person to whom the detention order has been addressed for execution, he shall commit the person arrested to the custody of such police officer or other person.

(3) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), an offence under clause (b) of subsection (1) shall be cognizable and non-bailable.

5. Review Boards.— (1) As soon as may be, the Federal Government and each Provincial Government shall constitute one or more Review Boards, each consisting of a Chairman and two other persons, each of whom is or has been a Judge of the Supreme Court or a High Court to be appointed by the Chief Justice of Pakistan.

(2) The opinion of the Review Board shall be expressed in terms of the views of the majority of its members, including the Chairman.

(3) A person shall not be detained under an order made under section 3 for a period exceeding three months unless the Review Board, to which a reference shall be made by the Government making such order, has reported, before the expiration of the said period, that there is, in its opinion, sufficient cause for such detention, and, if the detention is continued after the said period of three months, unless the Review Board has again reviewed his case and reported, before the expiration of each period of three months, that there is, in its opinion, sufficient cause for such detention.

(4) For the purpose of the proviso to clause (7) of Article 10 of the Constitution, smuggling shall be an anti-national activity.

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(5) Where a person is to be detained for a period exceeding three months, the Federal Government, or as the case may be, the Provincial Government shall, before the expiration of that period, refer his case to the Review Board and shall furnish to the Review Board all documents relevant to the case unless a certificate, signed by a Secretary to the Government concerned, to the effect that it is not in the public interest to furnish any documents, is produced.

(6) The Review Board shall, after affording the person detained an opportunity of being heard in person and considering the material placed before it, including the representation, if any, made by such person and, if necessary, calling for any further information from the Government, submit its report, before the expiration of the period of three months mentioned in sub-section (3), to the Government.

(7) If, in any case, the Review Board reports that there is, in its opinion, no sufficient cause for further detention of the person whose case has been referred to it, the Government concerned shall

revoke the detention order and direct that such person be released immediately or on the expiry of' the period of detention.

(8) If the Board reports that there is, in its opinion, sufficient cause for the detention of such person, the Government concerned may, subject to the provisions of sub-section (3), continue to detain him for such period as it may deem fit.

(9) The Review Board shall determine the place of detention of the person detained and fix a reasonable subsistence allowance for his family; and thereupon such person shall, if he is detained elsewhere in pursuance of an order made under sub-section (4) of section 3, immediately be shifted to and detained at the place specified by the Board.

(10) A person whose case has been referred to the Review Board under sub-section (5) shall not be entitled to be represented or defended by a legal practitioner before the Board, and the proceedings and the report of the Board, excepting that part of the report in which the opinion of the Board is specified, shall be confidential.

6. Power to revoke or modify detention order.— (1) Without prejudice to the provisions of section 21 of the General Clauses Act, 1897 (X of 1897), a detention order may, at any time, be revoked or modified:—

(a) by the Government by which such order was made; or

(b) by the Federal Government if the order was made by any of its officers or by any Provincial Government or any officer of that Government.

(2) The revocation, otherwise than on the recommendation of the Review Board, of a detention order against any person, or the expiry of any such order, shall not bar the making, against the same person and on the same grounds, of a fresh detention order:

Provided that a person shall not be detained under successive orders on the same grounds for a period-exceeding three months in the aggregate unless the Review Board has reported before the expiration of the said period that there is, in its opinion, sufficient cause for such detention.

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Explanation.— In computing the aggregate period of three months, there shall be excluded any period for which the person concerned has been detained with the authority of the Review Board under section 5.

7. Delegation. The Federal Government or, as the case may be, a Provincial Government may, by notification in the official Gazette, delegate all or any of its powers under this Chapter to any of its officers, not below the rank of a Joint Secretary, in case the delegation is to be made by the Federal Government, and, not below the rank of a Secretary, if the delegation is to be made by a Provincial Government.

CHAPTER III
SECURITY AND OTEHR PROCEEDINGS

8. Power to require person suspected of smuggling to appear. Whenever a Special Judge has information that there is within the limits of his jurisdiction any person who, within or without

such limits, is indulging in smuggling, such Judge may, if he is of the opinion that there is sufficient ground for proceeding, require such person, in the manner hereinafter provided, to appear before him.

9. Power of Special Judge to have inquiry conducted by Magistrate, etc.— (1) If the Special Judge receives credible information that any person within his jurisdiction is indulging in smuggling but there is no sufficient ground for proceeding against him under section 8, the Special Judge may direct any Magistrate or police officer or officer of any other Department to hold a preliminary inquiry into the truth of such information and submit his report within such period as the Special Judge may specify and such Magistrate or officer shall comply with such direction.

(2) On the-receipt of such report, if the Special Judge is satisfied that there is sufficient ground for proceeding against the person in respect of whom the report has been received, the Special Judge shall proceed under section 8.

(3) If the report discloses no sufficient ground for proceeding against the person under any provision of this Act, the Special Judge may file the report.

10. Power to proceed against person accused of smuggling.— (1) When the Special Judge acting under section 8 deems it necessary to proceed against the person in respect of whom such information has been received, he shall make an order in writing setting forth the substance of such information and his reasons for taking action.

(2) If the person in respect of whom such order is made is present in court, it shall be read over to him and, if he so desires, the substance thereof shall be explained to him.

(3) If such person is not present in court, the Special Judge shall issue a summons requiring him to appear or, if such person is in custody, make an order directing the officer in whose custody he is to bring him before the Court:

Provided that the Special Judge may, at any time, issue a warrant, bailable or nonbailable, for the arrest and production of such person before him if he is satisfied that—

(i) such person is purposely avoiding service of summons; or

(ii) such person does not appear inspite of service of the summons; or

(iii) for any other reason to be recorded,

it is necessary to issue a warrant.

11. Report to Magistrate in respect of absconder, etc. If the Special Judge has reason to believe that a person against whom a warrant of arrest has been issued under subsection (3) of section 10 has absconded or is concealing himself to avoid the execution of the warrant, the Special Judge may make a report to the Magistrate having jurisdiction in the area where such person ordinarily resides or has property, and the Magistrate shall take proceedings under sections 87, 88 and 89 of the Code of Criminal Procedure, 1898 (Act V of 1898), in respect of such person and his property as if the warrant were a warrant issued by such Magistrate.

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12. Summons, etc., to embody substance of order. Every summons or warrant issued under sub-section (3) of section 10 shall, so far as possible, embody the substance of the order made under sub-section (1) of that section.

13. Power to dispense with personal appearance. The Special Judge may, for sufficient reason, dispense with the personal attendance of any person called upon to show cause under section 10 and may permit him to appear by an advocate, subject to such conditions, if any, that the Judge may deem fit to impose and may, at any time, revoke the order dispensing with such attendance.

14. Inquiry by Special Judge.—(1) When an order made under sub-section (l) of section 10 has been read over under sub-section (2) thereof, or when any person appears or is brought before the Special Judge in compliance with, or its execution of, a summons or a warrant issued under sub-section (3) of that section, the Special Judge shall proceed to inquire into the truth of the information upon which the action has been taken and to take such further evidence as may appear necessary:

Provided that, if, before the commencement of evidence, the person complained against requests for a copy of such information, it shall be supplied to him free of cost.

(2) Such inquiry shall, subject to the provisions of this Act, be made, as nearly as may be practicable, in the manner prescribed in the Code of Criminal Procedure, 1898 (Act V of 1898) for conducting trials and recording evidence in cases triable by a Court of Session, except that no charge need be framed:

Provided that any omission or failure to follow that procedure shall not, unless it has occasioned a failure of justice, vitiate the proceedings.

(3) For the purpose of conducting inquiry under this Chapter, the Special Judge shall have all the powers of a Sessions Judge for issuing summons and warrants, compelling the attendance of witnesses and production of documents, exanimation of witnesses and issuing commissions for examination of witnesses.

(4) Pending the completion of the inquiry under sub-section (1), the Special Judge may direct the person against whom the inquiry is pending to execute a bond, with or without sureties, undertaking therein to desist from indulging in smuggling until the conclusion of the inquiry and to appear before the Special Judge on every date of hearing, and may detain him in custody until such bond is executed or, in default of execution, until the inquiry is concluded:

Provided that the Special Judge may, for reasons to be recorded, instead of taking a bond as aforesaid, of der the detention of such person in such prison as the Special Judge thinks suitable, but such detention shall not exceed three months.

(5) Where two or more persons have been associated in the matter under inquiry, they may be dealt within the same or a separate inquiry as the Special Judge deems fit.

15. Power to require bond.— (1) If, upon such inquiry, the Special Judge is satisfied that, with a view to preventing such person from indulging in smuggling, it is necessary that he should be required to execute a bond with sureties for a period not exceeding three years, the Special Judge shall make an order accordingly :

Provided that—

(a) the amount of each bond shall be fixed with due regard to the circumstances of the case; and

(b) if such person is a minor, the bond shall be executed only by his sureties.

16. Contents of bond, etc. In the bond to be executed under section 15, such person shall undertake to desist from indulging in smuggling for the period specified in the bond and the commission or abetment of, or attempt to commit, the offence of smuggling, shall -be a breach of the bond.

17. Habitual offenders.— (1) If, upon such inquiry, the Special Judge is satisfied that such person—

(a) habitually indulges in smuggling; or

(b) habitually receives smuggled goods; or

(c) habitually protects, harbours or aids, financially or otherwise, persons indulging in smuggling;

such Judge may, in addition to, or in substitution of, requiring such person to execute a bond under section 15, direct—

(i) that his movements be restricted to any place or area and that he shall report himself at such time and place and in such mode as may be specified in the order; or

(ii) that he shall not reside within the area specified in the order and shall report himself at such time and place and in such mode as may be specified in that order:

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Provided that, if such person, at the time when an order is made under this sub-section, is sentenced to, or is under going a sentence of, imprisonment or is detained under any law providing for preventive detention, the operation of the order shall be deferred till the expiry of the period of imprisonment or detention.

(2) No order made under sub-section (1) shall be operative for a period exceeding three years.

(3) If a person against whom an order has been made under sub-section (1) fails, without reasonable, cause, to comply with such order, he shall be punished with imprisonment for a term which may extend to three years, or with fine, or with both.

(4) An offence under sub-section (3) shall be cognizable and non-bailable.

18. Action where Special Judge does not proceed under section 15 or 17. If, upon such inquiry, the Special Judge does not consider it necessary to take any action under section 15 or section 17, he shall make an order accordingly and the person against whom the inquiry has been conducted

shall be discharged and, if he is in custody only for the purpose of the inquiry, he shall be released forthwith.

19. Order in respect of person in custody or detention. If any person in respect of whom an order requiring security has been made under section 15 is, at the time when such order is made, sentenced to, or undergoing a sentence of imprisonment or is detained under any law providing for preventive detention, the period for which such security is required shall commence on the expiration of such sentence or detention.

20. Power to reject surety.— (1) A Special Judge may refuse to accept any surety offered, or may reject any surety previously accepted by him or his predecessor, on the ground that such surety is an unfit person for the purpose of the bond:

Provided that, before so refusing to accept or rejecting any such surety, he shall either himself hold an inquiry on oath into the fitness of the surety or cause such inquiry to be made by any Magistrate.

(2) The Special Judge, or as the case may be, the Magistrate who has been directed to hold such inquiry, shall, before holding the inquiry, give reasonable notice to the surety and the person by whom the surety was or has been offered and shall in making the inquiry record the substance of the evidence adduced before him.

(3) If the Special Judge is satisfied after considering the evidence so adduced before him, or before a Magistrate deputed under sub-section (1) and the report of such Magistrate, that the surety is an unfit person for the purpose of the bond, he shall make an order refusing to accept or rejecting, as the case may be, such surety after recording his reasons therefor:

Provided that, before making an order rejecting any surety who has previously been accepted, the Special Judge shall issue a summons or warrant as he thinks fit and cause the person for whom the surety is bond to appear or to be brought before him.

21. Person failing to give security.— (1) If any person ordered to give security under section 15 does not give such security on or before the date on which the period for which such security is to be given commences, he shall be committed to prison or, if he is already in prison, be detained in prison until he gives the security or such period expires:

Provided that the period for which any person is imprisoned for failure to give security shall not exceed three years.

(2) If the security is tendered to the officer-in-charge of the prison, he shall forthwith refer the matter to the Special Judge who made the order and shall await his orders.

(3) Imprisonment for failure to give security may be simple or rigorous as the Special Judge may direct.

(4) Whenever the Special Judge is of the opinion that for reasons of health or otherwise it is expedient to release any person imprisoned for failing to give security under section 15, he may direct the release of such person either without conditions or upon any condition which such person accepts:

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Provided that any condition imposed shall cease to be operative on the expiration of the period for which such person was ordered to give security.

(5) If the condition, if any, upon which any such person has been released is, in the opinion of the Special Judge by whom the order of release was made or of his successor, not fulfilled, he may cancel the conditional order passed under sub-section (4) and direct that such person may be arrested and produced before him.

(6) When such person is brought before the Special Judge, he may be directed to give security in accordance with the terms of the original order for the unexpired portion of the term for which he was in the first instance ordered to be detained for his failure to give security and, if he fails to give such security, the Special Judge may remand such person to prison to undergo the unexpired portion of the term, after deducting such period of conditional discharge as the Special Judge may deem fit to specify.

(7) A person remanded to prison under sub-section (6) shall be released on his given security in accordance with the terms of the original order for the unexpired portion of the term specified in that order.

22. Surety may ask for cancellation of bond. Any surety may at any time apply to the Special Judge for the cancellation of a bond executed by him under this Chapter and the Special Judge may issue a summons or warrant, as he thinks fit, requiring the person for whom such surety is bound to appear or to be brought before him.

23. Cancellation of bond and execution of fresh bond. When a person for whose appearance a summons or warrant has been issued under the proviso to sub-section (3)of section 20 or under section 22 appears or is brought before him, the Special Judge shall cancel the bond executed by such person and shall direct such person to give, for the unexpired portion of the period of such bond, fresh security of the same description as the original security and every such direction shall, for the purpose of sections 20, 21 and 22, be deemed to be an order made under section 17.

24. Deposit of money in lieu of execution of bond. A person required to execute a bond, with or without sureties, under this Chapter, may be permitted by the Special Judge to deposit in such manner a sum of money or Government promissory notes or bank guarantee to such amount as the Special fudge may specify, in-lieu of executing a bond.

25. Forfeiture of bond.— (1) Whenever it is proved to the satisfaction of the Special Judge that a bond executed under this Chapter has been forfeited, he may call upon any person bound to pay the penalty thereof.

(2) If the penalty of any part thereof is not paid, the Special Judge may proceed to recover the same by issuing a warrant for the attachment and sale of the movable or immovable property, or both, belonging to such person, or his estate if he dies after the order for forfeiture of the bond is passed.

(3) When executing the warrant for the attachment and sale of the property or estate of such person, the Special Judge shall, as nearly as possible, follow the procedure for attachment and sale of property as laid down in section 88 of the Code of Criminal Procedure, 1898 (Act V of 1898):

Provided that, if such person, after the attachment of his property, pays the penalty, the order of attachment shall be withdrawn.

(4) If such penalty or any part thereof is not paid and cannot be recovered by such attachment and sale, such person shall be liable, by order of the Special Judge who issued the warrant, to imprisonment for a term which may extend to one year; and such imprisonment may either be simple or rigorous, as the judge may direct.

(5) The Special Judge may, for reasons to be recorded, remit any portion of the penalty and enforce payment in part only.

26. Execution of fresh bond in certain circumstances. When a surety to a bond under this Chapter becomes insolvent or dies, or when the bond is forfeited under section 25, the Special Judge by whose order such bond was taken may order the person from whom the bond was demanded to execute a fresh bond in accordance with the directions of the original order and, if such person fails to do so, the Special Judge may proceed as if there had been a default in compliance with such original order.

27. Recovery of amount of penalty. For recovering the amount of penalty or any portion thereof under section 25, the Special Judge may direct that it may be recovered as an arrear of land revenue or may call upon the Magistrate having jurisdiction to assist him in effecting such recovery and the Magistrate shall render all necessary assistance in this regard.

28. Person required to execute bond may be photographed, etc. Every person in respect of whom an order has been made under section 15 or section 17 shall, if so directed by the Special Judge, present himself before such officer and at such time and place as may be specified in the order for being photographed, for giving his finger-impressions or specimens of his handwriting and signatures and he shall allow himself to be photographed and affix his finger impressions or supply specimens of his handwriting and signatures.

29. **Appeal.**—(1) An appeal Against an order made by a Special Judge under sub-section (4) of section 14, section 15, section 17, sub-section (3) of section 20, section 21 or subsection (2) of section 25 shall lie to the Special Appellate Court, within thirty days from the date of the order.

(2) The Special Appellate Court on hearing the appeal may—

(a) accept the appeal and set aside the order appealed against; or

(b) dismiss the appeal; or

(c) subject to the provisions of this Act, modify the order appealed against in such manner as it may think fit.

(3) The provisions of the Limitation Act, 1908 (IX of 1908), shall apply to an appeal under sub-section (1).

CHAPTER IV

FORFEITURE OF PROPERTY

30. Property acquired by smuggling not to be held.— (1) It shall not be lawful for any person to hold, either in his own name or in the name of any relative or associate, any property acquired by smuggling.

(2) Any such property held in contravention of the provisions of sub-section (1) shall be liable to be forfeited to the Federal Government in the manner hereinafter provided.

31. Notice to person holding property suspected to be acquired by smuggling.— (1) Whenever a Special Judge receives information that within the limits of his jurisdiction any person, either in his own name or in the name of any relative or associate, is holding property which is reasonably suspected to be acquired by smuggling, the Special Judge may issue to such person a notice calling upon him to show cause, within such time as may be specified in the notice, which shall not be less than thirty days, why the whole or any part of such property should not be declared to be property acquired by smuggling and to be forfeited to the Federal Government:

Provided that no such notice shall be issued unless, having regard to the value of his assets, his known sources of income, his style of living, his previous involvement in 12 smuggling or conviction under any law relating to the prevention of smuggling and other similar factors, the Special Judge has reason to believe (which reason he shall record in writing) that there is sufficient ground for proceeding against such person.

(2) A notice issued under sub-section (1) shall, among other things, require such person to indicate the sources of his income the income and assets out of which, or by means of which, he has acquired such property, the-evidence he relies upon and other relevant information and particulars.

(3) Where a notice under sub-section (1) issued to any person specifies any property as being held on his behalf by any of his relatives or associates, a copy of the notice shall also be served upon such relative or associate.

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32. Order of Special Judge.— (1) The Special Judge may, after considering the explanation, if any, to the notice issued under section 31 and the evidence recorded or produced before him, and after giving the relative or associate of such person, in case a copy of the notice has also been served on him, a reasonable opportunity of being heard, by an order, record a finding whether the property to which the notice relates is property acquired by smuggling.

(2) Where the Special Judge is satisfied that any of the properties mentioned in the notice issued under section 31 are properties acquired by smuggling but he is not able to specifically identify such property, then it shall be lawful for him to specify the properties which, to the best of his judgement, are properties acquired by smuggling and to record a finding accordingly under sub-section (1).

(3) Where a Special Judge records the finding under subsection (1) that any property is property acquired by smuggling, he shall declare that such property shall, subject to the provisions of this Chapter, stand forfeited to the Federal Government and vest in that Government free from all encumbrances.

(4) Where an order of forfeiture of property passed under sub-section (3) is in respect of any share in a company registered under the Companies Act, 1913 (VII of 1913), then the company shall, notwithstanding anything contained in that Act or its memorandum or articles of association, forthwith register the Federal Government as transferee of such shares.

33. Burden of proof. In any proceedings under this Chapter, the burden of proving that any property specified in a notice issued under section 31 is not property acquired by smuggling shall be on the person to whom such notice is issued and, on his relatives, or associates, if any, on whom a copy of such notice has been served.

34. Option to pay fine in lieu of property forfeited.— (1) Where by virtue of a declaration made by a Special Judge under section 32 only less than half of any property stands forfeited to the Federal Government and such property is indivisible or cannot be easily separated from the rest without substantially imparing the value of the property, the person holding it prior to such declaration shall be given by the Special Judge an option to pay in lieu of forfeiture of that part of the property a fine equal to the market value of the property prevalent at the time of its forfeiture.

(2) Where such person pays the fine in lieu of forfeiture, within such time as may be allowed to him, the Special Judge may, by order, revoke the declaration of forfeiture made under section 32 and thereupon such property shall stand released.

35. Transfer of certain property void.— (1) After the issue of a notice or copy of a notice under section 31, the property mentioned in such notice shall not be transferred by any mode whatsoever, nor shall any change be created thereon, which proceedings under this Chapter are pending and any transfer of such property or creation of charge in contravention of this section shall be void; and if such property is subsequently forfeited to the Government under section 32, it shall vest in that Government free of any encumbrances created after the issue of the notice.

(2) Any person who transfers any property, or creates a charge thereon, in contravention of sub-section (1) shall be punishable with imprisonment for a term which may extend to three years and shall also be liable to fine.

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36. Notice, etc., not to be called in question. No notice issued or served, declaration made and order passed under this Chapter shall be called in question by any court, except as provided in this Chapter, nor shall such notice, declaration or order be invalid by reason of any error in the description of the property or person mentioned therein if such property or person is identifiable from such description.

37. Special Judge, etc., to have certain powers of Civil Court. The Special Judge and the Special Appellate Court shall have all the powers of a Civil Court while trying a suit under the Code of Civil Procedure, 1908 (Act V of 1908), in respect of the following matters, namely**:**—

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) requiring the discovery and production of documents;

(c) receiving evidence on affidavits;

(d) requisitioning any public record or copy thereof, from any court or office;

(e) issuing commissions for examination of witnesses or documents; and

(f) any other matter which may be prescribed.

38. Power of Special Judge to conduct inquiry, investigation, etc.— (1) Notwithstanding anything contained in the [1][Income-Tax Ordinance, 1979 (XXXI of 1979)] or any other law for the time being in force, for the purpose of any, proceedings under this Chapter, or initiation of any such proceedings, the Special Judge shall have the power to conduct or cause, to be conducted any inquiry, investigation or survey in respect of any person, place property, assets documents, books of accounts and any other relevant matters.

(2) For the purposes of sub-section (1), the Special Judge shall have the power to require any officer or authority of the Federal Government or a Provincial Government or a local authority to furnish any information in relation to such persons, property, assets or other matters as in his opinion are useful for, or relevant to, the purposes of this Chapter.

(3) For the purposes of sub-section (1), the following officers are hereby empowered and required to assist the Special Judge and the Special Appellate Court, namely:—

(a) officers of Customs and Central Excise;

(b) officers of Income-tax Department;

(c) officers of Federal Investigation Agency;

(d) officers of Pakistan Rangers;

(e) officers of Police;

(f) officers of Food Departments of the Provincial Government;

(g) officers of the Pakistan Public Works Department;

(h) officers of the Provincial Public Works Department;

(i) officers of the Revenue Departments of the Provincial Government; and

(j) such other officers of the Federal Government or Provincial Governments as are specified by the Federal Government in this behalf by notification in the official Gazette.

39. Forfeited property to be surrendered.— (1) Where any property has been declared to be property acquired by smuggling and forfeited to the Federal Government under this Chapter, or where a person who has been given option under section 34 has not paid the fine within the specified time, the Special Judge may direct such person or any other person who is in possession of such property to surrender or deliver possession thereof to any person authorised in this behalf by the Federal Government within thirty days of the service of such direction, or, where the property is held outside Pakistan, to repatriate the value of such property and the income derived there from within such time as may be specified by the Special Judge and surrender it to the Federal Government.

[1] Subs, by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3and II Sch.

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(2) If any person to whom a direction has been issued under sub-section (1) refuses or fails to comply with such direction, the Special Judge may cause possession of the property to be taken and for that purpose may authorise use of such force as may be necessary.

(3) The property forfeited under section 32 shall, if it is agricultural property, be mutated in the name of the Federal Government, or if it is urban immovable property, be transferred to the Federal Government in such manner as the Special Judge may direct.

(4) For the purpose of taking possession of forfeited property under sub-section (2), the Special Judge may requisition the services of any police officer for assistance and it shall be the duty of such officer to comply with such requisition.

(5) Whoever fails to comply with a direction issued under sub-section (1) shall be punishable with imprisonment for a term which may extend to three years and shall also be liable to fine.

40. Rectification of mistakes. The Special Judge or the Special Appellate Court may at any time rectify any mistake apparent on the face of the record and amend any order by such rectification:

Provided that, if such amendment is likely to affect any person prejudicially, no such amendment shall be made without giving such person a reasonable opportunity of being heard.

41. Finding of other court, etc. No finding of any court, officer or authority under any law in relation to the property in respect of which any notice has been issued under this Chapter shall be conclusive for the purpose of any proceedings under this Chapter.

42. Service of notice. Any notice issued or order made under this Chapter shall be served by tendering such notice or order or by sending it by registered post to the person on whom it is intended to be served or, if such service is not possible, by affixing it on a conspicuous place in the property in question or on some conspicuous place or part of the premises of such person where he last resided or carried on business or personally worked for gain, or by any other mode as the Special Judge or the Special Appellate Court may direct.

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43. Appeal.—(1) Any person aggrieved by an order of the Special Judge passed under section 31, section 32 or section 34 may, within thirty days from the date of such order, prefer an appeal before the Special Appellate Court whose decision thereon shall be final.

(2) The provisions of the Limitation Act, 1908 (IX of 1908), shall apply to an appeal field under sub-section (1).

CHAPTER V
MISCELLANEOUS

44. Appointment of Special Judges.— (1) The Federal Government may, by notification in the official Gazette, appoint as many Special Judges as it considers necessary and, where it appoints more than one Special Judge, shall specify in the notification the headquarters of each Special Judge and the territorial limits within which he shall exercise jurisdiction under this Act.

(2) No person shall be appointed to be a Special Judge unless he is or has been a Sessions Judge.

45. Transfer of cases.— (1) Where more than one Special Judge are appointed within the territorial jurisdiction of a Special Appellate Court, the Special Appellate Court, and where not more than one Special Judge is so appointed, the Federal Government, may, by order in writing, direct the transfer, at any stage of the trial, of any case from the court of one Special Judge to the Court of another Special Judge for disposal, whenever it appears to the Special Appellate Court or, as the case may be, the Federal Government, that such transfer will promote the ends of justice or tend to the general convenience of the parties or witnesses.

(2) In respect of cases transferred to a Special Judge under sub-section (1), such Special Judge shall not, by reason of the said transfer, be bound to recall and rehear any witness whose evidence has been recorded in the case before the transfer and act upon the evidence already recorded or produced before the court which tried the case before the transfer

46. Constitution of Special Appellate Courts.— (I) The Federal Government may, by notification in the official Gazette, constitute as many Special Appellate Courts as it may consider necessary each consisting of a person who is a judge of a High Court, to be appointed by the Federal Government in consultation with the Chief Justice of the High Court of which he is a Judge.

(2) The Federal Government shall specify in a notification issued under sub-section (1) the headquarters of the Special Appellate Court and, where it constitutes more than one Special Appellate Court, the territorial limits within which, or the class of cases in respect of which, each Special Appellate Court shall exercise jurisdiction.

(3) If for any reason a vacancy occurs in the said Court, the Federal Government shall appoint another person in accordance with sub-section (1) to fill the vacancy and the proceedings may be continued before the Court from the stage the vacancy occurs.

(4) The Special Appellate Court constituted under this Act shall exercise the powers conferred by or under this Act in accordance with the provisions of this Act, and the powers conferred by or under the Customs Act, 1969 (IV of 1969), in accordance with the provisions of that Act.

(5) When the Judge of a Special Appellate Court is, for any reason, temporarily unable to perform his duties, he may inform the Chief Justice of the High Court of which he is a Judge and the Chief Justice shall nominate another Judge to perform the functions of Special Appellate Court so long as such Judge is unable to perform his duties.

(6) The Federal Government may, on the request of the Judge of a Special Appellate Court, transfer any appeal or revision and entrust the same to the Judge of another Special Appellate Court for disposal; and such Judge shall dispose of such appeal or revision in accordance with law.

47. Special Prosecutors, etc.— (1) For the purposes of conducting proceedings before the Special Judge, the Federal Government may appoint persons who have been advocates of a High Court for a period of not less than five years to be Special Prosecutors on such terms and conditions as may be prescribed and any person so appointed shall be competent to conduct proceedings under this Act before the Special Judge for and on behalf of the Federal Government and, if so directed by the Federal Government, to withdraw such proceedings.

(2) A law officer appointed under the Central Law Officers Ordinance, 1970 (VII of 1970), shall be competent to conduct proceedings before the Special Appellate Court for and on behalf of the Federal Government, and, if so, required by the Federal Government, to withdraw such proceedings.

(3) When a Special Prosecutor appointed under sub-section (1), or a law officer referred to in-sub-section (2), is, for any reason, temporarily unable to conduct proceedings before the Special Judge or, as the case may be, the Special Appellate Court, the proceedings shall be conducted by such person as may be appointed in this behalf by the Special Judge or, as the case may be, Special Appellate Court.

48. Indemnity. No suit, prosecution or other proceedings shall lie against the Federal Government or a Provincial Government or any officer of the Federal Government or of a Provincial Government for anything in good faith done or intended to be done in pursuance of this Act or the rules made there under.

49. Act to override other laws. The provisions of this Act except those of Chapter VI, shall have effect notwithstanding anything contained in any other law for the time being in force.

50. Power to make rules.— (1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely**:**—

(a) the administration, management and disposal of the property forfeited under Chapter IV;

(b) the powers of a Civil Court that may be exercised by the Special Judge and the Special Appellate Tribunal;

(c) terms and conditions of Special Prosecutors; and

(d) any other matter which is to be, or may be, prescribed.

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51. [Chapter VI. Amendment of the Customs Act, 1969] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.

52. [Repeal] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.

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THE PRISONERS ACT, 1900

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THE PRISONERS ACT, 1900

[1]ACT No. III OF 1900

[2*nd February*, 1900]

An Act to consolidate the law relating to Prisoners confined by order of a Court.

WHEREAS it is expedient to consolidate the law relating to prisoners confined by order of a Court;

It is hereby enacted as follows :—

PART I
PRELIMINARY

1. Short title and extent.— (1) This Act may be called the Prisoners Act, 1900 ;

[2][(2) It extends to the whole of Pakistan.]

[3]* * * * * * *

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,–

(*a*) "Court" includes a Coroner and any officer lawfully exercising civil, criminal or revenue jurisdiction; and

(b) "prison" includes any place which has been declared by the [4][Provincia1 Government], by general or special order, to be a subsidiary jail.

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[1]For Statement of Objects and Reasons, *see* Gaz. of India, 1899, Pt. V, p. 101; for Report of the Select Committee, *see ibid.,* 1900, p. 23; for Proceedings in Council, *see ibid.,* 1899 Pt. VI, pp. 102 and 242; *ibid.,* 1900,p. 21.

This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N .W.F.P , subject to certain modifications, *see* N .W.F.P, (Upper Tanawal) (Excluded Area) Laws Regulation, 1950. It has been extended to the Excluded Area of Upper Tanawal other than Phulera by the N.-W.F.P. (Upper Tanwal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from 1st June, 1951, *see* N.W.F.P. Gazette, Extraordinary, dated 1st June, 1951.

It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gaz. of India, 1937, Pt. I, p. 1499.

This Act, as in force in the North West Frontier Province immediately before the commencement of N.W.F.P. Regulation No. II of 1974, has been applied to the Provincially Administered Tribal Areas of Chital, Dir, Kalam, Swat and Malakand Protected Areas by N.W.F.P. Regulation No. II of 1974, s. 3.

This Act has also been amended in its application to the Province of N.W.F.P. by N.W.F,P. Act VI of 1977.

This Act has also been amended in its application to the Province of Punjab by Punjab Ordinance XXVIII of 1984.

This Act has also been amended in its application to the Province of Sind by Sind Ordinance 1 of 1978 and Sind Ordinance X of 1984.

[2] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for the original sub-section (2) as amended by the Repealing and Amending Act, 1914 (10 of 1914), A. O., 1949, and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951).

[3] Sub-section (3) rep. by Act 10 of 1914, s. 3 and Sch. II.

[4] Subs. by A. O., 1937, for "L. G.".

PART II
GENERAL

3. Officers in charge of prisons to detain persons duly committed to their custody. The officer in charge of a prison shall receive and detain all persons duly committed to his custody, under this Act or otherwise, by any Court, according to the exigency of any writ, warrant or order by which such person has been committed, or until such person is discharged or removed in due course of law.

4. Officers in charge of prisons to return writs, etc., after execution or discharge. The officer in charge of a prison shall forthwith, after the execution of every such writ, order or warrant as aforesaid other than a warrant of commitment for trial, or after the discharge of the person committed thereby, return such writ, order or warrant to the Court by which the same was issued or made, together with a certificate, endorsed thereon and signed by him, showing how the same has been executed, or why the person committed thereby has been discharged from custody before the execution thereof.

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P ART III*.— [PRISONERS IN THE PRESIDENCY-TOWNS.] *Ommitted by A.O.*, 1949, *Sch.

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PART IV
[1][EXECUTION OF SENTENCES]

14. References in this Part to prisons, etc., to be construed as referring also to Reformatory Schools. In this Part all references to prisons or to imprisonment or confinement shall be construed as referring also to Reformatory Schools or to detention therein.

[2][15. Power of officers in charge of prisons to give effect to sentences of certain Courts. Officers in charge of prisons may give effect to any sentence or order or warrant for the detention of any person passed or issued by any Court or tribunal, whether within or without Pakistan, established by law.]

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[1] Subs. by A. O. 1949, Sch., for the original heading "PRISONERS OUTSIDE THE PRESIDENCY-TOWNS".
[2] Subs. by Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981) s. 3 and Second Sch. for the original section 15, which was amended by various Acts.

16. Warrant of officer of such Court to be sufficient authority. A warrant under the official signature of an officer of such Court or tribunal as is referred to in section 15 shall be sufficient authority for holding any person in confinement, [1]* * * in pursuance of the sentence passed upon him.

17. Procedure where officer in charge of prison doubts the legality of warrant sent to him for execution under this Part.— (1) Where an officer in charge of a prison doubts the legality of a warrant or order sent to him for execution under this Part, or the competency of the person whose official seal or signature is affixed thereto to pass the sentence and issue the warrant or order, he shall refer the matter to the [2][Provincial Government], by whose order on the case he and all other public officers shall be guided as to the future disposal of the prisoner.

(2) Pending a reference made under sub-section (1), the prisoner shall be detained in such manner and with such restrictions or mitigations as may be specified in the warrant or order.

18. Execution in the Provinces, etc., of certain capital sentences not ordinarily executable there.— (1) Where a [3][Court established by the authority of the [4][Federal Government]] exercising, in or with respect to territory beyond the limits of [5][Pakistan] [6]* * *], jurisdiction which [7] [the [8][Government]] has in such territory,—

(*a*) has sentenced any person to death, and,

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[1] The words "or for sending any person for transportation" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch.
[2] Subs. by A.O., 1937, for "L. G.".
[3] Subs. by A.O., 1949, Sch., for "British Court".
[4] Subs. by F.A.O, 1975, Art. 2 and Table, for "Central Government"
[5] Subs. by Ordinance 27 of 1981, s. 3 and Second Sch., for "the Provinces", which had been subs. by A. O., 1949, Arts. 3 (2) and 4, for "British India".
[6] The words "and the [Federal Territory of Karachi]" omitted by A.O.,1964, Art. 2 and Sch. The words in crotchets were subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for "Capital of the Federation".
[7] Subs. by A.O., 1937, for "G. G. in C".
[8] Subs. by A.O., 1961, Art. 2, for "Crown" (*with effect from the 23rd March,* 1956).

(*b*) being of opinion that such sentence should, by reason of there being in such territory no secure place for the confinement of such person or no suitable appliances for his execution in a decent and humane manner, be executed in [1][Pakistan] [2]* * *], has issued its warrant for the execution of such sentence to the officer in charge of a prison in [1][Pakistan [2]* * *],

such officer shall, on receipt of the warrant, cause the execution to be carried out at such place as may be prescribed therein in the same manner and subject to the same conditions in all respects as if it were a warrant duly issued under the provisions of section 381 of the Code of Criminal Procedure, 1898 (V of 1898).

(2) The prisons of which the officers in charge are to execute sentences under any such warrants as aforesaid [3][shall in each Province be such as the Provincial Government] may, by general or special order, direct.

(3) A Court shall be [4][deemed, for the purposes of this section, to be a court established by the [5][Federal Government]] if the presiding Judge, or if the Court consist of two or more Judges, at least one of the Judges, is an officer of the [6][Government] authorised to act as such Judge [7][by [8]* * * the [5][Federal Government]]:

Provided that every warrant issued under this sub-section by any such tribunal shall, if the tribunal consists of more than one Judge, be signed by a Judge who is an officer of the [6][Government] authorised as aforesaid.

[*PART* V.— PERSONS UNDER SENTENCE OF PENAL SERVITUDE.]

Omitted by the Criminal Law* (*Extinction of Discriminatory Privileges Act,* 1949 (*II of 1950*), *Schedule.

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[1] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch., for "the Provinces", which had been subs. by A.O.,1949, Arts. 3(2) and 4, for "British India".

[2] The words "and the [Federal Territory of Karachi]" omitted by A.O., 1964, Art. 2 and Sch. The words in crotchets were subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for "Capital of the Federation".

[3] Subs. by A.O., 1937, for "shall be such as the G. G. in C. or a L. G. authorised by the G. G. in C. in this behalf".

[4] Subs. by A.O., 1949, Sch., for "deemed to be a British Court for the purposes of this section".

[5] Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government"

[6] Subs. by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), for "Crown" which had been subs. by A.O., 1937, for "British Govt.".

[7] The original words "by any Native Prince or State in India or by the G. G. in C." have been successively amended by A. O., 1937, A. O., 1949, Sch. and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s.4 and III Sch., to read as above.

[8] The words "any Acceding State or the Ruler thereof or" omitted **by Ordinance 27 of 1981. s. 3 and Second Sch.,**

PART VI
REMOVAL OF PRISONERS

28. References in this part to the prisons, etc., to be constructed as referring also to Reformatory Schools. In this Part, all references to prisons or to imprisonment or confinement shall be construed as referring also to Reformatory Schools or to detention therein.

[1][29. Removal of prisoners.— (1) The [2][Provincial Government] may, by general or special order, provide for the removal of any prisoner confined in a prison—

(*a*) under sentence of death, or

(*b*) under, or in lieu of, a sentence of imprisonment [3]* *, or

(*c*) in default of payment of a fine, or

(*d*) in default of giving security for keeping the peace or for maintaining good behaviour,

to any other prison in [4][the Province, or, with the consent of the Provincial Government concerned, to any prison in [5][the other Province]] [6][or, with the consent of the [7][Federal Government] to any prison maintained [8][by it or under its authority] in any part of [9][Pakistan].]

(2) [10][Subject to the orders, and under the control, of the Provincial Government] the Inspector-General of Prisons may, in like manner, provide for the removal of any prisoner confined as aforesaid in a prison in the Province to any other prison in the Province[11]* * * .] [12][(3) The [13][Federal Government] may, by general or special order, provide for the removal of

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[1]Subs. by the Amending Act, 1903 (1 of 1903), s. 3 and Sch. II, for the original section.
[2] Subs. by A. O.,1937 for "G. G. in C.".
[3] The words "or transportation" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch.
[4] Subs. *ibid.,* for "British India or to any prison in Berar". The words "or to any prison in Berar" had been added by the Prisoners (Amdt.) Act, 1923 (17 of 1923), s. 2.
[5] Subs. by A. O. 1964, Art. 2 and Sch., for "any other Province".
[6] Added by the Prisoners (Amdt.) Ordinance, 1942 (15 of 1942), s. 2, for so long as the Ordinance remains in force.
[7] Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government" , which had been subs. by A. O., 1949, Sch., for "Crown Representatives".
[8] Subs. *ibid,* for "by him or under his authority".
[9]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and III Sch, for "India".
[10] Subs. by A. O., 1937,for "The L. G., and (subject to its orders and under its control)"
[11]The words "or, in the case of a prisoner so confined in a prison in the C. P., for his removal to any other prison in the Province or to any prison in Berar", which had been added by Act 17 of 1923, s. 2, were rep. by A. O., 1937.
[12] New sub-section (3) added by the Prisoners (Amdt.) Act, 1953 (17of 1953), s. 2.
[13] **Subs. by P. A. C., 1975, Art and Table, for "Central Government"**

any prisoner or class of prisoners confined in any prison to any other prison in Pakistan maintained by or under the authority of the [1][Federal Government] or of a Provincial Government with the consent[2] * * * of the Provincial Government concerned.]

30. Lunatic prisoners how to be dealt with.— (1) Where it appears to the [3][Provincial Government] that any person detained or imprisoned under any order or sentence of any Court is of unsound mind, the [3][Provincial Government] may, by a warrant setting forth the grounds of belief that the person is of unsound mind, order his removal to a lunatic asylum or other place of safe custody within the Province, there to be kept and treated as the [3][Provincial Government] directs during the remainder of the term for which he has been ordered or sentenced to be detained or imprisoned, or, if on the expiration of that term it is certified by a medical officer that it is necessary for the safety of the prisoner or others that he should be further detained under medical care or treatment, then until he is discharged according to law.

(2) Where it appears to the [3][Provincial Government] that the prisoner has become of sound mind, the [3][Provincial Government] shall, by a warrant directed to the person having charge of the prisoner, if still liable to be kept in custody, remand him to the prison from which he was removed, or to another prison within the Province, or, if the prisoner is no longer liable to be kept in custody, order him to be discharged.

(3) The provisions of section [4][31of the Lunancy Act, 1912 (IV of 1912)] shall apply to every person confined in a lunatic asylum under sub-section (1) after the expiration of the term for which he was ordered or sentenced to be detained or imprisoned ; and the time during which a prisoner is confined in a lunatic asylum under that sub-section shall be reckoned as part of the term of detention or imprisonment which he may have been ordered or sentenced by the Court to undergo.

[5][(4) In any case in which the [3][Provincial Government] is competent under sub-section (1) to order the removal of a prisoner to a lunatic asylum or other place of safe custody within the Province, the [3][Provincial Government] may order his removal to any such asylum or place within [6][the other Province][7] * * *

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[1] Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".
2 The words and commas ", where such other prison is situated in a Province not being a Chief Commissioner's Province," omitted by A. O., 1964, Art. 2 and Sch.,
[3] Subs. by A. O., 1937, for "L. G.".
[4] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch., for "9 of the Lunatic Asylums Act, 1858 (XXXVI of 1858)".
[5] Subs. by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch., I, for the original sub-Section (4).
[6] Subs. by A. O., 1964, Art. 2 and Sch., for "any other Province".
[7]The words "or within [any Acceding State]" omitted by Ordinance 27 of 1981, s. 3 and Second Sch,. the words in crotchets were amended by Act 26 of 1951, s. 4 and Sch. III

by agreement with the [1][Provincial Government] of such other Province [2] * * * ; and the provisions of this section respecting the custody, detention, remand and discharge of a prisoner removed under sub-section (1) shall, so far as they can be made applicable, apply to a prisoner removed under this sub-section.]

31. [*Removal of prisoners from territories under one local Government to territories under another.*] *Rep. by the Amending Act, 1903 (I of 1903), s. 4 and sch. III.*

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Part VII.— [*Persons under Sentence of Transportation.*]
Omitted by the Federal Laws (*Revision and Declaration*) *Ordinances, 1981 (XXVII of 1981) s.3 and 2nd Sch.*

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PART VIII
DISCHARGE OF PRISONERS

33. Release on recognizance, by order of High Court, of prisoner recommended for pardon, [3][A High Court,] may, in any case in which it has recommended to [4][the President] the granting of a free pardon to any prisoner, permit him to be at liberty on his own recognizance.

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PART IX

PROVISIONS FOR REQUIRING THE ATTENDANCE OF PRISONERS AND OBTAINING THEIR EVIDENCE.

Attendance of Prisoners in Court

34. References in this part to prisons, etc., to be construed as referring also to Reformatory Schools. In this Part, all references to prisons or to imprisonment or confinement shall be construed as referring also to Reformatory Schools or to detention therein.

35. Power for Civil Courts to require appearance of prisoner to give evidence. Subject to the provisions of section 39, any Civil Court may, if it thinks that the evidence of any person confined in any prison within the local limits of its appellate jurisdiction, if it is a High Court, or, if it is not a High Court, then within the local limits of the appellate jurisdiction of the High Court to which it is subordinate, is material in any matter pending before it, make an order in the form set forth in the first schedule, directed to the officer in charge of the prison.

[1]Subs. by A. O,1937, for "L. G.".
[2]The words "or with [such State for the Ruler thereof], as the case may be." omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch., The words in crotchets were amended by A. O , 1937.
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October, 1955)*, for "Any Court which is a High Court for the purposes of the Government of India Act. 1935," which had been subs. by A. O., 1937, for "Any Court established under the Indian High Courts Act, 1861,".
[4]Subs. by A. O., 1961, Art. 2 and Sch., for "Her Majesty" (*with effect from the 23rd March, 1956*).

36. District Judge in certain cases to countersign orders made under section 35.— (1) Where an order under section 35 is made in any civil matter pending—

(a) in a Court subordinate to the District Judge, or

(b) in a Court of Small Causes [1] * * *,

it shall not be forwarded to the officer to whom it is directed, or acted upon by him, until it has been submitted to, and countersigned by,—

(i) the District Judge to which the Court is subordinate, or

(ii) the District Judge within the local limits of whose jurisdiction the Court of Small Causes is situate.

(2) Every order submitted to the District Judge under subsection (1) shall be accompanied by a statement, under the hand of the Judge of the subordinate Court or Court of Small Causes, as the case may be, of the facts which in his opinion render the order necessary, and the District Judge may, after considering such statement, decline to countersign the order.

37. Power for certain Criminal Courts to require attendance of prisoner to give evidence or answer to charge. Subject to the provisions of section 39, any Criminal Court may, if it thinks that the evidence of any person confined in any prison within the local limits of its appellate jurisdiction, if it is a High Court, or, if it is not a High Court, then within the local limits of the appellate jurisdiction of the High Court to which it is subordinate, is material in any matter pending before it, or if a charge of an offence against such person is made or pending, make an order in the form set forth in the first or second schedule, as the case may be, directed to the officer in charge of the prison :

Provided that if such Criminal Court is inferior to the Court of a Magistrate of the first class, the order shall be submitted to, and countersigned by, the District Magistrate to whose Court such Criminal Court is subordinate or within the local limits of whose jurisdiction such Criminal Court is situated.

38. Order to be transmitted through Magistrate of the district or sub-division in which person is confined. Where any person, for whose attendance an order as in this Part provided is made, is confined in any district other than that in which the Court making or countersigning the order is situate, the order shall be sent by the Court by which it is made or countersigned to the District or Sub-divisional Magistrate within the local limits of whose jurisdiction the person is confined, and that Magistrate shall cause it to be delivered to the officer in charge of the prison in which the person is confined.

39. Procedure where removal is desired of person confined more than one hundred miles from place where evidence is required.—(1) Where a person is confined[2] * * * in a prison more than one hundred miles distant from the place where any Court, subordinate to a High Court in which his evidence is required, is held, the Judge or presiding officer of the Court in which the evidence is so required shall, if he thinks that such person should be removed under this Part for the purpose of giving evidence in such Court, and if the prison is within the local limits of the appellate jurisdiction of the High Court to which such Court is subordinate, apply in writing to the High Court, and the High Court may, if it thinks fit, make an order in the form set forth in the first schedule, directed to the officer in charge of the prison.

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[1] The words "outside a Presidency-town" omitted by A. O., 1949, Sch,

[2] The words "in a prison within a Presidency-town, or" omitted *ibid*.

(2) The High Court making an order under sub-section (1) shall send it to the District or Sub-divisional Magistrate within the local limits of whose jurisdiction the person named therein is confined, [1]* * * and such Magistrate [2]* *shall cause it to be delivered to the officer in charge of the prison in which the person is confined.

40. Persons confined beyond limits of appellate jurisdiction of High Court. Where a person is confined in a prison beyond the local limits of the appellate jurisdiction of a High Court, any Judge of such Court may, if he thinks that such person should be removed under this Part for the purpose of answering a charge of an offence or of giving evidence in any criminal matter in such Court or in any Court subordinate thereto, apply in writing to the [3][Provincial Government] of the territories within which the prison is situate, and the [3][Provincial Government] may, if it thinks fit, direct that the person be so removed, subject to such rules regulating the escort of prisoners as the [4][Provincial Government] may prescribe.

41. Prisoner to be brought up. Upon delivery of any order under this Part to the officer in charge of the prison in which the person named therein is confined, that officer shall cause him to be taken to the Court in which his attendance is required, so as to be present in the Court at the time in such order mentioned, and shall cause him to be detained in custody in or near the Court until he has been examined or until the Judge or presiding officer of the Court authorises him to be taken back to the prison in which he was confined.

42. Power to Government to exempt certain prisoners from operation of this Part. [5]* * * The [3][Provincial Government] may, by notification[6] in [7]* * * the [8][official Gazette],[9]* * * direct

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[1] The words "or, in the case of a person confined in a prison within a Presidency-town, to the Commissioner of Police" omitted by A. O., 1949, Sch.
[2]The words "or Commissioner" omitted, *ibid.*
[3]Subs. by A. O.,1937, for "L. G.".
[4] Subs. *ibid.*, for "G.G. in C."
[5]The words "The G.G. in C. or" rep. by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I.
[6] For rules made under this section in conjunction with section 51, *see* different local Rules and Orders.
[7]The words "the Gazette of India or" rep. by Act 38 of 1920, s. 2 and Sch. I. .
[8]Subs. by A. O., 1937, for "local official Gazette".
[9]The words "as the case may be" rep. by Act 38 of 1920, s. 2 and Sch. I.

that any person or any class of persons shall not be removed from the prison in which he or they may be confined ; and thereupon, and so long as such notification remains in force, the provisions of this Part, other than those contained in sections 44 to 46, shall not apply to such person or class of persons.

43. Officer in charge of prison when to abstain from carrying out order. In any of the following cases, that is to say,—

(a) where the person named in any order made under section 35, section 37 or section 39 appears to be, from sickness or other infirmity, unfit to be removed, the officer in charge of the prison in which he is confined, shall apply to the District or sub-divisional Magistrate within the local limits of whose jurisdiction the prison is situate, and if such Magistrate, by writing under his hand, declares himself to be of opinion that the person named in the order is, from sickness or other infirmity, unfit to be removed ; or

(b) where the person named in any such order is under committal for trial ; or

(c) where the person named in any such order is under a remand pending trial or pending a preliminary investigation ; or

(d) where the person named in any such order is in custody for a period which would expire before the expiration of the time required for removing him under this Part and for taking him back to the prison in which he is confined ;

the officer in charge of the prison shall abstain from carrying out the order, and shall send to the Court from which the order has been issued a statement of the reason for so abstaining ;

Provided that such officer as aforesaid shall not so abstain where—

(i) the order has been made under section 37; and

(ii) the person named in the order is confined under committal for trial, or under a remand pending trial or pending a preliminary investigation, and does not appear to be, from sickness or other infirmity unfit to be removed ; and

(iii) the place, where the evidence of the person named in the order is required, is not more than five miles distant from the prison in which he is confined.

Commissions for Examination of Prisoners

44. Commissions for examination of prisoners. In any of the following cases, that is to say,—

(a) where it appears to any Civil Court that the evidence of a person confined in any prison within the local limits of the appellate jurisdiction of such Court, if it is a High Court, or if it is not a High Court, then within the local limits of the appellate jurisdiction of the High Court to which it is subordinate, who, for any of the causes mentioned in section 42 or section 43, cannot be removed, is material in any matter pending before it ; or

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(b) where it appears to any such Court as aforesaid that the evidence of a person confined in any prison so situate and more than ten miles distant from the place at which such Court is held, is material in any such matter ; or

(c) where the District Judge declines, under section 36, to countersign an order for removal;

the Court may, if it thinks fit, issue a commission, under the provisions of the [1][Code of Civil Procedure, 1908 (Act V of 1908)], for the examination of the person in the prison in which he is confined.

45. Commissions for examination of prisoners beyond limits of appellate jurisdiction of High Court. Where it appears to a High Court that the evidence of a person confined in a prison beyond the local limits of its appellate jurisdiction is material in any civil matter pending before it or before any Court subordinate to it, the High Court may, if it thinks fit, issue a commission, under the provisions of the [1][Code of Civil Procedure, 1908 (Act V of 1908)], for the examination of the person in the prison in which he is confined.

46. Commission how to be directed. Every commission for the examination of a person issued under section 44 or section 45 shall be directed to the District Judge within the local limits of whose jurisdiction the prison in which the person is confined is situate, and the District Judge shall commit the execution of the commission to the officer in charge of the prison, or to such other person as he may think fit.

Service of Process on Prisoners

47. Process how served on prisoners,—When any process directed to any person confined in any prison is issued from any Criminal or Revenue Court, it may be served by exhibiting to the officer in charge of the prison the original of the process and depositing with him a copy thereof.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27of 1981), s. 3 and Second Sch., for "Code of Civil Procedure. (XIV of 1882).".

48. Process served to be transmitted at prisoner's request.— (1) Every officer in charge of a prison upon whom service is made under section 47 shall, as soon as may be, cause the copy of the process deposited with him to be shown and explained to the person to whom it is directed, and shall thereupon endorse upon the process and sign a certificate to the effect that such person as aforesaid is confined in the prison under his charge and has been shown and had explained to him a copy of the process.

(2) Such certificate as aforesaid shall be *prima facie* evidence of the service of the process, and, if the person to whom the process is directed requests that the copy shown and explained to him be sent to any other person and provides the cost of sending it by post, the officer in charge of the prison shall cause it to be so sent.

Miscellaneous

[1]**49.** [*Application of Part in certain cases*.] *Omitted by A. O., 1949, Schedule*.

50. Deposit of costs. No order in any civil matter shall be made by a Court under any of the provisions of this Part until the amount of the costs and charges of the execution of such order (to be determined by the Court) is deposited in such Court:

Provided that, if upon any application for such order it appears to the Court to which the application is made, that the applicant has not sufficient means to meet the said costs and charges, the Court may pay the same out of any fund applicable to the contingent expenses of such Court, and every sum so expended may be recovered by the [2][Provincial Government] from any person ordered by the Court to pay the same, as if it were costs in a suit recoverable under the [3][Code of Civil Procedure, 1908 (Act V of 1908).]

51. Power to make rules under this part.— (1) The [4][Provincial Government] [5] * * * may make rules—

(a) for regulating the escort of prisoners to and from Courts in which their attendance is required and for their custody during the period of such attendance ;

(b) for regulating the amount to be allowed for the costs and charges of such escort; and

(c) for the guidance of officers in all other matters connected with the enforcement of this Part.

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[1]Sub-sections (2) and (3) of section 49 had been repealed previously by the Lower Burma Courts Act, 1900 (6 of 1900), s. 48 and Sch. II.
[2]Subs. by A. O., 1937, for "Govt.".
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981(27 of 1981), s. 3 and Second Sch., for "Code of Civil Procedure, (XIV of 1882)".
[4]Subs. by A. O., 1937, for "L. G".
[5] The words "and in cases arising under section 40, th. G. G."in. C rep. *ibid.*

(2) All rules made under sub-section (1) shall be published in the [1][official Gazette] [2]* * *, and shall, from the date of such publication, have the same force as if enacted by this Act.

52. Power to declare who shall be deemed officer in charge of prison. The [3][Provincial Government] may [4] declare what officer shall, for the purposes of this Part, be deemed to be the officer in charge of a prison.

53. ***[Repeals]. Rep. by the Repealing and Amending Act, 1914 (X of 1914), s. 3 and Schedule*** **II.**

THE FIRST SCHEDULE
(See **sections 35 and 37)**

Court of

To the officer in charge of the *(state name of prison),*

You are hereby required to produce , now a prisoner in, under safe and sure conduct before the Court of at on the day of next by of the clock in the forenoon of the same day, there to give evidence in a matter now pending before the said Court, and after the said has then and there given his evidence before the said Court or the said Court has dispensed with his further attendance, cause him to be conveyed under safe and sure conduct back to the prison.

The day of

A.B
(Countersigned) C.D.

THE SECOND SCHEDULE
(*See* sections 37)

Court of

To the officer in charge of the *(state name of prison).*

You are hereby required to produce , now a prisoner in , under safe and sure conduct before the Court of at on the day of next by of the clock in the forenoon of the same day, there to answer a charge now pending before the said Court, and after such charge has been disposed of or the said Court has dispensed with his further attendance, cause him to be conveyed under safe and sure conduct back to the prison.

The day of

A.B.
(Countersigned) C.D.

[*THE THIRD SCHEDULE.*] *Rep. by the Repealing and Amending Act,1914 (X of 1914), s.3 and Schedule II.*

Date: 11-09-2024

[1]Subs. by A. O., 1937, for "local official Gazette".
[2]The words "or the Gazette of India, as the case may be" rep., *ibid.*
[3]Subs. *Ibid.*, for "L. G .".
[4]For notifications issued under this section, see different local Rules and Orders.

THE PRISONS ACT, 1894

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THE PRISONS ACT, 1894

[1]ACT No. IX OF 1894

[22nd March, 1894]

An Act to amend the law relating to Prisons

Whereas it is expedient to amend the law relating to prisons in [2][Pakistan], and to provide rules for the regulation of such prisons, It is hereby enacted as follows:-

CHAPTER 1

PRELIMINARY

1. Title, extent and commencement.—(1) This Act may be called the Prisons Act, 1894.

[3][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on the first day of July, 1894.

(4) Nothing in this Act shall apply to civil jails in [4][Sind and the [5][Karachi Division]] and those jails shall continue to be administered under the provisions of Section 9 to 16 (both inclusive) of [6]Bombay Act, II of 1874, as amended by subsequent enactments.

2. *[Repeal.] Rep. by the repealing Act*, 1938 (I *of* 1938), s. 2 *and Schedule*.]

3. Definitions. In this Act—

(1) "prison" means any jail or place used permanently or temporarily under the general or special orders of a 2[Provincial Government] for the detention of prisoners, and includes all lands and buildings appurtenant thereto, but does not include-

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[1]For Statement of Objects and 'Reasons, see Gazette of India, 1894, Pt. V, p. 14 ; for Report of the Select Committee, see ibid., p. 63, and for Proceedings in Council, see ibid., Pt. VI, pp.l0, 21,93,126 and 139.
This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, see Gaz. of India, 1937, Pt. I, p. 1499.
It has been extended to the Excluded Area of Upper T1inawal other than Phulera by the N.W.F.P., (Uper Tanawal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from 1st June, 1951, see NW.F.P., Gazette, Extraordinary, dated 1st June, 1951.
It has been amended in its application to the Province of West Pakistan by West Pakistan Act 41 of 1958. .
The Act, as in force in the North-West Frontier Province immediately before the commencement of N.W.F.P. Regulation No. II of 1974 has been applied to the Provincially Administered Tribal Areas of Chitral, Dir, Kalam, Swat and Malakand Protected Area by N.W.F.P., Regulation, No. II of 1974, s. 3.
This Act has been amended in its application to the province of Sind by the Sind Act No. 17 of 1975, s. 3 and 2nd Sch.
This Act has been amended to the extent of Islamabad Capital Territory, see Ordinance No. 27 of 1981, S. 5 and Sch. IV.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O. 1949, Arts. 3(2) and 4, for "British India.".
[3]Subs. by Ord. 21 of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955),* for the existing sub-section (2), as amended by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951).
[4]Subs. by A. O., 1949, Sch. fur "the Presidency of-Bombay outside the City of Bombay".
[5]Subs. by A. O., 1964, Art 2 and Sch., for "Federal Tcrritory of Karachi" which had been subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for "Capital of the Fedoration":
[6]The Civil Jails Act, 1874.

(a) any place for the confinement of prisoners who are exclusively in the custody of the police ;

(b) any place specially appointed by the [1][Provincial Government] under Section 541 of the [2][Code of Criminal Procedure, 1898 (Act V of 1898)] ; or

(c) any place which has been declared by the [1][Provincial Government] by general or special order, to be a subsidiary jail ;

(2) "criminal prisoner" means any prisoner duly committed to custody under the writ, warrant or order of any Court or authority exercising criminal jurisdiction, or by order of a Court-martial ;

(3) "convicted criminal prisoner" means any criminal prisoner under sentence of a Court or Court-martial, and includes a person detained in prison under the provisions of Chapter VIII of the [2][Code of Criminal Procedure, 1898 (Act V of 1898)] or under the [2][Prisoners Act, 1900 (III of 1900)] ;

(4) "civil prisoner" means any prisoner who is not a criminal prisoner:

(5) "remission system" means the rules for the time being in force regulating the award of marks to and the consequent shortening of sentences of, prisoners in jails :

(6) "history-ticket" means the ticket exhibiting such information as is required in respect of each prisoner by this Act or the rules thereunder.:

(7) "Inspector-General" means the Inspector-General of Prisons :

[(7-A) "Deputy Inspector-General" means the Deputy Inspector-General of Prison] ;

(8) "Medical Subordinate" means an Assistant Surgeon, Apothecary or qualified Hospital Assistant : and

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(9) "prohibited article" means an article the introduction or removal of which into or out of a prison is prohibited by any rule under this Act.

CHAPTER II

MAINTENANCE AND OFFICERS OF PRISONS

[1]Subs. by: A. 0.,1937, for "L. G.".
[2]Subs. by Ord. XXVII of 1981, s. 5 and Sch. IV (only to the extent of Islamabad. Capital Territory).

4. Accommodation for prisoners. The [1][Provincial Government] shall provide, for the prisoners in the territories under such Government, accommodation in prisons constructed and regulated in such manner as to comply with the requisitions of this Act in respect of the separation of prisoners.

5. Inspector-General. An Inspector-General[2] shall be appointed for the territories subject to each [1][Provincial Government], and shall exercise, subject to the orders of the Provincial Government, the general control and superintendence of all prisons situated in the territories under such Government.

[3]**6. Officers of prisons.** For every prison there shall be a Superintendent, a Medical Officer (Who may also be the Superintendent), a Medical Subordinate, a Jailer and such other officers as the [1][Provincial Government] thinks necessary.

[4]* * * * * *

7. Temporary accommodation for prisoners. Whenever it appears to me inspector General that the number of prisoners in any prison is greater than can conveniently or safely be kept therein, and it is not convenient to transfer the excess number to some other prison, or whenever from the outbreak of epidemic disease a within any prison, or for any other reason, it is desirable to provide for the temporary shelter and safe custody of any prisoners, provision shall be made, by such officer and in such manner as the [1][Provincial Government] may direct, for the shelter and safe custody in temporary prisons of so many of the prisoners as cannot be conveniently or safely kept in the prison.

or whenever from the outbreak of epidemic disease within any prison, or for any other reason, it is desirable to provide for the temporary shelter and safe custody of any prisoners,

provision shall be made, by such officer and in such manner as the [1][Provincial Government] may direct, for the shelter and safe custody in temporary prisons of so many of the prisoners as cannot be conveniently or safely kept in the prison.

CHAPTER III

DUTIES OF OFFICERS

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Generally

8. Control and duties of officers of prisons. All officers of a prison shall obey the directions of the Superintendent; all officers subordinate to the Jailer shall perform such duties as may be imposed on them by the Jailer with the sanction of the Superintendent or be prescribed by rules under Section [59][5].

9. Officers not to have business dealings with prisoners. No officer of a prison shall sell or let, nor shall any person in trust for or employed by him sell or let, or derive any benefit from, selling or letting, any article to any prisoner or have any money or other business dealings directly or indirectly with any prisoner.

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[1]Subs. by A. O.,1937, for "L. G.".
[2]For notification appointing an Inspector General for the N.W.F.P., see Gazette of India , 1901, Pt. II, p. 1305.
[3]A further proviso has been added to s.6 in its application to the Punjab by the Prisons (Punjab Amdt.) Act, 1926 (Punjab 9 of 1926), s.2.
[4]The Original proviso as amended by A.O. 1937, omitted by A.O., 1949, Sch.
[5]Subs. by A. O., 1937, for "60".

10. Officers not to be interested in prison contracts. No officer of a prison shall, nor shall any person in trust for or employed by him, have any interest, direct or indirect, in any contract for the supply of the prison: nor shall he derive any benefit, directly or indirectly, from the sale or purchase of any article on behalf of the prison or belonging to a prisoner.

Superintendent

11. Superintendent.— (1) Subject to the orders of the Inspector-General, the Superintendent shall manage the prison in all matters relating to discipline, labour, expenditure, punishment and control.

(2) Subject to such general or special directions as maybe given by the [1][Provincial Government]; the Superintendent of a prison other than a central prison or a prison situated in a presidency- town shall obey all orders not inconsistent with this Act or any rule thereunder which may be given respecting the prison by the District Magistrate, and shall report to the Inspector-General all such orders and the action taken thereon.

12. Records to be kept by Superintendent. The Superintendent shall keep', or cause to be kept, the following records:—

(1) a register of prisoners admitted ;

(2) a book showing when each prisoner is to be released;

(3) a punishment-book for the entry of the punishments inflicted on prisoners for prison offences ;

(4) a visitors' book for the entry of any observations made by the visitors touching any matters connected with the administration of the prison ;

(5) a record of the money and other articles taken from prisoners ;

and all such other records as may be prescribed by rules under Section 59.[1] * * *

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Medical Officer

13. Duties of Medical Officer. Subject to the control of the Superintendent, the Medical Officer shall have charge of the sanitary administration of the prison, and shall perform such [2]duties as may be prescribed by rules made by the [3][Provincial Government] under Section [4][59].

14. Medical Officer to report in certain cases. Whenever the Medical Officer has reason to believe that the mind of a prisoner is, or is likely to be, injuriously affected by the discipline or treatment to which he is subjected, the Medical Officer shall report the case in writing to the Superintendent, together with such observations as he may think proper.

This report, with the orders of the Superintendent thereon, shall forthwith be sent to the Inspector-General for information.

[1]Subs.ibid., for "L.G.".

15. Report on death of prisoner. On the death of any prisoner, the Medical Officer shall forthwith record in a register the following particulars, so far as they can be ascertained, namely:

(1) the day on which the deceased first complained of illness or was observed to be ill,

(2) the labour, if any, on which he was engaged on that day,

(3) the scale of his diet on that day,

(4) the day on which he was admitted to hospital,

(5) the day on which the Medical Officer was first informed of the illness,

(6) the nature of the disease,

(7) when the deceased was last seen before his death by the Medical Officer or Medical Subordinate,

(8) when the prisoner died, and

(9) (in cases where a post-mortem examination is made) an account of the appearances after death,

together with any special remarks that appear to the Medical Officer to be required.

Jailer

16. Jailer.—(1) The Jailer shall reside in the prison, unless the Superintendent permits him in writing to reside elsewhere.

(2) The Jailer shall not, without the Inspector-General's sanction in writing, be concerned in any other employment.

17. Jailer to give notice of death of prisoner. Upon the death of a prisoner, the Jailer shall give immediate notice thereof to the Superintendent and the Medical Subordinate.

18. Responsibility of Jailer. The Jailer shall be responsible for the safe custody of the records to be kept under Section 12, for the commitment warrants and all other documents confided to his care, and for the money and other articles taken from prisoners.

19. Jailer to be present at night. The Jailer shall not be absent from the prison for a night without permission in writing from the Superintendent; but, if absent without leave for a night from unavoidable necessity, he shall immediately report the fact and the cause of it to the Superintendent.

20. Powers of Deputy and Assistant Jailers. Where a Deputy Jailer or Assistant Jailer is appointed to a prison, he shall, subject to the orders of the Superintendent, be competent to perform any of the duties, and be subject to all the responsibilities, of a Jailer under this Act or any rule thereunder.

[1]The words and figures "or section 60" rep. by A. 0., 1937.
[2]For rules as to Medical Officer's duties under s. 13, see different local Rules and Orders.
[3]Subs. by A. O., 1937, for "L. G.".
[4]Suhs. ibid., for "60".

Subordinate Officers

21. Duties of gate-keeper. The officer acting as gate-keeper, or any other officer of the prison, may examine anything carried in or out of the prison, and may stop and search or cause to be searched any person suspected of bringing any prohibited article into or out of the prison, or of carrying out any property belonging to the prison, and, if any such article or property be found, shall give immediate notice thereof to the Jailer.

22. Subordinate Officers not to be absent without leave. Officers subordinate to the Jailer shall not be absent from the prison without leave from the Superintendent or from the Jailer.

23. Convict officers. Prisoners who have been appointed as officers of prisons shall be deemed to be Public servants within the meaning of the Pakistan Penal Code (Act XLV of 1860).

CHAPTER IV

ADMISSION, REMOVAL AND DISCHARGES OF PRISONERS

24. Prisoners to be examined on admission.—(1) Whenever a prisoner is admitted into prison, he shall be searched, and all weapons and prohibited articles shall be taken from him.

(2) Every criminal prisoner shall also, as soon as possible after admission, be examined under the general or special orders of the Medical Officer, who shall enter or cause to be entered in a book, to be kept by the Jailer, a record of the state of the prisoner's health, and of any wounds or marks on his person, the class of labour he is fit for if sentenced to rigorous imprisonment, and any observations which the Medical Officer thinks fit to add.

(3) In the case of female prisoners the search and examination shall be carried out by the matron under the general or special orders of the medical Officer.

25. Effects of prisoners. All money or other articles in respect whereof no order of a competent Court has been made, and which may with proper authority be brought into the prison by any criminal prisoner or sent to the prison for his use, shall be placed In the custody of the Jailer.

26. Removal and discharge of prisoners.—(1) All prisoners, previously to being removed to any other prison, shall be examined by the Medical Officer.

(2) No prisoner shall be removed from one prison to another unless Medical Officer certifies that the prisoner is free from any illness rendering him unfit for removal.

(3) No prisoner shall be discharged against his will from prison, if laboring under any acute or dangerous distemper, nor until, In the opinion of the Medical Officer; such discharge is safe.

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CHAPTER V

DISCIPLINE OF PRISONERS

27. Separation of prisoners. The requisitions of this Act with respect to the separation of prisoners are as follows:-

(1) in a prison containing female as well as male prisoners, the females shall be imprisoned in separate buildings, or separate parts of the same building, in such manner as to prevent their seeing, or conversing or holding any intercourse with, the male prisoners :

(2) in a prison where male prisoners under the age of [1][twenty-one] are confined, means shall be provided for separating them altogether from the other prisoners and for separating those of them who have arrived at the age of puberty from those who have not:

(3) unconvicted criminal prisoners shall be kept apart from convicted criminal prisoners; and

(4) civil prisoners shall be kept apart from criminal prisoners.

28. Association and segregation of prisoners. Subject to the requirements of the last foregoing section convicted criminal prisoners may be confined either in association or individually in cells or partly in one way and partly in the other.

29. Solitary confinement. No cell shall be used for solitary confinement unless it is furnished with the means of enabling the prisoners to communicate at any time with an officer of the prison, and every prisoner so confined in a cell for more than twenty-four hours, whether as a punishment or otherwise, shall be visited at least once a day by the Medical Officer or Medical Subordinate.

30. Prisoners under sentence of death.—(1) Every prisoner under sentence of death shall, immediately on his arrival in the prison after sentence, be searched by, or by order of, t he Jailer and all articles shall be taken from him which the Jailer deems it dangerous or independent to leave in his possession.

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(2) Every such prisoner shall be confined in a cell apart from all other prisoners, and shall be placed by day and by night under the charge of a guard.

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CHAPTER VI

FOOD, CLOTHING AND BEDDING OF CIVIL AND UNCONVICTED CRIMINAL PRISONERS.

31. Maintenance of certain prisoner from private sources. A civil prisoner or an unconvicted criminal prisoner shall be permitted to maintain himself, and to purchase, or receive from private sources at proper hours, food, clothing, bedding or other necessaries, but subject to examination and to such rules as may be approved by the Inspector-General.

[1]Subs. by the Prisons (Amdt.) Act, 1930 (6 of 1930) s. 2, for "eighteen".

32. Restriction on transfer of food and clothing between certain prisoners. No part of any food, clothing, bedding or other necessaries belonging to any civil or unconvicted criminal prisoner shall be given, hired or sold to any other prisoner; and any prisoner transgressing the provisions of this section shall lose the privilege of purchasing food or receiving it from private sources, for such time as the Superintendent thinks proper.

33. Supply of clothing and bedding to civil and unconvinced criminal prisoners.—(1) Every civil prisoner and unconvinced unable to provide himself with sufficient clothing and bedding shall be supplied by the Superintendent with such clothing and bedding as may be necessary.

(2) When any civil prisoner has been committed to prison in execution of a decree in favour of a private person, such person, or his representative, shall within forty-eight hours after the receipt by him of a demand in writing, pay to the Superintendent the cost of the clothing and bedding so supplied to the prisoner; and in default of such payment the prisoner may be released.

CHAPTER VII

EMPLOYMENT OF PRISONERS

34. Employment of civil prisoners.—(1) Civil prisoners may with the Superintendent's permission, work and follow any trade or profession.

(2) Civil prisoners finding their own implements, and not maintained at the expense of the prison, shall be allowed to receive the whole of their earnings; but the earnings of such as are furnished with implements or are maintained at the expertise of the prison shall be subject to a deduction, to be determined by the Superintendent, for the use of implements and the cost of maintenance.

35. Employment of criminal prisoners.—(1) No criminal prisoner sentenced to labour or employed on labour at his own desire shall, except on an emergency with the sanction in writing of the Superintendent, be kept to labour for more than nine hours in any one day.

(2) The Medical Officer shall from time to time examine the labouring prisoners while they are employed, and shall at least once in every fortnight cause to be recorded upon the history-ticket of each prisoner employed on labour the weight of such prisoner at the time.

(3) When the Medical Officer is of opinion that the health of any prisoners suffers from employment on any kind or class of labour, such prisoner shall not be employed on that labour but shall be placed on such other kind or class of labour as the Medical Officer may consider suited for him.

36. Employment of criminal prisoners sentenced to simple imprisonment. Provision shall be made by the Superintendent for the employment (as long as they so desire) of all criminal prisoners sentenced to simple imprisonment; but no prisoner not sentenced to rigorous imprisonment shall be punished for neglect of work excepting by such alteration in the scale of diet as may be established by the rules of the prison in the case of neglect of work by such a prisoner.

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CHAPTER VIII

HEALTH OF PRISONERS

37. Sick prisoners.—(1) The names of prisoner desiring to see the Medical Subordinate or appearing out of health in mind or body shall, without delay, be reported by the officer in immediate charge of such prisoners to the Jailer.

(2) The Jailer shall, without delay, call the attention of the Medical Subordinate to any prisoners desiring to see him, or who is ill, or whose state of mind or body appears to require attention, and shall carry into effect all written directions given by the Medical Officer or Medical Subordinate respecting alterations of the discipline or treatment of any such prisoner.

38. Record of directions of Medical officers. All directions given by the Medical Officer or Medical Subordinate in relation to any prisoner, with the exception of orders for the supply of medicines or directions relating to such Matters as are carried into effect by the Medical Officer himself or under his superintendence, shall be entered day by day in the prisoner's history-ticket or in such other record as the 1[Provincial Government] may by rule direct, and the Jailer shall make an entry in its proper place stating in respect of each direction the fact of its having been or not having been complied with, accompanied by such observations, if any, as the Jailer thinks fit to make, and the date of the entry.

39. Hospital. In every prison an hospital or proper place for the reception of sick prisoners shall be provided.

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CHAPTER IX

VISITS OF PRISONERS

40. Visits to civil and unconvicted criminal prisoners. Due provision shall be made for the admission, at proper times and under proper restrictions, into every prison of persons with whom civil or unconivted criminal prisoners may desire to communicate, care being take n that so far as may be consistent with the interests of justice, prisoners under-trial may see their duly qualified legal advisers without the presence of any other person.

41. Search of visitors.—(1) The Jailer may demand the name and address of any visitor to a prisoner, and, when the Jailer has any ground for suspicion, may search any visitor, or cause him to be searched, but the search shall not be made in the presence of any prisoner or of another visitor.

(2) In case of any such visitor refusing to permit himself to be searched, the Jailer may deny him admission; and the grounds of such proceeding, with the particulars thereof, shall be entered in such record as the [1][Provincial Government] may direct.

[1]Subs. by A. O., 1937, for "L.G.".

CHAPTER X

OFFENCES IN RELATION TO PRISONS

42. Penalty for introduction or removal of prohibited article into or from prison and communication with prisoners. Whoever, contrary to any rule under Section [1][59] introduces or removes or attempts by any means whatever to introduce or remove, into or from any prison, or supplies or attempts to supply to any prisoner outside the limits of a prison, any prohibited article,

and every officer of a prison who, contrary to any such rule, knowingly suffers any such article to be introduced into or removed from any prison, to be possessed by any prisoner, or to be supplied to any prisoner outside the limits of a prison, and whoever, contrary to any such rule, communicates or attempts to communicate with any prisoner, and whoever abets any offence made punishable by this section, shall, on conviction before a Magistrate, be liable to imprisonment for a term not exceeding six months, or to fine not exceeding two hundred rupees, or to both.

43. Power to arrest for offence under section 42. When any person, in the presence of any officer of a prison, commits any offence specified in the last foregoing section, and refuses on demand of such office to state his name and residence, or gives a name or residence which such officer knows, or has reason to believe, to be false, such officer may arrest him, and shall without unnecessary delay make him over to a Police Officer, and thereupon such Police-officer shall proceed as if the offence had been committed in his presence.

44. Publication of penalties. The Superintendent shall cause to be affixed, in a cons- Publication picuous place outside the prison, a notice in English and the Vernacular setting forth the acts prohibited under section 42 and the penalties incurred by their commission.

CHAPTER XI

PRISON-OFFENCES

45. Prison-offences. The following acts are declared to be prison-offences when committed by a prisoner :-

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(1) such wilful disobedience to any regulation of the prison as shall have been declared by rules made under section 59 to be a prison-offence;

(2) any assault or use of criminal force.

(3) the use of insulting or threatening language;

(4) immoral or indecent or disorderly behaviour;

(5) wilfully disabling himself from labour ;

(6) contumaciously refusing to work;

[1]Subs. ibid., for "60".

(7) filing, cutting, altering or removing handcuffs, fetters or bars without due authority;

(8) Wilful idleness or negligence at work by any prisoner sentenced to rigorous imprisonment;

(9) Wilful mismanagement of work by any prisoner sentenced to rigorous imprisonment;

(10) Wilful damage to prison-property;

(11) tampering with or defacing history tickets, records or documents;

(12) receiving, possessing or transferring any prohibited article ;

(13) feigning illness;

(14) wilfully bringing a false accusation against any officer or prisoner;

(15) omitting or refusing to report, as soon as it comes to his knowledge, the occurrence of any fire, any plot or conspiracy, any escape, attempt or preparation to escape, and any attack or preparation for attack upon any prisoner or prison-official; and

(16) conspiring to escape, or to assist in escaping, or to commit any other of the offences aforesaid.

[1]**46. Punishment of such offences.** The Superintendent may examine any person touching any such offence, and determine thereupon, and punish such offence by-

(1) a formal warning :

Explanation.—A formal warning shall mean a warning personally addressed to a prisoner by the Superintendent and recorded in the punishment-book and on the prisoner's history-ticket;

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(2) change of labour to some more irksome or severe form [2][for such period as may be prescribed by rules made by the [3][Provincial Government]] ;

(3) hard labour for a period not exceeding seven days in the case of convicted criminal prisoners not sentenced to rigorous imprisonment;

(4) such loss of privileges admissible under the remission system for the time being in force as may be prescribed by rules made by the [3][Provincial Government];

(5) the substitution of gunny or other coarse fabric for clothing of other material, not being woolen, for a period which shall not exceed three months;

[1]For rules issued with reference to clauses (4), (6) and (7) of section 46, *see* Gen. R. & O.
[2]Ins. by s. 2(a) of the Prisons (Amdt.) Act, 1925(17 of 1925).
[3]Subs. by A.O., 1937, for "G.G. in C.".

(6) imposition of handcuffs of such pattern and weight, in such manner and for such period, as may be prescribed by rules made by the [1][Provincial Government];

(7) imposition of fetters of such pattern and weight, in such manner and for such period, as may be prescribed by rules made by the [1][Provincial Government];

(8) separate confinement for any period not exceeding 2[three] months :

Explanation.—Separate confinement means such confinement with or without labour as secludes a prisoner from communication with, but not from sight of, other prisoners, and allows him not less than one hour's exercise per diem and to have his meals in association with one or more other prisoners;

(9) penal diet, that is, restriction of diet in such manner and subject to such conditions regarding labour as may be prescribed by the [3][Provincial Government] :

Provided that such restriction of diet shall in no case be applied to a prisoner for more than ninety-six consecutive hours, and shall not be repeated except for a fresh offence nor until after an interval of one week;

(10) cellular confinement for any period not exceeding fourteen days:

Provided that after each period of cellular confinement an interval of not less duration than such period must elapse before the prisoner is again sentenced to cellular or solitary confinement:

Explanation.—Cellular confinement means such confinement with or without labour as entirely secludes a prisoner from communication with, but not from sight of, other prisoners;

[4]* * * * * * *

[4][(11)] penal diet as defined in clause (9) combined with 5[cel1ular] Confinement 6* * *;

[4][(12)] whipping, provided that the number of stripes shall not exceed thirty;

Provided that nothing in this section shall render any female or civil prisoner liable to the imposition of any form of handcuffs or fetters, or to whipping.

[7][**47. Plurality of punishments under section 46**.—(1)] Any two of the punishments enumerated in the last foregoing section may be awarded for any such offence in combination, subject to the following exceptions, namely :-

(1) formal warning shall not be combined with any other punishment except loss of privileges under clause (4) of that section;

(2) penal diet shall not be combined with change of labour under clause (2) of that section, nor shall any additional period of penal diet awarded singly be combined with any period of penal diet awarded in combination with [8][cellular] confinement;

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[1]Subs. by A.O., 1937, for "G. G. in C.".
[2]Subs. by the Prisons (Amdt.) Act, 1925 (17 of 1925), s.2 (b), for "six".
[3]Subs. by A. O., 1937, for "L. G.".
[4]Original clause (11) was rep. and clauses (12) and (13) were renumbered (11) and (12), respectively by Act 17 of 1925, s. 2.
[5]Subs. ibid., for "solitary" .
[6]The words "as defined in clause (11)" rep., ibid.
[7]The original section 47 was renumbered as section 47(1) by the Prisons (Amdt.) Act, 1925 (17 of 1925), s. 3.
[8]Subs. ibid., s. 2 for "solitary".

[1][(3) cel1ular confinement shall not be combined with separate confinement, so as to prolong the total period of seclusion to which the prisoner shall be liable ;]

(4) whipping shall not be combined with any other form of punishment except cellular [2][and] separate confinement and loss of privileges admissible under the remission system;

[3][(5) no punishment will be combined with any other punishment in contravention of rules made by the [4][Provincial Government].]

[3][(2) No punishment shall be awarded for any such offence so as to combine, with the punishment awarded for any other such offence, two of the punishments which may not be awarded in combination for any such offence.]

48. Award of punishments under sections 46 and 47.—(1) The Superintendent shall have power to award any of the punishments enumerated in the two last foregoing sections, subject, in the case of separate confinement for a period exceeding one month, to the previous confirmation of the Inspector General.

(2) No officer subordinate to the Superintendent shall have power to award any punishment whatever.

49. Punishments to be in accordance with foregoing sections. Except by order of a Court of Justice, no punishment other than the punishments specified in the foregoing sections shall be inflicted on any prisoner, and no punishment shall be inflicted on any prisoner otherwise than in accordance with the provisions of those sections.

50. Medical Officer to certify to fitness of prisoner for punishment.—(1) No punishment of penal diet, either singly or in combination, or of whipping, or of change of labour under section 46, clause (2), shall be executed until the prisoner to whom such punishment has been awarded has been examined by the Medical Officer, who, if he considers the prisoner fit to undergo the punishment, shall certify accordingly in the appropriate column of the punishment-book prescribed in section 12.

(2) If he considers the prisoner unfit to undergo the punishment, he shall in like manner record his opinion in writing and shall state whether the prisoner is absolutely unfit for punishment of the kind awarded, or whether he considers any modification necessary.

(3) In the latter case he shall state what extent of punishment he thinks the prisoner can undergo without injury to his health.

51. Entries in punishment book.—(1) In the punishment-book prescribed in section 12 there shall be recorded, in respect of every punishment inflicted, the prisoner's name, register number and the class (whether habitual or not) to which he belongs, the prison-offence of which he was guilty, the date on which such prison-offence was committed, the number of previous prison- offences recorded against the prisoner, and the date of his last prison-offence, the punishment awarded, and the date of infliction.

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[1]Subs, ibid., s. 3, for the original exception (3).
[2]Subs. by the Repealing and Amending Act, 1914 (10 of 1914), s. 2 and Sch. I for "or".
[3]Exception (5) and sub-section (2) were ins. by Act 17 of 1925, s. 3.
[4]Subs. by A. O., 1937, for "G.G. in C".

(2) In the case of every serious prison-offence, the names of the witnesses proving the offence shall be recorded, and, in the case of offences for which whipping is awarded, the Superintendent shall record the substance of the evidence of the witnesses, the defence of the prisoner, and the finding with the reasons therefore.

(3) Against the entries relating to each punishment the Jailer arid Superintendent shall affix their initials as evidence of the correctness of the entries,

52. Procedure on committal of heinous offence. If any prisoner is guilty of any offence against prison discipline which, by reason of his having frequently committed such offences or otherwise, in the opinion of the Superintendent, is not adequately punishable by the infliction of any punishment which he has power under this Act to award, the Superintendent may forward such prisoner to the Court of the District Magistrate or of any Magistrate of the first class [1] * * * having jurisdiction, together with a statement of the circumstances, and such Magistrate shall thereupon inquire into and try the charge so brought against the prisoner, and, upon conviction, may sentence him to imprisonment which may extend to one year, such term to be in addition to any term for which such prisoner was undergoing imprisonment when he committed such offence, or may sentence him to any of the punishments enumerated in section 46 :

[2][provided that any such case may be transferred for inquiry and trial by the District Magistrate to any Magistrate of the first class [3]* * *: and]

Provided also that no person shall be punished twice for the same offence.

53. Whipping.—(1) No punishment of whipping shall be inflicted in installments, or except in the presence of the Superintendent and Medical Officer or Medical Subordinate.

(2) Whipping shall be inflicted with a light ratan not less than half an inch in diameter on the buttocks, and in case of prisoners under the age of sixteen it shall be inflicted, in the way of school discipline, with a lighter ratan.

54. Offences by prison subordinates.— (1) Every Jailer or officer of a prison subordinate to him who shall be guilty of any violation of duty or wilful breach or neglect of any rule or regulation or lawful order made by competent authority, or who shall withdraw from the duties of his office without permission, or without having given previous notice in writing of his intention for the period of two months, or who shall wilfully overstay any leave granted to him, or who shall engage without authority in any employment other than his prison-duty, or who shall be guilty of cowardice, shall be liable, on conviction before a Magistrate, to fine not exceeding two hundred rupees, or to imprisonment for a period not exceeding three months, or to both.

(2) No person shall under this section be punished twice for the same offence.

CHAPTER XII

MISCELLANEOUS

[1]The original words "or Presidency Magistrate" which were ins. by the Prisons (Amdt.) Act, 1910 (13 of1910), s. 2 (1), omitted by A.O., 1949, Sch.
[2]Subs. by the Prisons (Arndt.) Act, 1910 (13 of 1910), s. 2 (2), for the original proviso.
[3]The words "and by a Chief Presidency Magistrate to any other Presidency Magistrate" omitted by A.O., 1949, Sch.

55. Extramural custody, control and employment of prisons. A prisoner, when being taken to or from any prison in which he may be lawfully confined, or whenever he is working outside or is otherwise beyond the limits of any such prison in or under the lawful custody or control of a prison officer belonging to such Prison shall be deemed to be in prison and shall be subject to all the same incidents as if he were actually in prison.

56. Confinement in irons. Whenever the Superintendent considers it necessary (with reference either to the state of the prison or the character of the prisoners) for the safe custody of any prisoners that they should be confined in irons, he may, subject to such rules and instructions as may be laid down by the Inspector General with the sanction of the [1][Provincial Government], so confine them.

57. Confinements of prisoners under sentence of transportation in irons.—(1) Prisoners under sentence of [2][imprisonment for life] may, subject to any rules made under section [2][59], be confined in fetters for the first three months after admission to prison.

(2) Should the Superintendent consider it necessary, either for the safe custody of the prisoner himself or for any other reason, that fetters should be retained on any such prisoner for more than three months, he shall apply to the Inspector General for sanction to their retention for the period for which he considers their retention necessary, and the Inspector General may sanction such retention accordingly.

58. Prisoners not to be ironed by Jailer except under necessity. No prisoner shall be put in irons or under mechanical restraint by the Jailer of his own authority, except in case of urgent necessity, in which case notice thereof shall be forthwith given to the Superintendent.

59. Power to make rules. [3][The Provincial Government] may make rules-consistent Power to with this Act—

(1) defining the acts which shall constitute prison-offences;

(2) determining the classification of prison-offences into serious and minor offences;

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(3) fixing the punishments admissible under this Act which shall be awardable for commission of prison-offences or classes thereof;

(4) declaring the circumstances in which acts constituting both a prison-offence and an offence under the Pakistan Penal Code mayor may not be dealt with as a prison offence ;

(5) for the award of marks and the shortening of sentences [4][so, however, that a sentence of imprisonment for life is not shortened to a period of imprisonment less than fifteen years];

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[1]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for "transportation".
[2]Subs. by A. O., 1937.for "60".
[3]Subs. ibid., for "The G. G. in C. may for any part of British India, and each L.G. with the previous sanction of the G. G. in C. may for the territories under its administration".
[4]Added by Ord. 12 of 1972, s. 2 and Sch.

(6) regulating the use of arms against any prisoner or body of prisoners in the case of an outbreak or attempt to escape;

(7) defining the circumstances and regulating the conditions under which prisoners in danger of death may be released;

[1][(8) for the classification of prisons, and description and construction of wards, cells and other places of detention ;

(9) for the regulation by numbers, length or character of sentences, or otherwise, of the prisoners to be confined in each class of prisons;

(10) for the government of prisons and for the appointment of all officers appointed under this Act;

(11) as to the food, bedding and clothing of criminal prisoners and of civil prisoners maintained otherwise than at their own cost;

(12) for the employment, instruction and control of convicts within or without prisons;

(13) for defining articles the introduction or removal of which into or out of prisons without due authority is prohibited ;

(14) for classifying and prescribing the forms of labour and regulating the periods of rest from labour;

(15) for regulating the disposal of the proceeds of employment of prisoners;

(16) for regulating the confinement in fetters of prisoners sentenced to [2][imprisonment for life] ;

(17) for the classification and the separation of prisoners;

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(18) for regulating the confinement of convicted criminal prisoners under section 28;

(19) for the preparation and maintenance of history-tickets;

(20) for the selection and appointment of prisoners as officers of prisons ;

(21) for rewards for good conduct;

(22) for regulating the transfer of prisoners whose term of [3][imprisonment for life or shorter] imprisonment is about to expire; subject, however, to the consent of the Provincial Government of any other Province to which a prisoner is to be transferred;

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[1]Subs. by A. 0.,1937, for the original clauses (8) and (9).
[2]Subs. by Law Reforms Ordinance, 1972, (12 of 1972)s. 2 and Sch., for., "transportation".
[3]Subs. by the Law Reforms Ordinance, 1972, (12 of 1972), s.2 and Sch., for "transportation or".

(23) for the treatment, transfer and disposal of criminal lunatics or recovered criminal lunatics confined in prisons;

(24) For regulating the transmission of appeals and petitions from prisoners and their communication with their friends;

(25) for the appointment and guidance of visitors of prisons;

(26) for extending any or all of the provisions of this Act and of the rules thereunder to subsidiary jails or special places of confinement appointed under section 541 of the [1][Code of Criminal Procedure, 1898 (Act V of 1898), and to the officers employed, and the prisoners confined, therein;

(27) in regard to the admission, custody, employment, dieting, treatment and release- of prisoners; and

(28) generally for carrying into effect the purposes of this Act.]

[2]**60.** *[Power of Local Government to make rules.] Rep. by A.O., 1937.*

61. Exhibition of copies of rules. Copies of rules, under [3][section 59] so far as they affect the government of prisons, shall be exhibited, both in English and in the Vernacular, in some place to which all persons employed within a prison have access,

62. Exercise of powers of Superintendent and Medical Officer. All or any of the powers and duties conferred and imposed by this Act on a Superintendent or Medical Officer may in his absence be exercised and performed by such other officer as the [4][Provincial Government] may appoint in this behalf either by name or by his official designation.

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THE SCHEDULE.—[ENACTMENTS REPEALED.] Rep. by the Repealing Act, 1938 (I of 1938), s.2 and Sch.

Date: 05-09-2024

[1]Subs. by Ord. XXVII of 1981, s. 5, Sch. IV (only to the extent of Islamabad Capital Territory).
[2]This section has been incorporated with slight modification in clauses (8) to (27) of s. 59.
[3]Subs. by A.O., 1937, for "sections 59 and 60.
[4]Subs. ibid., for "L.G.".

THE PROBATION OF OFFENDERS ORDINANCE, 1960

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THE PROBATION OF OFFENDERS ORDINANCE, 1960

ORDINANCE NO. XLV OF 1960

[1st November, 1960]

AN
ORDINANCE
to provide for the release on probation of offenders in certain cases

WHEREAS it is expedient to provide for the release on probation of offenders in certain cases and for matters incidental thereto;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Probation of Offenders Ordinance, 1960.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such date[1] or dates as the [2][Federal Government] may, by notification in the official Gazette, appoint, and different dates may be appointed for different areas.

2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context:—

(a) "Code" means the Code of Criminal Procedure, 1898 (Act V of 1898) ;

(b) "Court" means a court empowered to exercise powers under this Ordinance;

(c) "Officer-in-charge" means the head of the Probation Department ;

(d) "probation officer" means a person appointed as such under section 12 ;

(e) "probation order" means an order made under section 5 ;

(f) "Probation Department" means the department responsible for the administration of this Ordinance ;

(g) all other words and expressions used but not defined in this Ordinance and defined in the Code shall have the same meaning as assigned to them in the Code.

3. Courts empowered under the Ordinance.— (1) The following courts shall be the courts empowered to exercise powers under this Ordinance, namely:—

(a) a High Court ;

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[1]The Ordinance shall come into force in:—
(i) West Pakistan with effect from the 1st July 1961, *see* Gaz. of P. 1961.Ext., p.957, and.
(ii) The Provisions of this Ordinance have been applied to the whole of the Tribal Areas of Baluchistan Regulation No.II of 1972.s.2.

[2]Subs. by F.O.A. 1975, Art.2 and Table, for "Central Government".

(b) a Court of Sessions ;

(c) [1][* * * * * * *]

(d) [1][* * * * * * *]

(e) a Magistrate of the 1st Class ; and

(f) any other magistrate specially empowered in this behalf.

(2) A Court may exercise powers under this Ordinance, whether the case comes before it for original hearing or on appeal or in revision.

(3) Where any offender is convicted by a Magistrate not empowered to exercise powers under this Ordinance, and such Magistrate is of opinion that the powers conferred by section 4 or section 5 should be exercised, he shall record his opinion to that effect and submit the proceedings to a Magistrate of the 1st Class [1][*****] forwarding the offender to him, or taking bail for appearance before him, and such Magistrate may thereupon pass such sentence or make such order as he might have passed or made if the case had originally been heard by him, and, if he thinks further inquiry or additional evidence on any point to be necessary, he may make such inquiry or take such evidence himself or direct such inquiry or evidence to be made or taken.

4. Conditional discharges, etc.— (1) Where a court by which a person, not proved to have been previously convicted, is convicted of an offence punishable with imprisonment for not more than two years is of opinion, having regard to :—

(a) the age, character, antecedents or physical or mental condition of the offender, and

(b) the nature of the offence or any extenuating circumstances attending the commission of the offence,

that it is inexpedient to inflict punishment and that a probation order is not appropriate, the court may, after recording its reasons in writing, make an order discharging him after due admonition, or, if the court thinks fit, it may likewise make an order discharging him subject to the condition that he enters into a bond, with or without sureties, for committing no offence and being of good behaviour during such period not exceeding one year from the date of the order as may be specified therein.

(2) An order discharging a person subject to such condition as aforesaid is hereafter in this Ordinance referred to as "an order for conditional discharge", and the period specified in any such order as "the period of conditional discharge".

(3) Before making an order for conditional discharge, the court shall explain to the offender in ordinary language that if he commits any offence or does not remain of good behaviour during the period of conditional discharge he will be liable to be sentenced for the original offence.

(4) Where a person conditionally discharged under this section is sentenced for the offence in respect of which the order for conditional discharge was made, that order shall cease to have effect.

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[1]Omitted by Ord. XLVI of 2002, s.2.

5. Power of Court to make a probation order in certain cases.— (1) Where a Court by which—

(a) any male person is convicted of an offence not being an offence under Chapter VI or Chapter VII of the Pakistan Penal Code (Act XLV of 1860), or under sections 216A, 328, 382, 386, 387,388, 389, 392, 393, 397, 398, 399, 401, 402, 455, or 458 of that Code, or an offence punishable with death or [1][imprisonment] for life, or

(b) any female person is convicted of any offence other than an offence punishable with death,

is of opinion that, having regard to the circumstances including the nature of the offence and the character of the offender, it is expedient to do so, the Court may, for reasons to be recorded in writing, instead of sentencing the person at once, make a probation order, that is to say, an order requiring him or her to be under the supervision of a probation officer for such period, not being less than one year or more than three years, as may be specified in the order:

Provided that the Court shall not pass a probation order unless the offender enters into a bond, with or without sureties, to commit no offence and to keep the peace and be of good behaviour during the period of the bond and to appear and receive sentence if called upon to do so during that period:

Provided further that the Court shall not pass a probation order under this section unless it is satisfied that the offender or one of his sureties, if any, has a fixed place of abode or a regular occupation within the local limits of its jurisdiction and is likely to continue in such place of abode or such occupation, during the period of the bond.

(2) While making a probation order, the Court may also direct that the bond shall contain such conditions as in the opinion of the Court may be necessary for securing supervision of the offender by the probation officer and also such additional conditions with respect to residence, environment, abstention from intoxicants and any other matter which the court may, having regard to the particular circumstances of the case, consider necessary for preventing a repetition of the same offence or a commission of other offences by the offender and for rehabilitating him as an honest, industrious and law-abiding citizen.

(3) When an offender is sentenced for the offence in respect of which a probation order was made, that probation order shall cease to have effect.

6. Order for payment of costs and compensation.— (1) A court directing the discharge of an offender under section 4 or making a probation order under section 5 may order the offender to pay such compensation or damages for loss or injury caused to any person by the offence and such costs of the proceedings as the court thinks reasonable :

Provided that the amount of compensation, damages and costs so awarded shall in no case exceed the amount of fine which the court might have imposed in respect of the offence.

(2) At the time of awarding compensation or damages in any subsequent civil suit or proceeding relating to the same offence, the court hearing such suit or proceeding shall take into account any sum paid or recovered as compensation, damages or costs under sub-section (1).

(3) The amount ordered to be paid under sub-section (1) may be recovered as fine in accordance with the provisions of section 386 and 387 of the Code.

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[1]Subs by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981),s.3 and II Sch., for "transportation".

7. Failure to observe conditions of the bond.– (1) If the court by which an offender is bound by a bond under section 5 has reason to believe that the offender has failed to observe any of the conditions of his bound, it may issue a warrant for his arrest or may, if it thinks fit, issue summons to the offender and his sureties, if any, requiring them to appear before it at such time as may be specified in the summons.

(2) The court before which an offender is brought or appears under subsection (1) may either remand him to judicial custody until the case is heard or admit him to bail, with or without sureties, to appear on the date of hearing.

(3) If the court, after hearing the case, is satisfied that the offender has failed to observe any of the conditions of his bond, including any conditions which may have been imposed under sub-section (2) of section 5, it may forthwith–

(a) sentence him for the original offence, or

(b) without prejudice to the continuance in force of the bond, impose upon him a fine not exceeding one thousand rupees:

Provided that the court imposing the fine shall take into account the amount of compensation, damages or costs ordered to be paid under section 6.

(4) If a fine imposed under clause (b) of sub-section (3) is not paid within such period as the court may fix, the court may sentence the offender for the original offence.

8. Powers of court in appeal and revision.– When an appeal or application for revision is made against conviction of an offence for which an order is made under section 4 or section 5 discharging the offender absolutely or conditionally or placing him on probation the appellate court or the Court sitting in revision may pass such order as it could have passed under the Code, or may set aside or amend the order made under section 4 or section 5 and in lieu thereof pass sentence authorized by law:

Provided that the appellate court or the court sitting in revision shall not impose a greater punishment than the punishment which might have been imposed by the court by which the offender was convicted.

9. Provisions of the Code to apply to sureties and bond.– The provisions of sections 122, 406A, 514, 514A, 514B and 515 of the Code shall, so far as may be, apply in the case of sureties and bonds taken under this Ordinance.

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10. Variation of conditions of probation.– (1) The court by which a probation order is made under section 5 may at any time, on the application of the person under probation or of the probation officer or of its own motion, if it thinks it expedient to vary the bond taken under that section, summon the person under probation to appear before it, and, after giving him a reasonable opportunity of showing cause why the bond should not be varied, vary the bond by extending or reducing the duration thereof or by altering any other of its terms and conditions or by inserting additional conditions therein :

Provided that in no case shall the duration of the bond be less than one year or more than three years from the date of the original order:

Provided further that where the bond is with surety or sureties, no variation shall be made in the bond without the consent of the surety or sureties; and if the surety or sureties do not consent to the variation, the court shall require the person under probation to execute a fresh bond, with or without sureties.

(2) Any such court as aforesaid may, on the application of any person under probation or of the probation officer or of its own, motion if satisfied that the conduct of the person under probation has been satisfactory as to render it unnecessary to keep him under supervision, discharge the probation order and the bond.

11. Effects of discharge and probation.— (1) A conviction of an offence, for which an order is made under section 4 or section 5 for discharging the offender after the due admonition or conditionally or placing him on probation, shall be deemed not to be a conviction for any purpose other than the purposes of the proceedings in which the order is made and of any subsequent proceedings which may be taken against the offender under the provisions of this Ordinance:

Provided that where an offender, being not less than eighteen years of age at the time of his conviction of an offence for which an order discharging him conditionally or placing him on probation is made, is subsequently sentenced under this Ordinance for that offence, the provisions of this sub-section shall cease to apply to the conviction.

(2) Without prejudice to the foregoing provisions of this section, the conviction of an offender who is discharged after due admonition or conditionally, or who is placed on probation, shall in any event be disregarded for the purposes of any law which imposes any disqualification or disability upon convicted persons, or authorizes or requires the imposition of any such disqualification or disability.

(3) The foregoing provisions of this section shall not affect—

(a) any right of any such offender to appeal against his conviction, or to rely thereon in bar of any subsequent proceedings for the same offence;

(b) the revesting or restoration of any property in consequence of the conviction of any such offender.

12. Appointment of probation officers.— (1) A probation officer referred to in a probation order may be any person appointed to be probation officer by the Officer-in-charge.

(2) A probation officer referred to in sub-section (1) shall be a person who shall possess such qualifications as may be prescribed by rules made in this behalf under this Ordinance.

(3) A probation officer, in the exercise of his duties under any probation order, shall be subject to the control of the Officer-in-charge.

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13. Duties of a probation officer.-A probation officer shall, subject to the rules made under this Ordinance,—

(a) visit or receive visits from the offender at such reasonable intervals as may be specified in the probation order or, subject thereto, as the Officer-in-charge may think fit ;

(b) see that the offenders observes the conditions of the bond executed under section 5 ;

(c) report to the Officer-in-charge as to the behaviour of the offender ;

(d) advise, assist and befriend the offender, and when necessary endeavour to find him suitable employment ; and

(e) perform any other duty which may be prescribed by the rules made under this Ordinance

14. Power to make rules.– (1) The [1][Provincial Government] may, by notification in the official Gazette, make rules for the purpose of carrying into effect the provisions of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing provisions, the [1][Provincial Government] may, make rules–

(a) regulating the appointment resignation and removal of probation officers and prescribing the qualification of such officers ;

(b) prescribing and regulating the duties of probation officers ; and

(c) regulating the remuneration payable to probation officers.

15. [*Delegation of powers to Provincial Government.*] *Omitted by A.O., 1964, Art.2nd Sch.*

16. [*Repeal of sections 380 and 562-564 of the Code*.] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and II Sch.*

17. Provisions of this Ordinance to be in addition to and not in derogation of certain laws.– The provisions of this Ordinance shall be in addition to and not in derogation of the Reformatory Schools Act, 1897 (VIII of 1897) , [2][* * *], the Punjab Borstal Act, 1926 (Pun. Act XI of 1926), [2][* * *], the [3][Punjab Children Ordinance, 1983 (Pb. Ord. XXII of 1983)] and the [3][Punjab Youthful Offenders Ordinance, 1983 (Pb. Ord. XXIII of 1983)] and the Sind Children Act, 1955 (sind Act XII of 1955).

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[1]Subs. by A.O. 1964, Art.2 and Sch. for "Central Government".
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance 1981 (27 of 1981), s.3 and II Sch.
[3]Subs. by Ord. XLVI of 2002, s.3.

THE PUBLIC GAMBLING ACT, 1867

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[1][THE PUBLIC GAMBLING ACT, 1867]

[*2]Act No. III OF 1867

[25th *January*, 1867]

An Act to provide for the punishment of public gambling and the keeping of common gaming-houses in [3][the Punjab].

Preamble. WHEREAS it is expedient to make provision for the punishment of public gambling and the keeping of common gaming-houses in [4][the Punjab];

It is hereby enacted as follows:—

1. Interpretation clause. In this Act—

[5]* * * * * * *

"Common gaming-house". "Common gaming-house means any house, walled enclosure, room or place in which cards, dice, tables or other instruments of gaming are kept or used for the profits or gain of the person owning, occupying, using or keeping such house, enclosure, room or place, whether by way of charge for the use of the instruments of gaming, or of the house, enclosure, room or place, or otherwise howsoever:

[6]* * * * *

2. Power to extend Act. [7][Sections 13 and 17] of this Act shall extend to the whole of the [8][Punjab]; and it shall be competent to the [9][Provincial Government] whenever [10][it] may think fit, to extend by a [11][notification to be published in three successive numbers of the official Gazette, all or

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[1]Short title given by the Repealing and Amending Act, 1897 (5 of 1897).
This Act has been repealed to the extent of Islamabad Capital Territory, *see* Ordinance No. 27 of 1981 , s. 4 and 3rd Sch.
*The Public Gambling Act, 1867, (III of 1867) has been repealed in its application in the Province of Punjab. *See* Punjab Act, II of 1985, s.2.
[2]For Statement of Objects and Reasons, *see* Gazette of India, 1866, p. 976; for Report of the Select Committee, *see* Gazette of India, 1867, Supplement, p. 44; and for Proceedings in Council, *see* Gazette of India, 1866, p. 662, and Gazette of India, 1867, pp. 48 and 52.
The Act was declared to be in force in Baluchistan by the British Baluchistan Laws Regulation, 1913 (2 of 1913), s. 3.
It has been applied to phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P. subject to certain modifications, *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has been extended to the Excluded Area of Upper Tanawal other than Phulera by the N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from the 1st June, *1951*,—*See* N. W.F.P. Gazette Extraordinary, dated the 1st June, 1951.

It has been amended in its application to their : —
(i) N.W.F.P. by N.W.F.P. Act 5 of 1947 and N.W.F.P. Act 28 of 1950; and
(ii) Punjab, by Punjab Act 1 of 1929.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I. p. 1499.
Sections 1,2,3,4,5,6,7,8,9,10,14,15 and 16 of this Act, have been extended to the Districts of Peshawar, Hazara and Mardan with effect from the 5th December, 1957, *vide* Police Notification No. 3(5)-HP-I/57 (7385)/26110, dated the 5th December, 1957.
This Act has been repealed to the extent of Islamabad Capital Territory, *see* Ordinance No. 27 of 1981, s. 4 and 3rd Sch.
[3]Certain original words have successively been amended by the Repealing and Amending Act, 1903 (1 of 1903), A. 0, 1949, Sch., and the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), to read as above.
[4]Certain original words have successively been amended by the Amending Act, 1891 (12 of 1891), Sch II, Act 1 of 1903. A.O. 1949 and Ordinance 21 of 1960, s. 3 and 2nd Sch., (with effect from the 14th October, 1955) to read as above.
[5]Definitions of "Lieutenant-Governor "and "Chief Commissioner" rep. by A. O., 1937.
[6]The clauses relating to "Number" and "Gender" rep. by the Second Repealing and Amending Act 1914 (17 of 1914), s. 3 and II Sch.
[7]Subs. by the Amending Act, 1891 (12 of 1891), for "ss. 13, 17 and 18,"
[8]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960) s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "Province. which had been subs. for "said territories", by A.O., 1949, Sch.
[9]Subs. by A.O., 1937, for "Lieutenant-Governor or the Chief-Commissioner, as the case may be."
[10]Subs., *ibid.*, for "he".
[11]For notification extending the remaining sections of this Act to the town of Kallarkot and certain villages in Mianwali District, *see* Gaz. of West Pakistan 1958,Pt.I, pp.182-83.
For notification extending the provisions of all the remaining sections of this act to the local limits of the revenue states (as specified in the land revenue record for the time being inforce) of Taxila in the Distrct of Rawalpindi, *see* West Pakistan Gazette, 1959, Pt. I p. 447.

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any of the remaining sections of this Act to any city, town, suburb, railway-station house and place being not more than three miles distant from any part of such station-house within the [1][Punjab], and in such notification to define, for the purposes of this Act, the limits of such city, town, suburb or station-house, and from time to time alter the limits so defined.

From the date of any such extension, so much of any rule having the force of law which shall be in operation in the territories to which such extension shall have been made, as shall be inconsistent with or repugnant to any section so extended, shall cease to have effect it such territories.

3. Penalty for owning or keeping, or having charge of gaming-house. Whoever, being the owner or occupier, or having the use, of any house, walled enclosure, room or place situate within the limits to which this Act applies, opens, keeps or uses the same as a common gaming-house; and.

Whoever, being the owner or occupier of any such house, walled enclosure, room of place as aforesaid, knowingly or willfully permits the same to be opened, occupied used or kept by any other persons as a common gaming-house; and

Whoever has the care or management of, or in any manner assists in conducting, the business of any house, walled enclosure, room or place as aforesaid, opened, occupied, used or kept for the purpose aforesaid; and.

Whoever advances or furnishes money for the purpose of gaming with persons frequenting such house, walled enclosure, room or place,

shall be liable to a fine not exceeding two hundred rupees, or to imprisonment of either description, [2]as defined in the Pakistan Penal Code, (XLV of 1860) for any term not exceeding three months.[3]

4. Penalty for being found in gaming-house. Whoever is found in any such house, walled enclosure, room or place, playing or gaming with cards, dice, counters, money or other instruments of gaming, or is found there present for the purpose of gaming, whether playing for any money, wager, stake or otherwise, shall be liable to a fine not exceeding one hundred rupees, or to imprisonment of either description, [2]as defined in the Pakistan Penal Code (XLV of 1860), for any term not exceeding one month,[3]

and any person found in any common gaming-house during any gaming or playing therein shall be presumed, until the contrary be proved, to have been there for the purpose of gaming.

5. Powers to enter and authorise police to enter and search. If the Magistrate of a district[3] or other officer invested with the full powers of a Magistrate[4], or the District Superintendent of Police, upon credible information, and after such enquiry as he may think necessary, has reason to believe that any house, walled enclosure, room or place, is used as a common gaming-house,

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[1]The Original words "territories subject to his government or administration" have successively been amended by A. O., 1937, A.O., 1949 Sch., and Ordinance 21 of 1960, s. 3 and 2nd Sch. (with effect from the 14th October, 1955) to read as above.
[2]*See* s. 53 of the Code.
[3]As to enhanced punishment for a second conviction of an offence under section 3 or section 4, *see* section 15 of this Act.
[4]*Read* District Magistrate and Magistrate of the first class, respectively, *see* Code of Criminal Procedure, 1898 (5 of 1898), s. 3.

he may either himself enter, or by his warrant authorise any officer of police, not below such rank as the [1][provincial Government] shall appoint in this behalf to enter with such assistance as may be found necessary, by night or by day, and by force if necessary, any such house, walled enclosure, room or place,

and may either himself take into custody, or authorise such officer to take into custody, all persons whom he or such officer finds therein, whether or not then actually gaming;

and may seize or authorise such officer to seize all instruments of gaming, and all moneys and securities for money, and articles of value, reasonably suspected to have been used or intended to be used for the purpose of gaming which are found therein;

and may search or authorise such officer to search all parts of the house, walled enclosure, room or place which or such officer shall have so entered when he or such officer has reason to believe that any instruments of gaming are concealed therein, and also the persons of those whom he or such officer so takes into custody;

and may seize or authorise such officer to seize and take possession of all instruments of gaming found upon such search.

6. Finding cards, etc., in suspected houses, to be evidence that such houses are common gaming-houses. When any cards, dice, gaming-tables, cloths, boards or other instruments of gaming are found in any house, walled enclosure, room or place entered or searched under the provisions of the last preceding section, or about the person of any of those who are found therein, it shall be evidence, until the contrary is made to appear, that such house, walled enclosure, room or place, is used as a common gaming-house, and that the persons found therein were there present for the purpose of gaming, although no play was actually seen by the Magistrate or police-officer, or any of his assistants.

7. Penalty on persons arrested for giving false names and addresses. If any person found in any common gaming-house entered by any Magistrate or officer of police under the provisions of this Act, upon being arrested, by any such officer or upon being brought before any Magistrate, on being required by such officer or Magistrate to give his name and address, shall refuse or neglect to give the same, or shall give any false name or address, he may upon conviction before the same or any other Magistrate be adjudged to pay any penalty not exceeding five hundred rupees, together with such costs, as to such Magistrate shall appear reasonable, and on the non-payment of such penalty and costs, or in the first instance, if to such Magistrate it shall seem fit, may be imprisoned for any period not exceeding one month.

8. On conviction for keeping a gaminghouse, instruments of gaming to be destroyed. On conviction of any person for keeping or using any such common gaming- house, or being present therein for the purpose of gaming, the convicting Magistrate may order all the instruments of gaming found therein to be destroyed, and may also order all or any of the securities for money and other articles seized, not being instruments of gaming, to be sold and converted into money, and the proceeds thereof with all moneys seized therein to be forfeited or, in his discretion, may order any part thereof to be returned to the persons appearing to have been severally thereunto entitled.

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[1]Subs. by A.O., 1937, for "Lieutenant-Governor or Chief-Commissioner".

9. Proof of playing for stake unnecessary. It shall not be necessary, in order to convict any person of keeping a common gaming-house, or of being concerned in the management of any common gaming-house, to prove that any person found playing at any game was playing for any money, wager or stake.

10. Magistrate may require any person apprehended to be sworn and give evidence. It shall be lawful for the Magistrate before whom any persons shall be brought, who have been found in any house, walled enclosure, room or place entered under the provisions of this Act, to require any such persons to be examined on oath or solemn affirmation, and give evidence touching any unlawful gaming in such house, walled enclosure, room or place, or touching any act done for the purpose of preventing, obstructing or delaying the entry into such house, walled enclosure, room or place or any part thereof, of any Magistrate or officer authorised as aforesaid.

No person so required to be examined as a witness shall be excused from being so examined when brought before such Magistrate as aforesaid, or from being so examined at any subsequent time by or before the same or any other Magistrate, or by or before any Court on any proceeding or trial in any ways relating to such unlawful gaming or any such acts as aforesaid, or from answering any question put to him touching the matters aforesaid, on the ground that his evidence will tend to criminate himself.

Any such person so required to be examined as a witness, who refuses to make oath or take affirmation accordingly or to answer any such question as aforesaid, shall be subject to be dealt within all respects as any person committing the offence described in section 178 or section 179 (as the case may be) of the Pakistan Penal Code (XLV of 1860).

11. Witnesses indemnified. Any person who shall have been Concerned in gaming contrary to this Act, and who shall be examined as a witness before a Magistrate on the trial of any person for a breach of any of the provisions of this Act relating to gaming, and who, upon such examination, shall in the opinion of the Magistrate make true and faithful discovery, to the best of his knowledge, of all things as to which he shall be so examined, shall thereupon receive from the said Magistrate a certificate. in writing to that effect, and shall be free from all prosecutions under this Act for anything done before that time in respect of such gaming.

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12. Act not to apply to certain games. Nothing in the foregoing provisions of this Act contained shall be held to apply to any game of mere skill wherever played.

13. Gaming and setting birds and animals to fight in public streets. A police-officer may apprehend without warrant any person found playing for money or other valuable thing with cards, dice, counters or other instruments of gaming, used in playing any game not being a game of mere skill in any public street, place or thoroughfare situated within the limits aforesaid, or

any person setting any birds or animals to fight in any public street, place or thoroughfare situated within the limits aforesaid, or

any person there present aiding and abetting such public fighting of birds and animals.

Such person when apprehended shall be brought without delay before a Magistrate, and shall be liable to a fine not exceeding fifty rupees, or to imprisonment, either simple or rigorous for any term not exceeding one calendar month;

[1]*See* now the Code of Criminal Procedure, 1898 (5 of 1898).

Destruction of instruments of gaming found in public streets. and such police-officer may seize all instruments of gaming found in such public place or on the person of those whom he shall so arrest, and the Magistrate may on the conviction of the offender order such instruments to be forthwith destroyed.

14. **Offences, by whom triable.** Offences punishable under this Act shall be triable by any Magistrate having jurisdiction in the place where the offence is committed.

But such Magistrate shall be restrained within the limits of his jurisdiction under the [1]Code of Criminal Procedure, as to the amount of fine or imprisonment he may inflict.

15. Penalty for subsequent offence. Whoever, having been convicted of an offence punishable under section 3 or section 4 of this Act, shall again be guilty of any offence punishable under either of such sections, shall be subject for every such subsequent offence to double the amount of punishment to which he would have been liable for the first commission of an offence of the same description:

Provided that he shall not be liable in any case to a fine exceeding six hundred rupees, or to imprisonment for a term exceeding one year.

16. Portion of fine may be paid to informer. The Magistrate trying the case may direct any portion of any fine which shall be levied under section 3 and 4 of this Act, or any part of the moneys or proceeds of articles seized and ordered to be forfeited under this Act, to be paid to an informer.

17. Recovery and application of fines. All fines imposed under this Act may be recovered in the manner prescribed by section 61 of the [1]Code of Criminal Procedure [2]* * *.

18. [3][*Repealed*]

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Date: 13-09-2024

[1]*See* now the Code of Criminal Procedure, 1898 (5 of 1898).
[2]The words "and such fines shall (subject to the provisions contained in the last preceding section) be applied as the Lieutenant-Governor or Chief Commissioner, as the case may be, shall from time to time direct" rep. by A. O., 1937.
[3]Rep. by the Repealing Act, 1874 (XVI of 1874), s. 1 and Sch., Pt. I.

THE REFORMATORY SCHOOLS ACT, 1897

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THE REFORMATORY SCHOOLS ACT, 1897

[1]ACT No. VIII OF 1897

[*11th March*, 1897]

An Act to amend the law relating to Reformatory Schools and to make further provision for dealing with youthful offenders.

WHBREAS it is expedient to amend the law relating to Reformatory Schools and to make further provision for dealing with youthful offenders;

It is hereby enacted as follows:

I. —PRELIMINARY

1. Title an extent.-(1) This Act may be called the Reformatory Schools Act, 1897; [2]*

[2][* * * * * * * * * * * *]

[3][(3) The Federal Government may, at any time, by notification in the official Gazette, extend this Act to the Islamabad Capital Territory from such day as may be fixed in such notification.].]

2 and 3. [*Repeals.*] *Rep. by the Repealing Act*, 1938 (*I of*] 938), *s.* 2 *and Schedule.*

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1896, Pt V, p. 187 ; for Report of the Select Committee, *see ibid.*, 1897, Pt. VI, p. 55; and for Proceedings in Council, *see ibid.*, 1896, Pt. V, pp. 222 and 251 ; and *ibid.*, 1896, Pt. VI. pp. 44 and 68.
This Act has been declared to be in force in Baluchistan by the British Baluchistan Laws Regulation. 1913 (2 of 1913), s. 3 and Sch. I.
It has also been extended to the Leased Areas of Baluchistan. *see* the Leased Areas Laws) Order, 1950 (G.G.0.3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette of India. 1937, Pt. I. p. 1499.
The Act, as in force in the North-West Frontier Province immediately before the commencement of N.W.F.P. Regulation No. II of 1974. has been applied to the Provincially Administered Tribal Areas of Chitral. Dir, Kalam. Swat and Malakand Protected Area, by N.W.F.P. Regulation, No. II of 1974. s. 3.
This Act has been amended to the extent of Islamabad Capital Territory. *see* Ordinance No. 27 of 1981. s. 5 and 4th Sch.
[2]The word "and" at the end of sub-section (1) and sub-section (2). rep, by the Repealing and Amending Act. 1914 (10 of 1914), s. 3 and Sch. II.
[3]Subs. by Ord. XXVII of 1981, s. 5 and Sch. IV (only to the extent of ICT).

4. Definitions. In this Act, unless there is anything repugnant in the subject or context,-

[1](a) "youthful offender" means any boy who has been convicted of any offence punishable with [2][* * *] or imprisonment and who, at the time of such conviction, was under the age of fifteen years:

(b) "Inspector General" includes any officer appointed by the [3][Provincial Government] to perform all or any of the duties imposed by this Act on the Inspector General: and

[4][* * * * * * *]

II. —REFORMATORY SCHOOLS

5. Power to establish and discontinue Reformatory Schools. [5]* * * The [3][Provincial Government] may—

(a) establish and maintain Reformatory Schools at such places as it may think fit;

(b) use as Reformatory Schools schools kept by persons willing to act in conformity with such rules, consistent with this Act, as the [3][Provincial Government] may prescribe in this behalf;

(c) direct that any school so established or used shall cease to exist as a Reformatory School or to be used as such.

6. Requisites of schools. Every school so established or used must provide-

(a) sufficient means of separating the inmates at night;

(b) proper sanitary arrangements, water-supply, food, clothing and bedding for the youthful offenders detained therein;

(c) the means of giving such youthful offenders industrial training;

(d) an infirmary or proper place for the reception of such youthful offenders when sick.

7. Inspection of Reformatory Schools.—(1) Every school intended to be established or used as a Reformatory School shall, before being used as such, be inspected Schools by the Inspector General, and if he finds that the requirements of section 6 have been complied with, and that, in his opinion, such school is fitted for the reception of such youthful offenders as may be sent there under this Act, he shall certify to that effect, and such

[1]In Sind the age-limit has been raised to 16: *see* the Bombay, Children Act, 1924 (Born. 13 of 1924). s. 4.
[2]Omitted by Ord. XXVII of 1981, s. 5 and Sch. IV (only to the extent of ICT).
[3]Subs. by A. 0., 1937, for "L.G.".
[4]Clause (c) omitted by A.O., 1949. Sch.
[5]The words "With the previous sanction of the G, G. in C." rep. by the Decentralization Act, 1914 (4 of 1914). s. 2 and Sch., Pt. I,

certificate shall be published in the [1][official Gazette], together with an order of the [2][provincial Government] establishing the school as a Reformatory School or directing that it shall be used as such, and the school shall thereupon be deemed to be a Reformatory School.

(2) Every such school shall, from time to time, and at least once in every year, be visited by the said Inspector General, who shall send to the [2][Provincial Government] a report on the condition of the school in such form as the [2][Provincial Government] may prescribe.

8. Power of Courts to direct youthful offenders to be sent to Reformatory Schools.— (1) Whenever any youthful offender is sentenced to [3][* * *] imprisonment, and is, in the judgement of the Court by which he is sentenced, a proper person to be an inmate of a Reformatory School, the Court may, subject to any rules made by the [2][Provincial Government], direct [4]that, instead of undergoing his sentence, he shall be sent to such a school, and be there detained for a period which shall be not less than [5] three or more than seven years.

(2) The powers so conferred on the court by this section shall be exercised only by (*a*) the High Court, (*b*), a Court of Session, (*c*) a District Magistrate, and (*d*) any Magistrate specially empowered by the [2] [Provincial Government] in this behalf, and may be exercised by such Courts whether the case comes before them originally or on apeal.

(3) The [2][provincial Government] may make rules for-

[6](*a*) defining what youthful offenders should be sent to Reformatory Schools, having regard to the nature of their offences or other considerations, and

(*b*) regulating the periods for which youthful offenders may be sent to such schools according to their ages or other considerations[7].

9. Procedure where Magistrate is not empowered to pass an order under section 8.—(1) When any Magistrate not empowered to pass an order under the last foregoing section is of opinion that a youthful offender convicted by him is a proper person to be an inmate of a Reformatory School, he may, without passing sentence, record such opinion and submit his proceedings and forward the youthful offender to the District Magistrate to whom he is subordinate.

(2) The Magistrate to whom the proceedings are so submitted may make such further inquiry (if any) as he may think fit and pass such sentence and order for the detention in a Reformatory School of the youthful offender, or otherwise, as he might have passed if such youthful offender had been originally tried by him.

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[1]Subs. by A.O., 1937, for "local official Gazette".
[2]Subs. *ibid.*, for "L. G.".
[3]Omitted by Ord. XXVII of 1981, s. 5 and Sch. IV (only to the extent of ICT).
[4]For delegation of powers of a L.G. to the Commissioner in Sind under this section, *see* Born. Govt. Gazette, 1912, Pt, I. p. 1193.
[5]This part of the section has been amended in Sind by the Bombay Children Act, 1924, (Bom. 13 of 1924), s. 4.
[6]For rules made under this clause by the Punjab Government, *see* Punjab Gazette, dated the 2nd October, 1903, Extraordinary, p. 3. For rules made by the Chief Commissioner of Baluchistan, *see* Gaz. of P., 1954, Pt. VI, pp. 93-94.
[7]For rules regulating the period for which youthful offenders may be sent to Reformatories, *see* different local R. & O.

10. Power of Magistrates to direct boys under fifteen sentenced to imprisonment to be sent to Reformatory Schools. The officer in charge of a prison in which a youthful offender is confined, in execution of a sentence of imprisonment, may bring him, if he has not then attained the age of fifteen years, before the District Magistrate within whose jurisdiction such prison is situate; and such Magistrate may, if such youthful offender appears to be a proper person to be an inmate of a Reformatory School, direct that, instead of undergoing the residue of his sentence, he shall be sent to a Reformatory School, and there detained for a period which shall be subject to the same limitations as are prescribed by or under section 8, with reference to the period of detention thereby authorised.

11. Preliminary inquiry and finding as to age of youthful offender.-(l) Before directing any youthful offender to be sent to a Reformatory School under section 8, section 9, or section 10, the Court or Magistrate shall inquire into the question of his age and, after taking such evidence (If any) as may be deemed necessary, shall record a finding thereon, stating his age as nearly as may be.

(2) A similar inquiry shall be made and finding recorded by every Magistrate not empowered to pass an order under section 8 before submitting his proceedings and forwarding the youthful offender to the District Magistrate as required by section 9, sub - section (1).

12. Government to determine Reformatory School to which offenders shall be sent. Every youthful offender directed by a Court or Magistrate to be sent to a Reformatory School shall be sent to such Reformatory School as the [1][Provincial Government] may, by general or special order, appoint for the reception of youthful offenders so dealt with by such Court or Magistrate:

Provided that, if accommodation in a Reformatory School is not immediately available for such youthful offender, he may be detained in the juvenile ward or such other suitable part of a prison as the [1][Provincial Government] may direct-

(a) until he can be sent to a Reformatory School, or

(*b*) until the term of his original sentence expires, whichever event may first happen. Should the term of his original sentence first expire, he shall thereupon be released, but should he be sent to a Reformatory School, then the period of detention previously undergone shall be treated as detention in a Reformatory School.

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[1]Subs.by A.O., 1937 , for "L.G.".

13. Persons found to be over eighteen years not to be detained in Reformatory Schools.—(1) If at any time after a youthful offender has been sent to a Reformatory School it appears to the Committee of Visitors or Board of Management, as the case may be, that the age of such youthful offender has been understated in the order for detention, and that he will attain the age of eighteen years before the expiration of the period for which he has been ordered to be detained, they shall report the case for the orders of the [1][Provincial Government].

(2) No person shall be detained in a Reformatory School after he has been found by the [1][Provincial Government] to have attained the age of eighteen years.

14. Discharge removal by order of Government. The [1][Provincial Government] may at any time order Discharge or any youthful offender-

(*a*) to be discharged from a Reformatory School;

(*b*) to be removed from one Reformatory School to another such school situate within the territories subject to such Government: Provided that the whole period of his detention in a Reformatory School shall not be increased by such removal.

[2]**[15. Agreement between Provinces**. The Provincial Governments of any two Provinces may after mutual agreement, generally or specially, notify in their respective official Gazettes that any Reformatory School situated in one of the Provinces shall be available for the reception of youthful offenders directed to be sent to a Reformatory School by any Court or Magistrate in the other Province and may thereupon make provision for the removal of youthful offenders accordingly.]

16. Certain orders not subject to appeal or revision. —Nothing contained in the [3][Code of Criminal Procedure, 1898 (Act V of 1898)], shall be construed to authorise any Court or Magistrate to alter or reverse in appeal or revision any order passed with respect to the age of a youthful offender or the substitution of an order for detention in a Reformatory School for [3][* * *] imprisonment.

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III-MANAGEMENT OF REFORMATORY SCHOOLS

17. Appointment of Superintendent and Committee of Visitors or Board of Management.—(1) For the control and management of every Reformatory School, the [1][Provincial Government] shall [4]appoint either (*a*) a Superintendent and a Committee of Visitors, or (*b*) a Board of Management.

[1]Subs. by A.O., 1937, for "L. G.";
[2]Subs. *ibid.*, for the original section 15.
[3]Subs. and omitted by Ord. XXVII of 1981, s. 5 and Sch. IV (only to the extent of ICT).
[4]For notification making such appointments, *See* different local Rules and Orders.

(2) Every Committee and every Board so appointed must consist of not less than five persons [1][* * *].

(3) The [2][Provincial Government] may suspend or remove any Superintendent or any Member of a Committee or Board so appointed.

18. Superintendent may license youthful offenders to employers of labour.— (1) Every Superintendent so appointed may, with the sanction of the Committee, by license under his hand, permit any youthful offender sent to a Reformatory School, who has attained the age of fourteen years, to live under the charge of any trustworthy and respectable person named in the license, or any officer of Government or of a Municipality, being an employer of labour and willing to receive and take charge of him, on the condition that the employer shall keep such youthful offender employed at some trade, occupation or calling.

(2) The license shall be in force for three months and no longer but may, at any time and from time to time until the expiration of the period for which the youthful offender has been directed to be detained, be renewed for three months at a time.

19. Cancellation of license. The license shall be cancelled at the desire of the employer named in the license.

20. Determination of license. If during the term of the license the employer named therein dies, or ceases from business or to employ labour, or the period for which the youthful offender has been directed to be detained in the Reformatory School expires, the license shall thereupon cease and determine.

21. Cancellation of license in case of ill-treatment. If it appears to the Superintendent that the employer of license in has ill-treated the youthful offender, or has not adequately provided for his lodging and maintenance, the Superintendent may cancel the license.

22. Superintendent to be deemed guardian of youthful offenders.—(1) The Superintendent of a Reformatory School shall be deemed to be the guardian of every youthful offender detained in such school, within the meaning of [1][Ordinance No. LVI of 1962].

Power to apprentice youthful offender. — (2) If it appears to the Superintendent that any youthful offender licensed, under section 18 has behaved well during one or more periods of his license, the Superintendent may, with the sanction, of the Committee, apprentice him under the provisions of the said Act, and on such apprenticement the right to detain such youthful offender in a Reformatory School shall cease, and the unexpired term (if any) of his sentence shall be cancelled.

[1]Subs. and omitted by Ord. XXVII of 1981, s. 5 and Sch. IV (only to the extent of ICT).
[2]Subs. by A.O., 1937, for "L.G.".

23. Duties of Committee of Visitors. — (1) Every Committee of Visitors appointed under section 17 for a Reformatory School shall, at least once in every month**—**

(*a*) visit the school, to hear complaints and see that the requirements of section 6 have been complied with, and that the management of the school is proper in all respects;

(*b*) examine the punishment-book;

(c) bring any special cases to the notice of the Inspector-General; and

(*d*) *see* that no person is illegally detained in the School.

(2) If any member of a Committee of Visitors so appointed fails or neglects, during a period of six consecutive months, to visit the school and assist in the discharge of the duties aforesaid, he shall cease to be a member of such Committee.

24. Powers of Board of Management. If, in exercise of the power conferred by section 17, the [1][Provincial Government] appoints a Board of Management for any Reformatory School, such Board shall have the powers and perform the functions of the Superintendent under sections 18 to 22, both inclusive; and the license mentioned in section 18 may be under the hand of their chairman; and they shall be deemed to be the guardians of the youthful offenders detained in such school.

25. Power to appoint Trustees or other Managers of a school to be a Board of Management. The [1][Provincial Government] may declare any body of Trustees or Managers of a school, who are willing to act in conformity with the rules referred to in section 5, clause (b), to be a Board of Management under this Act, and thereupon such body or Manager shall have all the powers and perform all the functions of such Board of Management.

26. Power of Board to make rules.— (1) With the previous sanction of the [1][Provincial Government], every Board of Management of a Reformatory School may from time to time make rules consistent with this Act–

(i) to prescribe the articles which are to be deemed to be "prohibited articles"; and

(ii) to regulate—

(a) the conduct of business of the Board;

(b) the management of the school;

(c) the education and industrial training of youthful offenders;

(d) visits to, and communication with, youthful offenders;

[1]Subs. by A.O., 1937, for "L.G.".

(e) the terms and conditions under which any articles declared by the Board to be "prohibited articles" may be introduced into or removed out of the school;

(f) the manner in which such articles are to be removed when introduced without due authority;

(g) the conditions and limitations under which such articles may be supplied outside the school to any youthful offender under order of detention therein;

(h) the conditions on which the possession by any such youthful offender of such articles may be sanctioned;

(i) the penalties to be imposed for the supply or possession of such articles when supplied or possessed without due authority;

(j) the punishment of offences committed by youthful offenders; and

(k) the granting of licenses for the employment of youthful offenders.

(2) In the absence of a Board of Management the [1][Provincial Government] may make rules consistent with this Act to regulate for any Reformatory School the matters mentioned in any clause of sub-section (1), other than clause (ii), (a), and also the mode in which the Committee of Visitors shall conduct their business.

IV. —OFFENCES IN RELATION TO REFORMATORY SCHOOLS

27. Penalty for introduction or removal or supply of prohibited articles and communication with youthful offenders. Whoever, contrary to any rule made under section 26, introduces or removes or attempts by any means whatever to introduce or remove into or from any Reformatory School, or supplies or attempts to supply outside the limits of any Reformatory School to any youthful offender under order of detention therein, any prohibited article, and every officer or person in charge of a Reformatory School who, contrary to any such rule, knowingly suffers any such article to be introduced into or removed from any Reformatory School, to be possessed by any youthful offender detained therein, or to be supplied to any such youthful offender outside its limits, and whoever, contrary to any such rule, communicates or attempts to communicate with any such youthful offender, and whoever abets any offence made punishable under this section, shall, on conviction before a Magistrate, be liable to imprisonment for a term not exceeding six months, or to fine not exceeding two hundred rupees, or to both.

28. Penalty for abetting escape of youthful offender. Whoever abets an escape, or an attempt to escape on the part of a youthful offender from a Reformatory School, or from the employer of such youthful offender, shall be punishable with imprisonment for a term which may extend to six months, or with fine not exceeding two hundred rupees, or with both.

[1]Subs. by. A.O., 1937, for "L.G.".

29. Arrest of escaped youthful offender. A Police-officer may, without orders from a Magistrate and without a warrant, arrest any youthful offender sent to a Reformatory School under this Act, who has escaped from such school or from his employer, and take him back to such school or to his employer.

V. —MISCELLANEOUS

30. *[Application of Act XV of* 1869 *to youthful offenders detained in Reformatory Schools.] Rep.* by *the Prisoners Act, 1900 (III of 1900), s.* 53 *and Schedule III.*

31. Power to deal in other ways with youthful offenders including girls.—(1) Notwithstanding anything contained in this Act or in any other enactment for the time being in force, any Court may, if it shall think fit, instead of sentencing any youthful offender to [1][* * *] imprisonment or directing him to be detained in a Reformatory School, order him to be-

(a) discharged after due admonition, or

(b) delivered to his parent or to his guardian or nearest adult relative, on such parent, guardian or relative executing a bond, with or without sureties, as the Court may require, to be responsible for the good behaviour of the youthful offender for any period not exceeding twelve months.

(2) For the purposes of this section the term "youthful offender" shall include a girl.

(3) The powers conferred on the Court by this section shall be exercised only by Courts empowered by or under section 8.

(4) When any youthful offender is convicted by a Court not empowered to act under this section and the Court is of opinion that the powers conferred by this section should be exercised in respect of such youthful offender, it may record such opinion and submit the proceedings and forward the youthful offender to the District Magistrate to whom such Court is subordinate.

(5) The District Magistrate to whom the proceedings are so submitted may thereupon make such order or pass such sentence as he might have made or passed if the case had originally been tried by him.

32. Procedure when youthful offender under detention in a Reformatory School is again convicted and sentenced. When a youthful offender during his period of detention in a Reformatory School is again convicted by a Criminal Court, the sentence of such Court shall commence at once, notwithstanding anything to the contrary in section 397 of the [2]Code of Criminal Procedure, 1898, but the Court shall forthwith report the matter to the [3][Provincial Government] , which shall have power to deal with the matter in any way in which it thinks fit.

———————

Date: 05-09-2024

[1]Subs. and omitted by Ord. XXVII of 1981, s. 5 and Sch. IV (only to the extent of ICT).
[2]See now the Code of Criminal Procedure, 1898 (V of 1898)
[3]Subs. by A. 0.. 1937. for "L G.".

THE REMOVAL OF ACCUSED PERSONS ACT, 1973

CONTENTS

1. Short title, extent and commencement
2. Removal of prisoners, etc.
3. [Omitted]

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THE REMOVAL OF ACCUSED PERSONS ACT, 1973

ACT NO. LXIII OF 1973

[15th *September*, 1973]

An Act to provide for the removal of accused persons from one Province to another.

WHEREAS it is expedient to provide for the removal of accused persons from one Province to another;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Removal of Accused Persons Act, 1973.

(2) It extends to the whole of Pakistan.

(3) it shall come into force at once.

2. Removal of prisoners, etc.— Notwithstanding anything contained in any other law for the time being in force, the Federal Government may, by general or special order, provide for the removal of any accused person or class of accused persons held in custody in any Province to any other Province to be held in custody therein.

3. [1] [Omitted]

THE PAKISTAN CODE

RGN Date: 20-05-2024

[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s.3 and sch. II.

THE SECURITY OF PAKISTAN ACT, 1952

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THE SECURITY OF PAKISTAN ACT, 1952

[1]ACT NO. XXXV OF 1952

[5th *May*, 1952]

An Act to provide for special measures to deal with persons acting in a manner prejudicial to the defence, external affairs and security of Pakistan, [2][* * *], [3][* * *]

WHEREAS it is expedient to provide for special measures to deal with persons acting in a manner prejudicial to the defence, external affairs and security of Pakistan, [2][* * *], [3][* * *];

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Security of Pakistan Act, 1952.

(2) It extends to the whole of Pakistan.

[4][(3) It shall come into force at once [5][* * *].

[6][**2. Definitions.**—In this Act, unless there is anything repugnant in the subject or context,—

[7][(a) 'Board' means the Review Board referred to in clause (4) of Article 10 of the Constitution which is appointed by the Chief Justice of Pakistan and consists of a Chairman and two other persons, each of whom is or has been a Judge of the Supreme Court or a High Court;]

(b) "Code" means the Code of Criminal Procedure, 1898 (Act V of 1898);

(c) "document" includes any painting, drawing, photograph or other visible representation and gramophone records, sound tracks and any other article on which sounds have been recorded with a view to their subsequent reproduction ; and

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[1]The Act has been applied to—
(i) Baluchistan, with effect on and from the 6th May, 1952, *see* Gazette of P., 1952, Pt. I, page 119, extended to the Leased Areas of Baluchistan, by the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950) and to applied in the Federated Areas of Baluchistan, *see* Gazette of Pakistan, 1953, Pt. I, page 152, and
It has also been extended to—
(ii) the Baluchistan States Union, by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953) ; and
(iii) Khairpur State by the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O. 5 of 1953).
In this Act references to detention order to an Advisory Board shall be of no effect (with effect from the 7th October, 1958), *see* the President's Order (Post-Proclamation) No. I of 1958, Art. 4 and Sch.
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (Ordinance No. XXXVII of 1960), S. 2, *see* also Martial Law Regulation No. 72.
[2]Omitted by the Adaptation (Security Laws) Order, 1956 (P.O. No. VIII of 1956), Art. 2 and Sch. (w.e.f. the 23rd March, 1956).
[3]Omitted by the Repealing and Amending Ordinance, 1965 (Ordinance No. X of 1965), s. 3 and 2nd Sch.
[4]Subs. and shall be deemed to have been subs. by Act No. XIII of 1958, s. 2.
[5]Omitted by Ordinance No. XXIII of 1961, s. 2.
[6]Subs. by Act No. XIV of 1965, s. 2.
[7]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (Act No. XLIV of 1975), s. 2.

(d) "press" includes a printing press and all machines, implements and plant and parts thereof and all materials used for multiplying documents.]

3. Restrictions on the movements of suspected persons and their detention.— (1) The [1][Federal Government] if satisfied with respect to any particular person, that, with a view to preventing him from acting in any manner prejudicial to the defence or the external affairs or the security of Pakistan, or any part thereof [2][* * *], [3][* * *], it is necessary so to do, may make an order—

(*a*) directing such person to remove himself from Pakistan in such manner, before such time, and by such route, as may be specified in the order;

(*b*) directing that he be detained [4][:]

[1][Provided that, within a period of twenty-four months commencing on the day of his first detention in pursuance of an order made under this clause, no person, other than a person who for the time being is an enemy alien or who is employed by, or works for, or acts on instructions received from, the enemy, or who is acting or attempting to act in a manner prejudicial to the integrity, security or defence of Pakistan or any part thereof or who commits or attempts to commit any act which amounts to an anti-national activity as defined in a Federal law or is a member of any association which has for its objects, or which indulges in, any such anti-national activity, shall be detained in pursuance of any such order for more than a total period of eight months in the case of a person detained for acting in a manner prejudicial to public order and twelve months in any other case.]

(*c*) directing that, except in so far as may be permitted by the provisions of the order, or by such authority or person as may be specified therein, he shall not be in any such area or place as may be specified in the order;

(*d*) requiring him to reside or remain in such place or within such area in Pakistan as may be specified in the order, and if he is not already there, to proceed to that place or area within such time as may be specified in the order ;

(*e*) requiring him to notify his movements or to report himself or both to notify his movements and report himself in such manner, at such times, and to such authority or person, as may be specified in the order ;

(*f*) requiring him to conduct himself in such manner, abstain from such acts, or take such order with any property in his possession or under his control, as may be specified in the order ;

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[1]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (Act No. XLIV of 1975), s. 2.
[2]Omitted by the Adaption (Security Laws) Order, 1956 (P.O. No. VIII of 1956), Art. 2 and Sch. (*w.e.f. the 23rd March, 1956*).
[3]Omitted by the Repealing and Amending Ordinance, 1965 (Ordinance No. X of 1965), s. 3 and 2nd Sch.
[4]Subs. by the Preventive Detention Laws (Amendment) Act, 1962 (Act No. IV of 1962), s. 2.

[1][* * * * * * *]

(*h*) prohibiting or restricting the [1][* * *] use by him of any such article or articles as may be specified in the order :

Provided that no order shall be made under clause (a) of this sub-section in respect of any person who is or is deemed to be a citizen of Pakistan under the law for the time being in force.

(2) An order made under sub-section (1) may require the person in respect of whom it is made to enter into a bond, with or without sureties, for the due performance of, or as an alternative to the enforcement of, such restrictions or conditions made in the order as may be specified in the order.

(3) If any person is in any area or place in contravention of an order made under sub-section (1), or fails to leave any area or place in accordance with the requirements of such an order, then, without prejudice to the provisions of sub-section (5) of this section, he may be removed from such area or place by any police officer or by any person authorised by the [2][Federal Government] in this behalf.

(4) So long as there is in force in respect of any person an order under clause (*b*) of sub-section (1) directing that he be detained, he shall be liable to be detained in such place [2][as the Board may determine] and under such conditions, including conditions as to [2][*] discipline and punishment of offences and breaches of discipline, as the [2][Federal Government] may from time to time specify.

(5) If the [3][Federal] or Provincial Government has reason to believe that a person in respect of whom an order as aforesaid has been made directing that he be detained, has absconded or is concealing himself so that such order cannot be executed, that Government may—

(*a*) make a report in writing to a Magistrate of the First Class having jurisdiction in the place where the said person ordinarily resides; and thereupon the provisions of Sections 87, 88 and 89 of the Code (Act V of 1898) shall apply in respect of the said person and his property as if the order directing that he be detained were a warrant issued by the Magistrate;

(*b*) by order notified in the official Gazette direct the said person to appear before such officer, at such place, and within such period, as may be specified in the order ; and if the said person fails to comply with such direction he shall, unless he proves that it was not possible for him to comply therewith and that he had within the period specified in the order informed the officer of the reason which rendered compliance therewith impossible and of his whereabouts, be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

[1]Omitted by Act No. XIII of 1958, s. 4.
[2]Ins. and omitted by the Preventive Detention Laws (Amendment) Act, 1975 (Act No. XLIV of 1975), s. 2.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), s. 2 and Table.

(6) If any person contravenes any order made under this section, he shall be punishable with imprisonment for a term which may extend to three years or with fine or with both, and if such person has entered into a bond in pursuance of the provisions of sub-section (2), his bond shall be forfeited.

(7) An order made under this section [1][* * *] [2][shall subject to the provisions of [3][Section 6A]] remain in force for such period as may be specified in the order [4][and if, before its expiration, the period is extended by the [5][Federal Government] for such extended period] [6]* * *:

[6][* * * * * * *]

[3][* * * * * * *]

[1][* * * * * * *]

[3][(9) The revocation, otherwise than on the recommendation of the Board, of an order made under clause (b) of sub-section (1) against any person, or the expiry of any such order, shall not bar the making, against the same person and on the same grounds, of a fresh order under that clause :

Provided that a person shall not be detained under successive orders on the same grounds for a period exceeding three months in the aggregate unless the Board has reported before the expiration of the said period that there is, in its opinion, sufficient cause for such detention.

Explanation.— In computing the aggregate period of three months, there shall be excluded any period for which the person concerned has been detained with the authority of the Board under Section 6A.]

[6]**[3A. Temporary release of persons detained.**— (1) The [5][Federal Government] may at any time direct that any person detained in pursuance of a detention order may be released for any specified period either without conditions or upon such conditions specified in the direction as that person accepts, and may at any time cancel his release.

(2) In directing the release of any person under sub-section (1), the [5][Federal Government] may require him to enter into a bond with or without sureties for the due observance of the conditions specified in the direction.

(3) Any person released under sub-section (1) shall surrender himself at the time and place, and to the authority, specified in the order directing his release or cancelling his release, as the case may be.

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[1]Omitted and shall be deemed to have been so omitted on the 10th day of October, 1958, by Ordinance No. XXXIX of 1959, s. 2.
[2]Subs. by the Preventive Detention Laws (Amendment) Act, 1962 (Act No. IV of 1962), s. 2.
[3]Subs. and omitted by Act No. XIV of 1965, s. 3.
[4]Added by Ordinance No. IX of 1965, s. 2.
[5]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (Act No. XLIV of 1975), s. 2.
[6]Omitted and ins. by Act No. XIII of 1958, ss. 4, 5 and 6.

(4) If any person fails without sufficient cause to surrender himself in the manner specified in sub-section (3), he shall be punishable with imprisonment for a term which may extend to two years or with fine or with both.

(5) If any person released under sub-section (1) fails to fulfil any of the conditions imposed upon him under the said sub-section or in the bond entered into by him, the bond shall be declared to be forfeited and any person bound thereby shall be liable to pay the penalty thereof.

3B. Execution of detention order.—A detention order may be executed at any place in Pakistan in the manner provided for the execution of warrants of arrest under the Code of Criminal Procedure, 1898 (Act V of 1898).

3C. Detention orders not to be invalid or inoperative on certain grounds.—No detention order shall be invalid or inoperative merely by reason :

(a) that the person to be detained thereunder is outside the limits of the territorial jurisdiction of the Government or officer making the order, or

(b) that the place of detention of such persons is outside the said limits.]

4. Powers of photographing, etc., persons.— (1) The [1][Federal Government] or the Provincial Government may, by order, direct that any person, in respect of whom an order has been made under sub-section (1) of Section 3, shall—

(*a*) allow himself to be photographed and allow his finger and thumb impression to be taken by an officer specified in the order,

(*b*) furnish specimens of his handwriting and signature, and

(*c*) attend at such time and place before such authority or persons as may be specified in the order for all or any of the purposes mentioned in this sub-section.

(2) If any person contravenes any order made under this section, he shall be punishable with imprisonment for a term which may extend to six months, or with fine, or with both.

5. [2][Omitted]

[1]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (Act No. XLIV of 1975), s. 2.
[2]Omitted and shall be deemed to have been so omitted on the 10th day of October, 1958, by Ordinance No. XXXIX of 1959, s. 3.

[1][**6. Communication of grounds of order.**— [2][(1)] In every case where an order has been made under sub-section (1) of section 3 or under section 10, section 11 [3][or section 11A], the authority making the order shall, as soon as may be, but [2][subject to the provisions of sub-section (2)], communicate to the person or association affected thereby the grounds on which the order has been made to enable him or it to make representation in writing against the order, and it shall be the duty of such authority to inform such person or association of his or its right of making such representation and to afford him or it the earliest opportunity of doing so:

Provided that nothing in this section shall require the authority to disclose the facts which it considers to be against the public interest to disclose.]

[2][(2) In the case of an order made under clause (*b*) of sub-section (1) of section 3, the authority making the order shall, except where the [4][Federal Government] in the interest of the security of Pakistan, directs otherwise, inform the person detained under that order of the grounds of his detention at the time he is detained or as soon thereafter as is practicable, but not later than fifteen days from the date of detention.]

[3][**6A. Reference to Board and its procedure.**— [4][(1) A person shall not be detained under an order made under clause (b) of sub-section (1) of section 3 for a period exceeding three months unless the Board, to which a reference shall be made by the Federal Government, has reviewed his case and reported, before the expiration of the said period, that there is, in its opinion, sufficient cause for such detention, and, if the detention is continued after the said period of three months, unless the Board has reviewed his case and reported, before the expiration of each period of three months, that there is, in its opinion, sufficient cause for such detention.]

(2) A person affected by an order under clause (b) of sub-section (1) of Section 3 shall be entitled to be heard in person by the Board and to consult, in the presence of an officer nominated by the [4][Federal Government], but not to be represented before the Board by, a legal practitioner.

(3) The Board upon a reference made to it under sub-section (1) shall, after considering the material placed before it and calling for such further information as it may require from the [4][Federal Government], submit a report together with its recommendations to the [4][Federal Government].

(4) All proceedings of the Board shall be secret.]

7. [5][Omitted]

8. [5][Omitted]

9. [6][Omitted]

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[1]Subs. by Act No. XIII of 1958, s. 7.
[2]Renumbered, subs. and added by the Preventive Detention Laws (Amendment) Act, 1962 (Act No. IV of 1962), s. 2.
[3]Subs. by Act No. XIV of 1965, ss. 4 and 5.
[4]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (Act No. XLIV of 1975), s. 2.
[5]Omitted and shall be deemed to have been so omitted on the 10th day of October, 1958, by Ordinance No. XXXIX of 1959, s. 3.
[6]Omitted by the Adaptation (Security Laws) Order 1956 (P. 0. No. VIII of 1956), Art. 2 and Sch. (with effect from the 23rd March, 1956).

[1][**10. Control of subversive associations.**—(1) Notwithstanding anything contained in the Political Parties Act, 1962 (Act III of 1962), or in any other law for the time being in force, where the [2][Federal Government] is satisfied with respect to any association that there is danger that the association may act in a manner or be used for purposes prejudicial to the defence or external affairs or the security of Pakistan or of any part thereof, it may, by written or notified order, direct the association to suspend its activities for such period not exceeding three months as may be specified in the order.

(2) Where an order under sub-section (1) is in force in respect of an association, any officer authorised by the [2][Federal Government] in this behalf may enter upon and search any premises used for the purposes of the association and take possession of any document belonging to or in the custody of the association which in his opinion may be used for purposes prejudicial to the defence or external affairs or the security of Pakistan.

(3) Where an order has been made in respect of an association under sub-section (1), the [2][Federal Government] may, by written or notified order, direct that no funds or other property of the association shall be used, transferred or otherwise disposed of, or in any manner dealt with, so long as the order under sub-section (1) remains in force.

(4) Where an order under sub-section (3) has been made in respect of an association, all claims of the employees or creditors of the association, or of any other person, on the association or on the funds or property thereof, shall remain suspended, and the commencement or continuance of all actions and proceedings relating to such claim shall be stayed, for so long as the order remains in force.

(5) For the purposes of any suit, appeal or application by or against an association in respect of which an order under sub-section (3) has been made, the period during which the order remains in force shall, notwithstanding anything contained in the limitation Act, 1908 (IX of 1908), be excluded in computing the period of limitation.

(6) No person shall so long as an order under sub-section (1) in respect of any association remains in force—

(a) manage or assist in managing the association ;

(b) promote or assist in promoting a meeting of any members of the association, or attend any such meeting in any capacity ;

(c) publish any notice or advertisement relating to any such meeting;

(d) invite persons to support the association ; or

(e) otherwise in any way assist the operation of the association.

(7) A copy of an order under this section shall be served on the president, chairman, secretary or other officer or person concerned with the management of the affairs of the association by whatever name called, or by leaving it or sending it by post to the association at the last known address of its principal office.

(8) Whoever contravenes an order made under this section shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.]

[1]Subs. by Act No. XIV of 1965, s. 6.
[2]Subs. by the Preventive Detention Laws (Amendment) Act 1975, (Act No. XLIV of 1975), s. 2.

11. Control of information.— (1) Where in the opinion of the [1][Federal Government], any document made, printed or published contains any news, report or information likely to endanger the defence or external affairs or security of Pakistan or any part thereof [2][* * *] [3][* * *], it may, by written order—

(*a*) require the editor, printer, publisher or person in possession of such document to inform the authority specified in the order of the name and address of any person concerned in the supply and communication of such news, report or information, as the case may be ;

(*b*) require the delivery to an authority specified in the order of any document connected with the news, report or information referred to in clause (*a*) ;

(*c*) prohibit the further publication of such news, report or information, and the sale and distribution of such document ;

(*d*) declare such document and every copy or translation thereof or extract therefrom to be forfeited to Government.

(2) Where in pursuance of clause (*b*) of sub-section (1) any document is required to be delivered to a specified authority, that authority or any police officer may enter upon and search any premises whereon or wherein such document or any copy thereof is or is believed to be.

(3) Where in pursuance of clause (*d*) of sub-section (1) any document has been declared to be forfeited to Government, any police officer may seize any copy thereof wherever found in Pakistan, and any Magistrate may by warrant authorise any police officer not below the rank of Sub-Inspector to enter upon and search any premises whereon or wherein such document, or any copy thereof is or is believed to be.

[4][* * * * * * *]

[4][**11A. Control of certain undertakings and sale of shares, etc.**— (1) Where the [1][Federal Government] is of the opinion that any undertaking is being used, whether with the aid of funds from foreign sources or otherwise, or is likely to be used, for the purpose of making, printing, publishing or otherwise disseminating news, reports or information, likely to endanger the defence, the external affairs or the security of Pakistan, or any part thereof, or for the purpose of promoting such interests of any foreign State as are in conflict with the interests of Pakistan, it may, by order, remove the owner or, if there be more than one, all or any of them, and, in the case of a company, all or any of the directors, managing directors, managing agents or any other person, from the control or management of such undertaking, and appoint a person to take possession of the whole or any part of the undertaking or its property, movable or immovable, and exercise such powers and perform such duties, including, in the case of a company, all or any of the powers or duties of the Board of Directors, as may be set down in the order, and such appointment may at any time be revoked, and a fresh appointment made on such conditions and with such limitations as the [1][Federal Government] may determine.

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[1]Subs. by the Preventive Detention Laws (Amendment) Act, 1975, (Act No. XLIV of 1975), s. 2.
[2]Omitted by the Adaptation (Security Laws) Order, 1956 (P.O. No. VIII of 1956), Art. 2 and Sch. (*w.e.f. the 23rd March, 1956*).
[3]Omitted by the Repealing and Amending Ordinance, 1965 (Ordinance No. X of 1965), s. 3 and 2nd Sch.
[4]Omitted and ins. by Ordinance No. XIV of 1961, ss. 3 and 4 (*w.e.f. from the 16th April, 1959*).

(2) Where an order has been made under sub-section (1), the [1][Federal Government], or any authority or person authorized by it in this behalf, shall, as soon as possible, make arrangements to transfer, subject to such conditions as may be deemed fit, and transfer, by way of sale, in any manner considered expedient, any right, title or interest in the undertaking, or if the undertaking be a company in the shares thereof, of any director or shareholder to any other person not acting for or on behalf of or in collusion with such director or shareholder.

(3) Every sale under sub-section (2) shall be subject to confirmation by the [1][Federal Government], and such confirmation shall be notified in the official Gazette.

(4) If such undertaking as aforesaid be a company, the [1][Federal Government] may give a direction that the shares held by every or any director or shareholder shall be seized wherever the shares may be, for sale under sub-section (2), in such manner that such director or shareholder shall effectively cease to hold them.

(5) Where possession has been taken under sub-section (1), or a direction has been given in pursuance of sub-section (4), any police officer may seize any property of the undertaking or the shares thereof, or any document relating thereto, found any where in Pakistan, and any Magistrate may, by warrant, authorize any police officer not below the rank of Sub-Inspector, to enter upon and search for any such property, share or document in any premises where the same may be or may reasonably be suspected to be.

(6) The [1][Federal Government] or any authority or person authorized by it in this behalf, may, by order, make such arrangements as may be considered expedient to ensure that the continuity of the functioning of the undertaking affected by an order under sub-section (1) is not interrupted during the period between the date of such order and the date on which the person appointed under sub-section (1) makes over the control and management of the undertaking under sub-section (5) of section 11B, and any expenditure incurred in connection with such arrangements, including the remuneration of any person or persons, shall be met as the expenses of the undertaking.

(7) If within fourteen days of the promulgation of [2][the security of Pakistan (Amendment) Ordinance, 1961], or the publication of a notification under sub-section (3), the persons whose right, title or interest has been transferred by sale, or the person to whom the sale has been made, makes to the [1][Federal Government] a representation against the sale, the [1][Federal Government] after perusal of the record, may, subject to such condition as it may deem fit to impose, set aside the sale and order a fresh sale.

Explanation (I).— A fresh sale under this sub-section shall be deemed to be a sale under sub-section (2).

Explanation (II).— The [1][Federal Government] shall not be bound to hear any of the parties or their counsel or agent, or to examine any witness or document, before making an order under this sub-section.

(8) Before a sale is set aside under sub-section (7), the [1][Federal Government] may require the person making the representation to pay an amount sufficient to meet the expenses of the sale, and to forfeit to the [1][Federal Government] such other amount, not exceeding twenty-five per cent of the sale price, as may be determined by the [1][Federal Government].

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[1]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (Act No. XLIV of 1975), s. 2.
[2]Subs. by the Repealing and Amending Ordinance, 1965 (Ordinance No. X of 1965), s. 3 and 2nd Sch.

(9) If the purchaser fails to pay the full price of the sale, the property may be resold, and any deficiency which may happen on resale and all expenses attending such resale may be recovered from him.

(10) Any amount payable under this section, whether as unpaid price, or as forfeiture or otherwise, if not paid within the time specified, if any, shall be recoverable as arrears of land revenue.

(11) The sale shall be complete after all proceedings under this section relating to sale or resale, as the case may be, have been concluded and all sums due from the purchaser in whose favour the sale has been concluded have been paid by or recovered from him.

11B. Removal of control and possession, etc.— (1) On the completion of sale the [1][Federal Government] or the authority or persons, as the case may be, arranging the sale shall deliver possession of the property, or in the case of shares, of the certificates relating thereto, to the purchaser, supported by a sale certificate.

(2) If in consequence of the action taken under sub-section (1) of Section 11A, the Board of Directors of a company has ceased to function, the person appointed thereunder shall, immediately after the delivery of possession under sub-section (1), call, notwithstanding anything to the contrary in the Companies Act, 1913, or the constitution of the company, by public advertisement, a general meeting of the company to be held under his chairmanship, for the purpose of electing directors.

(3) A meeting called under sub-section (2) shall, as far as practicable, be held and conducted in accordance with the Articles of Association of the company.

(4) On the conclusion of a meeting held under this section, a record of the proceedings shall be made and certified by the Chairman, and such certificate shall be conclusive proof of the directors named therein having been validly appointed.

(5) Immediately after the record of proceedings is certified under sub-section (4), the control and management of the company shall be made over to the directors.

11C. Payment of sale price, etc.— (1) Any amount realized as price from a sale, or from a fresh, sale as the case may be, under section 11A, shall, after deducting the expenses of the sale, be paid, within such time as may be specified by the [1][Federal Government], to the person whose right, title or interest has been transferred by such sale.

(2) Where the shares of more than one person have been sold in a single lot, the amount payable shall, with the shareholder's consent, be paid to them against a joint discharge, and in the absence of such consent the amount shall be paid to each shareholder in proportion to the paid amount of his shares.

(3) If the person to whom any right, title or interest, is transferred under section 11A, has deposited any moneys before the sale to him is set aside, the amount so deposited or paid shall, after deducting the amount if any, due from such person under any of the provisions thereof, be refunded to him, and thereupon all documents executed and endorsements made in his favour shall stand cancelled.

[1]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (Act No. XLIV of 1975), s. 2.

(4) Where, in order to effect the transfer of any property, instrument or share, any document or endorsement is required to be executed or made by a person whose right, title or interest, is transferred, the [1][Federal Government] or any authority or person authorized by it in this behalf, may, execute such document or make such endorsement, and any document so executed and endorsement so made shall be deemed to have been executed and made by the person whose right, title or interest is so transferred and shall be conclusive proof of such transfer for all purposes.

(5) In this section, and in Section 11A, the expression "expenses of the sale" shall include expenditure incurred in connection with any dispute arising out of the sale, and such other expenditure as the [1][Federal Government] may determine to be such expenses.

(6) The provisions of this section and Sections 11A and 11B shall have effect notwithstanding anything to the contrary contained in any law other than this Act, or in any instrument, deed or document.

(7) For the removal of doubt it is hereby declared that where a person appointed under sub-section (1) of Section 11A is required to exercise the powers or perform the duties of the Board of Directors of a company, the provisions of the Companies Act, 1913 (VII of 1913), shall, as respects duties not expressly set forth in the order under sub-section (1) of Section 11A, not apply to him.]

[2][**12. Regulation of publication of certain matters.**— (1) Where the [1][Federal Government] is satisfied that in the interest of the defence, the external affairs or the security of Pakistan it is necessary so to do, the [1][Federal Government] or any authority empowered by it In this behalf may, by order addressed to a printer, publisher or editor, or printers, publishers or editors generally, require that all matter relating to a particular subject or class of subjects affecting the defence, the external affairs or the security of Pakistan shall, before being published in any document or class of documents, be submitted for scrutiny to any authority specified in the order, who shall, within seventy two hours of its submission, either approve of [3][its publication or if it is satisfied that It is likely to prejudicially affect the defence, the external affairs or the security of Pakistan, prohibit it]; and no matter the publication whereof has been so prohibited shall be published.

(2) Any person affected by an order under sub-section (1) prohibiting the publication of any matter may, within seven days of the communication of the order, appeal against it [3][* * *] to the District Judge of the district in which such person resides :

Provided that where appeals against the same order have been made by persons who reside in different districts all such appeal shall be [3][preferred] to the senior of the District Judges of such districts.

Explanation.— A person shall be deemed to reside in the district in which he ordinarily resides or carries on business or personally works for gain.

(3) The District Judge to whom [3][an appeal] has been made under sub-section (2) shall, after giving the appellant an opportunity of being heard, consider the appeal as speedily as possible and [3][pass such orders thereon as he may deem fit; and the orders shall be final].

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[1]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (Act No. XLIV of 1975), s. 2.
[2]Subs. by Act No. XIV of 1965, s. 7.
[3]Subs. and omitted by Ordinance No. XV of 1985, s. 2.

(4) If any person contravenes any order made under sub-section (1), then, without prejudice to any other proceedings which may be taken against such person, the [1][Federal Government] may declare to be forfeited to Government every copy of any document published or made in contravention of such order and any press used in the making of such document].

13. Penalties.—If any one contravenes any of the provisions of Section 11 or 12 he shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

14. Cognizance of offences.— (1) No Court shall take cognizance of any offence under this Act, except on a report in writing by a public servant as defined in section 21 of the Pakistan Penal Code (XLV of 1860)

(2) Proceedings in respect of an offence under this Act alleged to have been committed by any person may be taken before the appropriate Court having jurisdiction in the place where that person is for the time being or where the offence or any part thereof was committed.

(3) Notwithstanding anything contained in the Code an offence under this Act shall be triable by a Magistrate of the first Class.

15. Procedure for the trial of offences.—Subject to the provisions of the next succeeding section, all offences punishable under this Act shall be tried in accordance with the procedure prescribed for the trial of [2][*] cases by Chapter XX of the Code.

16. Offences to be cognizable and non-bailable.—Notwithstanding anything contained in the Code, all offences punishable under this Act shall be cognizable and non-bailable; and no person accused or convicted of any offence punishable under this Act shall, if in custody, be released on bail or on his own bond, unless—

(1) the prosecution has had an opportunity of being heard in respect of the application for such release ; and

(2) where the prosecution opposes the application, the Court is satisfied that there are reasonable grounds for believing that the accused is not guilty of the offence.

17. Bar of jurisdiction of Courts.—Except as provided in this Act, no order made, direction issued, or proceeding taken under this Act, [3][or purporting to have been so made, issued or taken, as the case may be,] shall be called in question in any Court, and no suit prosecution, or other legal proceedings shall lie against any person for anything done or in good faith intended to be done under this Act, or for any loss or damage caused to or in respect of any property whereof possession has been taken under this Act : Provided that an appeal shall lie against every conviction and sentence passed under Section 3(5)(*b*), 3(6), 4(2) and 13 of this Act, in the same manner and subject to the same limitations as against a conviction and sentence passed by a First Class Magistrate, under the Code [4][* * *].

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[1]Subs. by the Preventive Detention Laws (Amendment) Act, 1975, (Ordinance No. XLIV of 1975), s. 2.
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and 2nd Sch.
[3]Ins. by Ordinance No. XXIX of 1959, s. 5.
[4]Omitted by Act No. XIII of 1958, s. 12.

18. [1][Omitted]

19. Power to make rules.—(1) The [2][Federal Government] may make rules, not inconsistent with the provisions of this Act (V of 1898), to carry into effect the purposes thereof [2][* * *].

(2) All rules made under this section shall be laid before the [3][National Assembly] as soon as may be after they are made.

20. [4][Omitted]

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Dated: 14-02-2025

[1]Omitted by the Repealing and Amending Ordinance, 1965 (Ordinance No. X of 1965), s. 3 and 2nd Sch.
[2]Subs. and omitted by the Preventive Detention Laws (Amendment) Act, 1975 (Act No. XLIV of 1975), s. 2.
[3]Subs. by Act No. XIII of 1958, s. 14.
[4]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and 2nd Sch.

THE SURRENDER OF ILLICIT ARMS ACT, 1991

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THE SURRENDER OF ILLICIT ARMS ACT, 1991.

[1]ACT NO. XXI OF 1991

An Act to provide for the surrender of illicit arms and improvement and control of the law and order situation

WHEREAS it is expedient in the public interest to provide for the surrender of illicit arms, improvement and control of law and order situation and for matters connected therewith or incidental thereto:

It is hereby enacted as follows:—

1. Short title, extent and commencement. (1) This Act may be called the Surrender of Illicit Arms Act, 1991.

(2) It extends to the whole of Pakistan.

(3) It shall come into force in such areas and on such date as the Federal Government may, on recommendation of the respective Provincial Governments, by notification in the official Gazette appoint; and different date may be so appointed in respect of different areas.

2. Definitions. (1) In this Act, unless there is anything repugnant in the subject or context,—

(a) "illicit arms" includes—

(i) cannon as defined in the Pakistan Arms Ordinance, 1965 (W.P. Ordinance No. XX of 1965), excluding sub-machine guns and their silencers revolvers or pistols of over 46 inches bore;

(ii) all types of explosive substances as defined in the Explosive Substances Act, 1908 (VI of 1908), and the Explosive Act, 1884 (IV of 1884), including mines of all types;

(iii) all types of containers, grenades bombs and shells that discharge poisonous or noxious gases or other chemicals or substances which cause damage to human body;

(iv) fire-arms comprising automatic weapons (other than machine guns) including sub-machine guns, automatic rifles and machine pistols; and

(v) rifles, carbines muskets, shortguns, revolvers, pistols and appliances the object of which is the silencing of fire-arms and all other fire-arms not included in sub-clause (iv),

which are held or possessed in contravention of the provisions of the Arms Act, 1878 (XI of 1878), the Explosives Act, 1884 (IV of 1884), the Explosive Substances Act, 1908 (IV of 1908), the Pakistan Arms Act, 1965 (W.P. Ord. XX of 1965), or any other law for the time being in force;

[1]This Act shall come into force in the Karachi Division (w.e.f. 24-8-95) *vide* S.R.O. No. 841 (I)/95, dt. 24-8-95.

(b) "prescribed" means prescribed by rules made under this Act.

(2) The Federal Government may, by notification in the official Gazette, declare any article, substance, arms, ammunition or military stores not, specified hereinbefore which is held or possessed in contravention of any law as illicit arms, ammunition or explosives, for the purpose of this Act.

3. Act not to derogate from other laws. The provisions of this Act shall be in addition to, and not in derogation of, any other law for the time being in force, and nothing contained herein shall exempt any person from any proceedings which may be instituted against him under such law.

4. Surrender of illicit arms.— [1][(1) On the commencement of this Act, all] persons in possession or control of any illicit arms shall surrender such arms [2][to the District Co-ordination Officer, Deputy District Officer (Revenue)] or officer-in-charge of a police-station within whose jurisdiction such persons ordinarily reside or to such other authority as may be specified by the Federal Government by notification in the official Gazette.

(2) The authority receiving any illicit arms shall issue a receipt for the same.

5. Surrender of arms, etc., by persons on visit abroad. A person on a lawful visit abroad at the commencement of this Act shall, within [1][sixty days] of his return to Pakistan, through an authorized route or port of entry surrender and deposit and deposit all illicit arms in his possession or control to one of the authorities specified in section 4.

6. Publicity for surrender of illicit arms.— (1) The Federal Government and the Provincial Government shall give wide publicity to the provisions of this Act on the media, including television, radio, national and regional press, in Urdu, English and regional languages or by any other mode as may be prescribed.

(2) There shall be publicly displayed a count-down of every expired day of the period allowed for surrender of illicit arms under this Act and the number of days left for such surrender.

7. Punishments.— (1) Whoever contravenes the provisions of section 4 or section 5 or fails to surrender illicit arms shall,—

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(a) in respect of illicit arms defined in sub-clauses (i) to (iii) of clause (a) of section 2, be punished with imprisonment for life and forfeiture of property, both movable and immovable;

(b) in respect of illicit arms defined in sub-clause (iv) of clause (a) of section 2, be punished with imprisonment for life or with imprisonment for a term which shall not be less than ten years having regard to the antecedents of the accused; and

[1]Subs. & deemed always to have been so subs. by Ord. 66 of 01, s. 2 & Sch.
[2]Subs. by Ord. 66 of 01, s. 2 & Sch.

(c) in respect of illicit arms defined in sub-clause (v) of clause (a) of section 2, be punished with imprisonment for a term which may extend to fourteen years but shall not be less than three years, having regard to the antecedents of the accused.

(2) Any illicit arms in respect of which a person is convicted and sentenced under sub-section (1) shall stand forfeited to the Federal Government.

(3) Any conveyance used for the transportation of any illicit arms shall also be liable to confiscation.

Explanation.— In this section, "conveyance" includes a vessel, aircraft, vehicle or animal.

8. Indemnity. A person surrendering or depositing illicit arms under section 4 or section 5 shall stand indemnified against any legal or penal action for having previously possessed such illicit arms:

Provided that any person who had committed any offence with such arms shall not be exempted from criminal liability for any such offence.

9. Search for illicit arms, etc. [1][(1) The Federal Government may, from time to time, launch campaign for recovery of illicit arms in a coordinated manner and the Provincial Governments and all other agencies of the State which may be called upon shall act in aid of the Federal Government and Provincial Governments.]

(2) Search for illicit arms, ammunition or explosives shall be carried out, as nearly as may be, in accordance with Chapter V of the Code of Criminal Procedure, 1898 (Act V of 1898):

Provided that, where in case of an extreme urgency a departure from the provisions of the Code is made, the District Superintendent of Police or any other officer authorizing the search shall record reasons for such departure.

10. Reward for successful recovery. Any person providing information for successful recovery of illicit arms may, in the prescribed manner, be appropriately rewarded by the Federal Government or, as the case may be, by the Provincial Government to whom such information is provided, keeping in view the number of illicit arms recovered on the basis of such information.

11. Scrutiny of licences, etc.— (1) Whenever the Federal Government or, if so required by it, the Provincial Government deems fit, it may, notwithstanding anything contained in the Pakistan Arms Ordinance, 1965 (W.P. Ordinance No. XX of 1965), the Explosive Substances Act, 1908 (VI of 1908), the Explosives Act, 1884 (IV of 1884), the Arms Act, 1878 (XI of 1878), or any other law, by notification in the official Gazette, direct every person possessing or keeping in his control any arms, ammunition or explosives under any licence issued by any authority appointed under any law for the time being in force, to present such licence to the authority specified in the notification, by the Federal Government or, as the case may be, the Provincial Government, for scrutiny.

[1]Subs. and shall be deemed always to have been so subs. by Ord. 66 of 01, s. 2 & Sch.

(2) Where, on scrutiny of a license, the authority referred to in sub-section (1) is satisfied that it was not in the public interest or conducive for maintenance of law and order or the public peace to allow retention of the licence or any arms, ammunition or explosives, it may, after providing an opportunity of being heard, cancel the licence issued to a person to possess or keep any arms, ammunition or explosives.

(3) Where a licence is cancelled under sub-section (2), the person possessing or keeping any arms, ammunition or explosives shall deposit such arms, ammunition or explosives with the authority specified by the Federal Government.

12. Punishment for failure to present licence for scrutiny. Whoever fails to present his licence for possessing or keeping any arms, ammunition or explosives as required under section 11 shall be punished with imprisonment which may extend to ten years but shall not be less than three years and confiscation of such arms, ammunition or explosives.

13. Exemption. Nothing contained in this Act shall apply to a person who is exempt by virtue of the provisions of the Pakistan Arms Ordinance, 1965 (W.P. Ordinance No. XX of 1965), and the rules framed thereunder from holding a licence for possessing any arms and ammunition, including those of prohibited bore, by virtue of his office or otherwise.

14. Rules. The Federal Government may make rules for carrying out the purposes of this Act.

15. Removal of difficulties. If any difficulty arises in giving effect to any provision of this Act, the Federal Government may make such order or direction, not inconsistent with the provisions of this Act, as may appear to it to be necessary for the purpose of removing such difficulty.

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TELEGRAPH ACT, 1885

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THE TELEGRAPH ACT, 1885

*[1]Act NO. XIII OF 1885

[22nd July, 1885]

An Act to amend the law relating to Telegraphs in [2][Pakistan]

WHEREAS it is expedient to amend the law relating to telegraphs in [3][Pakistan]; It is hereby enacted as follows:—

PART I

PRELIMINARY

1. Short title, local extent and commencement.—(1) This Act may be called the [4][*] Telegraph Act, 1885.

[5][(2) It extends to the whole of Pakistan, and it applies also to [6][all citizens of Pakistan and persons in the service of Government wherever they may be.]]

(3) It shall come into force on the first day of October, 1885.

2. [7][Repealed]

3. Definitions.— In this Act, unless there is something repugnant in the subject or context,—

[8][(1) "telegraph" means any apparatus, equipment or plant used for transmitting, emitting, making or receiving signs, signals, writing, speech, sound or intelligence of any nature by wire, radio or visual or electromagnetic system:]

(2) "telegraph officer" means any person employed either permanently or temporarily in connection with a telegraph established, maintained or worked by [9][the [10][Federal Government]] or by a person licensed under this Act:

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*The Act was repealed by Ord. LI of 1994, but the same has been revived by Ord. No. LXIII of 1995, s.33.

[1]This Act was declared to be in force in Baluchistan by the British Baluchistan Laws Regulation, 1913 (II of 1913), s. 3 and Sch.
It has also been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G. G. O. III of 1950); and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; and also extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.

[2]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 4 and 3rd Sch., for "India".

[3]Subs. by A.O., 1949, Sch., for "India".

[4]The word "Indian" omitted by A. O.,1949, Sch.

[5]Subs. by A. O., 1949, Sch.,

[6]Subs. by A. O., 1961, Art. 2 and Sch.,

[7]Rep. by the Repealing Act, 1938 (I of 1938) s. 2 and Sch.

[8]Subs. by Act No. LXVII of 1975, s. 2, for the existing clause (1).

[9]Subs. by A. O., 1937, for "the Govt".

[10]Subs. by Act No. LXVII of 1975, s. 2, for "Central Government".

[1][(3) "message" means any communication, whether in written, printed, pictorial or spoken form, transmitted, emitted, made, received or delivered by telegraph or given to a telegraph officer to be transmitted or emitted, and includes all contents thereof;

(4) "telegraph line" means a wire or cable used for the purpose of telegraph, including any casing, coating, tube, tunnel, duct or pipe enclosing the same, and includes any apparatus connected therewith :]

(5) "post" means a post, pole, standard, stay, strut or other [2][* *] contrivance for carrying, suspending or supporting a telegraph line [3][and includes masts and towers required for telegraph]:

(6) "telegraph authority" means the [4][Director-General, Pakistan Telegraph and Telephone Department], and includes any officer empowered by him to perform all or any of the functions of the telegraph authority under this Act:

(7) "local authority" means any municipal committee, district board, body of port commissioners or other authority legally entitled to, or entrusted by [5][the [6][Federal] or any Provincial Government] with, the control or management of any municipal or local fund [7][:]

[8][(8) "works" means a manhole, cabinet, housing for cable repeater or radio repeater or any other structure above or under the ground, required for a post or telephone line:]

PART II

PRIVILEGESAND POWERS OF THE GOVERNMENT

4. Exclusive privilege in respect of telegraphs, and power to grant licenses.—[9][(1)] Within [10][Pakistan], the [11][Federal Government] shall have the exclusive privilege of establishing, maintaining and working telegraphs:

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Provided that the [11][Federal Government] may grant a license, on such conditions and in consideration of such payments as [12][it] thinks fit, to any person to establish, maintain or work a telegraph within any part of [10][Pakistan]:

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[1]Subs. by Act No. LXVII of 1975, s. 3 for the original clauses (3) and (4).
[2]The words "above ground", omitted ibid.
[3]Added ibid.
[4]Subs. by the Posts and Telegraphs (Amdt.) Act, 1962 (V of 1962), s. 2 (1), for "Director General of [Posts and Telegraphs]".
[5]Subs. by A. O., 1937, for "Govt".
[6]Subs. by F. A. O., 1975, Art. 2 and Table for "Central".
[7]Subs. by Act No. LXVII of 1975, s. 3, for full stop.
[8]Added ibid.
[9]Section. 4 was renumbered as s. 4 (1) by the Indian Telegraph (Amdt.) Act, 1914 (VII of 1914), s. 4.
[10]Subs. by A. O., 1949, Sch. for "British Indian".
[11]Subs. by A.O., 1937, for "Gazette of India".
[12]Subs. by A. O., 1937, for "he".

[1][Provided further that the [2][Federal Government] may, by rules made under this Act and published in the [3][official Gazette], permit, subject to such restrictions and conditions as [4][it] thinks fit, the establishment, maintenance and working—

(a) of wireless telegraphs on ships within [5][Pakistan] territorial waters [6][and on aircraft within or above 7[Pakistan], or [5][Pakistan] territorial waters], and

(b) of telegraphs other than wireless telegraphs within any part of [7][Pakistan].

(2) The [2][Federal Government] may, by notification in the [3][official Gazette], delegate to the telegraph authority all or any of [8][its] powers under the first proviso to sub-section (1).

The exercise by the telegraph authority of any power so delegated shall be subject to such restrictions and conditions as the [2][Federal Government] may, by the notification, think fit to impose.]

5. Power for Government to take possession of licensed telegraphs and to order interception of messages.—(1) On the occurrence of any public emergency, or in the interest of the public safety, the [9][Federal Government] or a [10][Provincial Government], or any officer specially authorized in this behalf [11][by the [9][Federal Government] or a Provincial Government], may—

(a) take temporary possession of any telegraph established, maintained or worked by any person licensed under this Act; or

(b) order that any message or class of messages to or from any person or class of persons or relating to any particular subject brought for transmission by, or transmitted or received by, any telegraph, shall not be transmitted, or shall be intercepted or detained, or shall be disclosed to [12][the Government making the order] or an officer thereof mentioned in the order.

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(2) If any doubt arises as to the existence of a public emergency, or whether any act done under sub-section (1) was in the interest of the public safety, [13][a certificate of the [9][Federal Government] or, as the case may be, the Provincial Government] shall be conclusive proof on the point.

[1]Second proviso and sub-section (2) were added to that section by the Indian Telegraph (Amdt.) Act, 1914 (VII of 1914), s. 4.
[2]Subs. by Act No. LXVII of 1975, s. 2, for "Central Government".
[3]Subs. A.O., 1937 for "Gazette of India".
[4]Subs. by A. O., 1937, for "he".
[5]Subs. by A. O., 1949, Sch., for "Indian".
[6]Ins. by the Indian Telegraph (Amdt.) Act, 1930 (27 of 1930).
[7]Subs. by A, O., 1949, Sch., for "British India".
[8]Subs. by A. O., 1937, for "his".
[9]Subs. by Act No. LXVII of 1975, s. 4.
[10]Subs.A.O., 1937 for "L.G.".
[11]Subs. by A. O., 1937, for "by the G. G. in C.".
[12]Subs.by A. O., 1937, for "the Govt.".
[13]Subs. ibid., for, "a certificate signed by a Secretary to the G. of I or to the L. G.".

6. Power to establish telegraph on land of Railway Company.—[1][The Railway Administration], on being required so to do by the [2][Federal Government], shall permit the Government to establish and maintain a telegraph upon any part of the land 3[under the management or control of the Administration], and shall give every reasonable facility for working the same.

7. Power to make rules for the conduct of telegraphs.—(1) The [2][Federal Government] may, from time to time, by notification in the [4][official Gazette], make rules consistent with this Act for the conduct of all or any telegraphs established, maintained or worked by the Government or by persons licensed under this Act.

(2) Rules under this section may provide for all or any of the following, among other matters, that is to say:—

(a) the rates at which, and the other conditions and restrictions subject to which, messages shall be transmitted;

(b) the precautions to be taken for preventing the improper interception or disclosure of messages;

(c) the period for which, and the conditions subject to which, telegrams and other documents belonging to, or being in the custody of, telegraph officers shall be preserved; and

(d) the fees to be charged for searching for telegrams or other documents in the custody of any telegraph officer.

(3) When making rules for the conduct of any telegraph established, maintained or worked by any person licensed under this Act, the [2][Federal Government] may, by the rules, prescribe fines for any breach of the same:

Provided that the fines so prescribed shall not exceed the following limits, namely:—

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(i) when the person licensed under this Act is punishable for the breach, one thousand rupees, and in the case of a continuing breach a further fine of two hundred rupees for every day after the first during the whole or any part of which the breach continues;

(ii) when a servant of the person so licensed, or any other person, is punishable for the breach, one-fourth of the amounts specified in clause (i).

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[1]Subs. by Act No. LXVII of 1975, s. 5, for "Any Railway Company". .
[2]Subs. by Act No. LXVII of 1975, s. 2, for "Central Government"
[3]Subs. by Act No. LXVII of 1975, s. 5, for "of the Company".
[4]Subs. by A. O.,1937, for "Gazette of India".

[1]**[7A. Recovery of dues in respect of telegraph, etc.—**If any person does not pay any sum due from him under this Act in respect of any telegraph or message, the sum so due may, on application made by the telegraph authority in this behalf, be recovered from such person, as if it were a fine imposed under this Act by any Magistrate having jurisdiction where that person may for the time being be resident; and the telegraph authority may further direct that any message, [2][* * *] not being on Pakistan State Service, addressed to that person, shall be withheld from him until the sum so due is paid or recovered as aforesaid.]

8. Revocation of licenses.—The [3][Federal Government] may, at any time, revoke any license granted under section 4, on the breach of any of the conditions therein contained, or in default of payment of any consideration payable thereunder.

9. Government not responsible for loss or damage.—The [4][Government] shall not be responsible for any loss or damage which may occur in consequence of any telegraph officer failing in his duty with respect to the receipt, transmission or delivery of any message; and no such officer shall be responsible for any such loss or damage unless he causes the same negligently, maliciously or fraudulently.

PART III
POWERS TO PLACE TELEGRAPH LINES AND POSTS

10. Power for telegraph authority to place and maintain telegraph lines and posts.— [5][The telegraph authority may place, set up, repair, alter and maintain or cause to be placed, set up, repaired, altered and maintained a telegraph line, post or works under, over, along, across or through any land, seashore, road, stream, water or any immovable property, may break, excavate and remove soil to the extent and depth required for placing or removing telegraph line, post or works, and, for the purpose of constructing or maintaining a telegraph line or post, may dig earth, stone and gravel and fell trees].

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Provided that—

(a) the telegraph authority shall not exercise the powers conferred by this section except for the purposes of a telegraph established or maintained by the [3][Federal Government], or to be so established or maintained;

(b) the [3][Federal Government] shall not acquire any right other than that of user only in the property under, over, along, across, in or upon which the telegraph authority places any telegraph line or post; and

[1]Ins. by Act No. XXV of 1957, s. 2.
[2]Omitted by Act No. LXVII of 1975, s. 6.
[3]Subs. by Act No. LXVII of 1975, s. 2, for "Central Government"
[4]Subs. by A. O., 1961, Art. 2, for "Crown".
[5]Subs. by Act No. LXVII of 1975, s. 7, for certain words.

(c) except as hereinafter provided, the telegraph authority shall not exercise those powers in respect of any property vested in or under the control or management of any local authority, without the permission of that authority; and

(d) in the exercise of the powers conferred by this section, the telegraph authority shall do as little damage as possible, and, when it has exercised those powers in respect of any property other than that referred to in clause (c), shall pay full compensation to all persons interested for any damage sustained by them by reason of the exercise of those powers.

11. Power to enter on property in order to repair or remove telegraph lines or posts.— The telegraph authority may, at any time, for the purpose of examining, repairing, altering or removing any telegraph line [1][, post or works], enter on the property under, over, along, across, in or upon which the line or post has been placed.

Provisions applicable to Property vested in or under the Control or Management of Local Authorities.

12. Power for local authority to give permission under section 10, clause (c), subject to conditions.— [2][(1)] Any permission given by a local authority under section 10, clause (c), may be given subject to such reasonable conditions as that authority thinks fit to impose, as to the payment of any expenses to which the authority will necessarily be put in consequence of the exercise of the powers conferred by that section, or as to the time or mode of execution of any work, or as to any other thing connected with or relative to any work undertaken by the telegraph authority under those powers [:][3]

[4][Provided that, notwithstanding anything contained in any other law for the time being in force, the local authority shall not impose any condition which requires the telegraph authority to pay rent or royalty for setting up or placing a telegraph line over, across, along or through the property of that authority.]

[4][(2) Any dispute regarding the amount of the expenses payable by the telegraph authority under sub-section (1) shall be determined in accordance with section 15:

Provided that permission to the telegraph authority shall not be withheld on account of such dispute.]

[1]Subs. by Act No. LXVII of 1975, s. 8, for "or post"
[2]Re-numbered, as sub-section (1) of that section, ibid., s. 9.
[3]Subs. by Act No. LXVII of 1975, s. 9, for full-stop.
[4]Added ibid.

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13. Power for local authority to require removal or alteration of telegraph line or post.— When, under the foregoing provisions of this Act, a telegraph line [1][, post or works] has been placed by the telegraph authority under, over, along, across, in or upon any property vested in or under the control or management of a local authority, and the local authority, having regard to circumstances which have arisen since the telegraph line [1][, post or works] was so placed, considers it expedient that it should be removed or that its position should be altered, the local authority may require the telegraph authority to remove it or alter its position, as the case may be.

14. Power to alter position of gas or water pipes or drains.— The telegraph authority may, for the purpose of exercising the power conferred upon it by this Act in respect of any property vested in or under the control or management of a local authority, alter the position thereunder on any pipe (not being a main) for the supply of gas or water, or of any drain (not being a main drain):

Provided that—

(a) when the telegraph authority desires to alter the position of any such pipe or drain, it shall give reasonable notice of its intention to do so, specifying the time at which it will begin to do so, to the local authority, and, when the pipe or drain is not under the control of the local authority, to the person under whose control the pipe or drain is;

(b) a local authority or person receiving notice under clause (a) may send a person to superintend the work, and the telegraph authority shall execute the work to the reasonable satisfaction of the person so sent.

15. Disputes between telegraph authority and local authority.—(1) If any dispute arises between the telegraph authority and a local authority in consequence of the local authority refusing the permission referred to in section 10, clause (c), or prescribing any condition under section 12, or in consequence of the telegraph authority omitting to comply with a requisition made under section 13, or otherwise in respect of the exercise of the powers conferred by this Act, it shall be determined by such officer as the [2][Federal Government] may appoint either generally or specially in this behalf.

(2) An appeal from the determination of the officer so appointed shall lie to the [1][Federal Government]; and the order of the [2][Federal Government] shall be final.

Provisions applicable to other Property

16. Exercise of powers conferred by section 10, and disputes as to compensation, in case of property other than that of a local authority.—(1) If the exercise of the powers mentioned in section 10 in respect of property referred to in clause (d) of that section is resisted or obstructed, the District Magistrate may, in his discretion, order that the telegraph authority shall be permitted to exercise them.

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[1]Subs by Act No. LXVII of 1975), s. 10, for "or post".
[2]Subs. by Act No. LXVII of 1975, s. 2, for "Central Government".

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(2) If, after the making of an order under sub-section (1), any person resists the exercise of those powers, or, having control over the property, does not give all facilities for their being exercised, he shall be deemed to have committed an offence under section 188 of the Pakistan Penal Code (XLV of 1860).

(3) If any dispute arises concerning the sufficiency of the compensation to be paid under section 10, clause (d), it shall, on application for that purpose by either of the disputing parties to the District Judge within whose jurisdiction the property is situate, be determined by him.

(4) If any dispute arises as to the persons entitled to receive compensation or as to the proportions in which the persons interested are entitled to share in it, the telegraph authority may pay into the Court of the District Judge such amount as he deems sufficient, or, where all the disputing parties have in writing admitted the amount tendered to be sufficient or the amount has been determined under sub-section (3), that amount; and the District Judge, after giving notice to the parties and hearing such of them as desire to be heard, shall determine the persons entitled to receive the compensation or, as the case may be, the proportions in which the persons interested are entitled to share in it.

(5) Every determination of a dispute by a District Judge under sub-section (3) or sub-section (4) shall be final:

Provided that nothing in this sub-section shall affect the right of any person to recover by suit the whole or any part of any compensation paid by the telegraph authority from the person who has received the same.

17. Removal or alteration of telegraph line or post on property other than that of a local authority.—(1) When, under the foregoing provisions of this Act, a telegraph line if [1][, post or works] has been placed by the telegraph authority under, over, along, across, in or upon any property, not being property vested in or under the control or management of a local authority, and any person entitled to do so desires to deal with that property in such a manner as to render it necessary or convenient that the telegraph line or post should be removed to another part thereof or to a higher or lower level or altered in form, he may require the telegraph authority to remove or alter the line or post accordingly:

Provided that, if compensation has been paid under section 10, clause (d), he shall, when making the requisition, tender to the telegraph authority the amount requisite to defray the expense of the removal or alteration, or half of the amount paid as compensation, whichever may be the smaller sum.

(2) If the telegraph authority omits to comply with the requisition, the person making it may apply to the District Magistrate within whose jurisdiction the property is situate to order the removal or alteration.

(3) A District Magistrate receiving an application under sub-section (2) may, in his discretion, reject the same or make an order absolutely or subject to conditions, for the removal of

[1]Subs. by Act No. LXVII of 1975, s.11 for "or post".

the telegraph line or post to any other part of the property or to a higher or lower level, or for the alteration of its form; and the order so made shall be final.

Provisions applicable to all Property

18. Removal of trees interrupting telegraphic communication.—(1) If any tree standing or lying near a telegraph line interrupts, or is likely to interrupt, telegraphic communication, a Magistrate of the first or second class may, on the application of the telegraph authority, cause the tree to be removed or dealt with in such other way as he deems fit.

(2) When disposing of an application under sub-section (1), the Magistrate shall, in the case of any tree in existence before the telegraph line was placed, award to the persons interested in the tree such compensation as he thinks reasonable, and the award shall be final.

19. Telegraph lines and posts placed before the passing of this Act.— Every telegraph line [1][, post or works] placed before the passing of this Act under, over, along, across, in or upon any property, for the purposes of a telegraph established or maintained by the [2][Federal Government], shall be deemed to have been placed in exercise of the powers conferred by, and after observance of all the requirements of, this Act.

[3]**[19A. Person exercising legal right likely to damage telegraph or interfere with telegraphic communication to give notice.—(**1) Any person desiring to deal in the legal exercise of a right with any property in such a manner as is likely to cause damage to a telegraph line [4][, post or works] which has been duly placed in accordance with the provisions of this Act, or to interrupt or interfere with telegraphic communication, shall give not less than one month's notice in writing of the intended exercise of such right to the telegraph authority, or to any telegraph officer whom the telegraph authority may empower in this behalf.

(2) If any such person without having complied with the provisions of sub-section (1) deals with any property in such a manner as is likely to cause damage to any telegraph line [4][, post or works], or to interrupt or interfere with telegraphic communication, a Magistrate of the first or second class may, on the application of the telegraph authority, order such person to abstain from dealing with such property in such manner for a period not exceeding one month from the date of his order and forthwith to take such action with regard to such property as may be in the opinion of the Magistrate necessary to remedy or prevent such damage, interruption or interference during such period.

(3) A person dealing with any property in the manner referred to in sub-section (1) with the *bona fide* intention of averting imminent danger of personal injury to himself or any other human being shall be deemed to have complied with the provisions of the said sub-section if he gives such notice of the intended exercise of the right as is in the circumstances possible, or where no such previous notice can be given without incurring the imminent danger referred to above, if he forthwith gives notice of the actual exercise of such right to the authority or officer specified in the said sub-section.]

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[1]Subs. by Act No. LXVII of 1975, s. 12, for "or post".

[2]Subs. ibid., s. 2, for "Central Government".

[3]Ins. by the Indian Telegraph (Amdt.) Act, 1914 (VII of 1914), s. 5.

[4]Subs. by Act No. LXVII of 1975, s. 12, for "or post".

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[1]**[19B. Power to confer upon licensee powers of telegraph authority under this Part.—** The [2][Federal Government] may, by notification in the [3][official Gazette], confer upon any licensee under section 4, in respect of the extent of his license and subject to any conditions and restrictions which the [2][Federal Government] may think fit to impose and to the provisions of this Part, all or any of the powers which the telegraph authority possesses under this Part with regard to a telegraph established or maintained by the Government or to be so established or maintained:

Provided that the notice prescribed in section 19A shall always be given to the telegraph authority or officer empowered to receive notice under section 19A (1).]

PART IV

PENALTIES

[4]**[20. Establishing, maintaining or working unauthorized telegraph.—**(1) If any person establishes, maintains or works a telegraph within [5][Pakistan] in contravention of the provisions of section 4 or otherwise than as permitted by rules made under that section, he shall be punished, if the telegraph is a wireless telegraph, with imprisonment which may extend to three years, or with fine, or with both, and, in any other case, with a fine which may extend to one thousand rupees.

(2) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (V of 1898), offences under this section in respect of a wireless telegraph shall, for the purposes of the said Code, be bailable and non-cognizable.

(3) When any person is convicted of an offence punishable under this section, the Court before which he is convicted may direct that the telegraph in respect of which the offence has been committed, or any part of such telegraph, be forfeited to [6][Government].

[7]**[20A. Breach of condition of license.—**If the holder of a license granted under section 4 contravenes any condition contained in his license, he shall be punished with fine which may extend to one thousand rupees, and with a further fine which may extend to five hundred rupees for every week during which the breach of the condition continues.]

21. Using unauthorized telegraphs.—If any person, knowing or having reason to believe that a telegraph has been established or is maintained or worked, in contravention of this Act, transmits or receives any message by such telegraph, or performs any service incidental thereto, or delivers any message for transmission by such telegraph, or accepts delivery of any message sent thereby, he shall be punished with fine which may extend to fifty rupees.

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[1]Ins. by the Indian Telegraph (Amdt.) Act, 1914 (VII of 1914), s. 5.
[2]Subs. by Act No. LXVII of 1975, s. 2, for "Central Government".
[3]Subs. by A. O., 1937, for "Gazette of India".
[4]Subs. by the Indian Te1egrnph (Amdt.) Act, 1914 (VII of 1914), s. 6, for the original section.
[5]Subs. by A. O., 1949, Sch., for "British India".
[6]Subs. by A.O., 1961, Art, 2, for "His Majesty" (with effect from the 23rd March, 1956).
[7]Ins. by the Indian Telegraph (Amdt.) Act, 1914 (VII of 1914), s. 7.

22. Opposing establishment of telegraphs on railway land.—If [1][the Railway Administration] or an officer of [1][the Railway Administration] neglects or refuses to comply with the provisions of section 6, it or he shall be punished with fine which may extend to one thousand rupees for every day during which the neglect or refusal continues.

23. Intrusion into signal-room, trespass in telegraph Office or obstruction.—If any person—

[2][(a) without permission of competent authority, enters a building, or a portion thereof, housing equipment belonging to the telegraph authority or to a person licensed under this Act, or]

(b) enters a fenced enclosure round such a telegraph office in contravention of any rule or notice not to do so, or

(c) refuses to quit such room or enclosure on being requested to do so by any officer or servant employed therein, or

(d) wilfully obstructs or impedes any such officer or servant in the performance of his duty,

he shall be punished with fine which may extend to five hundred rupees.

24. Unlawfully attempting to learn contents of messages.—If any person does any of the acts mentioned in section 23 with the intention of unlawfully learning the contents of any message, or of committing any offence punishable under this Act, he may (in addition to the fine with which he is punishable under section 23) be punished with imprisonment for a term which may extend to one year.

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25. Intentionally damaging or tampering with telegraphs.—If any person, intending—

(a) to prevent or obstruct the transmission or delivery of any message, or

(b) to intercept or to acquaint himself with the contents of any message, or

(c) to commit mischief,

damages, removes, tampers with or touches any battery, machinery, telegraph line, post or other thing whatever, being part of or used in or about any telegraph or in the working thereof, he shall be punished with imprisonment for a term which may extend to three years, or with fine, or with both.

[1]Subs. by Act No. LXVII of 1975, s. 14, for "a Railway Company".
[2]Subs. ibid.. s. 15 for clause "(a)".

[1]**[25A. Injury to or interference with a telegraph line or post.—**If, in any case not provided for by section 25, any person deals with any property and thereby wilfully or negligently damages any telegraph line [2][,post or works] duly placed on such property in accordance with the provisions of this Act, he shall be liable to pay the telegraph authority such expenses (if any) as may be incurred in making good such damage, and shall also, if the telegraphic communication is by reason of the damage so caused interrupted, be punishable with a fine which may extend to one thousand rupees:

Provided that the provisions of this section shall not apply where such damage or interruption is caused by a person dealing with any property in the legal exercise of a right if he has complied with the provisions of section 19A (1).]

[3]**[25B. Theft of telegraph line.—**If any person commits theft of a telegraph line, copper wire, cable or cable accessory, he shall be punished with rigorous imprisonment for a term which is not less than one year and not more than seven years and also with fine.

Explanation.—In this section, "theft" has the same meaning as in the Pakistan Penal Code (Act XLV of 1860).

25C. Penalty for tampering, etc., of telegraph line.—Any person, including a telegraph officer, who tampers with or uses a telegraph line or telegraph in order to cause wrongful loss to the Government or to any subscriber or to cause wrongful gain to any subscriber or any other person shall, without prejudice to any action which the telegraph authority is competent to take under this Act, be punishable with rigorous imprisonment for a term which is not less than one year and not more than seven years, with or without fine.

25D. Penalty for causing annoyance, etc.—Any person, including a telegraph officer, who uses any telephone, public or private, for causing annoyance or intimidation to any person, whether a subscriber or not, or for obnoxious calls shall, without prejudice to any other action which the telegraph authority is competent to take under this Act, be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

25E. Application of Chapter XX, Act V of 1898.—The provisions of Chapter XX of the Code of Criminal Procedure, 1898 (Act V of 1898), shall apply to the trial of offences punishable under this Act.

25F. Burden of proof in certain cases.—Any person who is found to be in possession of, or having under his control, without lawful authority, telegraph line, copper wire, cable or cable accessory of a kind notified by the telegraph authority to be generally used by the Pakistan Telegraph and Telephone Department shall, unless he proves that he has such authority, be deemed to have committed the offence punishable under section 25B.]

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[1]Ins. by the Indian Telegraph (Amdt.) Act, 1914 (VII of 1914), s. 8.
[2]Subs. by Act No. LXVII of 1975, s. 16, for "or post".
[3]Ins. ibid., s.17.

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26. Telegraph officer or other official making away with or altering or unlawfully intercepting or disclosing messages, or divulging purport of signals.— If any telegraph officer, or any person, not being a telegraph officer but having official duties connected with any office which is used as a telegraph office,—

(a) wilfully secretes, makes away with or alters any message which he has received for transmission or delivery, or

(b) wilfully and otherwise than in obedience to an order of the [1][Federal Government] or of a [2][Provincial Government], or of an officer specially authorized [3][by the 4[Federal] or a Provincial Government] to make the order, omits to transmit, or intercepts or detains, any message or any part thereof, or otherwise than in pursuance of his official duty or in obedience to the direction of a competent Court, discloses the contents or any part of the contents of any message, to any person not entitled to receive the same, or

(c) divulges the purport of any telegraphic signal to any person not entitled to become acquainted with the same,

he shall be punished with imprisonment for a term which may extend to three years or with fine, or with both.

27. Telegraph officer fraudulently sending messages without payment.—If any telegraph officer transmits by telegraph any message on which the charge prescribed by the [1][Federal Government], or by a person licensed under this Act, as the case may be, has not been paid, intending thereby to defraud the [1][Federal Government] or that person, he shall be punished with imprisonment for a term which may extend to three years, or with fine, or with both.

28. Misconduct.—If any telegraph officer, or any person not being a telegraph officer but having official duties connected with any office which is used as a telegraph office, is guilty of any act of drunkenness, carelessness or other misconduct whereby the correct transmission or the delivery of any message is impeded or delayed, or if any telegraph officer loiters or delays in the transmission or delivery of any message, he shall be punished with imprisonment for a term which may extend to three months, or with fine which may extend to one hundred rupees, or with both.

[6]**[29. Sending fabricated or obscene messages.—**any person transmits or causes to be transmitted by telegraph a message which he knows or has reason to believe to be false or fabricated, or a message which is indecent or obscene, he shall be punished with imprisonment for a term which may extend to three years, or with fine, or with both.]

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[1]Subs. by Act No. LXVII of 1975, s. 2, for "Central Government".
[2]Subs. by A.O., 1937, for "L. G,".
[3]Subs. ibid., for "by the G.G. in C." .
[4]Subs. by F. A.O., 1975. Art. 2 and Table, for "Central".
[5]Subs. by Act No. LXXVII of 1950, s. 2, for the original section 29.

[1]**[29A. Penalty.—** If any person, without due authority,—

(a) makes or issues any document of a nature reasonably calculated to cause it to be believed that the document has been issued by, or under the authority of, the [2][Director General, Pakistan Telegraph and Telephone Department], or

(b) makes on any document any mark in imitation of, or similar to, or purporting to be, any stamp or mark of any Telegraph Office under the [2][Director General, Pakistan Telegraph and Telephone Department], or a mark of a nature reasonably calculated to cause it to be believed that the document so marked has been issued by, or under the authority of, the [2][Director General, Pakistan Telegraph and Telephone Department],

he shall be punished with fine which may extend to fifty rupees.]

30. Retaining a message delivered by mistake.—If any person fraudulently retains, or wilfully secretes, makes away with or detains a message which ought to have been delivered to some other person, or, being required by a telegraph officer to deliver up any such message, neglects or refuses to do so, he shall be punished with imprisonment for a term which may extend to two years, or with fine, or with both.

31. Bribery.—A telegraph officer shall be deemed a public servant within the meaning of sections 161, 162, 163, 164 and 165 of the Pakistan Penal Code (XLV of 1860); and in the definition of "legal remuneration" contained in the said section 161, the word "Government" shall, for the purposes of this Act, be deemed to include a person licensed under this Act.

32. Attempts to commit offences.—Whoever attempts to commit any offence punishable under this Act shall be punished with the punishment herein provided for the offence.

PART V

SUPPLEMENTAL PROVISIONS

33. Power to employ additional police in places where mischief to telegraphs is repeatedly committed.—(1) Whenever it appears to the [3][Provincial Government] that any act causing or likely to cause wrongful damage to any telegraph is repeatedly and maliciously committed in any place, and that the employment of an additional police-force in that place is thereby rendered necessary, the [3][Provincial Government] may send such additional police-force as it thinks fit to the place, and employ the same therein so long as, in the opinion of that Government, the necessity of doing so continues.

(2) The inhabitants of the place shall be charged with the cost of the additional police-force, and the District Magistrate shall, subject to the orders of the [3][Provincial Government], assess the proportion in which the cost shall be paid by the inhabitants according to his judgment of their respective means.

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[1]Ins. by the Indian Telegraph (Amdt.) Act, 1914 (VII of 1914), s. 9.

[2]Subs. by the Posts and Telegraphs (Amdt.) Act, 1962 (V of 1962), s. 2, for "Director General of [posts and Telegraphs]"

[3]Subs. by A.O.,1937, for "L. G.".

(3) All moneys payable under sub-section (2) shall be recoverable either under the warrant of a Magistrate by distress and sale of the moveable property of the defaulter within the local limits of his jurisdiction, or by suit in any competent Court.

(4) The [1][Provincial Government] may, by order in writing, define the limits of any place for the purposes of this section.

34. [Omitted].

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Date: 11-11-2024

[1]Subs. by A.O.,1937, for "L. G.".
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II

THE TERRORIST AFFECTED AREAS (SPECIAL COURTS) ACT, 1992

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TERRORIST AFFECTED AREAS (SPECIAL COURTS) ACT, 1992

ACT NO. X OF 1992

[18th July, 1992]

An Act to provide for the suppression of acts of terrorism, subversion and other heinous offences in the terrorist affected areas.

WHEREAS it is expedient to provide for the suppression of acts of terrorism, subversion and other heinous offences in the terrorist affected areas and for matters connected therewith or incidental thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Terrorist Affected Areas (Special Courts) Act, 1992.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Code" means the Code of Criminal Procedure, 1898 (Act V of 1898);

(b) "Government" means the Federal Government;

(c) "Civil armed forces" means the Pakistan Rangers, the Frontiers Crops, Pakistan Coast Guards, Frontier Constabulary or any other force notified by the Government as such;

(d) "Notification" means a notification published in the official Gazette;

(e) "Public Prosecutor" means a Public Prosecutor" or an Additional Public Prosecutor or a Special Public Prosecutor appointed under section 12;

(f) "Schedule offence" means an offence specified in the Schedule being an offence committed in a terrorist affected area;

(g) "Special Court" means a Special Court established under section 6;

(h) "terrorist affected area" means an area declared as a terrorist affected area under section 3;

(i) "Zone" means a zone constituted under section3;

(j) words and expressions used but not defined in this Act and defined in the Code shall have the meanings respectively assigned to them in the Code.

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(2) Any reference in this Act to the Code or any provision thereof shall, in relation to an area in which the Code or such provision is not in force be construed as a reference to the corresponding law or the relevant provisions of the corresponding law, if any, in force in that area.

3. Declaration of terrorist affected areas.—If the Government is of the opinion that offences of the nature specified in the Schedule are being committed in any area on such a scale and in such a manner that it is expedient for the purpose of coping with such offences to have recourse to the provisions of this Act, it may, by notification,—

(a) declare such area to be a terrorist affected area;

(b) constitute such area into a single zone or into as many zones as it may deem fit; and

(c) direct the Provincial Government of the Province in which such zone is situated to appoint a Magistrate for each zone or a number of such zones.

4. Use of Police and Civil Armed Forces, etc.—(1) If a Magistrate on receiving a police report or other information is of the opinion—

(a) that any person in the zone is harbouring criminals, keeping as hostage any person who has been kidnapped or abducted, indulging in violence constituting a cognizable offence or acting in breach of an order for the time being in force prohibiting the assembly of more than five persons or violation of curfew or transporting weapons or firearms, ammunition or explosive substances or carrying weapons or firearms, ammunition or explosive substances on his person, whether openly or concealed, in breach of law or for un-lawful purposes;

(b) that it is necessary to destroy any illicit arms dump or prepared or fortified position or shelter from which armed attacks are made or are likely to be made or any structure used as straining camp for armed insurgents or utilized as a hideout by armed gangs of dacoits or anti-state elements or absconders wanted for any offence;

(c) that it is necessary to arrest any person who has committed a cognizable offence or against whom a reasonable suspicion exists that he has committed or is about to commit a cognizable offence; or

(d) that it is necessary to enter and search without warrant any place to make arrest of any such person or to secure release of any person illegally confined or detained or for recovery of any property reasonably suspected to be crime property or recovery of any arms, ammunition or explosive substances or lethal weapons believed to be unlawfully kept;

may be verbal orders require such person to comply with law, desist from indulging in unlawful activity, surrender himself or anything in his control.

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(2) If his orders under sub-section (1) are not complied with, the Magistrate after such warning as may be sufficient in his opinion and use of force become necessary for the purpose of securing compliance with the said orders may direct the officer or Junior Commissioned Officer or the police or civil armed forces officers at his disposal to secure such compliance and to use necessary force, even to the extent of causing death,—

(a) against any person referred to in clause (a) of the said sub section;

(b) to destroy any illicit arms dumps prepared or fortified position or shelter from which armed attacks are made or are likely to be made or any structure used as training camp for armed insurgents or utilized as a hideout by armed gangs of dacoits or anti-state elements or absconders wanted for any offence;

(c) to arrest without warrant any person referred to in clause of the said sub-section; or

(d) to enter and search with warrant, any place to make arrest of any such person or to secure release of any person illegally confined or detained or for recovery of any property reasonably suspected to be crime property or any arms, ammunition or explosive substances or lethal weapons believed to be unlawfully kept.

5. Power of police, civil armed forces, etc.—(1) When the Magistrate cannot be communicated with any police officer not below the rank of Sub-Inspector or an officer of equivalent rank in the civil armed forces or a Naib Subedar may after sufficient warning use necessary force even to the extent of causing death,—

(a) against any person referred to in clauses (a) of sub-section (1)of section 4; or

(b) to destroy any illicit arms dump, prepared or fortified position or shelter from which armed attacks are made or are likely to be made, or any structure used as training camp for armed insurgents or utilized as a hideout by armed gangs of dacoits or anti-state elements or absconders wanted for any offence; or

(c) to arrest, without warrant, any person referred to in clause(c)of sub-section (1) of section 4; or

(d) to enter and search without warrant any place to make arrest of any such person to secure release of any person illegally confined or detained or for recovery of any property reasonably suspected to be crime property or any arms, ammunition or explosive substances or lethal weapons believed to be unlawfully kept.

(2) The officer referred to in sub-section (1) shall, at the first opportunity as and when it becomes practicable for him to communicate with the magistrate, do so and shall thenceforward obey the instructions of the Magistrate as to whether he shall or shall not continue such action.

6. Establishment of Special Courts.—(1) For the purpose of providing for speedy trial of scheduled offences committed in a zone, the Government may establish, by notification, a Special Court in relation to such zone—

(a) within such zone; or

(b) if the Government having regard to the exigencies of the situation prevailing such zone considers it expedient so to do, at any place outside such zone but within the province in which such zone is situated.

(2) Notwithstanding anything contained in sub-section (1), if having regard to the exigencies of the situation prevailing in a province, the Government is of the opinion that it is expedient to establish in relation to a zone, or in the relation to two or more zones, in the province, a Special Court outside the said zone or zones, for the trial of such scheduled offences committed in the zone or zones the trial whereof within the zone or any of the zones—

(a) is not likely to be fair or impartial or completed with utmost dispatch; or

(b) is not likely to be feasible without occasioning a breach of peace or grave risk to the safety of the accused, the witnesses, the Public Prosecutor and the person constituting the Special Court, or any of them; or

(c) is not otherwise in the interest of justice, the Government may, by notification, establish in relation to such zone or zones a Special Court at such place outside the said zone or zones as may be specified in the notification.

7. Composition and appointment of Presiding officers of Special Courts. A Special Court shall consist of a Judge, being a person who is, or has been, or is qualified for appointment as, a Judge of a High Court and is appointed by the Government after consultation with the Chief Justice of the High Court.

8. Place of sitting.—(1) A Special Court shall sit at such place as the Government may, by order specify in that behalf.

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(2) Subject to the provisions of sub-section (1), a Special Court may, if it considers it expedient or desirable so to do, sit for holding trial of a case at any place other than the ordinary place of its sitting in the province in which it is establish;

Provided that, if the Public Prosecutor certifies to the Special Court that it is in his opinion necessary for the protection of the accused or any witness or otherwise expedient in the interests of justice that the whole or any part of the trial should be held at some place other than the ordinary place of its sitting, the Special Court may, after hearing the accused, make an order to that effect unless, for reasons to be recorded in writing, the Special Court thinks fit to make any other order.

9. Jurisdiction of Special Court.—(1) Notwithstanding anything contained in the Code or in any other law, a scheduled offence committed in a zone in a province, shall be triable only by the Special Court exercising territorial jurisdiction in such zone.

(2) Notwithstanding anything contained in sub-section (1), if, in respect of a case involving a scheduled offence committed in any zone in a province, the Government, having regard to the provisions of sub-section (2) of section 6 and the facts and circumstances of the case, is of the opinion that it is expedient that such offence should be tried by the Special Court established in relation to such zone outside the zone, the Government may make a declaration to that effect.

Explanation.—Where a Special Court is established in relation to two or more zones, such Special Court shall be deemed, for the purpose of this sub-section, to have been established in relation to each of such zones.

(3) A declaration made under sub-section (2) shall not be called in question in any court.

(4) Where any declaration is made in respect of any offence committed in a zone in a province, any prosecution in respect of such offence shall be instituted only in the Special Court established in relation to such zone outside such zone, and, if any prosecution in respect of such offence is pending immediately before such declaration in any other court, the same shall stand transferred to such Special Court and such Special Court shall proceed with such case from the stage at which it was pending at that time.

10. Transfer of cases.—(1) Notwithstanding anything contained in the Act, the Government may, if it considers it expedient so to do in the interest of justice, or were the convenience or safety of the witnesses or the safety of the accused so requires, transfer any case—

(a) from any court to a Special Court; or

(b) from one Special Court to another Special Court within or outside the zone but in the same province.

(2) A Special Court to which a case is transferred under sub-section (1) shall proceed with the case from the stage at which it was pending immediately before such transfer and it shall not be bound to recall and rehear any witness who has given evidence and may act on the evidence already recorded.

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11. Powers of Special Courts with respect to other offences.—(1) When trying any scheduled offence a Special Court may also try any offence other than the scheduled offence with which the accused may, under the Code, be charged at the same trial.

(2) If, in the course of any trial under this Act, it is found that the accused person has committed any other offence, the Special Court, may, whether such offence is or is not a scheduled offence, convict such person of such offence and pass any sentence authorised by law for the punishment thereof.

12. Public prosecutors.—(1) For every Special Court, the Government shall appoint a person to be the Public Prosecutor and may appoint one or more person to be Additional Public Prosecutor or Additional Public Prosecutors;

Provided that the Government may also appoint for any case or class of cases a Special Public Prosecutor.

(2) Every person appointed as a Public Prosecutor or an Additional Public Prosecutor or a Special Public Prosecutor shall be deemed to be a Public Prosecutor within the meaning of section 492 of the Code, and the provisions of the Code shall have effect accordingly.

13. Procedure and powers of Special Court.—(1) The officer-in-charge of a police-station shall complete the investigation and forward directly to the Special Court a report under section 173 of the Code within fourteen days in respect of a case triable by such court;

Provided that the Special Court may extend the time within which such report is to be forwarded in a case where good reasons are shown for not being able to do so within the time specified in this sub-section.

(2) Any default on the part of an officer-in-charge of a police-station, an investigating officer or any other person required by law to perform any functions in connection with the investigation, that results in, or has the effect of, delaying the investigation or submission of the report under sub-section (1), shall be deemed to be a wilful disobedience of the order of the Special Court and dealt with under the law accordingly.

(3) The Special Court may directly take cognizance of a case triable by such court without the case being sent to it under section 190 of the Code.

(4) In cases triable by a Special Court, orders for detention of an accused in police custody under section 167 of the Code shall be obtained from the Special Court Concerned which shall record reasons for authorising or refusing such detention:

Provided that, where an accused cannot within twenty-four hours be produced before the Special Court, a temporary order for police custody no exceeding twenty-four hours may be obtained from the nearest Magistrate for the purpose of producing the accused before the Special Court within that period.

(5) Where, in a case triable by the Special Court, an accused has been released from police custody under section 169 of the Code, or has been remanded to judicial custody, the Special Court may, on good grounds being shown by a Public Prosecutor or Law Officer of the Government, for reasons to be recorded in writing, make an order for placing him in police custody for a period not exceeding ten days for the purpose of further investigation in the case.

(6) For the purposes of sub-sections (4) and (5), a Special Court shall be deemed to be a Magistrate.

(7) On taking cognizance of a case, the Special Court shall proceed with the trial from day to day and shall decide the case within thirty days.

(8) A Special Court shall not adjourn any trial for any purpose unless such adjournment is, in its opinion, necessary in the interest of justice and no adjournment shall, in any case, be granted for more than two working days.

(9) A Special Court shall not, merely by reason of a change in its composition or transfer of a case under sub-section (1) of section 10, be bound to recall and re-hear any witness who has given evidence and may act on the evidence already recorded.

(10) Any accused person may be tried in his absence if the Special Court, after such inquiry as it deems fit, is satisfied that—

(a) such absence is deliberate and brought about with a view to impending the course of justice; or

(b) the behavior of the accused in court has been such as to impede the course of justice and the Special Court has on that account ordered his removal from the Court:

Provided that, in a case referred to in clause (a) the accused person shall not be tried unless a proclamation in accordance with the provisions of Section 87 of the Code has been published in respect of him, which proceedings shall be completed by the Special Court within seven days, and until the proclamation has been published in at least three national daily newspapers out of which one shall be in Urdu language and the Court may also proceed under section 88 of the code;

Provided further that the Special Court shall proceed with the trial after taking necessary steps to appoint an advocate to defend the accused person who is not before the Court.

Explanation.—An accused who is tried in his absence under sub-section (10) shall be deemed not to have admitted commission of any offence for which he has been charged.

(11) the advocate appointed under the second proviso to sub-section (10) shall be a person selected by the Special Court for the purpose and he shall be engaged at the expense of the Government and a notice of his appointment shall be published by the Special court in the newspapers referred to in the first proviso to that sub-section.

(12) If, within sixty days from the date of his conviction, any person tried under sub-section (10) appears voluntarily, or is apprehended and brought before the Special Court, and proves to its satisfaction that he did not abscond or conceal himself for the purpose of avoiding the proceeding against him, the Special Court shall set aside his conviction and proceed to try him in accordance with law for the offence for which he is charged:

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Provided that, the Special Court may exercise its powers under this sub-section in a case in which a person as aforesaid appears before it after the expiration of the said period and satisfies it that he was prevented from appearing within the said period by circumstances beyond his control.

(13) Where a scheduled offence is punishable with imprisonment for a term not exceeding three years, or with fine, or with both, a Special Court may, notwithstanding anything contained in sub-section (1) of section 260 or section 262 of the Code, try the offence in a summary way in accordance with the procedure prescribed in the Code and the provisions of sections 263 to 265 of the Code shall, so far as may be apply to such trial: and

Provided that, in the case of any conviction in a summary trial under this section, it shall be lawful for a Special Court to pass a sentence of rigorous imprisonment for a term not exceeding two year:

Provided further that a Special Court shall not try in a summary way any case which was pending in any Court immediately before the commencement of this Act and is transferred to the Special Court under Section 10.

(14) Subject to the other provisions of this Act, a Special Court shall, for the purpose of trial of any offence, have all the powers of a court of Session and shall try such offence as if it were a Court of Session as for as may be in accordance with the procedure prescribed in the Code for trial before a Court of Session.

14. Protection of witnesses.— All proceedings before a Special Court shall be conducted in open Court.

Provided that, where the Public Prosecutor so applies or the Special Court considers it necessary so to do for any reason, any proceedings or part thereof may be held in camera.

(2) A Special Court may, on an application made by a witness in any proceedings before it or by the Public Prosecutor in relation to such witness or on its own motion, take such measures as it deems fit for keeping the identity and address of the witness secret.

(3) In particular and without prejudice to the generality of the provisions of sub-section (2), the measures which a Special Court may take under that sub-section may include

(a) the holding of the proceedings at a protected place;

(b) the avoiding of the mention of the names and addresses of the witnesses in its orders or judgments or in any record of the case accessible to public; and

(c) the issuing of any directions for securing that the identity and addresses of the witnesses are not disclosed.

(4) Any person who contravenes any direction issued under sub-section (2) shall be punishable with rigorous imprisonment for a term of three years and with fine which may extend to ten thousand rupees.

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15. Manner and place of execution of sentence.—The Government may specify the manner, mode and place of execution of any sentence passed under this Act, having regard to the deterrent effect which such execution is likely to have.

16. Power to transfer cases to regular courts.—Where, after taking cognizance of any offence, a Special Court is of opinion that the offence is not a scheduled offence, it shall, notwithstanding that it has no jurisdiction to try such offence, transfer the case for trial of such offence to any court having jurisdiction under the Code and the court to which the case is transferred may proceed with the trial of the offence as if it had taken cognizance of the offence.

17. Appeal.—(1) An appeal against the final judgment of the Special Court shall lie to the Supreme Ap pellate Court which shall consist of—

(a) a Chairman, being a Judge of the Supreme Court to be nominated by the government after consultation with the Chief Justice of Pakistan: and

(b) two Judges of the High Courts to be nominated by the Government after consultation with the Chief Justice of the High Court concerned.

(2) The Government may establish as many Supreme Appellate Courts as it may deem necessary.

(3) Copies of the judgment of a Special Court shall be supplied to the accused and the Public Prosecutor free of cost on the day the judgment is pronounced and the record of the trial shall be transmitted to the Supreme Appellate Court within three days of the decision.

(4) An appeal under sub-section (1) shall be preferred by a person sentenced by the Special Court to the Supreme Appellate Court within seven days of the passing of the sentence.

(5) The Attorney General or Advocate General may, or on being directed by the Government shall, present to the Supreme Appellate Court an appeal against the order of acquittal or a sentence passed by a Special Court within thirty days of such order.

(6) An appeal under this section shall be heard and decided by the Supreme Appellate Court within thirty days.

(7) A Supreme Appellate Court shall sit at such places, and have jurisdiction within such territorial limits, as may be fixed by the Government.

(8) In exercise of the appellate jurisdiction, a Supreme Appellate Court shall, subject to the provisions of this Act, have all the powers conferred on an Appellate Court under Chapter XXXI of the Code.

18. Trial before special Court to have precedence.—The trial under this Act of any offence by a Special Court, and appearance of the accused before it, shall have precedence over the trial of any other case against the accused in any other Court, except the High Court on its original side.

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19. Modified application of certain provisions of the Code.—(1) Notwithstanding anything contained in the code or any other law, every scheduled offence shall be deemed to be a cognizable offence within the meaning of clause (f) of Section 4 of the Code and "cognizable case" as defined in that clause shall be construed accordingly.

(2) Sections 374 to 379 of the Code shall apply in relation to a case involving a scheduled offence subject to the modification that the reference to "Court of Session" and "High Court", wherever occurring therein, shall be construed as reference to "Special Court" and "Supreme Appellate Court", respectively.

(3) Notwithstanding the provisions of sections 439, 496, 497, 498, 498A and 561 A of the Code, no Court other than the Special Court shall have the power or jurisdiction to grant bail to an accused person in a case triable by a Special Court:

Provided that the Special Court shall not release the accused on bail if there are reasonable grounds for believing that he has been guilty of the offence for which he has been charged, nor shall

an accused person be so released unless the prosecution has been given notice to show cause why he should not be so released.

20. Overriding effect of Act.—(1) The provisions of this Act shall have effect notwithstanding anything contained in the Code or any other law but, save as expressly provided in this Act, the provisions of the code shall, in so far as they are not inconsistent with the provisions of this Act, apply to the proceedings before a Special Court; and for the purpose of the said provisions of the Code, the Special Court shall be deemed to be a Court of Session.

(2) In particular and without prejudice to the generality of the provisions contained in sub-section (1), the provisions of section 350 of the code shall, as far as may be, apply to the proceedings before a Special Court, and for this purpose any reference in those provisions to a magistrate shall be construed as a reference to the Special Court.

21. Delegation.—The Government may, by notification, delegate, subject to such conditions as may be specified, all or any of the powers exercisable by it under this Act.

22. Power to amend the Schedule.— The Government may, by notification, amend the Schedule so as to add an entry thereto or modify or omit any entry therein.

23. Power to make rules.—The Government may, by notification, make such rules, if any, as it may deem necessary for carrying out the purposes of this Act.

24. Saving.—(1) Nothing contained in this Act shall affect the jurisdiction exercisable by, or the procedure applicable to, any Court or other authority under any law relating to the Naval, Military or Air Force or any other armed force of the Government.

(2) For the removal of doubts, it is hereby declared that, for the purpose of any such law as is referred to in sub-section (1), a Special Court shall be deemed to be a court of ordinary criminal jurisdiction.

(3) Nothing contained in this Act shall affect any proceedings pending in any Special Court constituted under the Suppression of the Terrorist Activities (Special Courts) Act, 1975 (XV of 1975), immediately before the commencement of this Act.

25. Presumption as to certain offences.—(1) Where any person accused of having committed a scheduled offences is found to be in possession of, or to have under his control, an article or thing which is capable of being used for, or in connection with, the commission of such offence, or is apprehended, in circumstances which tend to raise a reasonable suspicion that he has committed such offence, he shall be presumed to have committed the offence unless he can prove that he had not in fact committed the offence.

(2) Where a person is accused of having committed by scheduled offence specified in sub-section (3), in a terrorist affected area and it is shown that such person had been at a place in such area at a time when firearms or explosives were used at or from that place to attack or resist the members of any armed forces or the forces charged with the maintenance of public order acting in the discharge of their duties, it shall be presumed, unless the contrary is shown, that such a person had committed such offence.

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(3) The offences referred to in sub-section (2) are the following:—

(a) sections 121, 121A, 122, 123, 123A and 124A of the Pakistan Penal Code (Act XLV of 1860) and;

(b) criminal conspiracy or attempt to commit, or abetment of, any of the aforesaid offences.

26. Contempt of Court.—A Court shall have the power to punish with rigorous imprisonment for a term which may extend to one year and with fine any person who—

(a) abuses, interferes with or obstructs the process of the Court in any way or disobeys any order or direction of the Court;

(b) scandalizes the Court or otherwise does anything which tends to bring the Court or a person constituting the Court into hatred, ridicule or contempt;

(c) does anything which tends to prejudice the determination of a matter pending or most likely to come up before the court; or

(d) does anything which, by any other law, constitutes contempt of Court.

Explanation.—In this section , "Court" means a Special Court or, as the case may be, a Supreme Appellate Court.

27. Indemnity.— No suit, prosecution or other legal proceedings shall lie against any person in respect of anything which is in good faith done or intended to be done under this Act.

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THE SCHEDULE

[*See* Section 2(f)]

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1. Offences under the following provisions of the Pakistan Penal Code (Act XLV of 1860);

(a) sections 121, 121A, 122, 123, 123A,124A;

(b) sections 216 and 216A, if committed in relation to any offender who is accused of having committed any of the offences specified in this schedule;

(c) sections 253, 295A, 302, 304, 315 363, 364, 364A, 365, 365A, 367, 368, 392, to 402, 436, and 440.

2. Offences under Section 25 of the Telegraph Act, 1885(XIII of 1885)

3. Offences under Sections 126, 127 and 128 of the Railways Act 1890 (IX of 1890).

4. Offences under the Explosive Substances Act, 1908 (VI of 1908).

5. Offences under the Arms Act, 1878(XV of 1878).

6. Offences under the Pakistan Arms Ordinance, 1965 (W.P. Ordinance No. XX of 1965).

7. Any offence punishable under sub-section (1) of Section 13 of the Prevention of Anti National Activities Act 1974 (VII of 1974), if such offence constitutes anti-national activity within the meaning of sub-clause (i) or sub-clause (ii) of clause (a) of section 2 of that Act.

8. Any offence under the Surrender of Illicit Arms Act, 1991 (XXI of 1991): and

9. Any attempt or conspiracy to commit, or any abetment of, any of the aforesaid offences.

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THE TRAFFIC OFFENCES (SPECIAL COURTS) ORDINANCE, 1981

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Constitution of Special Courts
4. Jurisdiction of Special Court
5. Transfer of pending cases
6. Appeal
7. Power to make rules

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THE TRAFFIC OFFENCES (SPECIAL COURTS) ORDINANCE, 1981.

ORDINANCE No. XXXIX OF 1981

[*29th December, 1981*]

An Ordinance to constitute Special Courts for the speedy disposal of cases pertaining to traffic offences.

WHEREAS it is expedient to constitute Special Courts for the speedy disposal of cases pertaining to traffic offences and for matters connected therewith and ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Provisional Constitution Order, 1981, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Traffic Offences (Special Courts) Ordinance, 1981.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Special Court" means a Special Court constituted under section 3; and

(b) "traffic offence" means an offence punishable under the Provincial Motor Vehicles Ordinance, 1965 (W.P Ordinance No. XIX of 1965).

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3. Constitution of Special Courts.—(1) The Provincial Government shall, by notification in the official Gazette, constitute, for the whole or any part of the Province, a Special Court consisting of a person who is—

(a) a local dignitary; or

(b) a member of a Local Council constituted under the law relating to local government; or

(c) an advocate of not less than five years' standing; or

(d) a serving Magistrate.

(2) A Special Court shall sit at such place as the Provincial Government may direct.

(3) The terms and conditions of a person appointed as a Special Court shall be such as the Provincial Government may determine.

(4) A Special Court shall have all the powers conferred by the Code of Criminal Procedure, 1898 (Act V of 1898), on a Magistrate of the first Class.

(5) A Special Court shall follow the procedure prescribed by the Code of Criminal Procedure, 1898 (Act V of 1898), for trial of cases by Magistrates, and a person conducting prosecution before a Special Court shall be deemed to be a Public Prosecutor.

[1][(5A) A Special Court may, if it thinks fit, try a traffic offence in a summary way in accordance with the provisions contained in sections 262 to 265 of the Code of Criminal Procedure, 1898 (Act V of 1898)].

(6) All proceedings before a Special Court shall be deemed to be judicial proceedings within the meaning of sections 193 and 288 of the Pakistan Penal Code (Act XLV of 1860), and the Special Court shall be deemed to be a Court for the purposes of sections 480 and 482 of the Code of Criminal Procedure, 1898 (Act V of 1898).

4. Jurisdiction of Special Court.—(1) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), or the Provincial Motor Vehicles Ordinance, 1965 (W.P Ordinance No. XIX of 1965), the traffic offences shall be triable exclusively by a Special Court.

(2) If in the course of a trial before the Special Court, the Court is of opinion that any of the offences which the accused is alleged to have committed is not a traffic offence, the Court shall record such opinion and try the accused only for such offence, if any, as is a traffic offence.

5. Transfer of pending cases.—(1) Upon the constitution of a Special Court, all cases to which the jurisdiction of the Special Court extends and which may be pending in any Court immediately before the constitution of the Special Court shall stand transferred to the Special Court.

(2) In respect of a case transferred to a Special Court by virtue of sub-section (1), the Special Court shall not, by reason of such transfer be bound to recall and rehear any witness who has given evidence in the case before the transfer and may act on the evidence already recorded by or produced before the Court which tried the case before the Transfer.

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6. Appeal. An appeal from a judgment of a Special Court shall lie to the Court of Session [2][except in a case tried summarily in which a Special Court passes a sentence of fine not exceeding two thousand rupees only].

7. Power to make rules. The Provincial Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

[1] Ins. by the Traffic Offences (Special Courts) (Amdt.) Ordinance, 1982 (24 of 1982), s. 2.
[2] Ins. *ibid.*, s.3.

THE WIRELESS TELEGRAPHY ACT, 1933

CONTENTS

1 Short title, extent and commencement.

2 Definitions.

3 Prohibition of possession of wireless telegraphy apparatus without license.

4 Power of Federal Government to exempt persons from provisions of the Act.

5 Licenses.

6 Offence and penalty.

7 Power of search.

8 Apparatus confiscated or having no owner to be property of Federal Government

9 [*Repealed*.]

10 Power of Federal Government to make rules

11 Saving of Telegraph Act, 1885

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THE WIRELESS TELEGRAPHY ACT, 1933

[1]ACT No. XVII OF 1933

[11th September, 1933]

An Act to regulate the possession of wireless telegraphy apparatus.

WHEREAS it is expedient to regulate the possession of wireless telegraphy apparatus in [2][Pakistan];

It is hereby enacted as follows:

1. Short title, extent and commencement.—(1) This Act may be called the [3]* Wireless Telegraphy Act, 1933.

[4][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date[5] as the [6][Federal Government] may, by notification in the [7][official Gazette], appoint.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,-

(1) "wireless communication" means the making, transmitting or receiving of telegraphic, telephonic or other communications by means of electricity or magnetism without the use of wires or other continuous electrical conductors between the transmitting and the receiving apparatus;

(2) "wireless telegraphy apparatus" means any apparatus, appliance, instrument or material used or capable of use in wireless communication, and includes [8][video recording or reproducing apparatus [6][television broadcast receiving satellite antenna] and] any article determined by rule made under section 10 to be wireless telegraphy apparatus, but does not include any such apparatus, appliance, instrument or material commonly used for other electrical purposes, unless it has been specially designed or adapted for wireless communication or forms part of some apparatus, appliance, instrument or material specially so designed or adapted, nor any article determined by rule made under section 10 not to be wireless telegraphy apparatus; and

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[1]For Statement of Objects and Reasons, see Gazette of India, 1933, Pt.V, page 8.

The Act has been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt.I, p.1499.

It has also been extended to the ___

(i) Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953),as ameded;

(ii) Khairpur State by the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O. 5 of 1953), as amended; and

(iii) State of Bahawalpur by G.G.O. 11 of 1953 as amended.

The Act has been and shall be deemed to has been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960),s.2.

The Act, rules, notification and orders under it, have been applied, subject to certain modification, to the Tribal Areas or to the parts of those areas to which they have not been already applied, see the Tribal Areas (Application of Acts) Regulation, 1965, see Gazette of P.,1965, Ext., pp.1016-1018.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

[3]The word "Indian" omitted by A.O., 1949.

[4]Subs. by Ordinance 21 of 1960, s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2), as amended by A.O., 1949 and Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8.

[5]The 1st January,1934: see Gazette of India, 1933, Pt.I, p.1131.

[6]Ins. by Act VII of 1940,s.3.

[7]Subs.by A.O., 1937, for "Gazette of India".

[8]Ins. by the Finance Ordinance, 1984 (28 of 1984), s.2.

(3) "prescribed" means prescribed by rules made under section 10.

3. Prohibition of possession of wireless telegraphy apparatus without license. Save as provided by section 4, no person shall possess wireless telegraphy apparatus except under and in accordance with a license issued under this Act.

4. Power of Federal Government to exempt persons from provisions of the Act.—The [1][Federal Government] may by rules made under this Act exempt any person or any class of persons from the provisions of this Act either generally or subject to prescribed conditions, or in respect of specified wireless telegraphy apparatus.

5. Licenses.—[2][(1)] [3][The Director-General, Pakistan Post Office, or an officer authorized by him in this behalf,] shall be the authority competent to issue licenses to possess wireless telegraphy apparatus under this Act, and may issue licenses in such manner, on such conditions and subject to such payments as may be prescribed [4][:]

[5][Provided that where, by an agreement with the Pakistan Television Corporation Limited, the [6][Federal Government] appoints the Corporation to be its agent in the matter of issuing licenses to possess television receiving apparatus, [6][broadcast receiving satellite antenna] [7][and video recording or reproducing apparatus] the authority competent to issue licenses to possess such apparatus shall be the Chairman of that Corporation or a person authorized by him in this behalf, who may issue licenses in such manner, on such conditions and subject to such payments as may be prescribed.]

[9][(2) Notwithstanding anything contained in section 4 of the Telegraph Act, 1885 (XIII of 1885), no licence under that Act shall be necessary for the possession of a television receiving apparatus [3][or television broadcast receiving satellite antenna] for possessing which a licence issued under this Act is for the time being in force.]

6. Offence and penalty.—(1) Whoever possesses any wireless telegraphy apparatus in contravention of the provisions of section 3 shall be punished, in the case of the first offence, with fine which may extend to one hundred rupees, and, in the case of a second or subsequent offence, with fine which may extend to two hundred and fifty rupees.

(2) For the purposes of this section a Court may presume that a person possesses wireless telegraphy apparatus if such apparatus is under his ostensible charge, or is located in any premises or place over which he has effective control.

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[1]Subs. by F.A.O., 1975, Art.2 and Table, for "Central Government" which was previously amended by A.O.,1937, for "G.G. in C.".
[2]Re-numbered by the Wireless Telegraphy (Amdt.) Ordinance, 1970 (10 of 1970), s.2 (*w.e.f. 1st January, 1970*).
[3]Subs. by the Posts and Telegraphs (Amdt.) Act, 1962 (5 of 1962),s.4, for "The telegraph authority constituted under the Telegraph Act, 1885," (*with effect from the 1st July, 1962*).
[4]Subs. by Ord.10 of 1970, s.2 for full-stop.
[5]Proviso added by the Wireless Telegraphy (Amdt.) Ordinance, 1970 (10 of 1970),s.2 (*w.e.f. 1st Jan,1970*).
[6]Ins. by Act No.VII of 1990,s.3.
[7]Ins. by the Finance Ordinance, 1984 (28 of 1984), s.2.
[9]Sub-section (2) added by Ord. 10 of 1970, s.2, (*with effect from 1st January, 1970*).

(3) If in the trial of an offence under this section the accused is convicted the Court shall decide whether any apparatus in respect of which an offence has been committed should be confiscated, and, if it so decides, may order confiscation accordingly.

7. Power of search.—(1) [1]* * * A Magistrate of the first class or a Magistrate of the second class specially empowered by the [2][Federal Government] in this behalf, may issue a warrant for the search, at any time between sunrise and sunset, of any building, vessel or place in which he has reason to believe that any wireless telegraphy apparatus, in respect of which an offence punishable under section 6 has been committed, is kept or concealed.

(2) The officer to whom the search warrant under sub-section (1) is addressed may enter into any building, vessel or place mentioned in the warrant and seize any wireless telegraphy apparatus in respect of which he had reason to believe an offence under section 6 has been committed.

8. Apparatus confiscated or having no owner to be property of Federal Government. All wireless telegraphy apparatus confiscated under the provisions of sub-section (3) of section 6, and all wireless telegraphy apparatus having no ostensible owner shall be the property of the 2[Federal Government].

9. [Power of Court to direct payment of fines to prescribed authority.] Rep. by A.O., 1937.

10. **Power of Federal Government to make rules**.—(1) The [1][Federal Government] may, by notification in the [3][official Gazette], make rules for the purpose of carrying into effect the provisions of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for

(i) determining that any article or class of articles shall be or shall not be wireless telegraphy apparatus for the purposes of this Act;

(ii) the exemption of persons or classes of persons under section 4 from the provisions of this Act;

(iii) the manner of and the conditions governing the issue, renewal, suspension and cancellation of licenses, the form of licenses and the payments to be made for the issue and renewal of licenses;

(iv) the maintenance of records containing details of the acquisition and disposal by sale or otherwise of wireless telegraphy apparatus possessed by dealers in wireless telegraphy apparatus;

(v) the conditions governing the sale of wireless telegraphy apparatus by dealers in and manufacturers of such apparatus ; [4]*

[1]The words "A Presidency Magistrate, or" omitted by A.O., 1949.
[2]Subs. by F.A.O., 1975, Art.2 and Table, for "Central Government" which was previously amended by A.O., 1937, for "G.G. in C.".
[3]Subs. by A.O., 1937, for "Gazette of India".
[4]For the India Wireless Telegraphy (Possession) Rules, 1933, made under this section, see Gazette of India, 1933, Pt. I, p.1131. For the Wireless Telegraphy (Possession) Rules, 1957, see Gazette of P., 1957, Pt.I, pp.167-169.

[1]* * * * * * *

(3) In making a rule under this section the [1][Federal Government] may direct that a breach of it shall be punishable with fine which may extend to one hundred rupees.

11. **Saving of Telegraph Act, 1885**.—Nothing in this Act contained shall authorise the doing of anything prohibited under the Telegraph Act, 1885, and [2][except as provided in sub-section (2) of section 5,] no license issued under this Act shall authorise any person to do anything for the doing of which a license or permission under the Telegraph Act, 1885, is necessary.

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[1]The word "and" and clause (vi) omitted by the Repealing and Amending Act, 1940 (32 of 1940), s.2 and 1st Sch.
[2]Subs. by F.A.O., 1975, Art.2 and Table, for "Central Government" which was previously amended by A.O., 1937, for "G.G. in C.".
[3]Ins. by the Wireless Telegraphy (Amdt.) Ordinance, 1970 (10 of 1970), s.3 (with effect from 1st January, 1970).

THE WOMEN IN DISTRESS AND DETENTION FUND ACT, 1996

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THE WOMEN IN DISTRESS AND DETENTION FUND ACT, 1996
ACT NO. XV OF 1996

An Act to establish a fund for women in distress and detention

WHEREAS it is expedient to provide for establishment of a fund for women in distress and detention in need of legal aid and assistance and for matters connected therewith or incidental thereto;

It is hereby enacted as follows: —

1. Short title, extent and commencement.—(1) This Act may be called the Women in Distress and Detention Fund Act, 1996.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context—

(a) "Board means the Board Governors set up under section 6 ;

(b) "Fund" means the Fund for women in Distress and Detention established under section 3; and

(c) "women in distress and detention" means a female or a class of females in need of financial assistance to alleviate her or their miseries due to detention, litigation or for similar connected matters.

3. **Establishment of the Fund**. The Federal Government shall establish the Fund for Women in Distress and Detention to carry out the purposes of this Act.

4. **Purpose of the Fund**.The purpose of the Fund shall be to provide financial and legal assistance to women in distress and detention.

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5. Sources of Fund.—(1) The Fund shall consist of the following sources, namely:—

(a) grants from the Federal Government and Provincial Governments;

(b) aid and assistance from local, national and international agencies;

(c) contributions from the statutory bodies,, corporations, private organizations and individuals;[1][*]

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[1]Omitted by Ord. 112 of 2002,s.2.

(d) income and earnings from the moveable and immovable properties acquired or leased by the fund[1][;and]

[1][(e) any income from the investment of the amount credited to the Fund.]

(2) The amount credited to the Fund shall not lapse at the end of a financial year and shall be available for utilization at any time.

[1][(3) The capital of the Fund in full or a part thereof may be invested in any Government savings scheme and the interest, profit or earnings thus obtained may be utilized for the purposes of the Fund.]

6. Board of Governors. — (1) The management, overall control and supervision of the affairs of the Fund shall vest in a Board of Governors consisting of the following members, namely:—

[2][(a)	Minister-in-charge of the Administrative Division;	Chairperson
(b)	One-women member each of the National Assembly and the Senate to be nominated by the Speaker and the Chairman respectively;	Members
(c)	Secretary of the administrative Division	Member
(d)	One women prominent social worker from each province to be nominated by the Provincial government; and	Members
(e)	An officer in BS-20 or above of the administrative Division	Member-cum-Secretary]

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(2) The members of the Board, other than ex-officio members, shall hold office for a term of three years and shall be eligible for re-appointment.

(3) No act or proceeding of the Board shall be invalid merely on the ground of existence of any vacancy or defect in the constitution of the Board.

(4) The Board may coopt any other persons for performance of its functions.

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[1]Added by Ord. 112 of 2002,s.2.
[2]Subs, by Act No. XIX of 2018, s.2.

(5) The Secretariat of the Board shall be at Islamabad.

(6) The Board may appoint an executive committee for carrying out its functions as may be assigned to it by the Board.

(7) The meeting of the Board shall be presided over by the Chairman or, in his absence, by the Secretary, Ministry of [1][Human Rights.]

7. Functions and powers of the Board. The Board shall—

(a) sanction disbursement out of the fund amongst women in distress and detention;

(b) make appointment of the staff of the Board;

(c) acquire, sell and purchase property of the fund; and

(d) manage and control the fund.

8. Exemption from tax. Notwithstanding anything contained in the Income Tax Ordinance, 1979 (XXXI of 1979), Wealth Tax Act, 1963 (XV of 1963), Zakat and Ushr Ordinance, 1980 (XVIII of 1980), all contributions and donations to be Fund shall be exempt from levy of these taxes and deduction of *Zakat*.

9. Accounts of the Fund, etc. — (1) The accounts of the Fund shall be audited by the Auditor- General of Pakistan and shall be laid before the National Assembly.

(2) The Board shall, periodically, submit reports to the Federal Government relating to the Fund and its activities.

10. Delegation of Powers. The Board may delegate all or any its powers and functions to the Chairman or a member of the Board, executive committee, Provincial Government or any other authority as it may deem fit.

11. Rules.—(1) The Board may make rules for carrying out the purposes of this Act.

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(2) In particular and without prejudice to the generality of the foregoing provision, such rules may include—

(a) procedure for disbursement of the fund;

(b) resignation of non-official members ; and

(c) appointment of members on seats becoming vacant due to death or resignation of a non- official member.

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[1]Subs. by Act I of 2012. s.2.